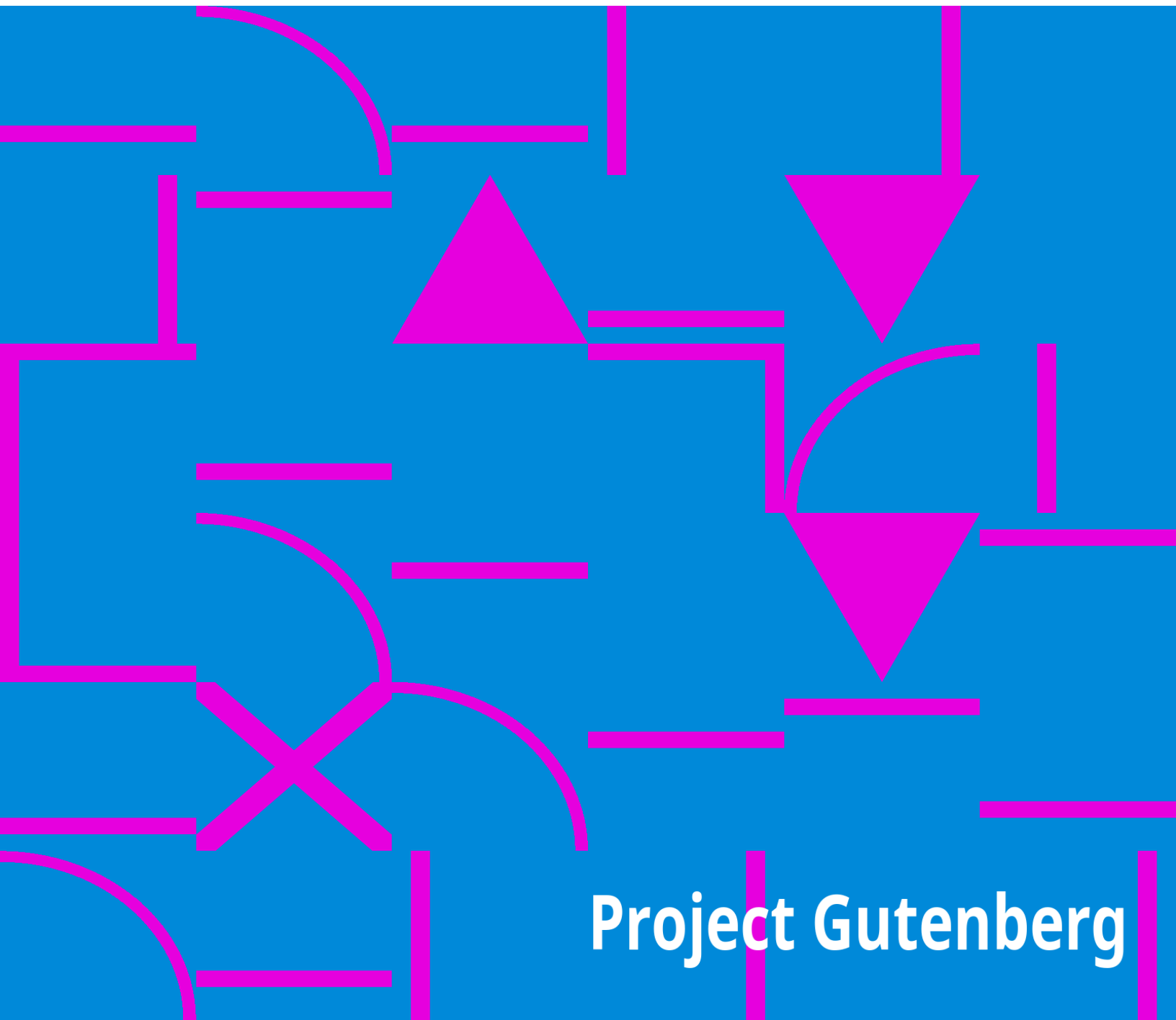


Fifty Years of Public Service

Shelby M. Cullom

The background of the lower half of the image is a solid blue color. Overlaid on this is a complex, abstract pattern of magenta (bright pink) geometric shapes. These shapes include various line segments, some horizontal and some vertical, as well as several triangles of different sizes and orientations. There are also curved lines and arcs interspersed among the straight lines. The overall effect is a modern, graphic design.

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Fifty Years of Public Service

Shelby M. Cullom



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Transcriber's notes:

The dieresis is transcribed by a preceding hyphen. Caps and small caps have been set as upper and lower case. Names have been corrected

Chapter VIII: "La Fayette", Indiana, kept as a contemporary variant spelling. McPherson, "clerk of the house" changed to "Clerk of the House" (of Representatives).

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FIFTY YEARS OF PUBLIC SERVICE

[Frontispiece]

Photo, by Prince Tota, Washington, D. C.

[Facsimile signature]

SMCullom

FIFTY YEARS OF PUBLIC SERVICE

***PERSONAL RECOLLECTIONS OF SHELBY M. CULLOM SENIOR UNITED STATES
SENATOR FROM ILLINOIS***

WITH PORTRAITS

SECOND EDITION CHICAGO A. C. McCLURG & CO. 1911

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FOREWORD

"Oh, that mine adversary had written a book!"

Such was the exclamation of one who, through the centuries, has been held up to the world as the symbol of patience and long suffering endurance, and who believed that he thus expressed the surest method of confounding an enemy.

I have come to that age in life where I feel somewhat indifferent as to consequences, and, yielding to the suggestions and insistence of friends, I determined that I would undertake to write some recollections, as they occurred to me, of the men and events of my time.

Naturally, to me the history of the period covered by my life since 1829 is particularly interesting. I do not think that I am prejudiced when I assert that while this period has not been great in Art and Letters, from a material, scientific, and industrial standpoint it has been the most wonderful epoch in all the world's history.

About the period of my birth General Andrew Jackson was first elected President of the United States. Jackson to me has always been an interesting character. Theodore Roosevelt has declared very little respect for him, and has written deprecatingly—I might say, even abusively—of him. But the

truth is, there were never two Presidents in the White House who, in many respects, resembled each other more nearly than Jackson and Roosevelt.

Jackson was sixty-one years old when elected President—an unusually old man to be elected to that high office; and he had served his country during the War of the Revolution. When I consider this the thought occurs to me, How young as a Nation we are, after all. Why, I date almost back to the Revolution! President Taft jocularly remarked to me recently: "Here's my old friend, Uncle Shelby. He comes nearer connecting the present with the days of Washington than any one whom I know." And I suppose there are few men in public life whose careers extend farther into the past than mine.

During my early life the survivors of the Revolutionary War, to say nothing of the War of 1812, were very numerous and abundantly in evidence. Up to that time, no man who had not served his country in some capacity in the Revolutionary War had been elevated to the Presidency, and this was the case until the year 1843.

During the year 1829 the crown of Great Britain descended from King George IV to King William IV. That reign passed away, and I have lived to see the long reign of Victoria come and go, the reign of Edward VII come and go, and the accession of King George V. Charles X ruled in France, Francis I in Austria (the reign of Francis Joseph had not yet begun), Frederick William III in Prussia, Nicholas I in Russia; while Leo XII governed the Papal States, the Kingdom of Italy not yet having come into existence. The United Kingdom of Great Britain and Ireland had not yet a population of 24,000,000, all told.

From the dawn of this epoch may well date the practical beginning of a long cycle of political and intellectual upheaval, and the readjustment of

relations which go to make up world-history, arriving at a culmination in our great Civil War.

In the last half-century—nay, I might say, within the last two decades—there has been a mighty impulse in the direction of scientific investigation, of mechanical invention, of preventive medicine, of economic improvement, and the like. Germany, in some respects, has led, but our own country has not been far behind. Independent research has been wonderfully productive, and rivalry has been keen. Often the mere suggestion of one scientist has been taken up and elaborated (or discredited) by other scientists; the idea of one inventor has been seized upon and bettered, or possibly proved valueless, by other inventors. The paths to the remote and inaccessible have been toiled over by rival explorers; new records have been made by rival aviators; while competitive and co-operative activities in every line have known a phenomenal growth. New names have been placed in the Pantheon of the immortals, new planets discovered in the solar system, new stars added to the clear skies of our nightly vision. Out of all the striving has come a sweeping advance in lingual requirements. In most departments of Science, Art, and Manufacture, the processes and methods of to-day are not those of yesterday, and the doers of new things have freely coined new words or given new meaning to old ones. The most complete and exhaustive encyclopaedia of yesterday is to-day found not entirely adequate to the already increased wants. Upon all these momentous factors must these "Recollections," in one way or another, touch from time to time.

Shelby M. Cullom.

Washington, D. C. *July, 1911.*

FIFTY YEARS OF PUBLIC SERVICE

CHAPTER I BIRTH TO ADMISSION TO THE BAR 1829 to 1855

Tides of migration set in about the close of the Revolutionary War, originating in the most populous of the late Colonies (now States), debouching from the western slopes of the mountain border-passes into the headwaters of Kentucky's rivers, and mingling at last in the fertile valley through which those rivers, in their lower reaches, find an outlet into the Ohio.

The westward flowing current brought with it two families—the Culloms of Maryland, and the Coffeys of North Carolina—who settled in a beautiful valley, not far from the banks of the Cumberland, which bore the euphonious name of Elk Spring Valley. Richard Northcraft Cullom, of the first-named family, married Elizabeth Coffey. They remained in Kentucky until seven children had been born to them, I being the seventh, the date of my birth occurring on the twenty-second day of November, 1829. We were a large family, but not extraordinarily numerous for those times, there being five brothers and seven sisters.

Kentucky was a Slave State, and my father did not believe in slavery. He was fairly well to do, and after considering the situation he determined to seek a home in a Free State and live there to the end of his days.

A treaty with the Indians in 1784, at Fort Stanwix, had secured from the Iroquois all claims to the lands which now make up the States of Ohio, Indiana, and Illinois. At the time of our removal the State of Illinois was only eleven years old, and but a small portion of it had any considerable settlements. These were mainly in the south half of the State. Chicago was then a small village, Fort Dearborn being at that time of more consequence than the village. Now Chicago is the second greatest city in the Union in population and business.

My father, together with Alfred Phillips and William Brown, his two brothers-in-law, entered land in the same portion of the County of Tazewell, and at once, on their arrival from Kentucky, pitched their tents and began the erection of log cabins, in preparation for winter. Phillips was a large, vigorous man, both in body and mind. He was a man of the highest integrity, and soon became one of the leading citizens of Tazewell County, continuing so until his death. William Brown was a Methodist preacher and was a worthy example of the consistent minister of the Gospel of Christ. He was called upon by the people for many miles around to perform ceremonies on wedding occasions and, in time of sorrow, to preach at the funerals of departed friends.

My father lived longer than either Phillips or Brown. They both raised large families, and to-day the youngest son of Phillips—the Hon. Isaac N. Phillips—is recognized as one of the able lawyers of the State, and is the reporter of the Supreme Court of Illinois. My father was a farmer, but he always took great interest in the affairs of the country, and especially of the State in which he lived. He was a Whig, and believed in Henry Clay. He took an active part in political campaigns, and was several times a member of the House of Representatives of the State Legislature, and once of the State Senate.

Tazewell County, in which he resided, became a very strong Whig county, the Whigs having their own way until the Free-soil party, which soon became the Republican party, took its place as against the Democratic party. When that time came, Tazewell, like Sangamon, became Democratic. Sangamon County, in which I live, and Tazewell County, in which I was raised, were both strong Whig counties while the Whig party survived; but when it died, the population being largely from Kentucky and other Southern States, naturally sympathized with the South on the question of slavery. They drifted into the Democratic party in large numbers, and gave

the control to the Democracy for a time; and the two parties still struggle for control in both counties.

My father became well acquainted with Abraham Lincoln while the latter was a young man. The first time I ever heard of Lincoln, was when two men came to my father's house to consult with him on the question of employing an attorney to attend to a law case for them at the approaching term of the Circuit Court. I remember hearing my father say to them that if Judge Stephen T. Logan should be in attendance at court, they should employ him; but if he were not, a young man named Lincoln would be there, who would do just about as well. Readers will see by this that while Lincoln was yet a young man he was ranked among the foremost lawyers at the Bar. At that time Stephen A. Douglas was beginning to be heard from.

Judge Logan was one of the best lawyers of the Mississippi Valley. He was a Kentuckian by birth, and, as a lawyer, was a very great man. Douglas was a great statesman and a leader of men; a great debater, but, in my opinion, not a great lawyer. The law is a jealous mistress; there are no great lawyers who do not give undivided attention to its study, and Douglas devoted much time to public affairs.

On the arrival of my father at the grove where he had previously determined to locate his family, he pitched his tent near a little stream, then called Mud Creek, afterwards called Deer Creek, because it was a great resort for wild deer. He soon erected a log cabin and moved into it with his family. I was less than one year old when the family located in Illinois. We lived in the cabin for several years. It was not a single cabin, but there were two cabins connected together by a covered porch; which was a very pleasant arrangement in both summer and winter.

Finally, my father built a frame house. During all this time the wild deer were numerous, and often I have counted from the door from five to twenty

deer feeding in a slough not a quarter of a mile away.

I never killed a deer. The beautiful animals always seemed to me so innocent that I had not the heart to shoot them.

The Winter of 1830-31 was long remembered by the early settlers of Illinois, and of all the now so-called Middle States, as the "winter of the deep snow." For months it was impossible to pass from one community to another in the country.

My education was obtained at the local schools and at the seminary at Mount Morris two hundred miles distant from my father's home.

In my boyhood years there were no common schools. There were only such schools in the country as the people by subscription saw proper to provide. The schoolhouse in the neighborhood in which I lived was built of logs, covered with thick boards, and supplied with rude benches on its puncheon floor for the scholars to sit upon. We sat bolt upright, there being nothing to lean against. There were no desks for our books; and had desks been obtainable there were but few books to use or care for. We boys whispered to the girls at our peril; but we took the risk occasionally.

It was my duty as a school-boy, after doing the chores and work inseparable from farm life, to walk every morning a long distance over rough country roads to school. After I had attained to a fair common-school education, I concluded that I could teach a country school, and was employed to teach in the neighborhood; first for three months at eighteen dollars per month, and then for a second term of three months at twenty. I think I have a right to assume that I did well as a teacher, since the patrons raised my wages for the second term two dollars per month.

My efforts in teaching school did not secure sufficient funds to enable me to remain at school away from home very long, and I determined to try another plan. My father had five yoke of oxen. I prevailed on him to lend them to me. I obtained a plough which cut a furrow eighteen to twenty inches wide, and with the oxen and plough I broke prairie for some months. I thereby secured sufficient money, with the additional sums which I made from the institution at Mount Morris at odd times, to enable me to remain at the Mount Morris Seminary for two years.

I never shall forget the journey from my home in Tazewell County to Mount Morris, when I first left home to enter the school. As it well illustrates the difficulties and hardships of travel in those early days in Illinois, I may be pardoned for giving it somewhat in detail.

It was in the Spring of the year. My father started with me on horseback from my home in Tazewell County to Peoria, a distance of fifteen miles. A sudden freeze had taken place after the frost had gone out of the ground, and this had caused an icy crust to form over the mud, but not of sufficient strength to bear the weight of a horse, whose hoofs would constantly break through. Whereupon I dismounted and told father that he had better take the horses back home, and that I would go to Peoria on foot, which I did.

The weather was cold, and I was certainly used up when I arrived in Peoria. I went to bed, departing early the following morning, by steamer, for Peru, a distance of twenty-five miles. From there I took the stage-coach to Dixon, a distance of twelve miles.

There came up another storm during the journey from Peru to Dixon, and the driver of the stage-coach lost his way and could not keep in the road. I ran along in front of the coach most of the way, in order to keep it in the road, the horses following me. From Dixon I crossed the river, proceeding

to Mount Morris by private conveyance. I never had a more severe trip, and I felt its effects for very many years afterwards.

The days I spent in old Mount Morris Seminary were the pleasantest of my life. I was just at the age which might be termed the formative period of a young man's career. Had I been surrounded then by other companions, by other environment, my whole future might have been entirely different. Judged by the standard of the great Eastern institutions, Mount Morris was not even a third-class college; but it was a good school, attended by young men of an unusually high order. In those early days it was the leading institution of higher learning in Northern Illinois. I enjoyed Mount Morris, and the friendships formed there continued throughout my life.

I do not know whether I was a popular student or not, but I was president of the Amphictyon Society, and, according to the usual custom, was to deliver the address on retiring from the presidency. During the course of the address I fainted and was carried from the chapel, which was very hot and very crowded. I was rolled around in the snow a while and speedily revived. I was immediately asked to let one of the boys read the remainder of the address, but the heroic treatment to which I had been subjected stirred me to profane indifference respecting its fate. Later I was selected to deliver the valedictory. So I suppose I must have enjoyed a reasonable degree of popularity among my fellow students.

It was at Mount Morris that I first became intimate with the late Robert R. Hitt. He and his brother John, who recently died, were classmates of mine, their father being the resident Methodist preacher at Mount Morris. Robert R. Hitt remained my friend from our school days until his death. He was a candidate for the Senate against me at one time, but he was no politician, and I defeated him so easily that he could not harbor a bitter feeling against me. He was quite a character, and enjoyed a long and

distinguished public career in Illinois. One of the early shorthand reporters of the State, the reporter of the Lincoln-Douglas debates, he became intimate with Lincoln, and Lincoln was very fond of him. He filled numerous important positions at home and abroad, and married a most beautiful lady, who still survives. He was later appointed Secretary of Legation at Paris.

Bob Hitt told me that he asked President Grant for the appointment, and the President at once said that he would give it to him. Washburne, who had been Secretary of State for a few days, and who was then minister at Paris, was much astonished when Hitt appeared and said that he had been appointed Secretary of Legation. Mr. Washburne denounced both President Grant and Secretary of State Fish for appointing anybody to fill such an intimate position without his consent.

Ambassadors and ministers, however, are not consulted as to who shall be appointed secretaries. These appointments are made by the President, by and with the advice and consent of the Senate; but Mr. Washburne, as usual, though that he was a bigger man than any one else, and that an exception should have been made in his case. But, when officially informed of the appointment, he submitted gracefully, and they got along together quite amicably. Strange to say, Hitt represented Washburne's old district in Congress for a number of years—many more years than Washburne himself represented it.

It was as a member of Congress that Mr. Hitt distinguished himself. He did what every man should do who expects to make a reputation as a national legislator; and that is to specialize, to become an expert in some particular branch. He was peculiarly fitted for foreign affairs. He was a man of education and culture, a student always, had served abroad for years, had mingled in the highest society, and it is not strange than in a comparatively

few years he was recognized as the leading authority on all matters coming before the House pertaining to our foreign relations.

The Foreign Affairs Committee of the House is not nearly so important a committee as the Foreign Relations Committee of the Senate, and I may be pardoned for saying that I am chairman of the latter committee myself.

The reason is this: the Constitution provides that treaties shall be made only with the advice and consent of the Senate; hence it is that all such treaties, and consequently the foreign policy of the general Government, must pass the scrutiny of the Foreign Relations Committee of the Senate while the House and its committees have nothing whatever to do with them.

But nevertheless of all the House committees, that of Foreign Affairs is at times the foremost, and it never had an abler chairman than Robert R. Hitt. He was certainly in the most remarkable degree what might be termed a specialist in legislation. He gave but scant attention to any other branch of legislation. He had little time or liking for the tariff, finance, appropriations, or for any branch of legislation that failed to come within his own especial province. He was, in fact, so indifferent to the general business of the House that he told me one day that he did not even take the trouble to select a regular seat; that when any question came up in which he was interested he would talk from the seat of some absent colleague. Hence it was that he was seldom seen on the floor of the House except when some question was raised concerning our foreign relations; at which time he was immediately sent for. And it is only justice to him to say that he was the only man in the House in his time, and no one has since appeared there, who could so successfully defend or attack the policy of an administration concerning its foreign affairs.

The late Senator Morgan of Alabama, a most extraordinary character, of whom I shall have something to say later, and Robert R. Hitt and myself

were appointed members of a commission to frame a form of government for the Territory of Hawaii, which we had just acquired. We travelled to Hawaii together. No two more delightful, entertaining, or interesting men could be found. They are both dead, and it was my sad privilege to eulogize their public achievements in the Senate.

In what I am writing from time to time, now, as the months and years go by, when I have the leisure from my public duties to devote to it, and without knowing whether what I am writing will ever be published, I do not want to eulogize any one. If what I say about men and events shall offend their friends living, I can not help it. I want only to give my own estimate of the men whom I have known. Robert R. Hitt was a good man; his honesty and uprightness were never questioned; he never did a great deal for his district but he was one of the most useful legislators in his own line—foreign affairs—whom I have ever known during my service in Congress. I think this is a fair and just estimate of him.

But to return to Mount Morris, Professor D. J. Pinckney was president of the Seminary when I was a student there. He knew my father intimately, and naturally took more than ordinary interest in me. When I became ill at school, he took me into his own home and kept me there for a month or more, treating me with the greatest kindness and consideration.

Years after I left the institution he became interested in politics, and ran as an independent for Congress against Horatio C. Burchard, Republican (who was, by the way, a very excellent man and my friend). Burchard defeated him. When the campaign was on I was invited to go to Galena and make a speech for Mr. Burchard. It never occurred to me at the time that I was going into Pinckney's district; but when I discovered the truth, I could not very well back out. I made my speech, but was careful not to say a word against Professor Pinckney, simply advocating the election of Mr. Burchard

as a good Republican. Professor Pinckney, however, took great offense, and was very cold toward me from that time until his death. I felt that he had been misled, that it would all come right, and that some day I would have a plain talk with him; but he died before we ever got together. He has a son now living in Chicago, a prominent circuit judge of Cook County.

Among other classmates of mine at Mount Morris, was the late General John A. Rawlins, who became a distinguished officer and was General Grant's chief of staff. No better, no truer, man ever lived than General Rawlins. He was essentially a good man and never had a bad habit.

Rawlins was a Democrat, and a strong one, during his school days, and I believe that he remained one until the Civil War. Robert Hitt and his brother John, together with Rawlins and myself, formed a sort of four-in-hand, and we were very intimate. We would take part in the discussions in our society, and Rawlins was especially strong when a political question was raised. I have heard him, during his school days, make speeches that would have done credit to a statesman. He would have done himself and country credit in any civil office. He served as Secretary of War a few months. Like so many others who entered the war without the slightest military training, he came out of it with a brilliant record as an officer and soldier.

Judge Moses Hallett, a United States judge, retired, of Colorado, was another classmate of mine. He was an exceptionally good man, and developed into a very able lawyer and judge. He is still living, and has become quite wealthy through fortunate real-estate investments in the vicinity of Denver.

But I fear I might tire the reader by dwelling longer on my school life at Mount Morris. To look back over those happy early days is interesting to me; but it is sad to think how few, how very few, of my schoolmates, then

just beginning the journey of life, with all the enthusiasm and hope of youth, are living to-day. They soon scattered, some to one vocation, some to another; some to achieve distinction and fame, some failure; but certain it is that I know of very few who are now living.

My health was impaired when I left school, and I returned home to work on the farm. Soon I became strong again, but the labor was so arduous and uncongenial that I determined upon a change: if there was any other way of making a honest living, I would try to find it.

In the meantime I had leased a farm of one hundred and sixty acres from my father. When Spring came I told him that I wanted to be released from my contract; that I had deliberately come to the conclusion that I could make my living some other way—that I intended to study law. My father did not hesitate to relieve me of my obligations, and the succeeding October, 1853, I started for Springfield to enter upon the study of law. I consulted with Abraham Lincoln, and on his advice I entered the law offices of Stuart and Edwards, both of whom were Whigs and friends of my father. They were both very good men and distinguished lawyers.

At that time Abraham Lincoln and Stephen T. Logan and Stuart and Edwards were the four ablest lawyers of the capital city. I studied two years in the offices of Stuart and Edwards, pursuing the usual life of a law student in a country law office, and was admitted to the Bar in 1855, and elected City Attorney the same year.

Meanwhile, however, I had been ill of typhoid fever for several months. During the period of my convalescence, I was advised to return to my home in the country and spend much time riding horseback. I did so, but the time seemed to drag, and finally I went to the city of Peoria to learn whether I could direct my restorative exercise to an additional profitable end. The result was that for several ensuing weeks I rode about the countryside,

buying hogs for Ting & Brotherson; at the expiration of which time I had regained my health, was richer by about five hundred dollars, and was thus enabled to return at once to Springfield and take up again my interrupted studies.

Having been inducted into the office of City Attorney, I was fairly launched upon a political career, exceeding in length of unbroken service that of any other public man in the country's history. In fact I never accepted but two executive appointments: the first was an unsought appointment by Abraham Lincoln, after he had become the central figure of his time, if not of all time; and, second, an appointment from President McKinley as chairman of the Hawaiian Commission.

CHAPTER II SERVICE AS CITY ATTORNEY AT SPRINGFIELD 1855 and 1856

My election as City Attorney of Springfield signalized at once my active interest in politics at the very moment when the war cloud was beginning to take shape in the political heavens—a portentous cloud, but recognized as such at that time by comparatively few of the thinking people. It had seemed certain for years that a struggle was sure to come. Being a very young man, I suppose I did not realize the horrors of a civil war, but I watched with keen interest the signs of dissolution in political parties, and realignments in party ties.

In 1854 the country seemed on the verge of a war with Spain over Cuba which happily was averted. The *Black Warrior* had been seized in Havana Harbor, and the excitement throughout the country when Congress prepared to suspend the neutrality laws between the United States and Spain was intense.

It was about this time also that the famous Ostend manifesto was issued without authority from any one. The American representatives at the Courts of England, France, and Spain met at Ostend to confer on the best method of settling the difficulties concerning Cuba and obtaining possession of the island. They issued a manifesto in which they recommended that Cuba should be purchased if possible, failing which that it should be taken by force:

"If Spain, actuated by stubborn pride and a false sense of honor, should refuse to sell Cuba to the United States, then by every law, human and divine, we shall be justified in wresting it from Spain, if we possess the power."

The Ostend manifesto was repudiated; but it is certain that we would have then intervened in favor of freeing Cuba, had it not been for the dark war clouds which were so quickly gathering over our own country.

Among the other vital conditions which helped to keep the country's interest and attention divided at this critical time was the Missouri Compromise repeal, May 30, 1855. This repealing act early began to bear political fruit. Already treaties had been made with half a score of the Indian Nations in Kansas, by which the greater part of the soil for two hundred miles west was opened. Settlers, principally from Missouri, immediately began to flock in, and with the first attempt to hold an election a bloody epoch set in for that region between the pro-slavery and anti-slavery factions, fanned by attempts in Massachusetts and other Eastern States to make of Kansas a Free State.

By methods of intimidation, Whitfield, a slave-holder, was elected the first delegate to Congress. At a second election thirteen State Senators and twenty-six members of a Lower House were declared elected. For this purpose 6,320 votes were cast—more than twice the number of legal voters.

Foreign affairs other than Spain's unfriendly activities also had a share in distracting attention. The United States paid Mexico ten million dollars to be free of the Guadalupe Hidalgo obligation to defend the Mexican frontier against the Indians.

My first experience after I was elected City Attorney, was to prosecute persons charged with violating the ordinances prohibiting the sale of intoxicating liquors. One of my preceptors, the Hon. Benjamin S. Edwards, was a strong and earnest temperance man. He volunteered to assist me in the prosecution of what we called "liquor cases." The fact is that for a time he took charge of the cases, and I assisted him. Life was made a burden to violators of liquor ordinances that year in Springfield.

The following year, 1856, was a Presidential year. I was chosen as an elector on what was called the "Fillmore Ticket." I did not at that time believe very strongly in Fremont for President. During the same year, I was nominated as a candidate for the House of Representatives of the Illinois Legislature, and was supported by both the Fillmore party and the Free-soil party and thus elected.

The House of Representatives of the Legislature of 1856 was so close that if all the members who had not been elected as Democrats united, they had one majority. If any one of them went to the Democrats, the Democrats would have the control. One of the men elected on the Fillmore ticket went over, thus giving the Democracy the coveted one necessary. The Republicans, or as they were then called, Free-soilers, attempted to organize the House by recognizing the clerk of the previous House, who was a Free-soiler, it then being the custom to have the clerk call the House to order and preside until a temporary organization was perfected. The Democrats refused to recognize the clerk whom the opposition recognized. The Democrats declared by vote the election of a temporary chairman,

nominated and elected a sergeant-at-arms and a deputy, and ordered the two latter officers to carry the clerk out of the hall; which was promptly done at the expense of a good suit of clothes to the clerk who departed reluctantly. This was my first experience in legislation.

A careful reading of the annals of the State of Illinois will show that this incident is by no means unique in its history.

To go back a few years, when Edward Coles, who had been private secretary to President Madison, was elected Governor, it was by a mere plurality vote over his highest competitor, and—to use the language of former Governor Ford—he was so unfortunate as to have a majority of the Legislature against him during his whole term of service. The election had taken place soon after the settlement of the Missouri question. The Illinois Senators had voted for the admission of Missouri as a Slave State, while her only Representative in the Lower House voted against it. This all helped to keep alive some questions for or against the introduction of slavery.

About this time, also, a tide of immigrants was pouring into Missouri through Illinois, from Virginia and Kentucky. In the Fall of the year, every great road was crowded with them, all bound for Missouri, with their money and long trains of teams and negroes. These were the most wealthy and best educated immigrants from the Slave States. Many people who had land and farms to sell, looked upon the good fortune of Missouri with envy; whilst the lordly immigrant, as he passed along with his money and droves of negroes, took a malicious pleasure in increasing it by pretending to regret the short-sighted policy of Illinois, which excluded him from settlement, and from purchasing and holding lands.

In this mode a desire to make Illinois a Slave State became quite prevalent. Many persons had voted for Brown or Phillips with this view, whilst the friends of a Free State had rallied almost in a body for Coles.

Notwithstanding the defeat of the Democrats at this election, they were not annihilated. They had been beaten for Governor only by a division in their own ranks, whilst they had elected a large majority of each House of the Assembly, and were determined to make a vigorous effort to carry their measure at the session of the Legislature to be held in 1822-23. Governor Coles, in his first message, recommended the emancipation of the French slaves. This served as the spark to kindle into activity all the elements in favor of slavery.

Slavery could not be introduced, nor was it believed that the French slaves could be emancipated, without an amendment to the Constitution; the Constitution could not be amended without a new convention, to obtain which two thirds of each branch of the Legislature had to concur in recommending it to the people; and the voters, at the next election, had to sanction it by a majority of all the votes given for members of the Legislature.

When the Legislature assembled, it was found that the Senate contained the requisite two-thirds majority; but in the House of Representatives, by deciding a contested election in favor of one of the candidates, the Slave party would have one more than two-thirds, while by deciding in favor of the other, they would lack one vote of having the majority. These two candidates were John Shaw and Nicholas Hanson, who claimed to represent the County of Pike, which then included all the military tract and all the country north of the Illinois River to the northern limits of the State.

The leaders of the Slave party were anxious to re-elect Jesse B. Thomas to the United States Senate. Hanson would vote for him, but Shaw would not; Shaw would vote for the convention, but Hanson would not. The party had use for both of them, and they determined to use them both, one after the other. For this purpose, they first decided in favor of Hanson, admitted

him to a seat, and with his vote elected their United States Senator; and then, toward the close of the session, with mere brute force, and in the most barefaced manner, they reconsidered their former vote, turned Hanson out of his seat, and decided in favor of Shaw, and with his vote carried their resolution for a convention.

There immediately resulted a very fierce contest before the people, characterized by lavish detraction and personal abuse—one of the most bitter, prolonged, and memorable in the history of the State—and the question of making Illinois permanently a Slave State was put to rest by a majority of about two thousand votes. The census of 1850 was the first that enumerated no slaves in our State.

In this connection I cannot avoid giving a little account of Frederick Adolphus Hubbard, who was Lieutenant-Governor when Coles was Governor. Hubbard seemed to be a very ignorant man, but ambitious to become Governor of the State, or to attain some other position that would give him reputation.

"It is related of him that while engaged in the trial of a lawsuit, involving the title to a certain mill owned by Joseph Duncan [who afterwards became Governor], the opposing counsel, David J. Baker, then recently from New England, had quoted from Johnson's New York reports a case strongly against Hubbard's side. Reading reports of the decisions of courts before juries was a new thing in those days; and Hubbard, to evade the force of the authority as a precedent, coolly informed the jury that Johnson was a Yankee clock-peddler, who had been perambulating up and down the country gathering up rumors and floating stories against the people of the West, and had them published in a book under the name of 'Johnson's Reports.' He indignantly repudiated the book as authority in Illinois, and clinched the argument by adding: 'Gentlemen of the jury, I am sure you will

not believe anything that comes from that source; and besides that, what did Johnson know about Duncan's mill anyhow?"(1)

Hubbard, in 1826, became a candidate for Governor of Illinois. He canvassed the State, and the following is a sample of his speeches, recorded by Ford:

"Fellow-citizens, I offer myself as a candidate before you for the office of Governor. I do not pretend to be a man of extraordinary talents, nor do I claim to be equal to Julius Caesar or Napoleon Bonaparte, nor yet to be as great a man as my opponent, Governor Edwards. Nevertheless I think I can govern you pretty well. I do not think it will require a very extraordinary smart man to govern you; for to tell you the truth, fellow-citizens, I do not believe you will be very hard to govern, nohow."(2)

In 1825, Governor Coles notified Lieutenant-Governor Hubbard that he had occasion to leave the State for a time and required the latter to take charge of affairs. Hubbard did so, and when Governor Coles returned Hubbard declined to give up the office, asserting that the Governor had vacated it. He based his contention upon that clause of the Constitution that provided that the Lieutenant- Governor should exercise all the power and authority appertaining to the office of Governor, in case of the latter's absence from the State, until the time provided by the Constitution for the election of Governor should arrive. He claimed that the Governor had vacated the office until the time of the election of a new Governor, and declined to surrender. The result was, the Governor had to get a decision of the Supreme Court, which was to the effect that there was no ground on which to award the writ. Coles was obliged to submit, but not until he had appealed to the Legislature, where his contention was equally unsuccessful.

At one time, after repeated and annoying application, Hubbard obtained from Governor Edwards what he had reason to believe was a

recommendation for a certain office. He became a little suspicious that the letter was not very strong in his behalf, and in speaking of it afterwards, in his lisping manner, said: "Contrary to the uthage amongst gentlemen, he thealed it up; and contrary to the uthage amongst gentlemen, I broke it open; and what do you think I found? Instead of recommending me, the old rathcal abuthed me like a pickpocket."

(1) Moses, page 334.

(2) Ford, page 61.

CHAPTER III ELECTION TO THE ILLINOIS LEGISLATURE: LINCOLN-DOUGLAS DEBATES 1856 to 1858

In the year 1856 I had rather unusual experiences of both victory and defeat in one and the same political campaign. As candidate for the Legislature I won out, being elected; as the chosen elector on the Fillmore ticket, I went down in the party's defeat. The Whig party was in its expiring days, and what was called the "Know- Nothing" party was apparently a temporary substitute for it. Fillmore carried one solitary state—Maryland. Buchanan was elected by quite a large majority over both Fremont and Fillmore combined.

The administration of President Buchanan has been so frequently and fully described that there is little, if anything, new to say about it; but such were the fearful responsibilities incurred by it for the subsequent bloodshed, that its shortcomings cannot be entirely ignored in the intelligible presentation of the course of events which gave direction to my observations and activities.

The campaign of 1856 had been one of the most exciting and hotly contested ever fought in the State. The only hope the Democrats had of success was in the division of their opponents and in preventing their fusion. Their denunciations of abolitionists and "Black Republicans," as they termed their antagonists, were without bounds. But here and there some one would be called to account, as in the case of the late John M. Palmer, since distinguished in war and peace, and some years ago candidate of the Gold Democrats for the Presidency.

Between him and Major Harris, then running for Congress in his district, there had been considerable ill-feeling. The major had written a letter to be read at a Democratic meeting at which Palmer was present. It was very abusive of the Republicans, and Palmer rising, remarked the fact that the author would not dare make such charges to the face of any honest man. Harris, as related by the historian Moses, hearing of this, announced that he would resent it at the first opportunity. This Palmer soon gave him by attending one of his meetings. The major in the course of his remarks indulged in the most vituperative language against abolitionists, calling them disturbers of the peace, incendiaries, and falsifiers; and at length, turning to Palmer and pointing his finger at him, said, "I mean you, sir!" Palmer rising to his feet, instantly replied, "Well, sir, if you apply that language to me you are a dastardly liar!" And drawing a pistol, he started toward the speaker's stand. "Now, sir," he continued, "when you get through, I propose to reply to you." The major had not anticipated this turn of affairs, but prudently kept his temper and finished his speech. Then Palmer arose and, laying his weapon before him, cocked, proceeded to give the Democratic party such a castigation as none of those present had ever heard before.

It was in the campaign of 1856 that I first began to make political speeches. James H. Matheny, who was then our circuit clerk, accompanied

me to several meetings where we both delivered addresses. He was an old Whig inclined toward Democracy, and I was a Whig inclined toward Republicanism. The result was I made Republican speeches, while Judge Matheny made Democratic speeches.

Our first meeting away from home was at Petersburg, Menard County. Being a candidate for elector on the Fillmore ticket, I made my first away-from-home speech, which I thought was a pretty good Republican speech. Matheny followed me with a hot Democratic speech, attacking especially Judge Trumbull, then our United States Senator. I remained pretty steadily in the campaign of that year, making about the same character of speech wherever I went.

Fillmore was very popular in Central Illinois, where the Whig party also had quite a large following during its palmy days, but he did not receive votes enough to come anywhere near carrying the State. Sangamon, my home county, and Tazewell County, where I was brought up, both gave their majority votes for Fillmore.

The Hon. John T. Stuart and his partner, the Hon. B. S. Edwards, with whom I studied law, besides being able lawyers and first-class men, were both Whigs; Mr. Stuart especially took an active part in the campaign. The latter was invited to attend what was called a Fillmore meeting at Shelbyville, several counties away from Sangamon. It so happened that he could not go, and the people of Shelbyville telegraphed for me. I went, and it turned out to be a combined Fremont, Buchanan, and Fillmore meeting—at least the three meetings there were held all on the same day.

The Fillmore camp gathered its forces out in the woods until about two o'clock in the afternoon. The Buchanan and Fremont crowds then marched in, informing the first-comers that they regarded their right to have the first meeting pre-eminent. An agreement was arrived at after some little

wrangling, and old General Thornton was chosen to preside. He determined that, as I was not only a young man but the farthest from home, I should make the first speech—an arrangement that suited me very well.

I made my speech, as good a one as I could, and in closing, somewhat hurriedly announced that I was obliged to leave for home, much as I might wish to remain with them to the close of the meeting. The result was that most of the Fillmore people followed me away and came nearly breaking up the whole performance. I urged them to go back and listen to the other speakers; but they declined to do so until I had gotten off for home. It was my first venture at speech-making away from home on national issues.

I worked and voted for Fillmore because I had a very high opinion of him as a good man, and did not then think very much of Fremont as a proper candidate for the Presidency. Subsequently Fremont became better known, and occupied a high place in the estimation of the people of the United States, as a gallant soldier and a statesman, enjoying the unique honor of having been the first candidate of the Republican party for President.

I have taken an active part in every campaign since 1856, excepting when poor health prevented a regular speaking campaign.

The animosities of the campaign of 1856 were carried into the Legislature and kept alive in the House during the entire session. Governor Bissell's inaugural address was a dignified State paper in which he referred to the administration of his predecessor in highly complimentary terms. He concurred in all his recommendations, but suggested no measures of his own. Although he had commented briefly upon the Kansas-Nebraska controversy, and in mild terms, his remarks stirred the ire of the Democrats. Upon the motion to print the address, a virulent attack was made upon him, led, strange to say, by John A. Logan, afterwards the foremost volunteer general of the Union, and a Republican of Republicans. The rancor of the

Democrats against Governor Bissell, who at that time was a physical wreck from a stroke of paralysis, though mentally sound, was largely due to their recollection of the fearless manner in which he had responded, some years before, to a challenge given him by Jefferson Davis to a duel. That episode has long since become historic, and I need not enlarge upon it here.

As was the political temper in the State of Illinois, so was it, to a greater or less degree, throughout the entire Nation.

Buchanan's first message repeated the assurance that the discussion of slavery had come to an end. The clergy were criticised for fomenting prevalent disturbances. The President declared in favor of the admission of Kansas, with a Constitution agreeable to a majority of the settlers. He also referred to an impending decision of the Supreme Court, with which he had been made acquainted, and asked acquiescence in it. This was Judge Taney's decision in the Dred Scott case, rendered two days after Buchanan's inauguration.

An action had been begun in the Circuit Court in Missouri by Scott, a negro, for the freedom of himself and children. He claimed that he had been removed by his master in 1834 to Illinois, a Free State, and afterwards taken into territory north of the compromise line. Sanford, his master, replied that Scott was not a citizen of Missouri, and could not bring an action, and that he and his children were Sanford's slaves. The lower courts differed, and the case was twice argued. The decision nullified the Missouri restriction, or, indeed, any restriction by Congress on slavery in the Territories. Chief-Justice Taney said:

"The question is whether the class of persons (negroes) compose a portion of the people, and are constituent members of this sovereignty. We think they are not included under the word 'citizen' in the Constitution, and can therefore claim none of the rights and privileges of that instrument."

Negroes, as a race, were at that time considered as a subordinate and inferior class who had been subjugated by the dominant whites, and had no rights or privileges except such as those who held the power and the government might choose to grant them. They had for more than a century been regarded as beings of an inferior grade— so far inferior that they possessed no rights which the white man was bound to respect; and the negro might justly and lawfully be reduced to slavery for his (the white man's) benefit. The negro race by common consent had been excluded from civilized governments and the family of nations, and doomed to slavery. The unhappy black race was separated from the whites by indelible marks long before established, and was never thought of or spoken of except as property.

The Chief-Justice further annulled the Missouri restriction, by asserting that "the act of Congress which prohibited a citizen from holding property of this kind north of the line therein mentioned is not warranted by the Constitution, and is therefore void." Benton said that it was "no longer the exception, with freedom the rule; but slavery was the rule, with freedom the exception."

It was a year of financial distress in America, which recalled the hard times of twenty years before. The United States treasury was empty.

Early in this year (1856) a Legislature had met at Topeka, Kansas, and was immediately dissolved by the United States marshals. A Territorial Legislature also met at Lecompton and provided for a State Constitution. The people of Kansas utterly refused to recognize the latter body which had been chosen by the Missouri invaders, and both parties continued to hold their elections.

Thus it may be seen that these episodes were the culmination of a long series of events leading to a new alignment of the country's political forces.

The Republican party was the child of this ferment of unrest. The formation of a new political party, or the regeneration of an old one, is always due to events, and not to the schemes and purposes of men except as events sometimes originate in such purposes and schemes. In this case the steps in the course of events which had rendered the formation of an anti-slavery party inevitable were: The pro-slavery provisions of the Constitution, the foreign slave trade, the acquisition of the Territory of Louisiana, the invention of the cotton-gin and its effects, the Missouri Compromise, the nullification schemes of South Carolina, the colonization and annexation of Texas, the Mexican War, the contest over the admission of California, the Compromise Measure of 1850, and finally the repeal of the Missouri Compromise in 1854.

The name of the party was an incident only, and not an essential or very important incident; its principles and purposes were the vital facts. When events demand a new party, or the reorganization of an old one, all resistance is usually borne down speedily. On the other hand, it is a wasteful exhibition of human power to attempt the creation of a new party by the force of combined will and resolutions formulated in public meetings. Abraham Lincoln's great experience or keener penetration, or both, guided him at the outset of the realignments on political issues, and at the opening of the Congressional campaign of 1858, I followed him firmly and without mental reservation into the ranks of the Republican party.

Hence it was that I was present on that historic occasion when the Republican party of the State of Illinois held a convention at Springfield, June 17 of the year named, and nominated Lincoln for the seat in the United States Senate, then held by Stephen A. Douglas, who at that time was usually affectionately referred to by his partisan followers as "The Little Giant." This nomination was anticipated, and Mr. Lincoln had prepared a speech, which he then delivered, in which he set forth, in a manner now

universally recognized as masterly, the doctrines of the Republican party. He arraigned the administration of Mr. Buchanan and denounced the repeal of the Missouri Compromise under the lead of Senator Douglas. In that speech he made the declaration, which I remember as clearly as though an event of yesterday, then characterized as extravagant but long since accepted as prophetic: "I believe this Government cannot endure permanently, half slave and half free."

That address inaugurated a discussion which has no exact parallel in history—certainly no equal in American political history. It introduced Mr. Lincoln to the country at large, and prepared the way for his nomination to the Presidency two years later. On the declaration above quoted Mr. Douglas based many arguments, in vain attempts to prove that Mr. Lincoln was a disunionist.

During this period Douglas addressed an enthusiastic assemblage at Chicago, and in the course of his speech adverted to the arraignment of himself by Mr. Lincoln. He took direct issue with that gentleman on his proposition that, as to Freedom and Slavery, "the Union will become *all* one thing or *all* the other," and maintained strenuously that "it is neither desirable nor possible that there should be uniformity in the local institutions and domestic regulations of the different States of this Union."

An announcement that Mr. Lincoln would reply to Mr. Douglas on the following evening brought out another assemblage, July 10, which was awakened, before the speaker had concluded, to an enthusiasm at least equal to that which the eloquence of Douglas had aroused.

The issues involved in this famous series of debates are too familiar to all students of our Nation's political history to be considered at length in these pages. Mr. Lincoln analyzed and answered the various arguments advanced by Mr. Douglas the evening before; and the closing paragraphs of his reply

to the insistent reminders "that this Government was made for white men," were memorable:

"Those arguments that are made, that the inferior race are to be treated with as much allowance as they are capable of enjoying; that as much is to be done for them as their conditions will allow. What are these arguments? They are the arguments that kings have made for enslaving the people in all ages of the world. You will find that all the arguments in favor of kingcraft were of this class; they always bestrode the necks of the people, not that they wanted to do it, but because the people were better off for being ridden. That is their argument, and this argument of the Judge is the same old serpent that says: 'You work, and I eat; you toil, and I will enjoy the fruits of it.'"

Six days thereafter, July 16, Senator Douglas in a great speech again tried to break the force of his opponent's facts and logic. This was at Bloomington, and Mr. Lincoln was again a careful listener. On the evening following, July 17, at Springfield, before an enthusiastic audience, he proceeded to dissect the matters so plausibly presented.

At the same hour Douglas was addressing a Springfield audience of his own, ridiculing especially Mr. Lincoln's alleged attitude toward the Supreme Court.

Contrasting the disadvantages under which, by reason of an unfair apportionment of State Legislature representation and otherwise, the Republicans labored in that campaign, Mr. Lincoln on that occasion said in the course of his talk:

"Senator Douglas is of world-wide renown. All the anxious politicians of his party, or who have been of his party for years past, have been looking upon him as certainly, at no distant day, to be the President of the United

States. They have seen in his round, jolly, fruitful face, post-offices, land-offices, marshalships, and cabinet appointments, *chargé*-ships and foreign missions, bursting and sprouting out in wonderful exuberance, ready to be laid hold of by their greedy hands. And as they have been gazing upon this attractive picture so long, they cannot, in the little distraction that has taken place in the party, bring themselves to give up the charming hope; but with greedier anxiety they rush about him, sustain him, and give him marches, triumphal entries, and receptions, beyond what even in the days of his highest prosperity they could have brought about in his favor. On the contrary, nobody has ever expected me to be President. In my poor, lean, lank face, nobody has ever seen that any cabbages were sprouting out."

He affirmed that Popular Sovereignty, "the great staple" of the Douglas campaign, was "the most arrant Quixotism that was ever enacted before a community."

As a result of these preliminary speeches of the Congressional campaign it was generally conceded that, at last, the "Little Giant" had met his match, and the intellectual and political appetites of the public called for more. In recognition of this demand, Mr. Lincoln opened a correspondence which led to an agreement with Mr. Douglas for a series of joint discussions, seven in number, on fixed dates in August, September, and October. Alternately they were, in succession, to open the discussion and speak for an hour, with another half-hour at the close after the other had spoken for an hour and a half continuously. My friend and schoolmate, the late Mr. R. R. Hitt, an efficient stenographer, was employed to report the whole series, and thus we have a full record of the most remarkable debate, viewed from all points, that has ever occurred in American history—possibly without a parallel in the world's history. Vast assemblages gathered from far and near and listened with breathless attention to these absorbingly interesting discussions.

Notwithstanding the intense partisan feeling that was evoked, the discussion proceeded amidst surroundings characterized by the utmost decorum. The people evidently felt that the greatest of all political principles, that of human liberty itself, was hanging on the issue of this great political contest between intellectual giants, thus openly waged before the world. They accordingly rose to the dignity and solemnity of the occasion, as has been well said by one who was then a zealous follower of Douglas, vindicating by their very example the sacredness with which the right of free speech should be regarded at all times and everywhere.

I have elsewhere described the disappointment I personally felt at the result, when the election returns came in. Although the popular vote stood 125,698 for Lincoln to 121,130 for Douglas—showing a victory for Lincoln among the people—yet enough Douglas Democrats were elected to the Legislature, when added to those of his friends in the Illinois Senate elected two years before and held over, to give him fifty-four members of both branches of the Legislature on joint ballot, against forty-six for Mr. Lincoln.

CHAPTER IV OTHER DISTINGUISHED CHARACTERS OF THAT DAY 1858 and 1859

More than four months had elapsed since Lincoln's epoch-marking speech at Springfield had brought on his great discussion with Douglas, when on October 20, 1858, Governor Seward at Rochester, New York, intensified the political inflammation of the times by saying in a notable speech:

"These antagonistic systems (free labor and slave labor) are continually coming close in contact. It is an irrepressible conflict between opposing and enduring forces; and it means that the United States must and will, sooner or later, become either an entirely slave-holding or entirely a free-labor nation."

A book written by a young Southerner, "The Impending Crisis in the South—How to Meet It," was recommended in a circular signed by a large number of the Republican Congressmen, and thus given a vogue and weight out of all proportion to the standing of the author, whose recent death under tragic circumstances at an advanced age has drawn the name of Hinton Rowan Helper for a brief hour from its long obscurity.

"Dred, a Tale of the Dismal Swamp," by the author of "Uncle Tom's Cabin," served, if such service were at all needed, to keep fresh in all civilized lands the name of Harriet Elizabeth Beecher Stowe. The British Museum has a long shelf filled with different translations, editions, and versions of her greatest literary work.

In the month of September Mr. Lincoln delivered a speech at Cincinnati, in reply to Mr. Douglas. In that speech he addressed himself to the citizens of Kentucky, and advocated the nomination of Mr. Douglas to the Presidency, upon the ground that he was more devoted to the South than were the Southern leaders themselves, and that he was wiser in methods for defending their rights.

This was a form of attack which Douglas had not anticipated, and which he could neither resent nor answer. As the event proved, the seed thus sown was to bear fruit abundantly in results at the ensuing National Democratic conventions, and at the Presidential election two years later. Until June, Mr. Lincoln was unknown outside of Illinois and Indiana. Judge Douglas had already taken a high place among the able men of his time of national and international reputation. In September, Lincoln's character was understood and his ability was recognized in all the non-slaveholding States of the Union. His mastery over Douglas had been complete. His logic was unanswerable, his ridicule fatal; every position taken by him was defended

successfully. At the end Douglas had but one recourse. He misstated Lincoln's positions, and then assailed them.

But Lincoln was ever on the alert to expose his opponent's fallacies, and to hold up the author to the derision or condemnation of his hearers.

Mr. Lincoln's first fame rests, therefore, on that great debate. Judge Douglas had long been famous as an experienced politician and an exceptionally skilful debater. As lawyers both ranked high in their State at a time when the bar of Illinois could boast of exceptionally brilliant and able forensic talent.

As it is my purpose to treat of both these great men in some detail in subsequent pages of this work, devoting at least a full chapter to Mr. Lincoln, so long my admired and never failing friend, I shall now proceed to give some personal recollections concerning certain other of the distinguished characters of that day, chiefly those connected with the bar.

I knew Judge David Davis very well. He was Circuit Judge on our State circuit for a number of years, and until Mr. Lincoln became President, when he was made Associate Justice of the Supreme Court of the United States. When a young lawyer Davis was a Whig; and my father, being also a Whig, took a great interest in him, as he did in every young lawyer he knew who became affiliated with that party. My father thought himself justified in believing that Davis would become a power in the land. Hence he took up the young man soon after he had settled in the practice of the law at Bloomington; and I have heard him state that he gave Davis the first case he ever had in Tazewell County, by advising another to employ him. But he re-enacted, on the less conspicuous forum, the distressing experience of failure of Disraeli in his first attempt to address the English House of Commons. Davis broke down in the speech he had prepared to make, to the great mortification of my father, who had exhibited such unusual pride and

confidence as to counsel his employment in the case. Subsequently Davis redeemed himself, as did Disraeli, and became a most prominent and successful lawyer.

Among other interesting circumstances of his career was that of a little claim he had for a client in Boston against a merchant in Chicago. He could not collect the debt, except by levying on a tract of land in Chicago—eighty acres, I think. Davis reported what he had done, and his client manifested dissatisfaction with the result. He so vigorously stated his disappointment to Davis, that the latter immediately redeemed the land by taking it himself and paying the amount of money due the client. This tract grew in value with the growth of Chicago until it became worth a million dollars or more.

Judge Davis was a remarkably popular man on his circuit. He was thoroughly honest, and could not endure a dishonest man on the witness-stand or anywhere else. I remember a man in Chicago who on one occasion filed a bill of discovery for the purpose of finding real estate that he seemed once to have had an interest in, and which also involved the insertion of Judge Davis's own name, since he had himself at one time owned the tract of land involved. The man had lost his voice to a considerable extent, so that he had come to be called "Whispering Smith." He became notorious as a successful collector of debts, where persons had failed and were unable to pay their debts. He had filed in this case a bill of discovery consisting of thirty or forty printed pages which included the names of many persons who had been found to have owned the real estate at one time or another, among them being Judge Davis. Discovering this, and being entirely innocent of any complicity with the party who had failed, the Judge denounced Smith in open court for the outrage of swearing to something he did not know anything about, and practically threw him out of court.

There was an incident characteristic of his fidelity to friendships which I think well worth relating. It occurred when I was Governor of Illinois. I was invited by the Agricultural Society of McLean County to deliver an address, and went to Bloomington on the day designated. I was called upon by Judge Davis, who resided there. He was a very polite man, and asked me if he could not take me out to the fair-ground. I told him I would be delighted if he would do so. He came for me with his carriage, and on our arrival at the grounds took me to the stand, disregarding the prearrangements of the officials of the fair, and introduced me to the audience. In doing so he made a speech, very complimentary to my father, but scarcely mentioning me at all—not more than to introduce me at the end of his eulogistic remarks. Many of the lawyers of the town were present. I knew them all, and they were much amused at this unusual style of introduction. And so was I. I knew, of course, that he was a great friend of my father, and a great friend of mine as well.

Judge Davis was elected to the Senate in 1877 to succeed General Logan, and resigned his seat on the bench to accept the position. He became quite fond of the Senate, and during his one term there he was elected president *pro tempore* of the body under somewhat unusual conditions. The Senate at that time was almost evenly divided between the two parties. The two senators from New York, however (both Republicans), and Mr. Aldrich, of Rhode Island, had been elected by their respective Legislatures, but had not taken their seats. This gave the Democrats a temporary majority, and the Senate proceeded to elect Senator Bayard, of Delaware, as its president *pro tempore*. Within the next day or two, however, the two New York senators and Senator Aldrich were admitted to their seats; this left a majority of two for the Republicans if Davis acted with them, and the two parties tied if Davis acted with the Democrats. Under these circumstances, General Logan, who after being out for two years had been re-elected to the Senate, moved in the caucus that David Davis be the Republican candidate for

president *pro tempore*. Later he made the nomination in the Senate itself, and Senator Davis was elected, Senator Bayard descending, amid general laughter, from the chair which he had occupied for but a short time.

Senator Davis was very proud of the position of president *pro tempore*, which he retained to the end of his Senate term. He had been acting quite independently, but seemed to incline a little toward the Democrats. After he became president *pro tempore*, while he never announced himself a Republican, he generally acted with the Republicans.

I was in the Senate the day before Senator Davis's term expired. He was soliloquizing to himself in the intervals of putting motions and attending to the routine of his office. He was very fond of Senator Isham G. Harris of Tennessee, and when he had occasion to call a senator to the chair, generally it would be Harris. He called Harris to him while I was there, and I heard him say as his friend came up: "Harris, Harris! When I get out of here I won't have to listen to old Bayard any more!"

He was a very remarkable man and a friend of Lincoln, and Lincoln was a friend of his. I suppose that Davis did as much to secure Lincoln's nomination over Seward as any one man, although Judge Logan worked with equal zeal. But Davis knew more people than did Judge Logan, although the latter was, in my opinion, the better lawyer.

In the days of Davis's judicial life on the State bench, the judge and the lawyer had a pretty large circuit. Davis's circuit was composed of several large counties. It was the custom to travel the circuit, judge, lawyers, and all, together. At that period there were no railway facilities worth mentioning, and they had to go by private conveyance—wagon or carriage or on horseback as the case might be. Probably a dozen lawyers might go together, all putting up at the same hotel, and generally having a good time

at night, spinning yarns. Lincoln was a good story-teller, and so was Davis; and the evenings were made exceedingly agreeable to all concerned.

In no small measure as a result of the influences thus put into operation, the lawyers of the period were better qualified to get along in life than those of later days; that is to say, for the rough-and-tumble life they were better able to take care of themselves than the lawyers of a more recent date have been, as a general rule.

Judge Stephen T. Logan was, I think, the best lawyer that I have ever known in Illinois. He went to Illinois at an early age and lived there until his death; he had attained the age of a little more than eighty years before he died. He was purely a lawyer. I think I never knew another lawyer who could so everlastingly ruin a man who undertook to misrepresent the truth. He seemed to understand intuitively whether a man was trying to tell the truth or was lying; if the latter, his words would so effectually be torn to pieces that they could be of no earthly value. But he was not an adept as a politician. He ran for Congress at one time against a man named Thomas L. Harris, and was beaten. He also ran later for Judge of the Supreme Court, and was beaten. This defeat was not his fault, however, as the community was a strongly Democratic one. I recall a story current in those days, to the effect that some man who had recently come from the east inquired, while talking with him, "By the way, Judge, didn't you run for the Supreme Court last year?" In his squeaky voice, the judge replied, "No; I hardly walked."

But the judge was a true man in every respect,—honest, faithful to his friends, and fearless in doing whatever he believed to be right. He felt, I think, a little bit disappointed that President Lincoln did not appoint him instead of Davis a Judge of the Supreme Court.

I came to Washington and saw Mr. Lincoln in Judge Logan's behalf without any suggestion that I do so from Logan or any one else, but simply

because I believed that the President ought to appoint him on the Supreme Bench in preference to any other man in the State.

Logan was a better lawyer than Davis; but Davis was an abler politician than Logan. I have always felt that in view of the fact that Lincoln and Logan had been partners earlier, and also neighbors and close friends, he ought to have nominated Logan instead of Davis. Davis, Logan, and Browning were all well qualified for the Supreme Court, all of them friends of Lincoln, and all Whigs. Lincoln had to make the choice, and I think the selection was influenced by Davis's great assistance in securing his nomination.

Judge Logan was also a close Whig friend of my father, and earnest in his friendship for me on that account. When I was a candidate for the nomination for Governor I had a pretty stiff fight for the first term. There were rumors that men were going to attack my personal character. I did not know about the judge's action in the premises, but when the convention met, Judge Logan went to it as a private citizen and crowded himself into the hall, remaining here until I was nominated. Then he went home. I was told afterwards that he had gone there for the purpose of defending me in case of an attack against my personal character.

Of course, I could not but greatly appreciate a friendship so manifest.

He had a son, David Logan, who went to Oregon as a young lawyer, and became very eminent there. In later years the judge wrote to him, proposing that if he would come back home he would take him into partnership. To this the father received a reply from David, proposing that if he would come out there a partnership with the son was subject to his acceptance or refusal. The judge died after attaining full four-score years, and the son at an age less advanced.

I think Judge Logan also felt a bit sour toward Mr. Lincoln because the latter, he thought, ought to have been more helpful than he was to his son in his effort to be elected to the United States Senate from Oregon, at the time Baker was elected.

Speaking of Judges Logan and Davis, I am reminded of the exceptionally high character of the lawyers of Illinois of that day, and more especially of Springfield. I think there has never been a time when it had another such splendid bar. It must be that high personal character in leaders has a direct and marked influence in elevating the general characters of the followers. The young lawyers, especially, are impelled by a force implanted by nature to admire and to strive to imitate or attain to the great qualities manifested in life of those to whom leadership is conceded by common consent.

Colonel E. D. Baker was a very good lawyer. Also Orville H. Browning, of Quincy, who was in Springfield attending the various courts whose sittings were at the State capital much of the time. Then there was Archibald Williams; and Stephen A. Douglas, a great man in every way, was on the bench a part of the time. Abraham Lincoln was, of course, the equal of any man, on the bench or off of it. Such men prominently in the lead as lawyers, and as men among men, could not but stimulate the ambitions and loftier aspirations of other lawyers, especially the younger ones. In striving to pay the tributes—imitation, etc.,—that can be accorded to greatness, they become great themselves; and perhaps here may be found the real or chief cause of the very large numbers of conspicuously eminent men congregated at the capital of Illinois in those days.

Judge Lyman Trumbull I always regarded as one of the exceptional lawyers of the country. I came to know him well while I was a member of the House and he a United States Senator. During those days I saw very much of him. When Trumbull came to the Senate there was some prejudice

against him, growing out of circumstances (related elsewhere in these pages) which prevented the election of Mr. Lincoln, and which seemed to be plainly within Mr. Trumbull's control. But the feeling soon vanished, and Trumbull's course in the Senate was so true to the principles of the party which Mr. Lincoln had championed, that the manner in which he had secured the election was soon forgotten, or at least condoned, and the judge remained there for a long period of service—three terms.

While he was there I came to the House of Representatives, and came to be, as our association grew more and more intimate, very fond of Senator Trumbull. I also admired his ability. He was one of the few in that body who could hold his own with Judge Douglas in debate, and when he came into the Senate he at once took issue with Douglas, they being in controversy with each other very frequently on slavery and other political questions, until Douglas's career ended, about the beginning of the Civil War.

I was, perhaps, as intimate personally with Judge Trumbull during my stay in the House as any other member. Barton C. Cook and Norman B. Judd also were as intimate with the judge, as any other members of the Illinois delegation. Nothing ever happened to change these conditions, until the vote which Trumbull cast against the impeachment of Andrew Johnson. Mr. Cook and Mr. Judd, especially the latter, seemed to be almost bitterly angry against Judge Trumbull.

As a result of that vote opposition to him began to grow in the party. However, almost immediately after the impeachment he was re-elected, although at the time not a candidate. He was subsequently nominated by the Democratic party for Governor of Illinois. I ran against him as the candidate of the Republican party, and was elected over him by a majority of about

thirty-eight thousand. He imagined, so I have heard, that he was going to beat me, and was considerably surprised at his failure to do so.

He died only a few years ago, at an advanced age. His first wife was a sister of Dr. Jayne, an excellent man, and, I am glad to add, he and I are warm personal friends. I am very sorry to say, though, that his children, I believe, are all gone, as are mine.

There were other men who had risen to prominence in Illinois, of whom I wish to write, and some who were then new upon the stage of public life, whom I knew and who subsequently achieved distinction. I have already postponed my reminiscences of Mr. Lincoln to a later chapter than I could wish, but in point of time we have now come to the year of his nomination and election to the Presidency of the United States, and the beginning of a career which was to be finished in the course of only a little over four years.

The reference to my old friend Doctor William Jayne reminds me that I should say something of my Springfield friends,—some living, but many dead. It is to these friends that I am indebted for my success in public life, and they have generally loyally supported me, although friends in other parts of the State have been quite as loyal and devoted to my interests when I have been a candidate for high public office.

In the days of Lincoln, I do not believe that there ever was a community that contained so many really splendid men, men who were so well fitted to fill any place in the State or Nation, as did Springfield. I can refer to only a few of those of State and National renown. If I have overlooked some whom I should have mentioned, I hope I shall be pardoned.

First of all comes Lincoln. From time to time, as I have written these recollections, I have spoken of him. I will later give my estimate of Douglas, who, while not a citizen of Springfield, spent a great deal of time

there as a member of the Supreme Court, as a member of the Legislature, and on legal, political, and social affairs. In the last-mentioned connection he at one time was a rival for the hand of Mary Todd, afterwards Mrs. Abraham Lincoln. I have thought and written something of Stephen T. Logan, and to my own old law partner, Milton Hay, I refer in other parts of these recollections. There were no better lawyers in their day.

William H. Herndon, Lincoln's law partner, was a capable lawyer also. He wrote an excellent life of his distinguished partner. Herndon was one of the earliest Republicans of his State. While Lincoln believed in the principles of the party from the very beginning, the truth is, he was a little slow in becoming a member of it; and Herndon always claimed that he had much to do with making Abraham Lincoln an active member of the Republican party. Herndon believed that he was qualified to fill almost any office, and I think he was a little dissatisfied that Lincoln did not give him some high position.

William Butler, belonging to this same period, was one of the leading citizens and a devoted friend of Lincoln and an excellent man. Nor can I forget Antram Campbell, one of my first law partners. We were always warm friends. I saw him on his death-bed when I returned home from Washington, where I was serving as a Member of Congress. He recognized me, but could not speak, and I can see now the tears falling from his eyes.

Of the State officers of that day, Richard Yates was Governor. The State, under the lead of its War Governor, did not waste time or spare money in putting the troops in readiness for the field, and perhaps there was no governor of any State more watchful of the State's interests, or more devoted to the interests of the Union, or more loved by the people of his own State, including the troops in the field, than was Governor Yates. He was loyalty itself, and for many years was an apostle of liberty. He retired

from the office of governor, to take his place as a senator from Illinois in the United States Senate. His fame, however, rests on being the great War Governor of the State of Illinois, the compeer of Morton, Andrews, and Curtin.

His son, Richard Yates, many years later succeeded to the office of governor, and is one of the prominent men of Springfield to-day.

O. M. Hatch was Secretary of State. He was among my early influential friends in Springfield. Uncle Jesse K. Dubois, for whom I had high regard, and who was quite well known in and out of Illinois, was one of the State officers. O. H. Miner was Auditor of the State at one time. He was a very good man. His son, Louis Miner, and Harry Dorwin, a nephew of my deceased wife, are joint owners of the Springfield *Journal*, one of the oldest Republican organs of the State.

Colonel John Williams could not be said to be a National or State character, but he was a good business man, and one of the best friends I ever had, so I cannot refrain from a passing tribute to his memory.

When I was elected to Congress the first time, in 1864, my friends knew that I had spent a considerable sum of money for election expenses. It being Lincoln's district, and Lincoln being a candidate for re-election as President, the National Committee helped some; but I was naturally compelled to spend a great deal myself. I considered to whom I should apply for assistance, and thought of Colonel Williams. I went to him, candidly explaining that I should be unable to make the race without financial assistance; he told me to draw on him for whatever funds I might want, and at the end to let him know the total amount, and that he would take care of it. I did so. He gave me what I asked for, and I gave him my note, which I paid as soon as I could; but he never bothered me about it. I always had a warm spot for him in my heart.

Nicholas H. Ridgely, the grandfather of the Hon. William Barret Ridgely, who married one of my daughters, and who served as United States Comptroller of the Currency for a number of years, was one of the leading bankers of the State, and was reputed to be one of the first millionaires of Illinois. He was a very careful banker, and was probably too careful to be popular among the people generally; but every one knew that there was no sounder institution in the State than the Ridgely National Bank. His son, Charles Ridgely, whom I always regarded as one of the most interesting men in Springfield, has passed away just about the time that I am writing these lines. Mr. Charles Ridgely was a man of great reading and great cultivation, and a man whom any one would like to meet. His death was a loss to Springfield of one of its most interesting and enterprising characters.

S. H. Jones ("Sam" Jones, as he was known) was another well-known character in Springfield, as well as throughout Illinois. He was a warm friend and supporter of mine in the early days.

James C. Robinson was twice elected to Congress. He and Governor Oglesby were opponents for State Senator from the district. A little story in this connection occurs to me, which Oglesby used to tell.

When running for the Senate, before the Civil War, Oglesby and Robinson travelled together over the district. The settlements in those days were very scattering, and as the rivals were good friends personally they agreed to go together and hold joint discussions. They held one every day, the understanding being that if either desired to talk anywhere else aside from the joint debate he had a right to do so.

At one place Robinson announced that he would make a speech in the courthouse. A large crowd greeted him, which he captured with one of his characteristic speeches. Oglesby was sitting in front of the hotel across the

way by himself, and listening to the cheering. He became very uneasy lest Robinson should get the best of it.

Now it chanced that Oglesby could play a violin splendidly. A man came along with one in his hands, and Oglesby asked if he might borrow it for the evening, to which the man consented. He commenced playing in order to attract the crowd from Robinson, and in order to break up his meeting. He succeeded; one by one they came out of the courthouse, and when Oglesby swung into a stirring dance measure the crowd at once responded with an impromptu hoe-down.

Robinson, seeing his audience dwindling, quit speaking and came out himself. Taking in the situation at a glance, he pulled off his shoes and became the most enthusiastic participant, dancing first with one and then with another of his late hearers, winning them all back again and completely turning the tables against his adroit opponent.

This is a good illustration of early campaigning in the country districts of Illinois. There was the utmost good feeling, and a disposition to let the best man win.

Among the early men and incidents connected with the practice of the law in Springfield, in the sixties, and before and during the time I was Speaker of the House, the Rev. Peter Cartwright must not be forgotten. He was one of the prominent figures in the pioneer educational and religious life of the Western country, more particularly of Illinois. He was a wonderful type of the times— a man of great courage, of considerable ability, and most remarkable in his capacity as a minister of the Gospel. He believed in camp-meetings; and when Peter Cartwright conducted a camp-meeting the loafers and rowdies inclined to interrupt the worship knew they would invite trouble if they ventured to interfere with or annoy the meeting. He was ready, not only to preach the Gospel but to fight, as sometimes he

felt it his duty to do. No man dared in the presence of Cartwright to interrupt the meeting, as in those times irresponsible parties hanging about such gatherings frequently attempted to do in his absence.

Cartwright was not only an able pioneer preacher, but he was a loyal Democrat, too. He believed in Democracy, and was ready to run on the Democratic ticket, or to advance the party's cause in any other way. He was nominated for Congress as against Mr. Lincoln, the only time Lincoln ever ran for Congress.

Some persons disapproved of Cartwright's activity in politics, questioning the propriety of it on the part of a minister. Among these was Judge Treat, then our Federal Judge in the Springfield district. The story goes that the Judge signified to Mr. Lincoln his dislike of Cartwright, and his willingness to lend a helping hand in case Lincoln should need help and would let him know the fact. He thought he could get a good many votes for Lincoln, and the latter thanked him and told him if he found need of his help he would let him know. On one occasion during the campaign Lincoln was walking along one side of the street when he saw Treat on the farther side, proceeding in the opposite direction, toward his home. Lincoln called out to him: "Judge, I won't need your help. I have got the better of the old Methodist preacher, and I will beat him; so I will not have to call upon you for help." This so embarrassed the judge, lest some one should hear what was being said, that he almost ran, in his hurry to get into his house.

It so happened that some of Peter Cartwright's grandchildren were somewhat reckless boys, and one of them killed another young man. Mr. Peyton Harrison, the father of the slayer, was a friend of Mr. Lincoln and also of Judge Logan, and had grown to be a good friend of mine, I being a young lawyer. The two and I were employed in the defence of the young man. I did the running about, and other things necessary to be done until the

time arrived for the trial. I had the accused man in my house part of the intervening time. When the Circuit Court convened he, having been previously indicted, was delivered up and the trial came on. It lasted some ten or twelve days. In the meantime, Peter Cartwright, and his daughter Mrs. Harrison, the mother of the young man on trial, were at my house most of the time. They drove into town from where they lived, some ten or twelve miles out, every day, and remained until nearly night, going back and forth as long as the trial lasted. Cartwright became somewhat attached to me on account of my efforts in the young man's behalf.

The trial resulted in the acquittal of young Harrison, in whose behalf Mr. Lincoln and Judge Logan exerted themselves very earnestly.

Springfield seems changed to me since my old friend, David T. Littler, passed away. If I visited Springfield during the heat of Summer, when every one else was gone, I was always sure that Dave Littler would be there to greet me. Littler was a unique character. His manners and speech were bluff and frank; he never was afraid of any one, and never was afraid to speak just exactly what he thought. Senator Littler, Colonel Bluford Wilson, a particularly devoted friend, and I travelled through Europe together, and we had a great time.

Littler was for many years a member of the State Senate of Illinois, and was a very useful member in securing favors for his district; and there is no district in the State more dependent upon the Legislature than the Springfield district. He was very ambitious, and when many of my friends in Illinois believed that President McKinley would honor me with an appointment to his cabinet, he thought he was pretty sure to succeed me in the United States Senate. My secret opinion was that the politicians who were running State affairs at that time were fooling him; but it never came to a test, as I did not enter the cabinet.

It is a pleasure to record that I was able to show a substantial token of friendship when, through my influence, Senator Littler was appointed by President Cleveland one of the Pacific Railroad Commissioners.

Speaking of Colonel Littler reminds me of our mutual friend, Mr. Rheuna Lawrence, an estimable citizen of Springfield in his day. When I was re-elected to the Senate in the Winter of 1901, Rheuna Lawrence and David Littler were both desperately ill. I visited them both before leaving for Washington. Lawrence died soon after, but Littler recovered and lived for a year or two.

Rheuna Lawrence was intensely interested in my campaign in 1900. He attended the Peoria convention as one of the Springfield delegates. There was a contesting delegation from Sangamon County, and my friends, among whom were Lawrence and Littler, were seated. My friends won out all along the line, and the excitement was too much for Rheuna, who was not a drinking man at all; but he and Dave got in their cups, and it was very amusing to those who knew Mr. Lawrence as one of the cleanest and most estimable of our citizens to hear Littler refer to him as "my drunken friend, Rheuna." All of which, of course, was only a little pleasantry which I repeat for the benefit of those who attended that convention, and knew Lawrence and Littler well.

James C. Conkling was a prominent lawyer at home, in the days of Lincoln. He was a zealous Republican and a staunch supporter of Lincoln; also a lawyer and a business man; but for some reason or other, I do not know why, he became involved and failed, and the people, especially the older citizens, insisted that he be appointed postmaster. I recommended him, and the appointment was made. He served a term and passed away. His son, Mr. Clinton Conkling, is now one of the leading attorneys of the city.

Henry Green was noted as a great lawyer. He came to Illinois from Canada and studied law in Clinton County with the Hon. Lawrence Weldon, who was a prominent lawyer himself, and for years served as a member of the Court of Claims at Washington. Weldon was a lovable character. Green was for some years the partner of Milton Hay, the firm being Hay, Green, and Littler; it changed later to Green and Humphrey. While I always believed that Hay was the best lawyer in the State, many lawyers believed that Green was the ablest in connection with railroad litigation.

The Hon. O. H. Browning was one of the most prominent men of Illinois in the early times, and was about Springfield, the capital, a great deal, attending the Federal Court, and also the Supreme Court of the State. Browning, Archibald Williams, and Jack Grimshaw were all three very excellent lawyers, quite prominent in their profession, as well as associates in the Whig party. Browning was probably the most prominent of the three. He was appointed by Governor Yates to succeed Douglas, after the death of the latter, in the United States Senate. Of course he did not remain there long, being succeeded, I think, by William A. Richardson, a strong Democrat of Quincy, and a man of considerable ability. After he went out of the Senate, Browning was appointed by Andrew Johnson as Secretary of the Interior. He became a follower of Mr. Johnson, who had broken with the Republican party, and when he got out of office, I think he ceased to take any part in politics. He had been talked about a good deal at one time as the proper man for the Supreme bench, but as between him and Logan and Davis, Mr. Lincoln decided in favor of Davis.

It is impossible to mention all the many friends and supporters loyal and devoted to me who are now living, but I shall be pardoned, I am sure, for saying a few words in reference to some of them at present in Springfield, who are especially esteemed.

I have been away from Springfield most of the time for nearly thirty years, and as I go back there during the vacations for brief periods, I feel lonely, because so many of the familiar faces of earlier days have passed away. As I walk the streets now it seems that I know comparatively few people; but I have the best of reasons for knowing that among them are many splendid men.

I like to feel, on the eve of visiting Springfield, that I shall see my friend, Judge J. Otis Humphrey, United States District Judge for the Southern District of Illinois. I have all the affection and interest in Judge Humphrey that one could entertain for a brother, and I know that he has the same feeling for me. He is an able man, and is regarded by the Bar as the ablest judge who has ever occupied the United States District Bench at Springfield. I have known him from his boyhood, and knew his father before him. It was one of the great pleasures of my public career to have been able to secure from the late President McKinley his appointment as United States Attorney for the Southern District of Illinois, and later to have secured his promotion to the position of United States District Judge. He is now the senior United States District Judge of the seventh circuit, and I regard him as the ablest judge of them all. I sincerely hope that higher honors, which he so well deserves in his chosen career, are still in store for him.

In connection with Judge Humphrey I am reminded of the late Judge Solomon H. Bethea, who was appointed United States Attorney for the Northern District of Illinois, and who was later promoted to the Federal Bench. Humphrey and Bethea I have always regarded as my two judges, as they were both appointed on my recommendation. Bethea was a man of very strong and positive character. These traits were so conspicuous that his manners were, by some, regarded as extremely dictatorial. He was highly educated, a student all his life, and a very cultivated man. At the same time

he was a first-rate politician. I do not know of two more useful men to lead a floor fight in a convention than Bethea and Humphrey. Judge Bethea was my friend and supporter from the time I was elected to the United States Senate, in 1883, until his death. He made a splendid record as United States Attorney, and am informed that during his incumbency of that office, he never lost a case before a jury. Very unfortunately, just when he reached the goal of his highest ambition, a Federal judgeship, his health failed. I have never for a moment doubted that had he lived and retained his health he would have made an enviable record on the bench.

There is no better man in Springfield than John W. Bunn. He has been my friend ever since I first went to Springfield. He was a friend of Lincoln, and there was no one in Springfield in whom Lincoln placed more confidence. I believe that one of the first appointments he made, after entering the office of President, was that of John W. Bunn as Pension Agent at Springfield. He was the trusted friend of the War Governor, Yates, and performed many important duties for him during the Civil War. From those early days down to the present, every one has had confidence in John W. Bunn and in his integrity and honesty. I am glad to say that he is still living as one of the foremost citizens of his city.

The Hon. James A. Connelly, who for two terms represented the district in Congress, was a very influential and popular member of Congress; and being a good lawyer he was a prominent member of the Judiciary Committee of the House. He is a forcible speaker, and has always taken an active part in behalf of the party in campaigns in the State.

Mr. E. F. Leonard—Frank Leonard, as he was familiarly known among his friends—was my secretary when I was Governor of Illinois. He was later president of the Toledo, Peoria and Western Railroad, stationed at Peoria, and I have always believed him to be one of the best railroad

presidents in the State. He was particularly noted for his sound common sense and as a scholarly, well posted man in public affairs. I do not think he ever said or did a foolish thing in his life. He has retired from business, and lives quietly and elegantly, being a man of wealth, at the beautiful little college town of Amherst, Massachusetts, in the vicinity of which he was born.

One of the oldest men in Springfield is Edward Thayer. He has been a merchant in that town ever since I first went there, and was engaged in business some years before that, I believe. His father was living when I first went to Springfield, and was a very refined, cultivated, elegant Eastern gentleman. Mr. Thayer, although over ninety-five, still seems to enjoy the best of health, and attends his store every day.

The present Governor of Illinois, the Hon. Charles S. Deneen, although a citizen of Chicago, has lived in Springfield for nearly six years, during his incumbency of office. Governor Deneen has had a very successful public career. He has creditably filled every public office which he has held. I have been interested in him, not only on his own account, but on account of his father, whom I knew well and whom I respected highly. Years ago I obtained his appointment in the consular service, in which he served during the Harrison administration. Governor Deneen has taken a prominent part in public affairs in Cook County and has held several responsible positions there. He made a splendid State's Attorney of Cook County. His honor and integrity were above suspicion. His record as State's Attorney paved the way to the higher office of Governor of Illinois. He is a conservative man, and has given the State a conservative administration. Unfortunately he has had difficulties with the Legislature, but on the whole I regard his administration as a successful and creditable one. Governor Deneen and I are the only two men in the history of the State who have been honored by its people by being re-elected to succeed themselves as Governor.

CHAPTER V NOMINATION OF LINCOLN AND DOUGLAS FOR THE PRESIDENCY 1859 and 1860

Returning to the period preceding the Civil War, we observe that the whole nation was stirred by the conduct of a man whom most people believed to be crazy, but who in my judgment was not. He was an enthusiast, fired by an abnormal zeal, perhaps; but he filled a most important place in the development leading to the Civil War. I refer to old John Brown.

With a score of followers he seized the arsenal at Harpers Ferry in October, 1859. The nation was then on the very verge of civil war. There was tremendous excitement even in far-off Springfield when the news came over the wires that John Brown had opened war almost single-handed and alone. Under orders from General-in-Chief Winfield Scott, Colonel Robert E. Lee with a battalion of soldiers marched on Harpers Ferry, and, after a series of siege operations, summoned John Brown to surrender, the demand being borne to the besieged by J. E. B. Stuart, a young lieutenant, afterwards distinguished as the foremost cavalry leader of the Confederacy.

The story of John Brown is too familiar to be repeated here; but how strange that in so short a time his captor, Robert E. Lee, should become famous as one of the greatest leaders of force in rebellion against the government he then served.

John Brown was captured and hanged. He had but few sympathizers in the North, but his attempt to incite the slaves to rebellion greatly stirred up the entire South, and hastened secession.

Very soon the second National Republican Convention was held at Chicago. At this convention, which nominated Lincoln for the Presidency, the resolutions declared for "the maintenance inviolate of the right of each State to order and control its own domestic institutions according to its own

judgment exclusively," and condemned the attempt to enforce the extreme pretensions of a purely local interest (meaning the slave interest), through the intervention of Congress and the courts, by the Democratic administration. They derided the new dogma that the Constitution of its own force carried slavery into the Territories, and denied the authority of Congress, or of a Territorial Legislature, or of any individual to give leave of existence to slavery in any Territory of the United States.

After the failure of the efforts to make of Kansas a Slave State, it had become plain that the South could not hope to keep its equality of representation in the Senate without reversing what appeared to be settled popular opinion concerning the status of the Northern Territories. Resolutions to this general effect were moved by Jefferson Davis early in February, 1860, and passed by the Senate. It was in effect the ultimatum presented to the Democratic party at its National Convention when it assembled, April 23, at Charleston, S. C. The warring factions failed to come to an agreement, and the convention adjourned to meet at Baltimore on the eighteenth of June. There Douglas was at last nominated. The delegates who had seceded at Charleston were joined by other seceders at Baltimore, and nominated John C. Breckinridge of Kentucky for President. A month later, May 19, a third faction, calling itself the "Constitutional Union Party," assembled in convention at the same city, Baltimore, and nominated John Bell of Tennessee and Edward Everett of Massachusetts, on a platform whose distinguishing battle-cry was "The Constitution, the Union of the States, and the enforcement of the laws." Three days before this, May sixteenth, the Republican Convention had met at Chicago, and had nominated Lincoln and Hamlin on a platform which rang true on great principles and with high resolve.

In many particulars this platform was a contrast to, rather than a growth from, that of 1856. It asserted that the normal condition of all the territory

of the United States was that of freedom; it denounced the outrages in Kansas, and demanded her immediate admission into the Union, with her Constitution, as a Free State; it branded the re-opening of the African slave-trade as a crime; and in expressing the abhorrence of the Republican party to all schemes of disunion, the Democratic party was arraigned for its silence in the presence of threats of secession made by its own members. The doctrine of encouragement to domestic industry was announced; the sale of the public lands was condemned; the coming measure of securing homesteads for the landless was approved; and a pledge of protection was given to all citizens, whether native or naturalized, and whether at home or abroad. The party was again pledged to the construction of a railway to the Pacific Ocean, and to the improvement of the rivers and harbors of the country.

During the four years preceding, the home State of Lincoln and Douglas had decreased its public debt \$3,104,374. She had become the fourth State of the Union in population and wealth, having during the decade then closing outstripped Virginia, Massachusetts, North Carolina, Georgia, Tennessee, and Indiana. In production of wheat and corn she now surpassed all other States and occupied the foremost position. She had in successful operation two thousand, nine hundred miles of railways, being surpassed in this respect by Ohio only. Chicago, her marvellous lake mart, had grown from a population of 29,963 to 109,206, an increase of nearly three hundred per cent. From nine Congressmen in 1850, she was entitled in 1860 to thirteen; and so, on every hand, might the recital of her growth be continued indefinitely.

For the first time in twenty years, during the progress of a political campaign in Illinois, the voice of Lincoln was not heard. But the record of his former speeches, printed by an enterprising Ohio publishing firm, in a volume which sold in enormous numbers, afforded the text from which the

Republican stump-orators in every Free State gathered at once their logic and their inspiration. Though the orator himself remained silent, the potent echo of his eloquence resounded in countless voices from the Atlantic to the Pacific.

The political contest that followed the various nominations was a memorable one. Douglas made his last effort for the Presidency with wonderful vigor and spirit. He canvassed the whole country, and great throngs were greatly moved by his eloquent and energetic oratory. Jefferson Davis and other Southern orators canvassed portions of the Northern States in support of the nominee of the Southern wing of the Democratic party. In some parts of the North fusions were attempted among the opponents of the Republican candidate. In the South the interest in the contest was even more intense than in the North. Douglas had a good following in many portions of the South, but a majority of the ruling class there, whether they had formerly been Democrats or Whigs, were now disposed to bring the long sectional controversy to an issue. Therefore, besides the debate over the Presidential issue, there was a serious discussion also of what course the South should take in the event of Mr. Lincoln's election. In all the Cotton States the sentiment for secession was now very strong. The Alabama Legislature, early in 1860, had instructed her Governor to call a convention in case a "Black Republican" should be elected President in November. South Carolina had long been ready to join in such a movement, or to lead in it.

At last, election day came, and the results, immediate as well as ulterior, are deserving of some remark. The aggregate popular vote exceeded four million, six hundred and eighty thousand; and of the total, one million, eight hundred and sixty-six thousand votes were given for Mr. Lincoln; and of the three hundred and three electoral votes, he received one hundred and eighty. Mr. Breckinridge, the candidate of the South, received eight hundred and

forty-seven thousand votes, and seventy-two votes in the Electoral College; while Mr. Douglas received only twelve electoral votes, although his popular vote reached a million, three hundred and seventy-five thousand. Bell received thirty-nine electoral votes on a popular vote of less than six hundred thousand. Thus the popular vote for Mr. Lincoln was nearly a half-million less than a majority; but his predecessor, Mr. Buchanan, was also a minority President, so that this fact as a pretext for secession was wholly without point.

Eleven States voted for Mr. Breckinridge, including Delaware and Maryland; and eleven States became members of the Confederacy, including Virginia and Tennessee, which had voted for Mr. Bell. It all went to show that the Democratic party as represented by Breckinridge was in fact a secession party first of all. The division of the Democratic party decided the election in favor of Mr. Lincoln.

Had that party supported Mr. Douglas in good faith, his election would probably have been secured; but the South would have been left without excuse had it persisted in the scheme of secession.

Therefore it came to pass that the Democratic party was disorganized by its own leaders of the South as a step preliminary to the election of Mr. Lincoln, and the making of that election a pretext for disunion. This part of the conspiracy was managed with consummate skill and eminent success; but the conspirators were perfectly well aware that ultimate success depended largely on prompt, effective, and decisive steps which must be taken while their efficient friend in the Executive Mansion still remained in office.

This allowed them four months of precious time between the election of Mr. Lincoln and his inauguration as President. The vigilance and effectiveness of their work is an interesting and familiar story, but I shall

not attempt here a narration of it. This work eventuated in war, and with the opening of war, Mr. Douglas was quickly found in the attitude of a leader in the cause of the Union —the closing and the noblest episode of his whole remarkable career.

I knew Senator Douglas quite well. Of course, he was considerably older than I, and was one of the great men of the Nation, when I was just starting in public life. I knew him before the Civil War. He was a wonderful man with the people. I do not think there was ever a man in public life who was more thoroughly loved by the party to which he belonged than Senator Douglas. His adherents were devoted to him at all times and under all circumstances. When he came through the State, the whole Democratic party was alive and ready to rally to his support. I heard him deliver addresses on two occasions before the War. I heard one of the Lincoln-Douglas debates at Ottawa. I heard Lincoln deliver the famous Springfield address, in which he uttered the immortal sentiment, "A house divided against itself cannot stand." To this address Douglas afterwards replied. When Lincoln was inaugurated, Douglas was present on the platform and held Lincoln's hat while he delivered his inaugural address; the tremendous significance of which trivial act can be appreciated only in the light of later years.

But Douglas did not hesitate for a moment after Fort Sumter was fired upon, April 12, 1861. He voluntarily called upon President Lincoln and tendered his support to the cause of the Union, and immediately gave out to the Associated Press a statement, calling upon the people of the North, regardless of party, to rally to its defence.

I believe it was Mr. Lincoln who asked him to visit Illinois, where, especially in the southern part of the State, there was considerable disunion sentiment. There was a great effort to induce the region where the

Democracy predominated, the people being loyal followers of Douglas, to go with the South instead of the North. Douglas alone could save it. He came to Illinois, as he told me, partly on that account; to rally the State to the support of the Union, earnestly desiring that the country should understand where he stood.

He visited Springfield while the Legislature was in session. Senator Douglas was invited to address a joint session of that body, which he did on the evening of April 25, 1861. Being Speaker of the House, I presided. In addition to the members of the Legislature, there was a great crowd present.

I have a vivid recollection of the evening. Prior to that time I had not believed in Senator Douglas; which was only natural, I having been a Whig and an enthusiastic adherent of Lincoln. The duty of introducing Senator Douglas to the joint Assembly devolved upon myself; I cannot at this late day recall the words I used, but I am sure that I presented him in as complimentary a manner as my prejudices allowed.

As he continued speaking, however, I, as thousands—nay, millions —of others had done, succumbed to the magic of his eloquence and the irresistible logic of his brilliant mind; and I must here confess that never before or since have I heard a more masterful, a more inspired, plea for the integrity of the Union and the indivisibility of the Nation than Senator Douglas delivered upon that occasion.

It seemed to me, as he hurled the thunders of his eloquence broadcast, that the very rafters rang in harmony, that the air vibrated in accord with his denunciations of rebellion.

The address was not a long one. As it was printed by order of the General Assembly, I shall take the liberty of presenting it in full:

"Mr. Speaker, and Gentlemen of the Senate and House of Representatives: I am not insensible to the patriotic motives which have prompted you to do me the honor to invite me to address you on the momentous issues now presented in the condition of our country. With a heart filled with sadness and grief, I proceed to comply with your request.

"For the first time since the adoption of the Federal Constitution, a widespread conspiracy exists to destroy the best government the sun of heaven ever shed its rays upon. Hostile armies are now marching upon the Federal Capitol, with a view of planting a revolutionary flag upon its dome; seizing the National archives; taking captive the President elected by the votes of the people, and holding him in the hands of secessionists and disunionists. A war of aggression and of extermination is being waged against the Government established by our fathers. The boast has gone forth by the authorities of this revolutionary Government that on the first day of May the revolutionary flag shall float from the walls of the Capitol at Washington, and that on the fourth day of July the Rebel army shall hold possession of the Hall of Independence in Philadelphia.

"The simple question presented to us is, whether we will wait for the enemy to carry out his boast of making war upon our soil; or whether we will rush as one man to the defence of the Government and its capital, and defend it from the hands of all assailants who have threatened to destroy it. Already the piratical flag has been unfurled against the commerce of the United States. Letters of marque have been issued, appealing to the pirates of the world to assemble under that revolutionary flag and commit depredations on the commerce carried on under the Stars and Stripes. The navigation of our great river into the Gulf of Mexico is obstructed. Hostile batteries have been planted upon its banks; custom houses have already been established; and we are now required to pay tribute and taxes, without having a voice in making the laws imposing them, or having a share in the

proceeds after they have been collected. The question is, whether this war of aggression shall proceed, and we remain with folded arms, inattentive spectators; or whether we shall meet the aggressors at the threshold and turn back the tide of revolution and usurpation.

"So long as there was a hope of peaceful solution, I prayed and implored for compromise. I can appeal to my countrymen with confidence that I have spared no effort, omitted no opportunity, to secure a peaceful solution of all these troubles, and thus restore peace, happiness, and fraternity to the country. When all propositions of peace fail, and a war of aggression is proclaimed, there is but one course left for the patriot, and that is to rally under that flag which has waved over the capitol from the days of Washington, and around the Government established by Washington, Madison, Hamilton, and their compeers.

"What is the alleged cause for this invasion of the rights and authority of the Government of the United States? The cause alleged is that the institutions of the Southern States are not safe under the Federal Government. What evidence has been presented that they are insecure? I appeal to every man within the sound of my voice to tell me at what period from the time that Washington was inaugurated down to this hour, have the rights of the Southern States—the rights of the slave-holders—been more secure than they are at this moment? When in the whole history of this Government have they stood on so firm a basis? For the first time in the history of this republic, there is no restriction by act of Congress upon the institution of slavery, anywhere within the limits of the United States. Then it cannot be the Territorial question that has given them cause for rebellion. When was the Fugitive Slave Law executed with more fidelity than since the inauguration of the present incumbent of the Presidential office? Let the people of Chicago speak and tell us when were the laws of the land executed with as much firmness and fidelity, so far as the fugitive slaves are

concerned, as they are now. Can any man tell me of any one act of aggression that has been committed or attempted since the last Presidential election, that justifies this violent disruption of the Federal Union?

"I ask you to reflect, and then point out any one act that has been done—any one duty that has been omitted to be done—of which any one of these disunionists can justly complain. Yet we are told, simply because a certain political party has succeed in a Presidential election, they choose to consider that their liberties are not safe, and therefore they are justified in breaking up the Government.

"I had supposed that it was a cardinal and fundamental principle of our system of government that the decision of the people at the ballot box, without fraud, according to the forms of the Constitution, was to command the implicit obedience of every good citizen. If defeat at a Presidential election is to justify the minority, or any portion of the minority, in raising the traitorous hand of rebellion against the constituted authorities, you will find the future history of the United States written in the history of Mexico. According to my reading of Mexican history, there has never been one presidential term, from the time of the Revolution of 1820 down to this day, when the candidate elected by the people ever served his four years. In every instance, either the defeated candidate has seized upon the Presidential chair by use of the bayonet, or he has turned out the duly elected President before his term expired. Are we to inaugurate this Mexican system in the United States of America? Suppose the case to be reversed. Suppose the disunion candidate had been elected by any means—I care not what, if by any means in accordance with the forms of the Constitution—at the last Presidential election; then, suppose the Republicans had raised a rebellion against his authority—in that case you would have found me tendering my best efforts and energies to John C. Breckinridge to put down the Republican rebels. And if you had attempted

such a rebellion I would have justified him in calling forth all the power and energies of this country to have crushed you out.

"The first duty of an American citizen, or of a citizen of any constitutional Government, is obedience to the Constitution and laws of his country. I have no apprehension that any man in Illinois, or beyond the limits of our own beloved State, will misconstrue or misunderstand my motive. So far as any of the partisan questions are concerned, I stand in equal, irreconcilable, and undying opposition both to the Republicans and the secessionists. You all know that I am a very good partisan fighter in partisan times, and I trust you will find me equally as good a patriot when the country is in danger.

"Now permit me to say to the assembled Representatives and Senators of our beloved States, composed of men of both political parties, in my opinion it is your duty to lay aside, for the time being, your party creeds and party platforms; to dispense with your party organizations and partisan appeals; to forget that you were ever divided, until you have rescued the Government and the country from their assailants. When this paramount duty shall have been performed, it will be proper for each of us to resume our respective political positions according to our convictions of public duty. Give me a country first, that my children may live in peace; then we will have a theatre for our party organizations to operate upon.

"Are we to be called upon to fold our arms, allow the national capital to be seized by a military force under a foreign revolutionary flag; to see the archives of the Government in the hands of a people who affect to despise the flag and Government of the United States? I am not willing to be expelled by military force, nor to fly from the Federal capitol. It has been my daily avocation six months in the year, for eighteen years, to walk into that marble building, and from its portico to survey a prosperous, happy,

and united country on both sides of the Potomac. I believe I may with confidence appeal to the people of every section of the country to bear testimony that I have been as thoroughly national in my political opinions and actions as any man that has lived in my day. And I believe if I should make an appeal to the people of the State of Illinois, or of the Northern States, for their impartial verdict, they would say that whatever errors I have committed have been in leaning too far to the Southern section of the Union against my own. I think I can appeal to friend and foe—I use the term in a political sense, and I trust I use the word *foe* in a past sense—I can appeal to them with confidence, that I have never pandered to the prejudice or passion of my section against the minority section of this Union; and I will say to you now, with all frankness and in all sincerity, that I will never sanction nor acquiesce in any warfare whatever upon the constitutional rights or domestic institutions of the people of the Southern States. On the contrary, if there was an attempt to invade these rights—to stir up servile insurrection among their people—I would rush to their rescue, and interpose with whatever of strength I might possess to defend them from such a calamity. While I will never invade them—while I will never fail to defend and protect their rights to the full extent that a fair and liberal construction of the Constitution can give them—they must distinctly understand that I will never acquiesce in their invasion of our constitutional rights.

"It is a crime against the inalienable and indefeasible rights of every American citizen to attempt to destroy the Government under which we were born. It is a crime against constitutional freedom and the hopes of the friends of freedom throughout the wide world to attempt to blot out the United States from the map of Christendom. Yet this attempt is now being made. The Government of our fathers is to be overthrown and destroyed. The capital that bears the name of the Father of his Country is to be bombarded and levelled with the earth among the rubbish and the dust of

things that are past. The records of your Government are to be scattered to the four winds of heaven. The constituted authorities, placed there by the same high authority that placed Washington and Jefferson and Madison and Jackson in the chair, are to be captured and carried off, to become a byword and a scorn to the nations of the world.

"You may think that I am drawing a picture that is overwrought. No man who has spent the last week in the city of Washington will believe that I have done justice to it. You have all the elements of the French Revolution surrounding the capital now, and threatening it with its terrors. Not only is our constitutional Government to be stricken down; not only is our flag to be blotted out; but the very foundations of social order are to be undermined and destroyed; the demon of destruction is to be let loose over the face of the land, a reign of terror and mob law is to prevail in each section of the Union, and the man who dares to plead for the cause of justice and moderation in either section is to be marked down as a traitor to his section. If this state of things is allowed to go on, how long before you will have the guillotine in active operation?

"I appeal to you, my countrymen—men of all parties—not to allow your passions to get the better of your judgment. Do not allow your vengeance upon the authors of this great iniquity to lead you into rash, and cruel, and desperate acts upon loyal citizens who may differ with you in opinion. Let the spirit of moderation and of justice prevail. You cannot expect, within so few weeks after an excited political canvass, that every man can rise to the high and patriotic level of forgetting his partisan prejudices and sacrifice everything upon the altar of his country; but allow me to say to you, whom I have opposed and warred against with an energy you will respect—allow me to say to you, you will not be true to your country if you ever attempt to manufacture partisan capital out of the misfortunes of your country. When calling upon Democrats to rally to the tented field, leaving wife, child,

father, and mother behind them to rush to the rescue of the President that you elected, do not make war upon them and try to manufacture partisan capital at their expense out of a struggle in which they are engaged from the holiest and purest of motives.

"Then I appeal to you, my own Democratic friends—those men that have never failed to rally under the glorious banner of the country whenever an enemy at home or abroad has dared to assail it—to you with whom it has always been my pride to act—do not allow the mortification, growing out of a defeat in a partisan struggle, and the elevation of a party to power that we firmly believe to be dangerous to the country—do not let that convert you from patriots into traitors to your native land. Whenever our Government is assailed, when hostile armies are marching under new and odious banners against the Government of our country, the shortest way to peace is the most stupendous and unanimous preparations for war. The greater unanimity, the less blood will be shed. The more prompt and energetic the movement, and the more imposing in numbers, the shorter will be the struggle.

"Every friend of freedom—every champion and advocate of constitutional liberty throughout the land—must feel that this cause is his own. There is and should be nothing disagreeable or humiliating to men who have differed in times of peace on every question that could divide fellow men, to rally in concert in defence of the country and against all assailants. While all the States of this Union, and every citizen of every State has a priceless legacy dependent upon the success of our efforts to maintain this Government, we in the great valley of the Mississippi have peculiar interests and inducements to the struggle. What is the attempt now being made? Seven States of the Union chose to declare that they will no longer obey the Constitution of the United States; that they will withdraw from the Government established by our fathers; that they will dissolve

without our consent the bonds that have united us together. But, not content with that, they proceed to invade and obstruct our dearest and most inalienable rights, secured by the Constitution. One of their first acts is to establish a battery of cannon upon the banks of the Mississippi, on the dividing line between the States of Mississippi and Tennessee, and require every steamer that passes down the river to come to under their guns to receive a custom-house officer on board, to prescribe where the boat may land and upon what terms it may put out a barrel of flour or a cask of bacon.

"We are called upon to sanction this policy. Before consenting to their right to commit such acts, I implore you to consider that the same principle which will allow the cotton States to exclude us from the ports of the gulf, would authorize the New England States and New York and Pennsylvania to exclude us from the Atlantic, and the Pacific States to exclude us from the ports of that ocean. Whenever you sanction this doctrine of secession, you authorize the States bordering upon the Atlantic and Pacific Oceans to withdraw from us, form alliance among themselves, and exclude us from the markets of the world and from communication with all the rest of Christendom. Not only this, but there follows a tariff on imports, levying taxes upon every pound of tea and coffee and sugar and every yard of cloth that we may import for our consumption; the levying too of an export duty upon every bushel of corn and every pound of meat we may choose to send to the markets of the world to pay for our imports.

"Bear in mind that these very cotton States, who in former times have been so boisterous in their demands for free trade, have, among their first acts, established an export duty on cotton for the first time in American history.

"It is an historical fact, well known to every man who has read the debates of the convention which framed the Constitution, that the Southern

States refused to become parties to the Constitution unless there was an express provision in the Constitution prohibiting Congress to levy an export duty on any product of the country. No sooner have these cotton States seceded than an export duty is levied, and if they will levy it on their own cotton do you not think they will levy it on our pork and our beef and our corn and our wheat and our manufactured articles, and all we have to sell? Then what is the proposition? It is to enable the tier of States bordering on the Atlantic and the Pacific and on the Gulf, surrounding us on all sides, to withdraw from our Union, form alliances among themselves, and then levy taxes on us without our consent, and collect revenues without giving us any just proportion or any portion of the amount collected. Can we submit to taxation without representation? Can we permit nations foreign to us to collect revenues off our products, the fruits of our industry? I ask the citizens of Illinois—I ask every citizen in the great basin between the Rocky Mountains and the Alleghenies, in the valley of the Ohio, Mississippi, and Missouri to tell me whether he is willing to sanction a line of policy that may isolate us from the markets of the world and make us dependent provinces upon powers that thus choose to surround and hem us in?

"I warn you, my countrymen, whenever you permit this to be done in the Southern States, New York will very soon follow their example. New York—that great port where two-thirds of all our revenue is collected, and whence two-thirds of our products are exported, will not long be able to resist the temptation of taxing fifteen millions of people in the great West, when she can monopolize the resources and release her own people thereby from any taxation whatsoever. Hence I say to you, my countrymen, from the best consideration I have been able to give to this subject, after the most mature reflection and thorough investigation, I have arrived at the conclusion that, come what may,—war if it must be, although I deplore it as a great calamity,—yet, come what may, the people of the Mississippi Valley

can never consent to be excluded from free access to the ports of the Atlantic, the Pacific, and the Gulf of Mexico.

"Hence, I repeat, that while I am not prepared to take up arms or to sanction war upon the rights of the Southern States, upon their domestic institutions, upon their rights of person or property, but, on the contrary, would rush to their defence and protect them from assault, I will never cease to urge my countrymen to take up arms and to fight to the death in defence of our indefeasible rights.

"Hence, if a war does come, it will be a war of self-defence on our part. It will be a war in defence of our own just rights; in defence of the Government which we have inherited as a priceless legacy from our patriotic fathers; in defence of those great rights of the freedom of trade, commerce, transit, and intercourse from the centre to the circumference of our great continent. These are rights we can never surrender.

"I have struggled almost against hope to avert the calamities of war and to effect a reunion and reconciliation with our brethren of the South. I yet hope it may be done, but I am not able to point out to you how it may be effected. Nothing short of Providence can reveal to us the issue of this great struggle. Bloody—calamitous—I fear it will be. May we so conduct it if a collision must come, that we will stand justified in the eyes of Him who knows our hearts and who will judge our every act. We must not yield to resentments, nor to the spirit of vengeance, much less to the desire for conquest or ambition.

"I see no path of ambition open in a bloody struggle for triumph over my own countrymen. There is no path for ambition open for me in a divided country, after having so long served a united and glorious country. Hence, whatever we may do must be the result of conviction, of patriotic duty—the

duty that we owe to ourselves, to our posterity, and to the friends of constitutional liberty and self-government throughout the world.

"My friends, I can say no more. To discuss these topics is the most painful duty of my life. It is with a sad heart—with a grief that I have never before experienced, that I have to contemplate this fearful struggle; but I believe in my conscience that it is a duty we owe ourselves and our children and our God, to protect this Government and that flag from every assailant, be he who he may."

Of all the members of that joint assembly who listened to the eloquence of Senator Douglas that evening, forty-nine years ago, aside from Dr. William Jayne of Springfield, and myself, I do not know of a single one now living.

After he concluded his address, the joint session of the Legislature dissolved. He and I remained together in conversation, and I accompanied him to his hotel. During that talk he expressed to me the great anxiety which he felt for the safety of the country and the preservation of the Union. I am satisfied that it was his ambition to enter the army and possibly lead it in suppressing the Rebellion. What would have been the result in that case, no one can tell; but I am inclined to think that he would have made a very great general.

Senator Douglas's Springfield speech had a tremendous effect on public opinion. It brought his followers, and they were legion in all parts of the country, to the support of the Government and the North.

Senator Douglas went from Springfield to Chicago, where he delivered another eloquent address, along the same lines as the one delivered at Springfield, to tens of thousands of people. Very soon thereafter he was taken ill with pneumonia and passed away.

He was a man of extraordinary intellect. He did his full part, at one of the most critical periods of our history, in saving the Nation. His speeches in and out of Congress are among the most able and eloquent delivered by any American statesman.

CHAPTER VI SPEAKER OF THE ILLINOIS LEGISLATURE AND A MEMBER OF CONGRESS 1860 to 1865

The election of Mr. Lincoln was made the pretext for secession. It has always seemed to me that the South was determined to secede no matter at what cost; and it has also seemed to me that this determination was not due to the great body of the people of the South, than whom there were no better, but to the jealous politicians of that section, who saw the gradual growth in wealth and power of the Northern States threaten their domination of the National Government, which they had firmly held since the days of Washington. They saw that domination slipping away, and they determined to form a nation of their own—in which slavery, indeed, would be paramount; but it was not so much slavery as it was their own desire for control that influenced them.

As soon, therefore, as Mr. Lincoln was elected President they began the organization of a Government of their own. President Buchanan declared in his message that the Southern States had no right to secede—"unless they wanted to," as some one aptly expressed it; in other words, that he had no right under the Constitution to keep them forcibly in the Union, and thus the constitutional opinions of the President harmonized effectively with the purposes of the secessionists. Fortunate it was that Mr. Buchanan had so short a term remaining after the election of Mr. Lincoln. Had a year or two elapsed, the Confederacy would have been firmly and irrevocably established.

It has never been quite clear to my mind whether Mr. Buchanan cared to preserve the Union or not. In the heat and passion of that day, we all thought he was a traitor. As I look back now and think of it, remembering his long and distinguished service to the country in almost every capacity—as a legislator, as a diplomat, as Secretary of State, as President, I think now he was only weak. His term was about expiring, and he saw and feared the awful consequences of a civil war.

One State after another seceded; the United States' arms and arsenals were seized; on January 9, the *Star of the West*, carrying supplies to Fort Sumter, was fired upon and driven off. South Carolina, Mississippi, Florida, Alabama, Georgia, Louisiana, and Texas went out. The Confederate States of America were organized in the capital of Alabama on the fourth of February, and Jefferson Davis was elected President.

We watched with great interest the famous Peace Conference which met in Washington and over which John Tyler, ex-President of the United States, presided. It sat during the month of February, preceding Mr. Lincoln's inauguration, and recommended the adoption of seven additional articles to the Constitution, which were afterwards rejected by the Senate of the United States.

But the fourth of March finally came, and new life was infused into the national councils.

Mr. Lincoln's speeches on his way East were a disappointment, in that they failed in the least to abate the rising Southern storm; the calmly firm tone of his inaugural address impressed the North, but his appeals to the South were in vain. Said he:

"I declare that I have no purpose, directly or indirectly, to interfere with the institution of slavery in the States where it exists. . . . The Union of

these States is perpetual. It is safe to assert that no Government proper ever had a provision in its organic law for its own termination. The power confided to me will be used to hold, occupy, and possess the property and places belonging to the Government and to collect the duties and imposts."

It was a notable appeal that he made, in closing, to the Southerners:

"In your hands, my dissatisfied fellow countrymen, and not in mine, is the momentous issue of civil war. The Government will not assail you. You can have no conflict without being yourselves the aggressors. You have no oath registered in heaven to destroy the Government, while I shall have the most solemn one to 'preserve, protect, and defend it.'

"I am loath to close. We are not enemies, but friends. We must not be enemies. Though passion may have strained it must not break our bonds of affection. The mystic chords of memory, stretching from every battlefield and patriot grave to every living heart and hearthstone all over this broad land, will yet swell the chorus of the union, when again touched, as surely they will be, by the better angels of our nature."

At the same time that Mr. Lincoln was first elected President of the United States, I was for the second time elected to the Legislature of Illinois. I received the vote of what they called the Republicans, or Free-soil men, and of those who were previously known as Fillmore men. I was always in thorough accord with Mr. Lincoln in political sentiment, though I had supported Fillmore rather than Fremont in 1856. I most heartily supported Lincoln's candidacy, and as candidate for the Legislature received more votes than Mr. Lincoln received in Sangamon County. Douglas carried the county as against Lincoln, and I carried it as against my opponent. There was great enthusiasm for Mr. Lincoln in the county, but he was so positive and outspoken in his convictions on the slavery question

that he failed to get a considerable number of votes; many went to other Republicans who did not express their views so vigorously as he did. Of course, what he lost at home because of zeal and earnestness in his cause, was more than made up to him on the wider field covered by his candidacy.

Stephen A. Hurlbut was a member of that Legislature, and afterward became a prominent general in the army. I might say that General Hurlbut and Lawrence Church were two very strong men, both from the northern part of the State, and both became prominent in the public service. I might say also that but for these two men, who put me forward as a candidate for the Speakership, I probably would not have become a candidate. On the Saturday night before the Monday on which the Legislature was to convene, they pressed me so strongly that I consented, and became the nominee of my party associates. J. W. Singleton was the Democratic nominee. Before the Legislature convened, and during the intervening Sunday, a feeling got abroad among the older members of the Legislature that I was too young to be trusted in such a responsible position as that of Speaker. When I came down-town on Sunday I found that feeling prevailing.

I at once took notice of it, and stated that if there was any feeling that I had done wrong in becoming a candidate, I would submit the question to another test of the sense of the Republicans in the Legislature, and if they thought I ought not to have the position I would cheerfully yield to their judgment. The caucus was called together Monday morning, and I stated that I had heard that there was some dissatisfaction, and I desired to have another vote. A vote was accordingly taken, and I was again nominated, and by a larger vote than in the first instance; whereupon the older men gave in, and I was duly elected, receiving thirty-nine votes to twenty-nine cast for the Democratic candidate.

I think I made more friends, in the conduct of the office of Speaker during that term, than I ever did afterwards; and in subsequent campaigns I was frequently gratified to find men, some of them Democrats, who had been in the Legislature with me at that time, working for me with a stronger zeal and earnestness because of the associations and intimate relations there formed and cemented. All classes, Republicans and Democrats alike, took occasion to manifest their satisfaction, and some who became my friends then continued so as long as they lived. I think, of all that Legislature, I am the only one left.

A little incident occurred at a reception given by Mr. Lincoln after he was elected President, but before he left his home to come to Washington, that vitally affected my life. In speaking to the President, I expressed a desire to visit Washington while he was President of the United States. He replied heartily: "Mr. Speaker, come on." And that was about the origin of my thinking seriously that I would like to come to Washington as a member of Congress.

The more I thought of the idea, the more interested I became, and I so shaped matters during that session of the Legislature as to secure a district in which some Republican could hope to be elected. In the apportionment under the census of 1860, I had our Congressional district elongated to the north and south rather than to the east and west, and let it be known that I would be a candidate.

But when the time came for a nomination the Hon. Leonard Swett, who was then a prominent lawyer and politician, also took the field to secure the Republican nomination. He visited Springfield, and persuaded some of his friends there that he ought to be the nominee, and they determined to try their hands toward securing my withdrawal, if possible by persuasion. They sent for me to come to the library, where they were proposing to hold a

meeting. I went over, and found that their project was to get me to withdraw in favor of Swett, and I declined. But I said I would "draw straws," or assent to any other fair means that could be found by which it was to be settled who was to be the nominee of the party. Then, after some further parleying, I finally left the conference.

That evening after dusk I met Swett on the street. We sat down upon the curbstone, as it was growing a little dark, and talked the matter over. Swett said to me that he was an older man than I was; that he had been knocked about a good deal, and, though he had done much work for the party, he had never got anything; and if the present opportunity for reward for services were allowed to pass him by another opportunity was not likely, at his age, to come to him. Finally, I said: "Mr. Swett, if you had come to me and made this suggestion at first, I would have been very glad indeed to make the concession to you, and I am ready to do so now. Here is my hand on it, and I will help you at the convention." He became the party candidate by general consent, as I remember it. At all events he was the candidate, and unfortunately he was beaten at the polls. That was in 1862. So that while the Congressional district was made by me, and for myself, I gave way to Mr. Swett, and the opposition carried it. Two years afterwards I was the candidate and was elected.

The majority in the counties composing the district was ordinarily Republican. As a result of Mr. Swett's defeat, he left the district, though a very prominent lawyer, and went to Chicago, never to return to the Congressional district in which he had lived so many years, really quitting politics entirely.

I suppose I ought to state the fact that, having made the district for myself and then given it up to Mr. Swett, I determined to be a candidate at the next election; whereupon I found that Mr. James C. Conkling, a friend of mine,

and a special friend of Mr. Lincoln also, some of whose family are still living, was disposed to try for the same office. I made up my mind that in order to keep myself in trim for the future it was well to keep in touch with the voters; and I determined to run for the State Senate, though the four counties composing the Senatorial district were all Democratic and all in the Congressional district in which Swett was the defeated candidate, yet I desired to run for the Senate, in order to keep Conkling from getting such a hold on the district as to strengthen him for the contest two years afterwards.

So I made the run, and was beaten, of course, every county in the district being Democratic; and the rest of my plans also worked out as I had calculated they would.

Soon after I was elected to Congress, and soon after Mr. Lincoln was elected the second time, I came on to Washington. Having been intimate with Mr. Nicolay and Mr. Hay who were his secretaries, I was in the habit of frequenting their rooms without ceremony. One evening, just after dusk, I went to the White House and quietly, as usual, entered Mr. Nicolay's room. It so happened that Mr. Lincoln and Mr. Seward, with some other cabinet officers, were in the room, holding a consultation. I had opened the door before I observed who were there. President Lincoln saw me quite as soon as I saw him, and I was very much embarrassed. He sang out cheerily, "Come in!" and turning to his Secretary of State, he added, "Seward, you remember my old friend Stuart? Here is the boy that beat him." I stayed for only a moment, and then went out. That is the nearest I ever came to participating in a cabinet meeting.

That incident in my life, as I now look back, punctuates, in my individual way of thinking at this moment, the substantial close of what was mortal in that great man's earthly career. The close of the four years of civil war was

clearly in sight. It was in many respects a record-making and a record-breaking war. The navies of the world, rendered helpless by the incidental effects of its thundering guns, had to be rebuilt. For the first time in the world's history the railroad and the electric telegraph played a very considerable part. The grip of insatiate despotism on Democratic institutions was effectually loosened far and wide. For the first time in war the lessons taught in the art of warfare by Alexander and Caesar were utterly ignored, and the "Maxims of Napoleon" were relegated to the shelf, there to gather dust. In short, it inaugurated a new era in the history not only of our own country but of the entire world.

CHAPTER VII LINCOLN 1860 to 1864

As days and years pass by and an enlightened humanity studies and comprehends the real greatness and simplicity of Abraham Lincoln, he comes nearer and becomes dearer to all. No weak compliment of words can add to his renown, nor will any petty criticism detract from the glory which has crowned his memory. The passing of time has only added brightness to his character; the antagonisms of bitter war have left no shade upon his name; and the hatred which, for a brief time, spent itself in harmless words has turned to reverence and love.

Had he lived until February 12, 1911, he would have been one hundred and two years old. Less than forty-five years ago, in the very prime of life, he was the Chief Magistrate of the Nation, guiding and controlling it in its great struggle for national existence. Such a vast accumulation of history has been compressed into those years, and such a wonderful panorama of events has passed before us in that comparatively brief time, that we are apt to think of Lincoln as of the long ago, as almost a contemporary of Washington and of the Revolutionary fathers. The immensity of the history

which has been crowded into those forty-five years has distorted our mental vision, as ordinary objects are sometimes distorted by refraction. Yet when we reflect, the distortion disappears. But the wonder still remains. The years during which the deeds of Lincoln have been a memory to us do not carry us back to the early days of our own country. They do not carry us back even to the time of Jackson, Webster, Clay, or Calhoun; yet the sacred halo of patriotic veneration invests as completely the name of Lincoln as of Washington.

The many personal memories of the martyred patriot that I can recall seem almost a dream to me. It seems almost a vision of the unsubstantial imagination, when I think that I have known the one immortal man of the century, and enjoyed his friendship. He was the very impersonation of humanity; his stature was above and beyond all others. One hand reached back to the very portals of Mount Vernon, while the other, giving kindly protection to the oppressed, still reaches forward to guide, encourage, and sustain the people of this Nation.

It was my great good-fortune to know something of Abraham Lincoln from the time I was about twelve years old, and even earlier than that I have a distinct recollection of hearing my father advising men to employ Lincoln in important litigation. Lincoln at that time was about thirty years old, and even then was regarded as a really great lawyer.

The first time I ever saw him in court he, assisted by Colonel E. D. Baker (afterwards a senator from Oregon, and killed at Ball's Bluff), was engaged in the defence of a man on trial for murder. The conduct of the defence made by those great lawyers produced an impression on my mind that will never be forgotten. Lincoln became then my ideal of a great man, and has so remained ever since.

In 1846, Mr. Lincoln was the Whig candidate for Congress, and it was then that I first heard him deliver a political speech. The county in which my father resided was a part of his Congressional district. When Lincoln came to the county my father met him with his carriage and took him to all his appointments. I went to the meeting nearest my home—an open-air meeting held in a grove. On being introduced, he began his speech as follows: "Fellow citizens, ever since I have been in Tazewell County my old friend, Major Cullom, has taken me around; he has heard all my speeches, and the only way I can hope to fool the old Major and make him believe I am making a new speech is by turning it end for end once in a while."

When I determined to abandon the hard work on the farm to enter the study of law at Springfield, my father being so close to Mr. Lincoln, I went to him for advice. He expressed a willingness to take me into his own office as a student, but said that he was absent on the circuit so much that he would advise me to enter the law office of Stuart and Edwards, two prominent Springfield lawyers, of whom I have written more at length in an earlier chapter. There I would have the advantage of the constant supervision of one or the other member of the firm.

From that time until he left Springfield never to return, I had constant means of observing Lincoln as a lawyer. I was at times associated with him as a junior counsel in the trial of law suits. I was employed in a murder case which Lincoln and Logan were defending, I being the boy lawyer in the case. They made a wonderful defence. I do not know whether the defendant was guilty or not, but I do know that he was acquitted.

During my life I have been acquainted with very many able lawyers, and I have no hesitation in saying that Lincoln was the greatest trial lawyer I ever knew. He was a man of wonderful power before a court or jury. When he was sure he was right, his strength and resourcefulness were well-nigh

irresistible. In the court-room he was at home. He was frank with the court, the juries, and the lawyers, to such an extent that he would state the case of the opposite side as fairly as the opposing counsel could do it; he would then disclose his client's case so strongly, with such honesty and candor, that the judge and jury would be almost convinced at once in advance of the testimony. Judge Davis once said that the framework of Lincoln's mental and moral being was honesty, and that a wrong cause was poorly defended by him.

The story is told that a man offered to employ him in a case and told him the facts, which did not satisfy Lincoln that there was any merit in it. He said to him: "I can gain your case; I can set a whole neighborhood at loggerheads; I can distress a widowed mother and six fatherless children, and thereby get for you six hundred dollars, which it appears to me as rightfully belongs to them as to you. I will not take your case, but I will give you a little advice for nothing. You seem to be a sprightly young man, and I advise you to try your hand at making six hundred dollars in some other way."

Mr. Lincoln was for a time employed by the Illinois Central Railroad as one of its attorneys. In a case in one of the counties of Judge Davis's circuit to which the railroad was a party, it was announced that the company was not ready for trial, and the court inquired the reason; to which Mr. Lincoln replied that Captain McClellan was absent. The court asked, "Who is Captain McClellan?" Lincoln replied that all he knew about him was that he was the engineer of the Illinois Central Railroad.

What a strange juggling of destiny and of fate! In little more than two years McClellan's fame had become world-wide as the general in charge of all the armies of the Republic, only to prove in the estimation of many people the most stupendous failure as a commander in all our military

history; Davis had become a Justice of the Supreme Court of the United States; and Lincoln had reached the Presidency.

In the trial of the murder case to which I have referred, I never saw more striking evidence of Mr. Lincoln's power over a court. There came a question of the advisability of certain testimony which was very vital to the defendant. The question was thoroughly argued by Judge Logan and Mr. Lincoln until the court took a recess for dinner at noon. The Judge announced that he would render his decision when the court reconvened. The courthouse was filled on the reconvening of court in the afternoon, and the Judge began rendering his opinion on the point in dispute. It seemed to Mr. Lincoln and those present that he was about to decide against the admissibility of the evidence. Lincoln sprang to his feet. Apparently he towered over the Judge, overawing him. He made such a tremendous impression that the court apparently gave way, and decided the point in the defendant's favor.

Mr. Lincoln was not only a great statesman, but he was one of the ablest, most astute, and shrewdest politicians whom I have ever known. From my earliest recollection of him he took keen interest in public affairs and was the foremost public man or politician in his section of the State. He was not among the first to join the Republican party. He clung to the old Whig party as long as a vestige of it remained. Almost immediately after he drifted into the Republican party, he became its recognized leader in Illinois, and his public utterances attracted the attention of the Nation to him.

I recollect having heard him utter the memorable words in the Republican Convention of my State in 1858:

"A house divided against itself cannot stand. This Government cannot permanently endure half slave and half free. I do not expect the Union to be

dissolved—I do not expect the house to fall—but I do expect that it will cease to be divided. It will become all one thing, or all the other."

What words of wisdom! He looked through the veil between him and the future and saw the end more clearly than any other man in public life. This was a carefully prepared speech, in which every word was weighed. Some of his friends, to whom it was read, advised him not to use the clause I have quoted, "a house divided against itself." He was wiser than any of them. With a self-reliance born of earnest conviction he said that the time had come when the sentiments should be uttered, and that if he should go down because of their utterance by him, then he would go down linked with the truth.

I listened to much of the great debate between Lincoln and Douglas, the greatest political debate which ever took place in this country. I have always felt that Lincoln never expected to be elected to the Senate in 1858. I think he saw more clearly than any of us that the advanced position which he took in that debate made his election to the Senate at that time impossible. He was then fighting for a great principle. He did carry a majority of the popular vote, but Douglas secured a majority of the Legislature.

His defeat apparently affected him little, if at all. I felt very badly when it became apparent that Douglas had secured a majority of the Legislature. I met Lincoln on the street one day, and said: "Mr. Lincoln, is it true that Douglas has a majority of the Legislature?" His reply was an affirmative. I then expressed the great sorrow and disappointment that I felt. He placed a hand upon my shoulder, and said: "Never mind, my boy; it will all come right." I believe that he then felt certain that the position he took in that memorable debate would make him the logical candidate of the Republican party for the Presidency in 1860, which it did. And two years from that very

day the Republican party celebrated its first national victory in his election as President of the United States.

It has been said that Mr. Lincoln never went to school; and he never did to any great extent, but in a broad sense of the word, he was an educated man. He was a student, a thinker; he educated himself, and mastered any question which claimed his attention. There was no man in this country who possessed to a greater degree the power of analyzation.

He was a student all his life. One incident that occurred in Springfield, some years before he finally left, will serve as an illustration.

An old German came through the town and claimed that he could teach us all to read and speak German in a few weeks. A class was organized for the purpose of studying German. Lincoln became a member of the class, and I also was in it, and I can see him yet going about with the German book in his pocket, studying it during his leisure moments in court and elsewhere. None of the rest of us learned much, but Lincoln mastered it, as he did every other subject which engaged his attention.

His home life was a pleasant one. I often visited at his home, and so far as my observation went, I do not hesitate to say that not the slightest credence should be given to the many false stories that have from time to time appeared, manufactured largely by those who desired to write something new and sensational concerning the life of President Lincoln in his home, and concerning Mrs. Lincoln.

Mr. Lincoln was regarded generally as an ungainly man, and so he was; and yet on occasions he appeared to me to be superior in dignity and nobility to almost any other man whom I have ever seen. I was present when the committee from the National Convention, that gave his first nomination for President, came to Springfield to notify him of his

nomination. He stood in the rear of a double parlor in his home, and as the Hon. George F. Ashmun, president of the convention, presented the members of the delegation one by one to him, I thought that he looked what he was—the superior of any man present. Many of the eminent men composing that delegation had believed that Lincoln was some sort of a monster. I stood among them after they had met him and listened to their comments. The lofty character, the towering strength, the majesty of the man had made a great impression upon them. They had come expecting to see a freak; they discovered one of the princes of men.

In this connection, I must be permitted to refer to another occasion. It so happened that I was in Washington when the President's son Willie died. The funeral ceremony took place in the East Room of the White House, in the presence of the President and his cabinet and a few other friends. When the ceremony was about concluded and President Lincoln stood by the bier of his dead boy, with tear-drops falling from his face, surrounded by Seward, Chase, Bates, and others, I thought I never beheld a nobler-looking man. He was at that time truly, as he appeared, a man of sorrow, acquainted with grief, possessing the power and responsibilities of a President of a great Nation, yet with quivering lips and face bedewed with tears, from personal sorrow.

The morning that Abraham Lincoln left his home in Springfield never to return is not to be forgotten. It was early on the morning of the eleventh of February, dark and gloomy, with a light snow falling. There was a large crowd of his neighbors and friends at the station to bid him good-bye. He held a sort of impromptu reception in the little railroad station. There was no noisy demonstration. As I recollect it now, it was a solemn leave-taking. Just before the train pulled out, Mr. Lincoln appeared on the rear platform of his car. Every head was bared, as if to receive a benediction, as he uttered his farewell address:

"My Friends: No one not in my situation can appreciate my feeling of sadness at this parting. To this place, and the kindness of these people, I owe everything. Here I have lived a quarter of a century, and have passed from a young to an old man. Here my children have been born and one is buried. I now leave, not knowing when or whether ever I may return, with a task before me greater than that which rested upon Washington. Without the assistance of that Divine Being who ever attended him, I cannot succeed; with that assistance, I cannot fail. Trusting in Him, who can go with me, and remain with you, and be everywhere for good, let us confidently hope that all will yet be well. To His care commending you, as I hope in your prayers you will commend me, I bid you an affectionate farewell."

I was not present at the first inauguration of President Lincoln, but I visited Washington many times during the years that he was President, and, knowing him as well as I did, and having known both Nicolay and Hay, his secretaries, in Springfield, I naturally spent much time around the executive offices. I had many conversations with him during the early years of the war. He had no military education, but he soon demonstrated that he was in fact the real commander-in-chief. He liked General McClellan, and stuck to him until McClellan had demonstrated his absolute inefficiency for command. McClellan was a great organizer. He made the Army of the Potomac the most perfect fighting machine, I might almost say, that was ever known in military history. But there he stopped. He could organize, but he could not and did not, despite the urging and the anxiety of Mr. Lincoln, push forward his army to victory. I knew something of Mr. Lincoln's anxiety at the failure of McClellan to inaugurate an aggressive campaign.

The late O. M. Hatch of Illinois told me of a rather interesting incident which occurred on one occasion when the President, accompanied by Mr. Hatch, visited McClellan's army a few days prior to the battle of Antietam in September, 1862. They spent the night in a tent, and, rising very early, at

the President's suggestion they took a walk before sunrise about the great camp, inspecting the field, the artillery, the quarters, and all the appurtenances of the army. Lincoln was in a pensive mood, and scarcely a word was spoken. Finally, just as the sun was rising, they reached a commanding point; the President stopped, placed his left hand upon Mr. Hatch's shoulder, and slowly waving his right in the direction of the great city of tents, seriously inquired: "Mr. Hatch, what is all this before us?"

"Why, Mr. President," was the surprised reply, "this is General McClellan's army."

"No, Mr. Hatch, no," returned Lincoln soberly, "this is General McClellan's body-guard."

It will be understood what these utterances signified: they expressed perfectly the prevailing belief that McClellan had failed to appreciate the purpose for which that magnificent fighting machine had been created.

I think I am justified in saying that after the earlier contests of the war had proven that great soldiers and great generals were not always great leaders, President Lincoln became the able director, the actual commander-in-chief of the forces of the United States. He planned and ordered the larger movements of the War, and he held the reins above and about all his armies, scarcely relaxing his watchful care for a moment,—until events demonstrated the wisdom with which he confided the military interests of our beloved country and the conduct of the war to Ulysses S. Grant.

Some of us remember with what persistence during the Winter of 1862 and 1863 many newspapers and a large share of the Northern people joined in the cry of "On to Richmond!" Censure and criticism ran riot even among Northern Republicans. In a three-line memorandum the President showed the fallacy of that outcry, when he wrote: "Our prime object is the enemy's

army in front of us, and not with or about Richmond at all, unless it be incidental to the main object." At a later day he said to Hooker: "I think Lee's army, and not Richmond, is your sure objective point."

Modest and simple as he always was, never seeking power with inordinate ambition, simply that he might use power; still he was never afraid to assume responsibility when it was his duty to assume it.

I called on him one evening at the Soldiers' Home. We spent the evening together, and naturally we talked of the war. He discussed almost all of his generals, beginning with McClellan. At that time McClellan was down on the James, and Pope was in the saddle in Virginia. Pope, he feared, would be whipped, unless he could get more troops, and he was trying to get McClellan back in order to save Pope. At that time he had not yet lost his faith in McClellan, but he was complaining that McClellan was never ready for battle. After making all possible preparations, and with the enemy in front, he would overestimate the size of the enemy's force, and demand more troops. Yet Mr. Lincoln said that he would rather trust McClellan to get his army out of a tight place than any other general that he had.

After his election he invited his principal competitors for the nomination to enter his cabinet. He had not the slightest jealousy of any living man. He was not afraid, as some of our Presidents have been, to have his cabinet composed of the greatest men of his time. He was a bigger man than any of them, and no thought of jealousy ever entered his mind. Both Seward and Chase fancied they were greater men than Lincoln, and each of them, at the beginning at least, entertained the idea that on him rested the responsibility of the administration. Seward felt that he should have been the nominee of his party. Chase felt perfectly sure that he, and not Lincoln, should have been President.

Before many months had passed, Seward was compelled to acknowledge that Mr. Lincoln was the superior of any of them, as he expressed it in a letter to his wife. He soon became one of the most devoted friends and loyal supporters of the President. The publication of the diary of Gideon Welles, Secretary of the Navy from 1861 to 1865, shows that Mr. Lincoln was the leader of them all, and was in fact the real head of every department of his administration.

Chase was an able man, and loyal to the Union; but, unlike Seward, he was never loyal to the President personally, and was constantly plotting in his own interest to supplant Lincoln as the nominee of his party in 1864,—a most reprehensible course on the part of a cabinet officer. This did not give concern to Mr. Lincoln in the slightest degree. He cared very little what Mr. Chase said or thought of him personally, so long as he was doing his duty as Secretary of the Treasury.

I was in Washington the latter part of February, 1864, before he was nominated the second time. I happened to hear of the Pomeroy letter in behalf of Mr. Chase, and I learned with amazement that Chase was conspiring with his friends to secure the nomination for the Presidency, and was untrue and unloyal to his chief. I felt justly indignant. I saw Mr. Lincoln and talked with him about it with great earnestness. I told him that Chase should be turned out. He answered by saying: "Let him alone; he can do no more harm in here than he can outside."

If things did not go to suit him, Chase was in the habit of tendering his resignation every few days. It was not accepted; but he offered it once too often, and, very much to his surprise and chagrin, it was promptly accepted; and Chase was relegated to private life, where he belonged, and where he should have remained.

Chief Justice Taney passed away unmourned, the most pathetic and desolate figure in the Civil War, with his long, faithful, and distinguished service on the bench forgotten. Chase's friends, and Chase himself, at once commenced overtures of friendship toward Mr. Lincoln, in the interest, solely, of securing Chase's appointment as Chief Justice. Considerable pressure was brought to bear in behalf of Chase. The President would give no intimation as to what he intended to do, although I myself believe that he all the time intended appointing him to the vacant position, and that the so-called pressure on the part of Sumner and other radicals had little, if any, influence with him.

During this period, after the death of Chief Justice Taney, Chase was not at all averse to writing the President the most friendly letters. One day his secretary brought him a letter from Mr. Chase. The President asked, "What is it about?" "Simply a kind and friendly letter," the secretary answered. Mr. Lincoln, without reading it, replied with his shrewd smile: "File it with his other recommendations."

Chase was finally appointed Chief Justice of the United States. After his conduct as a member of the cabinet, I do not believe we have ever had another President, except Lincoln, magnanimous enough to have made that appointment under similar circumstances. Lincoln entertained a very exalted opinion of Chase's ability as a lawyer and a man. He believed that he possessed the qualifications of a great Chief Justice, and the appointment was made entirely free from any personal feelings or prejudices.

I happened to be alone in Mr. Nicolay's room in the White House when Mr. Chase called to thank the President for his nomination. He came into Mr. Nicolay's room first, and inquired of me if the President was in. I told him I did not know, but his room was next to the one we were in, and he might ascertain for himself. Knowing of Chase's disparaging remarks

concerning Mr. Lincoln, and of his disloyalty as a member of his cabinet, I was very curious to hear what he would have to say to the President. He left the door ajar, and I overheard the conversation. Mr. Chase proceeded to thank the President for his nomination. Mr. Lincoln's reply was brief, merely that he hoped Mr. Chase would get along well and would do his duty. Very few words passed between them, and the interview closed.

Montgomery Blair was Postmaster-General in President Lincoln's cabinet. He was appointed from the District of Columbia. He was a man of considerable ability, and was thoroughly loyal to the President. Montgomery Blair became exceedingly unpopular among certain classes, not only on his own account, but because of his brother Frank, whose home was in Missouri. I thought his remaining in the cabinet was injuring the Administration, and I told Mr. Lincoln, in a conversation I had with him at the White House, that under all the circumstances Montgomery Blair should be relieved from office; that he was unpopular; that the people were not for him. Mr. Lincoln seemed annoyed, even to the extent of petulance (a rare thing with him), that I should say anything against Montgomery Blair. He asserted that Blair was a loyal man, was doing his full duty as Postmaster-General, and that he would not turn him out.

Later, Montgomery Blair, always loyal under all circumstances, told the President that he was ready to tender his resignation whenever, in the judgment of the President, his remaining in the cabinet would be an embarrassment; and Mr. Lincoln in a very kindly note sometime afterwards said that he felt himself compelled to accept Mr. Blair's offer and ask for his resignation. They continued personal friends until the President's death.

The year 1862, on account of the proclamation of President Lincoln, in September, that he would free the slaves in those States or parts of States whose people continued in rebellion on and after January 1, 1863, was a

disastrous year to the Republican party; but the final effect of the proclamation was beneficial to the cause of the Union. It stimulated greater enthusiasm on the part of those who desired to see the end of slavery in this country. Many people so hated that institution that they were more desirous of having it abolished than to have the Union preserved with it.

While President Lincoln was always opposed to slavery, unequivocally opposed to it, yet his oath called upon him to preserve the Constitution and the Union. He said that his paramount object was to save the Union and not to save or destroy slavery.

In 1862 President Lincoln appointed three men, namely, Governor George S. Boutwell, the Hon. Stephen T. Logan, and the Hon. Charles A. Dana, a commission to go to Cairo, Illinois, and settle the claims of numerous persons against the Government, arising from property purchased by commissary officers and quartermasters in the volunteer service before the volunteers knew anything about military rules or regulations. Judge Logan went to Cairo, remained a few days, became ill, tendered his resignation, and returned home. The President telegraphed me an appointment, and asked me to go at once to Cairo for duty, which I did. I had not known either Boutwell or Dana before. The commission finished its work in about a month, and forwarded to Washington all papers, with its report. The claims were paid on the basis of our allowance, and justice was done to all concerned.

Early in 1862 an old friend of President Lincoln's, James Lamb, came to see me, stating that he had been furnishing beef cattle to the army; that he had received orders to furnish a given number on the hoof at a certain place in the South, which he had done; but before his cattle arrived the army had gone, and he had thereby suffered great loss. He asked me to look after his claim when I went to the National capital, and I agreed to do so. I knew

nothing about such things in Washington, nor how such business with the Government was transacted. I went to the President as the only official with whom I was acquainted, and stated to him, "Uncle Jimmie Lamb, your old friend, has a claim," setting forth the same in full. "You know he is a good man," I urged, "and he ought to have his money." Lincoln answered me by saying: "Cullom, there is this difference in dealing between two individuals and between an individual and the Government: if an individual does not do as he agreed and the other person is injured thereby, he can sue the one responsible for the injury, and recover damages; but in the case of the Government, if it does not do right, the individual can't help himself." He gave me a note, however, to the proper officer and the matter was arranged.

The gossip around the Capitol in Washington among Senators and Representatives is a very poor gauge of public sentiment in the country toward a President. I was in Washington a few months before the second nomination. I talked with numerous Representatives and Senators, and it really seemed to me as if there was hardly any one in favor of the renomination of Mr. Lincoln. I felt much discouraged over the circumstance. When I was about to leave for home, I called at the White House. I asked the President if he permitted anybody to talk to him about himself. He replied that he did. I said: "I would like to talk to you about yourself." He asked me to be seated. Whereupon I told him that I had been in Washington some ten days or more, and that everybody seemed to be against him.

"Well, it is not quite so bad as that," he said. He took down his directory, and I soon discovered that he had a far more intimate knowledge of the situation than I had. He had every one marked, knew how he stood, and the list made a better showing than I had expected.

The truth is, however, that many of the strong men in Congress, especially the radicals, were against his renomination, and would have rejoiced to see some one else the nominee of the party; but they knew full well, that the great body of the people of the North were with him, and that it would be useless to attempt to prevent his renomination.

The next time I called at the White House after the convention, he reminded me of our previous conversation, and remarked that it did not turn out so badly after all.

He was reminded of a little story. A couple of Irishmen came to America and started out on foot into the country. They travelled along until they came to a piece of woods. They thought they heard a noise, but did not know what it was. They deployed on either side of the road to find out, but were unable to do so, and finally one called to the other, "Pat, Pat, let's go on; this is nothing by a domned noise." So the opposition to him, he said, was apparently nothing but a noise.

But if he never had any doubts as to his renomination, he at one time almost despaired of being re-elected, as did many of his closest and most intimate friends. The Democrats had not yet selected their candidates, and as he remarked: "At this period we had no adversary, and seemed to have no friends."

An incident in this connection is related by the late Secretary, John Hay. The President felt that the campaign was going against him, and he had made up his mind deliberately as to the course he should pursue. He resolved to lay down for himself a course of action demanded by his then conviction of duty. He wrote on the twenty-third of August the following memorandum:

"This morning, as for some days past, it seems exceedingly probable that this administration will not be re-elected. Then it will be my duty to so co-operate with the President-elect as to save the Union between the election and the inauguration; as he will have secured his election on such grounds that he cannot possibly save it afterwards."

He then folded and pasted the sheet in such manner that its contents could not be read, and as the cabinet came together he handed this paper to each member successively, requesting him to write his name across the back of it, without intimating to any member of the cabinet what the note contained. In this manner he pledged himself to accept loyally the anticipated verdict of the people against him.

Mr. Hay's diary relates what took place at the next cabinet meeting after the election, as follows:

"At the meeting of the cabinet to-day the President took out a paper from his desk and said: 'Gentlemen, do you remember last summer I asked you all to sign your names to the back of a paper of which I did not show you the inside? This is it. Now, Mr. Hay, see if you can open this without tearing it.' He had pasted it up in so singular a style that it required some cutting to get it open. He then read this memorandum (quoted above).

"The President said: 'You will remember that this was written at the time, six days before the Chicago nominating convention, when as yet we had no adversary and seemed to have no friends. I then solemnly resolved on the course of action indicated in this paper. I resolved in the case of the election of General McClellan, being certain that he would be the candidate, that I would see him and talk matters over with him. I would say, "General, the election has demonstrated that you are stronger, have more influence with the American people than I. Now let us together, you with your influence, and I with all the executive power of the Government, try to save the

country. You raise as many troops as you possibly can for the final trial, and I will devote all my energies to assist and finish the war."

"Seward said: 'And the General would have answered you, "Yes, yes," and the next day when you saw him again and pressed these views upon him, he would have said, "Yes, yes," and so on forever, and would have done nothing at all.'

"'At least,' rejoined Lincoln, 'I should have done my duty and have stood clear before my own conscience.'"

Not the least of his troubles and embarrassments during the trying period preceding his second election was the overzealous advice,—persistence, I might say—on the part of certain New Yorkers and New Englanders who seemed to think that they had the interest of the Union and the country more at heart than had Mr. Lincoln.

Horace Greeley was one of the most troublesome of this lot. He was an honest and a most loyal man, but was willing to temporize upon the most vital questions. At one time he advised that the "erring sisters" should be permitted to depart in peace. At this particular time of which I speak he had devised a plan for a peace conference, with certain prominent Confederates, Clement C. Clay, among others, to be held in Canada. Mr. Lincoln felt sure that the conference would do no good, and that the Confederates were fooling Mr. Greeley, and that they had no real power to act.

This turned out to be exactly the truth. I was with the President just as he was sending Mr. Hay to Niagara with written instructions, which were given to see that nothing which threatened the interests of the Government should be done. The President was very much annoyed, and he remarked to me: "While Mr. Greeley means right, he makes me almost as much trouble as the whole Southern Confederacy."

While, as I have previously observed, Greeley was intensely loyal to the country, yet he was so nervous and unstable in his mind that he could not resist the effort to bring about a condition of peace. I think he would have consented to almost anything in order to secure it. He was very anxious for the issuance of a proclamation abolishing slavery, and on the nineteenth of August, 1862, addressed a very arrogant open letter to President Lincoln on the subject.

Lincoln's reply was so good, so perfect, and so conclusive that I give it, as follows:

"Executive Mansion,
"Washington, *Friday, August 22, 1863.*

"Hon. Horace Greeley:

"Dear Sir: I have just read yours of the nineteenth instant, addressed to myself through *The New York Tribune*.

"If there be any statements or assumptions of facts which I may know to be erroneous, I do not now and here controvert them.

"If there may be any inferences which I may to believe to be falsely drawn, I do not now and here argue against them.

"If there be perceptible in it an impatient and dictatorial tone, I waive it in deference to an old friend whose heart I have always supposed to be right.

"As to the policy 'I seem to be pursuing,' as you say, I have not meant to leave any one in doubt. I would save the Union. I would save it in the shortest way under the Constitution.

"The sooner the National authority can be restored, the nearer the Union will be—the Union as it was.

"If there be those who would not save the Union unless they could at the same time save slavery, I do not agree with them.

"If there be those who would not save the Union unless they could at the same time destroy slavery, I do not agree with them.

"My paramount object is to save the Union, and not either to save or destroy slavery.

"If I could save the Union without freeing any slave, I would do it; and if I could save it by freeing all the slaves, I would do it; and if I could save it by freeing some and leaving others alone, I would do that.

"What I do about slavery and the colored race, I do because I believe it helps to save the Union, and what I forbear, I forbear because I do not believe it would help to save the Union.

"I shall do less whenever I shall believe what I am doing hurts the cause, and shall do more whenever I believe doing more will help the cause.

"I shall try to correct errors when shown to be errors, and I shall adopt new views so fast as they will appear to be true views.

"I have here stated my purpose according to my view of official duty, and I intend no modifications of my oft-expressed personal wish that all men everywhere could be free.

"Yours,
"A. Lincoln."

It is said that Mr. Greeley remarked after reading the letter that he had been knocked out by one letter from Mr. Lincoln, and that he "would be damned if he ever wrote him another."

There was more personal bitterness evinced against Mr. Lincoln in the campaign of 1864 than ever before or since in a Presidential campaign. He was denounced in the most intemperate language as a tyrant, a dictator, whose administration had proven a failure. A certain element of so-called "high class" New Englanders, men of the Wendell Phillips type, were particularly bitter in their denunciation. And I may remark in passing that the New England men of letters never did have a proper appreciation of the worth of Abraham Lincoln.

He was triumphantly re-elected amid the universal rejoicing of the friends of liberty throughout the North. He took the election very quietly. He apparently felt no sense of personal triumph over his opponents and those who had so bitterly attacked him during the campaign. He seemed only to have a feeling of deep gratitude to his fellow citizens who had testified their confidence in his administration. On the evening of election day, when it became evident that he was re-elected to the Presidency, in response to a serenade he said:

"I am thankful to God for this approval by the people. While deeply grateful for this mark of their confidence in me, if I know my heart, my gratitude is free from any taint of personal triumph, but I give thanks to the Almighty for this evidence of the people's resolution to stand by free government and the rights of humanity."

And again in that eloquent, simple little response which he made to the joint committee of Congress appointed to wait upon him to notify him of his second election, after the count of the electoral votes by a joint session of the Senate and House of Representatives in Congress, he said:

"With deep gratitude to my countrymen for this mark of their confidence; with a distrust of my own ability to perform the duty required under the most favorable circumstances, and now rendered doubly difficult by existing national perils; yet with a firm reliance on the strength of our free Government, and the eventual loyalty of the people to the just principles upon which it is founded, and, above all, with an unshaken faith in the Supreme Ruler of Nations, I accept this trust. Be pleased to signify this to the respective Houses of Congress."

These utterances show more clearly than any one else can describe the state of mind in which the President received his re-election, and in which he was about to enter his second term as President of the Republic. Without any personal feeling of pride, he was certain in his own mind that his re-election was necessary in order to save the Union.

I attended the second inauguration, March 4, 1865. I have a particularly vivid recollection of the scene which took place in the Senate chamber when Mr. Johnson took the oath as Vice-President. The simple truth is, and it was plain to every one present in that chamber, Mr. Johnson was intoxicated. Johnson delivered a rambling, senseless address. I sat next to Senator Lane of Indiana, and I remarked that somebody should stop him. Lane sent up a note to the Secretary of the Senate, telling him to get Johnson to cease speaking and take the oath. We felt Johnson was making an exhibition of himself in the presence of the President, the Cabinet, the Foreign Representatives, and two Houses of Congress, and a gathering of the most distinguished men of the Nation. The Secretary wrote some lines and placed them before Mr. Johnson, who did not appear to notice them. Finally he was made to understand that he must take the oath, as the time had come when the President, according to usual custom, would have to go to the east front of the Capitol to take the oath as President of the United States. Johnson, with a sort of wild sweep of his arm said, "I will take the

oath, but I regard my devotion to the Union as greater evidence of my loyalty than any oath I could take."

I was close to Mr. Lincoln at the solemn moment when Chief Justice Chase administered to him the oath of office. There was a vast crowd of people, great enthusiasm and rejoicing, and the war was practically over,—a far different scene from the one which took place just four years before, when Chief Justice Taney in the same place administered the same oath. At that time there was no noisy demonstration. There was a solemn hush, as every one realized that the country was about to be plunged into one of the mightiest civil wars of all history. Indeed many men believed that there was a concerted plot to assassinate Mr. Lincoln at that time, and that he would never be permitted to enter upon the duties of his office.

I heard him deliver his second inaugural address,—one of his two greatest speeches.

The last time I saw Abraham Lincoln alive was about three weeks before his assassination, as I now recollect. He was at the White House. There had been constant rumors throughout his first term that he was in danger of some such outrage, but as the war drew to a close, with the natural bitter and resentful feeling in the South, these rumors seemed to increase. I told him what I had heard, and urged him to be careful. It did not seem to concern him much, and the substance of his reply was that he must take his chances; that he could not live in an iron box, as he expressed it, and do his duty as President of the United States.

It is difficult for one who did not live in those terrible days from 1861 to 1865 to realize the awful shock of horror that went through the whole Nation on the morning of April 15, 1865, when the message came, "Abraham Lincoln is dead." In his old home at Springfield, it seemed the whole population assembled in the public square, and the duty devolved

upon me to announce to the assembled people that the great President had passed away. There was intense suppressed excitement. No one dared utter a word in disparagement of Abraham Lincoln. The crowd was in the humor for hanging to the limb of the first convenient tree any one who dared to make a slighting suggestion. It was not alone in Springfield, but it was throughout the entire North that this feeling prevailed. There was fear that the Government would go to pieces, almost that the end of the world was at hand.

Soon the news came from different sources that he was to be buried in Washington, or somewhere in the East. The people of Springfield became very much worked up. A committee was appointed to go to Washington to insist that the remains should be taken to Springfield. I was a member of this committee. We left immediately, but before we arrived at Harrisburg it had been determined that the only fitting final resting place of all that remained of the immortal Lincoln was at his old home in Springfield; and the funeral train had already left Washington. The committee waited at Harrisburg for its arrival. Through the courtesy of Governor Curtin, of Pennsylvania, we were permitted to board the train, and we accompanied the remains from there to Philadelphia, New York, Albany, Buffalo, Cleveland, Indianapolis, Chicago, and finally to Springfield. At each place the remains lay in state and were viewed by hundreds of thousands of people.

In all, the entire journey consumed some twelve days from the time the party left Washington until it arrived in Springfield. It was determined that the funeral train should follow the same route and stop at practically the same places that Lincoln visited on his way to Washington to be inaugurated as the first Republican President of the United States. The country was so wrought up no one seemed certain what was to happen; no one knew but that there would be a second and bloodier revolution, in

which the Government might fall into the hands of a dictator; and it was thought the funeral trip would serve to arouse the patriotism of the people, which it did.

I never witnessed anything like the universal demonstration of sorrow, not only at every city where the remains lay in state but all during the entire route, at every little village and hamlet; even at cross-roads thousands of people would be gathered to catch a glimpse of the funeral train as it passed by. In Philadelphia the casket rested in Independence Hall. In New York I suppose not less than half a million people passed by to view the body. General Scott came down with the procession to the station, and to him I introduced our Illinois friends. His response was given in a most dignified and ponderous style: "Gentlemen, you do me great honor."

The farther west we proceeded, drawing constantly nearer to the home of Lincoln, the more wrought up the people seemed to be. In the West there were not only expressions of deep sorrow, but of vengeance as well, especially toward the South. Before the facts became fully known, it was thought that the assassination was the result of a Southern conspiracy, and there was a feeling that the whole South should be punished for the act of one of her misguided sons. The body lay in state for two days in Chicago, and then came the last stage of the journey to Springfield. It first was taken to the State House, and was afterwards placed in the old vault at the foot of the hill in Oak Ridge Cemetery, where it remained until the monument was completed. Bishop Simpson, one of the most eloquent men in the Methodist Church, and a devoted friend of Mr. Lincoln during his life, preached the funeral sermon. The services at Springfield were simple in the extreme, just as Mr. Lincoln would have wished. Steps were at once taken for the erection of the monument, which stands in Oak Ridge Cemetery to-day.

So far as I can learn, every member of the funeral party that accompanied the remains of Abraham Lincoln from Washington to Springfield, with the exception of Mr. E. F. Leonard and myself, has passed away.

It was my good fortune to know Abraham Lincoln in all the walks of life. I knew him as President, and I was permitted to know him in the sacred precincts of his family at home. I have studied the lives of the great men of the world, and I do not hesitate to say now, after nearly fifty years have passed away since his death, that Abraham Lincoln was the peer in all that makes a man great, useful, and noble, of any man in all the world's history.

CHAPTER VIII NOTABLES IN THE THIRTY-NINTH CONGRESS 1864 to 1870

I had a very active campaign for election to Congress in 1864. As I have stated elsewhere, I had, while Speaker, so framed the district that I thought it would surely be a Republican one; but very much to my surprise, it went Democratic when Mr. Swett was a candidate. For a number of reasons I was more than anxious to carry the district. First, naturally I did not want to be defeated; second, I wanted to show that it was really a Republican district, and more especially still on President Lincoln's account, I was solicitous that a Republican should be elected from the President's own district, as was President Lincoln also. The National Committee assisted a good deal, and the President himself helped whenever there was an opportunity. I was elected by a good, safe majority, and entered the Thirty-ninth Congress in December, 1865.

The Illinois delegation in the Thirty-ninth Congress, when I entered the House, while containing few members, still compared favorably with other delegations, and consisted of very good men who reflected credit on the State, and some of whom had far more than ordinary ability. General John

A. Logan, of whom I have written in another part of these memoirs, was a very prominent member of the delegation and of the House. E. B. Washburne was also a leading member. He was very influential, and at one time was in a sense the leader of the House. He early became prominent as one of the intimate friends and supporters of General Grant, who, every one supposed, would be the nominee of the Republican party to succeed President Johnson. Thaddeus Stevens was the real leader on every occasion when he chose to assume that position. His whole interest, however, seemed to be concentrated on reconstruction, one of the greatest problems that has ever confronted this country, and consequently he gave little attention to general legislation. This gave Washburne quite a commanding voice in shaping the general legislation of the House.

John Wentworth was one of the best known citizens of Chicago of his day, and was closely identified with the early history of the city. He was several times a member of the House. I found him to be a capable member of the Thirty-ninth Congress, a man of influence, and I liked him very much. He was Mayor of Chicago when President Lincoln was assassinated, and I recall that he was at the station at the head of the committee when the funeral train arrived in Chicago. John Wentworth was quite a character in our State politics, but he was particularly noted as being one of the foremost citizens of his home city.

Burton C. Cook, of Ottawa, was one of the ablest men in the Illinois delegation. He was a splendid man, a man of high character, one of the leaders of the bar of the State of Illinois, and retired from Congress to become general counsel of the Northwestern Railroad. He occupied a very important place in the House, and was chairman of the Committee on the District of Columbia. He could not endure ridicule, and he was not particularly quick in argument, although a very good debater.

A rather humorous incident occurred on one occasion when he was pushing a bill to have Pennsylvania Avenue paved. Proctor Knott, from Kentucky, was then a member of the House, and one of its cleverest and wittiest speakers. I was called to the chair because Cook knew that I would take care of him the best I could in the conduct of the bill through the committee of the whole. We got along with the bill very well for a good part of the day, until Knott took the floor and made one of his incomparably funny speeches, depicting the situation on Pennsylvania Avenue, with its fine carriages and outfits, with buckles on the coachmen's hats as big as garden gates. He made so much fun of the bill that Cook, being unable to stand it, moved that the committee rise. We never heard of the bill afterwards.

S. S. Marshall, a Democrat from Southern Illinois, and prominent as such, was a member of Congress for many terms, and at one time was the leader of the minority in the House. At that time the Democrats in the House were so few in number that occasionally they were unable to secure the ayes and noes. They exercised very little influence on legislation, and were not much in evidence in debate, the main contest then being between the radical and conservative elements of the Republican party over Reconstruction.

General John F. Farnsworth of St. Charles was quite influential as a member, and a very strong man, but was particularly noted for his dauntless courage. On one occasion I saw him shake his fist in General Benjamin F. Butler's face, daring him to resent it. Butler did not resent it, as the House was in session; and, any way, excepting with his tongue, Butler was not a fighting man.

Ebon C. Ingersoll, who was familiarly called by his friends Clark Ingersoll, served in that Congress. He was a very clever man, possessed of

considerable talent, and could on occasions deliver a capital witty speech. I remember a rather ingenious passage from one of his speeches delivered when the controversy between the President and Congress was at its height. He asserted that the country was sorely afflicted; that it suffered all sorts of troubles, trials, embarrassments and difficulties. First, he said, it was afflicted with cholera, next with trichinae, and then with Andy Johnson, all in the same year, and that was more than any country could stand. Ebon C. Ingersoll was a brother of the famous Robert G. Ingersoll, the world's greatest agnostic.

Robert G. Ingersoll was one of the most eloquent men whom I have ever heard. He could utter the most beautiful sentiments clothed in language equally beautiful. Speaking of death and the hereafter one day, I heard him express himself in about the same language he afterward used on the lecture platform. It made a wonderful impression on me. He said:

"And suppose after all that death does end all? Next to eternal joy, next to being forever with those we love and those who have loved us, next to that, is to be wrapt in the dreamless drapery of eternal peace. Next to eternal life is eternal sleep. Upon the shadowy shore of death, the sea of trouble casts no wave. Eyes that have been curtained by the everlasting dark, will never know again the burning touch of tears. Lips touched by eternal silence will never speak again the broken words of grief. Hearts of dust do not break. The dead do not weep. Within the tomb no veiled and weeping sorrow sits, and in the rayless gloom is crouched no shuddering fear.

"I had rather think of those I have loved, and lost, as having returned to earth, as having become a part of the elemental wealth of the world—I would rather think of them as unconscious dust, I would rather dream of them as gurgling in the streams, floating in the clouds, bursting in the form of light upon the shores of worlds, I would rather think of them as the lost

visions of a forgotten night, than to have even the faintest fear that their naked souls have been clutched by an orthodox God. I will leave my dear where Nature leaves them. Whatever flower of hope springs up in my heart, I will cherish, I will give it breath of sighs and rain of tears. But I cannot believe that there is any being in this universe who has been created for eternal pain."

Had it not been for the manner in which Robert Ingersoll outraged the members of every Christian denomination by attacking and ridiculing their beliefs, he would certainly have been called to high office in the Nation. He did not spare any denomination. Beginning with the Catholics and ending with the Baptists, he abused them all, made fun of them, and mercilessly pointed out their weak points. He was always particularly bitter against the Presbyterian Church, because, he declared, he was raised a Presbyterian, and knew more about that church than any other. The two brothers were very fond of each other, and Ebon C. never seemed to tire of talking about his brother's great talent. Robert G. was nearly broken-hearted when his brother died. One of the most touching and eloquent addresses which I have ever heard was the address he delivered on the occasion of Ebon's funeral. He stood at the head of the casket and once or twice nearly broke down. It was in that address, standing there in the presence of death, that he expressed some doubts as to the truth of his own teaching and intimated the possibility of some life beyond the grave. This was the only public occasion of which I have any knowledge in which Robert G. Ingersoll seemed to falter in his course.

We were very intimate, and it is a real pleasure to me to pay him here a tribute. He was a man of extraordinary talent and ability, one of the most lovable natures, and a man of the cleanest, most delightful home life. In many respects, I regard him as one of the greatest men of his day; certainly he was the greatest agnostic of his time, if not of all time. No one has taken

his place. The very name, Agnostic, is now rarely heard. And why? Because Robert G. Ingersoll mercilessly tore down. He did not create, or build anything; he attempted to take away the beliefs in all religion, and he offered nothing in return. Hence it is that his teachings have practically died with him.

Another member of the Illinois delegation in the Thirty-ninth Congress, a well-known citizen of the State, was Anthony Thornton. He had been a member of the Supreme Court of the State, was a fine lawyer of the best type of manhood, and he enjoyed the confidence and respect of the members of the House. He resided in Shelbyville, but after retiring from Congress he decided to go to Decatur, where there was more business for a lawyer, and better opportunities. He did not succeed very well, however, because it was too late in his life to make a change and enter new fields.

A little incident connected with him occurred while I was Governor of the State. A young boy, whose parents the Judge knew, committed a burglary and was sent to the penitentiary. The parents of the boy were naturally anxious to get him out, and appealed to Judge Thornton to assist in securing his pardon. The Judge and I had served in Congress together, and, naturally, any plea bearing his endorsement would have great weight with me. Believing that the boy had been influenced by bad companions, he yielded and came to Springfield to see me. I looked the case over and finally said:

"Judge Thornton, you are an older man than I am; you were in Congress with me; you have been a Judge of the Supreme Court of the State; if you will say that you would issue this pardon if you occupied the chair I now occupy as Governor of this State, I will pardon him."

He replied: "Governor, I would not ask you to do a thing I would not do myself, to save my right arm."

Whereupon I at once issued the pardon.

"Judge," I told him, "the train will leave in a short time; go to Joliet and take the boy home with you."

He did not do this; but he thanked me very cordially and said that he would see the boy as soon as he got home. The very night the boy left the penitentiary and returned home, he committed another burglary and was immediately arrested. I happened to see an account of the crime in the papers next morning, and I cut it out and sent it to Judge Thornton, with the inquiry, "Judge, what does this mean?" He at once came to Springfield, and told me that he had been fooled in prevailing upon me to pardon the young man, and pledged me that he would follow him to the ends of the earth if necessary in order to punish him for his crime. The boy was sent back to the penitentiary and I never heard of him afterwards.

Judge Thornton was one of the most honorable of men, a man of learning and legal ability as well.

One day, before I was elected to the Thirty-ninth Congress, President Lincoln was talking with me about the different members of that body. "There is a young man by the name of Blaine now serving in Congress," said he, "who seems to be one of the brightest men in the House. His speeches are always short, always full of facts, and always forcible. I am very fond of him. He is one of the coming men of the country."

This was one of the reasons why I was early attracted to Mr. Blaine.

He was candidate for Speaker in the Forty-first Congress. I was rather zealous in his behalf, and had more or less of a prominent part in his selection. When Mr. Blaine concluded that he would be a candidate for the Speakership, a little dinner was given at Welkers', a rather famous

restaurant in Washington, at which Judge Kelley, Judge Orth, the late Senator Allison, who was then a member of the House from the State of Iowa; Mr. Mercur of Pennsylvania, the gentleman at the head of the Associated Press in Washington, and myself were present. After the dinner it was given out to the press that Mr. Blaine was a candidate for Speaker. As the campaign progressed it seemed to depend on Mr. Allison and me more largely than on any other members to take care of his interests. He was elected Speaker, and I had been given to understand by him, and had so communicated to friends in Congress whom I had induced to support Mr. Blaine, that I should be consulted in the make-up of the committees. Mr. Blaine never said a word to me on the subject, but almost at the last moment wrote me this note:

"Dear Cullom:

"Which committee would you prefer, Territories or Claims?

"James G. Blaine."

I selected Territories and became chairman of that committee. Allison told me he never spoke to him in reference to committees, although he gave him important assignments.

Probably the most bitter enemy Mr. Blaine ever had in public life was Roscoe Conkling, a Senator from New York. The quarrel between Blaine and Conkling commenced in the Thirty-ninth Congress, over some very trivial matter, and continued from that time on until Blaine was nominated as the candidate of the Republican party for the Presidency, in 1884, in which contest he was defeated by Grover Cleveland.

I occupied a seat next to Mr. Conkling during the early years of my service in Congress. He was a very friendly, companionable man, especially

to any one whom he did not consider a rival, and, as I was a young man just entering Congress and politics, he gave me his friendship. I was present, sitting next to Conkling, when the famous controversy in the House took place between Blaine and Conkling. During the session, from time to time, they had been quarreling. Conkling had seemed to have a little the best of the argument. Blaine became exasperated one day, and in the course of the debate gave Conkling the worst "tongue lashing" probably ever given by one man to another on the floor of the House. Conkling, although unable to reply effectively, demeaned himself with great dignity. His manners were placid and his reply was in measured terms. It was in striking contrast to what Mr. Blaine said. To use a phrase graphic if inelegant, he jumped on Conkling with both feet and literally tore him to pieces without any attempt at dignity. This controversy with Conkling probably caused the defeat of Mr. Blaine for the nomination—first, in conventions prior to 1884, and finally after he became the nominee of that year.

Blaine was a candidate for President for many years. It seemed to be his destiny, as it was that of Henry Clay, to be able to secure the nomination only when the Republican party went down in defeat, as it did for the first time since the election of Lincoln. He was beaten in the Republican National Conventions by men of mediocre ability when the party was victorious.

He was a leading candidate at the Cincinnati Convention, when Hayes was nominated. I was there and heard Ingersoll's great speech placing him in nomination. I have always felt that Blaine would have been nominated by that convention if a strong, courageous presiding officer had been in the chair. As I sat behind Mr. McPherson, the presiding officer, and watched the proceedings, I thought that if I had had that gavel in my hands there would have been no adjournment and James G. Blaine would have been nominated. An adjournment was secured, however; the lights were

extinguished, and the enemies of Blaine united, and Hayes became the nominee.

But at the convention held in Chicago, in 1884, no other candidate was seriously considered, and Blaine was nominated for President and Logan for Vice-President.

I had to do much in connection with Blaine in the campaign of 1884. He was a very agreeable man so long as things went to suit him; but he did not attempt to control himself when things went at all against him. He was campaigning through Indiana, Ohio, and Illinois, in 1884; I had been on the platform with him at Massillon, Ohio, when the people would scarcely listen to any one except Mr. McKinley. It was arranged that Blaine should come from La Fayette, Indiana, to Springfield, Illinois. I was chairman of the delegation consisting of one hundred of the most prominent men of the State, selected to accompany him to Springfield. The delegation went to La Fayette, and the Adjutant-General of the State and I waited on Mr. Blaine at the residence of Mr. George Williams, who is still living and whom I have always known intimately. Mr. Blaine's son came down in response to our call, announcing that his father had retired, ill, and would not be disturbed until eight o'clock in the morning. At the hour appointed we still had difficulty in seeing him, and finally I enlisted the assistance of Mr. McKinley, who was there, and the Hon. Joseph Medill of *The Chicago Tribune*, to help me to prevail upon Blaine to keep his engagement. He had come to the conclusion that he ought to go back East; that he was needed there more than he was in the West. The truth was that he was trying to evade the Springfield engagement. I told him that there would be no less than a hundred thousand people from all parts of the State gathered at Springfield to see him, and it would not do to disappoint so vast a crowd. He finally consented to go, but was very ungracious about it, telling us not to disturb him during the trip from La Fayette to Springfield, and at once retired to his drawing-room.

We soon came to a city in Indiana where there was a large crowd to greet him, and following his orders, the train did not stop. He emerged from his drawing-room very angry because the train had not been stopped when a crowd was waiting to hear him. Afterwards we halted at almost every station on the line to Springfield, where we did not arrive until almost dusk. Probably a hundred thousand people had been gathered there during the day, and at least fifty thousand waited until we arrived; but it was so dark that the audience could scarcely see the speaker. He left for Chicago that night, hurrying through that city; hence to Wisconsin, I believe, making enemies rather than friends. He had gained the election by his Western tour, but lost it during his stay in New York City. "Rum, Romanism, and Rebellion," the Delmonico dinner, the old row with Conkling beginning in the Thirty-ninth Congress, caused his defeat. I told him afterwards that if he had broken his leg in Springfield and been compelled to remain as my guest there, he would have been elected. He agreed with me that he would.

Notwithstanding his defeat, however, he continued as one of the foremost leaders of the Republican party up to the time of his death. He might have been nominated at the Chicago Convention, when Mr. Harrison received the nomination the first time had he not retired to Europe, apparently so disgusted at his own defeat four years before that he had not the heart to make the race again.

I do not think Harrison ever did like Blaine, but he invited him to become the Premier of his cabinet, a position which Mr. Blaine had held for a few months under General Garfield. Harrison and Blaine never got along. As I say elsewhere in these recollections, Harrison seemed jealous of Blaine, and Blaine was not true to his chief. Mr. Blaine sent for me one evening, and I called at his house. He related to me with considerable feeling how the President had treated both his family and himself. He urged me to become a candidate for President, but I told him that I would not think of doing so. I

afterwards supported Mr. Harrison for reasons personal to myself, and not because I was particularly fond of Mr. Harrison.

James G. Blaine retired to private life and died soon afterwards, a broken, disappointed man. He was one of the greatest men of his day, and was the most brilliant and probably the most popular man with the masses in the history of the Republican party.

Rutherford B. Hayes was the nineteenth President of the United States, and preceded General Garfield in that office. He was neither as great a man nor as great an orator as General Garfield, although he was a much better executive officer, and in my opinion gave a better administration than General Garfield would have given had he served the term for which he was elected. Rutherford B. Hayes was an inconspicuous member of the House, as I recollect him now. He was what I would term a very good, conscientious man, who never made any enemies; but I do not think that any one would say that he was a great man. He did not talk very much in the House, nor accomplish very much. I became quite friendly with him there. Subsequently he was nominated for Governor of Ohio, and he invited me to come to the State and campaign for him, which I did.

Thurman was his opponent, a very strong and able man, who subsequently became a Senator from Ohio, and was a nominee of the Democratic party for Vice-President. But Hayes defeated him for the Governorship, and was once re-elected. He was nominated for President at the Cincinnati Convention of 1876, when Blaine really should have been the nominee, and would have been had the permanent chairman of the convention, Edward McPherson, grasped the situation and held it with a firm hand.

McPherson, while a man of good intentions, earnest and sincere, was Clerk of the House for many years and had occupied what might be termed

a subordinate position. The fact of the matter is that he permitted the convention to get away from him; an adjournment was secured, and the same night it was framed up to beat Blaine by nominating Hayes.

Hayes was just the kind of man for a compromise candidate. He was seriously handicapped all through his administration owing to the manner in which he secured the office. The Electoral Commission, an unheard-of thing, created by act of Congress, by eight to seven declared that Hayes was elected over Tilden. Very many people were of the opinion that Tilden was entitled to the office. The Electoral Commission never would have been agreed to by the Democrats had they known that Judge David Davis, of our own State, would retire from the Bench to take a place in the Senate; and it is almost certain that had Judge Davis remained on the bench he would have been a member of the Electoral Commission, and would have surely voted in favor of Tilden, which would have made him President.

While Hayes was President the "green-back craze" seemed to almost take possession of the country. I delivered an address at Rockford, Illinois, before an agricultural society, taking issue to some extent with the public sentiment of the country, and favoring sound money. The President was going through the country at that time on a speaking tour, and in the course of some of his addresses he commended what I had said. He, accompanied by General Sherman, visited Springfield, and I entertained them at the Executive Mansion.

President Hayes, himself realizing the embarrassment under which he entered the office of President, was not a candidate for renomination, and very wisely so. But as I have said, President Hayes was a good man; he made a very commendable record as President of the United States, and he was specially fortunate in the selection of his cabinet, showing rare discrimination in selecting some of the ablest men in the country as his

advisers. Evarts was his Secretary of State, and John Sherman Secretary of the Treasury.

It is a rather peculiar coincidence that both James A. Garfield and R. B. Hayes were members of the Ohio delegation in the Thirty- ninth Congress, and both afterwards arrived at the Presidency.

James A. Garfield was a man of extraordinary ability. I was very intimate with him during our service in the House. He was an extremely likable man; I became very fond of him, and I believe the feeling was reciprocated. Also he was distinguished for his eloquence, and I have heard him make some of the most wonderfully stirring and impressive speeches in the House. He was probably not the orator that Robert G. Ingersoll was, but I should say that he was one of the most effective public speakers of his period; his speeches were deeper and more serious, uttered in a graver style than the beautiful poetic imagery of the great agnostic. President Lincoln liked Garfield, and he was one of the younger men in the House who always supported the President, and on whom the President relied. He entered the Thirty-eighth Congress and served many terms. He enjoyed the peculiar distinction of being a member of Congress from Ohio, Senator-elect from Ohio, and President-elect of the United States, all at the same time.

I attended the National Republican Convention of 1880, in which Grant and Blaine were the leading candidates. I was at the time Governor of Illinois and a candidate for re-election myself; consequently I could not take any active part in the contest between Blaine and Grant, but of course, naturally, my sympathies were with General Grant.

I was not a delegate to the National Convention, but I attended it, and it so happened that I occupied a room directly opposite that occupied by

General Garfield.

One evening, leaving my room, I met General Garfield just as he was leaving his, and we dropped into general conversation and walked along together.

I have always been considered a pretty fair judge of a political situation in State and National conventions, and it struck me as soon as Garfield had completed one of the most eloquent of all his eloquent addresses, placing in nomination Mr. Sherman, that he was the logical candidate before that convention.

To digress for a moment, it is a peculiar coincidence that McKinley made his great reputation, in part, by nominating Mr. Sherman as a candidate for the Presidency in the Minneapolis convention of 1892. Like General Garfield in 1880, Mr. McKinley was perfectly willing to receive the nomination himself, although he was then, as Garfield was in 1880, the leader of the Sherman forces.

But to return. General Garfield and I walked down the hall together, and being very intimate friends, I used to call him by his first name, as he did me. I said: "James, if you will keep a level head, you will be nominated for the Presidency by this convention before it is over." This was a couple of days before he was actually nominated.

He replied: "No, I think not."

But as we walked along together discussing the matter, I contended that I was right.

At the end of that memorable struggle between Grant and Blaine, in which the great Republican party refused to accept General Grant, the

foremost Republican and soldier of his time, Garfield was nominated.

I remember vividly the form and features of Garfield in that convention. I see him placing Sherman in nomination, probably not realizing at the time that he was nominating himself. I see him taking an active part in all the debates, and as I look back now I do not think I ever saw a man apparently so affected as General Garfield was when it was announced that he was the nominee of the Republican party for the Presidency of the United States. Seemingly he almost utterly collapsed. He sank into his seat, overcome. He was taken out of the convention and to a room in the Grand Pacific, where I met him a very few minutes afterward.

After General Garfield was elected to the Presidency, but before his inauguration, I determined that I would urge upon him the appointment of Mr. Robert T. Lincoln as a member of his cabinet. I thought then that his selection would not only be an honor to the State, but that the great name of Lincoln, so fresh then in the minds of the people, would materially strengthen General Garfield's administration.

With this purpose in view, I visited Garfield at his home in Mentor. This journey was an extremely difficult one, owing to the circumstance that the snow was yet deep on the ground; so I arranged with the conductor to stop at the nearest point to General Garfield's house to let me off, which he did. I walked from the train through banks of snow, and after the hardest kind of a walk, finally reached his house.

I at once told him the mission on which I had come. We had quite a long talk, at the end of which he announced that he would appoint Mr. Lincoln his Secretary of War.

In this connection I desire to say a few words concerning Robert T. Lincoln. He is still living. I have known him from boyhood. He has the

integrity and the character which so distinguished his father, and was marked in his mother's people as well. It is my firm conviction that long ago Robert T. Lincoln could have been President of the United States had he possessed the slightest political aspiration. He has never been ambitious for public office; but, on the contrary, it has always seemed to me that the Presidency was especially repugnant to him, which would be natural, considering the untimely death of his father, if for no other reason. He was almost forced to take an active interest in public affairs, but as soon as he was permitted to do so he retired to private life to engage in large business undertakings, and finally to become the head of the Pullman Company.

It seems strange to me that he should consider the presidency of a private corporation, no matter how great the emoluments, above the Presidency of the greatest of all Republics. How unlike his father! He was a most excellent Secretary of War, and one of General Garfield's cabinet officers whom General Arthur invited to remain in his cabinet, which he did.

Under President Harrison he consented to become Minister to England. Neither my colleague, Senator Farwell, nor I favored this appointment — not because of any antipathy for Mr. Lincoln, for whom I not only have the highest respect and admiration, but like personally as well; but Mr. Blaine, who was Harrison's Secretary of State, called on me one day and asked me to recommend some first-class man from Illinois for the post. After a consultation with my colleague, we determined to recommend an eminent lawyer and cultured gentleman of Chicago, John N. Jewett. We did recommend him, and assumed that his appointment was assured; but Harrison—probably to humiliate Mr. Blaine—called Senator Farwell and me to him one day and announced that he had determined to appoint Robert T. Lincoln Minister to England.

Farwell was extremely angry, and wanted to fight the nomination. However, I counselled moderation. I pointed out that no criticism could be made of Mr. Lincoln, and that since he was my personal friend I could not very well oppose him. So I was glad to favor the appointment, although I was as humiliated as my colleague at the cool manner with which Harrison had snubbed us after Mr. Blaine's overtures.

I recollect very well the telegram which Mr. Lincoln received when he was in Springfield, attending the business of the Pullman Company. It was from his office in Chicago. It stated that there was a letter there that demanded immediate attention, and asked whether it should be forwarded. He gave instructions to forward it to Springfield. It turned out to be the invitation of General Garfield to enter his cabinet as Secretary of War, and asking an immediate reply. He brought it to me in the Governor's office, where he sat down and wrote his reply accepting General Garfield's invitation.

But to return to General Garfield. He was not a strong executive officer. In the brief period in which he occupied the White House, he did not make a good President, and in my judgment would never have made a good one. He vacillated in the disposition of his patronage. When I visited him while he was yet President-elect, he told me that Mr. Conkling would be with him the next day, and asked my advice as to what he should say to him. It was understood that Conkling was coming to protest against the appointment of Blaine as Secretary of State. My advice was to let Mr. Conkling understand that he would appoint whomsoever he pleased as members of his cabinet; that he would run the office of President without fear or favor; and that he would appoint Mr. Blaine as Secretary of State because he considered him the very man best qualified for that high office. Garfield agreed with me, asserting that I had expressed exactly what he intended saying to Conkling; but if we are believe the stories of Senator Conkling's friends, he made far

different promises to Senator Conkling in reference to this as also to other appointments.

But the culmination of the trouble between Garfield and Conkling was the appointment of Robertson as Collector of Customs at the Port of New York. The President took the ground, for his own reasons, that the Collector of Customs of New York was a National office, in which every State had an interest, and was not to be considered as Senatorial patronage. Conkling strenuously contended that it was exclusively Senatorial patronage, and in this he was sustained by precedents.

It so happened that I was in Washington when the trouble between Conkling and Garfield was at its height, over the appointment of Robertson. I called to see the President to pay my respects. He asked me if I knew what General Logan would do in reference to the nomination of Mr. Robertson. I told him I did not know, and he asked me if I could find out, and to come to breakfast with him next morning. I did find out that General Logan expected to stand by the President, and I so reported to him next morning.

I bade him good-bye and this was the last time that I ever saw him alive. I attended his funeral at Cleveland, and as I saw his body laid away, I thought of the strange caprice of fate. Was it premonition that made him so sad and cast down—so utterly crushed, as it seemed to me—when he became the Republican candidate for President before that great convention of 1880? Had he not been elected President, he would probably have enjoyed a long, useful, and highly creditable public career. He would have been one of the most distinguished representatives that Ohio ever had in the upper branch of Congress. He was to the most eminent degree fitted for a legislator. In the national halls of Congress his public life had been spent; there he was at home. He was not at all fitted for the position of Chief Executive of the United States. And I say this not in a spirit of hostility, but

in the most kindly way, because I loved General Garfield as one of my earliest friends, in those days of long ago, when I served in the Thirty-ninth Congress.

There was no man in the Thirty-ninth Congress with whom I was afterwards so long and intimately associated as I was with the late Senator William B. Allison of Iowa, with whom I served in the Senate for a quarter of a century.

Senator Allison was quite a prominent member of the House when I entered Congress, and was serving then as a member of the important Ways and Means Committee. He was regarded as one of the ablest and most influential of the Western members.

From the very earliest time I knew him, Senator Allison was an authority on matters pertaining to finance. While he was in favor of a protective tariff, he was not particularly a high-tariff advocate; he, and the late General Logan who was then in the House, and I worked together on tariff matters, as against the high-tariff advocates, led by General Schenck.

On one occasion we defeated a high-tariff proposition that General Schenck was advocating. He was furious, and rising up in his place, declared:

"I might as well move to lay the bill on the table and to write as its epitaph—'nibbled to death by pismires!'"

The remark made General Logan terribly angry; but Senator Allison, who had a quiet, keen sense of humor, and I were very much amused, —as much at the fury of Logan as at the remark of Schenck.

As a member of the House, Senator Allison followed the more radical element against President Johnson. He was much more radical than I was in those days, and he attacked President Johnson repeatedly on the floor of the House, in tone and manner utterly unlike himself when later he served in the Senate.

In the upper body he was decidedly a conservative. He never committed himself until he was absolutely certain. He was always regarded as a wise man, and he exercised an extraordinary control over members, in settling troublesome questions and bringing about harmony in the Senate. He had powerful influence, not only with members of his own party, but with members of the opposition. Every one had confidence in him. His statements were accepted without question. He never attempted oratory, but by cool statement of facts he moulded the opinions of legislators. He was one of those even tempered, level-headed, sound, sensible men to whom we naturally turned when there were difficult questions to settle.

There has been no man in our history who had a longer or more distinguished public career, and I do not know of any man who was more often invited to enter the cabinets of different Presidents than was Senator Allison. The Secretaryship of the Treasury was urged and almost forced upon him repeatedly. I visited Indianapolis to see the President-elect, Mr. Harrison, and it so happened that Senator Allison and I entered together, Mr. Harrison having sent for him. I saw Harrison first, and he told me that he was going to ask Senator Allison to become his Secretary of the Treasury. I assured him that I was confident that he would decline the office—an assertion that occasioned much surprise, even a display of temper. Mr. Harrison seemed to think that it was Senator Allison's duty to accept the place. When Senator Allison saw him a short time later, the office was tendered him and he promptly declined to accept it. Nothing that Mr. Harrison could do or say would induce him to change his mind.

Mr. McKinley was anxious to have Senator Allison in his cabinet, and I do not think I shall be violating any confidence, now that they are both dead, in saying that in declining the appointment Allison urged McKinley, as he afterwards told me, to appoint me as Secretary of the Treasury, and McKinley gave him so strong an assurance that he intended to invite me to enter his cabinet, that when Allison saw me in Washington at the beginning of the session, I being a member of his Committee on Appropriations, he said: "Cullom, you are to enter the cabinet; now you will not be able to do much work on the Appropriations Committee, and you had better devote your time to getting your affairs in shape preparing to leave the Senate and become Secretary of the Treasury."

I had urged President McKinley to beg Senator Allison to enter his cabinet. Coming from the source that Allison's assurance did, I naturally took it more or less seriously, but I did not give the matter much thought.

The nearest that Mr. McKinley came to inviting me to enter the cabinet, was an inquiry he made of me, which position I would prefer in a cabinet, Secretary of State or Secretary of the Treasury. I replied that, personally, I should prefer the Treasury, as I had at that time no particular interest or training in foreign affairs. I know now that Mr. McKinley did fully intend to tender to me the Treasury portfolio, and I also know, but I do not feel at liberty at this time to reveal, the influence in Illinois which induced him to change his mind. I am very glad now that the position was not tendered to me, as I might have accepted it, because of the known desire of certain friends in this State to secure my seat in the Senate, in which event I should have been long since retired to private life.

Senator Allison was the trusted adviser of President after President — Grant, Hayes, Garfield, Arthur, Harrison, McKinley, Roosevelt all called upon him. There was no Senator who had to a greater extent their

confidence. Had he lived he would have been as close, if not closer to President Taft. He served in the Senate longer than any other man in all our history. He broke Benton's long record. He broke the long record of Senator Morrill. He served eight years in the House and more than thirty-five years in the Senate, a total of forty-three years and five months in Congress. For forty-three years the history of his life embodies the complete financial legislative history of the United States.

Another conspicuous member of the Thirty-ninth Congress was Nathaniel P. Banks of Massachusetts. He had a long, varied, and interesting career, both in public and private life. He was many times elected to Congress from Massachusetts, and in 1856, after a long contest which lasted more than two months, was elected Speaker of the House of Representatives. He was Governor of his State, and in 1861, for a short time, president of the Illinois Central Railroad, from which position he resigned to enter the Union army as a major-general, serving throughout the war.

I did not know him when he was stationed at Chicago but I became very well acquainted with him in Congress. He was Chairman of the Committee on Foreign Affairs, of which committee I was a member. Not only was General Banks a polite, agreeable man, but he was an exceptionally effective speaker, and very popular in the House.

There occurs to me a little controversy which he had with the late Senator Dawes, who was at that time a member of the House from Massachusetts.

General Banks was undertaking to pass a bill to which Mr. Dawes objected. Banks was nettled. Taking the floor, he accused his colleague of always objecting to bills he attempted to pass. Dawes arose in his place, and in the most ponderous fashion, turned to Banks.

"I appeal to my colleague," he asked, "when did I ever before object to any bill which he was attempting to pass?"

Banks jumped to his feet, and said in his high-pitched voice: "I do not know that my colleague ever did, but I always thought that he was just about to."

General Banks served during the six years that I was a member of the House, and several terms afterwards, his public service ending with the Fifty-first Congress. He died at his home in Massachusetts, in 1894.

Daniel W. Voorhees was another celebrated member of the Thirty- ninth Congress, and was later a Senator from Indiana. Senator Voorhees was a very able man and a zealous, consistent Democrat. He was charged, and I have no doubt at all that it was true, with being a Rebel sympathizer, and a prominent member of the Knights of the Golden Circle. A fine, gifted speaker, a kind-hearted gentleman, he was very popular with the people of Indiana. Dan Voorhees and Thomas A. Hendricks, who was afterward Vice-President of the United States, were the two most prominent Democrats of Indiana in all its history, and indeed were two of the foremost Democrats of the North.

Senator Voorhees' seat, as a member of the House in the Thirty- ninth Congress, was successfully contested; and I can see him now, with his imposing presence, making his final speech in the House, after the result of the contest had become known. Garbed in a long cloak, he defended his right to his seat with the greatest dignity. The vote was taken; his opponent was seated; then he drew his cloak about him, and with the air of a king, walked out of the House, almost triumphantly. I had voted against him, but the dignity with which he carried off the occasion certainly commanded my deepest admiration.

He was a great admirer of Mr. Lincoln. He knew him well; had been associated with him in many lawsuits on the circuit, at Danville, and in the eastern part of the State; and although they belonged to opposing political parties, he evinced for Lincoln a very warm feeling.

Senator Voorhees once told me a rather interesting story in connection with President Lincoln. It was the occasion of the dedication of what was known as the Foundery Methodist Church in Washington. Mr. Lincoln was present, Voorhees was there, and Bishop Simpson delivered the dedicatory address. The bishop was an eloquent speaker and his sermon was a characteristic one. The President was seated in an armchair in front of the pulpit, with his back to the minister, and after the sermon was over, an effort was at once made to raise funds to pay the debt of the church. This phase of the meeting was tiresomely protracted, the minister, in the customary style, earnestly urging an unresponsive congregation to contribute until nearly every inducement had been exhausted. Finally someone started a movement to raise a certain definite amount of money, the achievement of which would make the President a life member of some church society. But even this scheme was not accepted with much enthusiasm, and Bishop Simpson renewed his plea for donations. At last Mr. Lincoln, who had been growing tired and bored at the performance, craned his head around toward Bishop Simpson, and said in a tone that everybody heard: "Simpson, if you will stop this auction I will pay the money myself."

And since Bishop Simpson's name has been mentioned, another incident in which he figured is suggested, which might as well be related here.

In the Methodist Church Bishop Simpson's name is a household word. He was one of its most prominent divines, and in sympathy with that branch which remained loyal to the Union. Naturally he was a great admirer of Mr. Lincoln—in fact, so close was he to the President that it was his influence

that secured the appointment of Senator Harlan of Iowa as Secretary of the Interior. What follows will demonstrate that this statement is not made on hearsay.

Several prominent men of Illinois, and other parts of the country, were in Washington trying to secure the appointment of Uncle Jesse K. Dubois (the father of Senator Dubois of Idaho who served in the United States Senate two terms with great credit to himself and State), as Secretary of the Interior. Uncle Jesse Dubois was there himself, and we all met one evening at the National Hotel, at which meeting I was designated to go to the White House and use my influence with President Lincoln in Uncle Jesse's behalf. Uncle Jesse had no business coming to Washington when he was being pushed for a cabinet office; but he did, nevertheless, and he was not in good health. About ten o'clock at night I saw the President, and laid before him Uncle Jesse's claims. His reply was:

"I cannot appoint him. I must appoint Senator Harlan. I promised Bishop Simpson to do so. The Methodist Church has been standing by me very generally; I agreed with Bishop Simpson to give Senator Harlan this place, and I must keep my agreement. I would like to take care of Uncle Jesse, but I do not see that I can as a member of my cabinet."

I replied: "If you have determined it, that is the end of the matter, and I shall so report to the friends who are gathered at the National, so that Uncle Jesse may go on home."

President Lincoln seemed much affected. He followed me to the door, repeating that he would like to take care of Uncle Jesse, but could not do so.

Jesse Dubois went home to Springfield, but he remained as staunch a friend to Lincoln as ever, and was one of the committee sent from

Springfield to accompany the remains of the immortal President to their last resting-place.

George S. Boutwell was another member of the Thirty-ninth Congress who merits some attention. He afterward became very influential among the radical element, and was one of the managers on the part of the House in the impeachment of President Johnson. It is hard to understand in a man of his sober, sound sense; but I am convinced that he firmly believed President Johnson to have been a conspirator in securing the assassination of Mr. Lincoln. He was Secretary of the Treasury under President Grant, who had for him the greatest respect and confidence. I never was very intimate with him, but I knew him fairly well, and considered him one of the leading public men of Massachusetts of his day.

One of the leading members of the Pennsylvania delegation in the Thirty-ninth Congress was William D. Kelley. He was a prominent member of the House, a good speaker, although he always prepared his addresses at great length, principally on the tariff; but he did not confine himself to his manuscripts entirely. His specialty in Congress was the tariff. He was called "Pig-iron Kelley" because he was for high duties on pig-iron and, in fact, everything manufactured in Pennsylvania. That State, as everybody knows, is the great iron and steel manufacturing State of the Union, and its representatives in Congress were in that day, as they are in this, the highest of high protective tariff advocates.

Before entering Congress, William D. Kelley for a number of years had been a judge of one of the more important courts of Philadelphia. He was elected to and kept in the House, without any particular effort on his own part, because he was considered one of the most valuable men in Congress in matters pertaining to the tariff. When I was a candidate for re-election to the House he visited my district and made several very able speeches for me

at my request, and, with his wife, was my guest in Springfield for several days. At that time Republicans were for a high protective tariff, and it was not considered then, as it seems to be in these days of so-called insurgency, a crime for a Republican to stand up and say that he was in favor of high tariff duties. In any event, Judge Kelley did me much good in the speeches he made in my district.

We occupied apartments in the same house in Washington—on F Street near the Ebbitt House, at which hotel we took our meals. F Street is now the heart of the business centre, but it was then one of the principal residence streets, and many Representatives and Senators lived in that vicinity. The only objection I had to living in the same house with Judge Kelley was that he was always preparing speeches, and when he got ready to deliver a speech he would insist on reading it all over to me; and as his speeches were generally two or three hours long, and always on the tariff, in which I did not take an extraordinary amount of interest, I became pretty tired of hearing them.

On one occasion when he was making quite an eloquent speech in the House, he was interrupted by a member from Kentucky, whose name I do not remember. He had already answered him once or twice and then gone on. He was interrupted again, and this time he answered: "Oh, don't interrupt me when the glow is on." The "glow" did happen to be on at that time, and naturally he did not desire to be interrupted.

In the same Pennsylvania delegation there were two members named Charles O'Neill and Leonard Myers, who were very short in stature. For some reason or other, some wag dubbed them "Kelley's ponies." They heard of it and became very angry, and on every occasion, when there was half a chance, they watched to see how Judge Kelley voted and would then vote the opposite.

They were both good men and good Republicans, and O'Neill served the same number of terms as Judge Kelley—fifteen—but O'Neill remained his full fifteen terms and retired from Congress. Judge Kelley was serving his fifteenth term when he died in Washington, in 1890.

Samuel J. Randall was one of the prominent Democrats of his day; but strange to say he favored a protective tariff. He also served about fifteen terms, two of them in the Speaker's chair. He had an anxious solicitude for the success of his party, and made many political speeches. He was a young member when I first knew him, away back in the sixties, but even then he occupied an influential position.

I remember meeting him in Mr. Blaine's office one day, when the latter was Secretary of State, and Mr. Blaine not being in, we sat on the settee and had a talk. He was in poor health, but curious respecting the relations between President Harrison and his party. I told him they were not getting along very well; that he satisfied his party about as well as Mr. Cleveland satisfied his when he was in the White House.

"I think," he observed, "he is better than our President. We never could do much with Cleveland." Then he added this characteristic remark: "If you want an army to fight, you must feed it. It is the same with a political party: if a party is to take care of itself, its workers must be recognized in the distribution of its patronage."

I never saw Samuel J. Randall afterwards.

Judge Godlove S. Orth was one of my most intimate friends in the House of Representatives. He was a splendid man, and was regarded as an honorable and able member. He and I saw much of each other every day, as we roomed in the same neighborhood and generally visited the departments together. We were seen with each other so often on the streets, in fact, that

when we were separated, friends would ask either one or the other of us: "What has become of your partner?" At one time I canvassed his district for him and he was re-elected.

He had a peculiar name, "Godlove." I never heard of a man named Godlove, either before or since. The story was told of a lady sitting in the gallery, listening to the proceedings of the House. She could not hear very well. When the roll was being called, and she heard the name "Godlove" called by the clerk, she did not understand it; she went down stairs and told her friends that the House of Representatives was a most pious body; that every time they called the roll, and the clerk got about half way through, he would stop and exclaim: "God love us all!"

Judge Orth has been dead for many years, but I have always remembered with great pleasure our friendship when we served as colleagues in the House, nearly half a century ago.

Oakes Ames of Boston was a prominent member of the House. He had charge of the Union Pacific Railroad construction, and it was charged—and proven, I believe, afterwards—that he secured the concessions for the railroad by undue influence,—the use of money, gifts of stock, etc.,—and the whole thing finally culminated in what is known as the *Crédit Mobilier* scandal, the exposure of which came after I retired from the House.

Ames was a member of the Thirty-eighth, Thirty-ninth, Fortieth, Forty-first, and Forty-second Congresses, and I knew him very well during my six years' service. I was made chairman of the Committee on Territories in the Forty-first Congress, by Mr. Blaine, who was then Speaker. Ames annoyed me very much by coming to me almost every day in the interest of legislation in the Territories affecting the Union Pacific, and I asked him one day, being a little out of temper, whether he was so absorbed in the Pacific Railroad that he had not time to devote to anything else. He made

some light rejoinder; sometime later the exposure came, and I found that he was engaged in most unfortunate and unlawful practices in securing legislation in the interest of his road.

I never believed that Oakes Ames was naturally a dishonest man, but the proof was against him, and the scandal resulted in his death, as it also did in the death of James Brooks, of New York, and the ruination of other public men.

I knew S. S. Cox ("Sunset" Cox, as he was called), as a member of the Forty-first Congress. He had served in some previous Congress as a member from Ohio; but when I knew him he was serving as a member from New York.

Cox was an able man, as a speaker, a writer, and a diplomat. He was always listened to with great respect and attention when he addressed the House, but a considerable amount of fun was poked at him after a certain occasion when he had interrupted General Butler a time or two in debate, and the General, finally losing patience, replied to one of his questions with the admonition: "Shoo, fly, don't bodder me!" I was present at the time; the galleries were filled, as they always were in those days; and when General Butler uttered this reproof the whole House, galleries, and floor, was in an uproar, maintaining the confusion for some minutes. When it seemed like subsiding, it would break out again and again, and so it continued for quite a while. When order was finally restored Cox undertook to reply; but he could not do so. He had been so crippled by the response of the audience to Butler's remark that he never recovered from it.

Cox was a splendid man. He always thought in those days that he had not been quite appreciated by his friends in the Democratic party, and they thought the same way; but he was so good-humored, and such a whole-

souled man and so fond of wit that he really never did get what he was entitled to.

I was trying to pass a bill which I had prepared for the purpose of prohibiting and wiping out polygamy in Utah. I had reported the bill from the Committee on Territories, and I was doing my best to pass it. For some reason or other (afterwards I learned it was an ulterior reason to help out a friend), General Schenck undertook to defeat the measure, and for this purpose he asked to have it referred to the Committee on Judiciary. This committee probably had jurisdiction over the subject; I did not think so at the time, and believed that such a reference would kill the bill. He seemed to be making some headway with the Republicans, when Cox came over to me from the Democratic side of the House, and proposed that if I would yield to him for five minutes he would help me to pass the bill. I told him to go back to his seat and that I would yield to him directly. When I did Cox took the floor, and to my utter astonishment he denounced the bill as the most outrageous bill that had ever been brought before the House, declaring in the most spirited manner that of course it ought to be referred to the Judiciary Committee, because every one knew that such a reference would kill it.

But he was shrewder than I apprehended at the moment. His talk had the desired effect, for the Republicans who had been following Schneck determined that they would not be responsible for killing the bill; they came back to me, and the measure was passed through the House by a substantial majority.

CHAPTER IX THE IMPEACHMENT OF PRESIDENT JOHNSON 1865

As I look back now over the vista of years that have come and gone, it seems to me that I entered the Lower House of Congress just at the beginning of the most important period in all our history. The great President had been assassinated; the war was over; Andrew Johnson, a Union Democrat, was President of the United States. Reconstruction was the problem which confronted us, how to heal up the Nation's wounds and remake a Union which would endure for all time to come. These were the difficult conditions that had to be dealt with by the Thirty-ninth Congress.

Andrew Johnson was the queerest character that ever occupied the White House, and, with the exception of Lincoln only, he entered it under the most trying and difficult circumstances in all our history; but Lincoln had, what Johnson lacked, the support and confidence of the great Republican party. Johnson was never a Republican, and never pretended to be one. He was a lifelong Democrat, and a slave-holder as well; but he was loyal to the Union, no man living more so. As a Senator from Tennessee, alone of all the Southern Senators he faced his colleagues from the South in denouncing secession as treason. His subsequent phenomenal course in armed opposition to the rebellion brought about his nomination for the Vice-Presidency as a shrewd stroke to secure the support of the War Democrats of the North and the Union men of his State and section.

He came to the Presidency under the cloud of President Lincoln's assassination, when the majority of the North believed that a Southern conspiracy had laid the great President low. The seceding States hated him as a traitor to his own section; the North distrusted him as a Democrat. At first I believe the very radical element of the Republican party in Congress, led by old Ben Wade of Ohio, than whom there was no more unsafe man in either house of Congress, were disposed, if not openly to rejoice, which they dared not do, to see with some secret satisfaction the entrance of Johnson into the White House. It is well known that Wade did say in his

first interview with President Johnson, when, as a member of the committee on the conduct of the war, he waited on him, "Johnson, we have faith in you. By the gods, there will be no more trouble in running the Government."

I have already, in another chapter, described the scene which took place in the Senate chamber when Johnson was inducted into office as Vice-President; the exhibition he made of himself at the time of taking the oath of office, in the presence of the President of the United States and the representatives of the Governments of the world. All this, advertised at the time in the opposition press, added to the prejudice against Johnson in the North and made his position more trying and difficult.

There were two striking points in Johnson's character, and I knew him well: First, his loyalty to the Union; and, second, his utter fearlessness of character. He could not be cowed; old Ben Wade, Sumner, Stevens, all the great leaders of that day could not, through fear, influence him one particle.

In 1861, when he was being made the target of all sorts of threats on account of his solitary stand against secession in the Senate, he let fall this characteristic utterance:

"I want to say, not boastingly, with no anger in my bosom, that these two eyes of mine have never looked upon anything in the shape of mortal man that this heart has feared."

This utterance probably illustrates Johnson's character more clearly than anything that I could say. He sought rather than avoided a fight. Headstrong, domineering, having fought his way in a State filled with aristocratic Southerners, from the class of so-called "low whites" to the highest position in the United States, he did not readily yield to the dictates of the dominating forces in Congress.

Lincoln had a well-defined policy of reconstruction. Indeed, so liberal was he disposed to be in his treatment of the Southern States, that immediately after the surrender of Richmond he would have recognized the old State Government of Virginia had it not been for the peremptory veto of Stanton. Congress was not in session when Johnson came to the Presidency in April, 1865. To do him no more than simple justice, I firmly believe that he wanted to follow out, in reconstruction, what he thought was the policy of Mr. Lincoln, and in this he was guided largely by the advice of Mr. Seward.

But there was this difference. Johnson was, probably in good faith, pursuing the Lincoln policy of reconstruction; but when the Legislatures and Executives of the Southern States began openly passing laws and executing them so that the negro was substantially placed back into slavery, practically nullifying the results of the awful struggle, the untold loss of life and treasure, Mr. Lincoln certainly would have receded and would have dealt with the South with an iron hand, as Congress had determined to do, and as General Grant was compelled to do when he assumed the Presidency.

From April to the reassembling of Congress in December, Johnson had a free hand in dealing with the seceded States, and he was not slow to take advantage of it. He seemed disposed to recognize the old State Governments; to restrict the suffrage to the whites; to exercise freely the pardoning power in the way of extending executive clemency not only to almost all classes, but to every individual who would apply for it. The result was, it seemed to be certain that if the Johnson policy were carried out to the fullest extent, the supremacy of the Republican party in the councils of the Nation would be at stake.

To express it in a word, the motive of the opposition to the Johnson plan of reconstruction was the firm conviction that its success would wreck the Republican party, and by restoring the Democrats to power bring back Southern supremacy and Northern vassalage. The impeachment, in a word, was the culmination of the struggle between the legislative and the executive departments of the Government over the problem of reconstruction. The legislative department claimed exclusive jurisdiction over reconstruction; the executive claimed that it alone was competent to deal with the subject.

This is a very brief summary of the conditions which confronted us when I entered the Thirty-ninth Congress. Representatives of the eleven seceding States were there to claim their seats in Congress. The Republican members met in caucus the Saturday evening preceding the meeting of Congress on Monday. I, as a member-elect, was present, and I remember how old Thaddeus Stevens at once assumed the dominating control in opposition to the President's plan. Stevens was a most remarkable character,—one of the most remarkable in the legislative history of the United States. He believed firmly in negro equality and negro suffrage. As one writer eloquently expresses it:

"According to his creed, the insurgent States were conquered provinces to be shaped into a paradise for the freedman and a hell for the rebel. His eye shot over the blackened southern land; he saw the carnage, the desolation, the starvation, and the shame; and like a battered old warhorse, he flung up his frontlet, sniffed the tainted breeze, and snorted 'Ha, Ha!'"

It was at once determined by the Republican majority in Congress that the representatives of the eleven seceding States should not be admitted. The Constitution expressly gives to the House and Senate the exclusive power to judge of the admission and qualification of its own members.

We were surprised at the moderation of the President's message, which came in on Tuesday after Congress assembled. In tone and general character the message was wholly unlike Johnson. It was an admirable state document, one of the finest from a literary and probably from every other standpoint that ever came from an Executive to Congress. It was thought at the time that Mr. Seward wrote it, but it has since been asserted that it was the product of that foremost of American historians, J. C. Bancroft, one of Mr. Johnson's close personal friends.

There existed three theories of dealing with the Southern States: one was the President's theory of recognizing the State Governments, allowing the States to deal with the suffrage question as they might see fit; the Stevens policy of wiping out all State lines and dealing with the regions as conquered military provinces; and the Sumner theory of treating them as organized territories, recognizing the State lines.

Johnson dealt in a masterful manner with the subject in his message. He said:

"States, with proper limitations of power, are essential to the existence of the Constitution of the United States.

"The perpetuity of the Constitution bring with it the perpetuity of the States; their mutual relations makes us what we are, and in our political system this connection is indissoluble. The whole cannot exist without the parts nor the parts without the whole. So long as the Constitution of the United States endures, the States will endure; the destruction of the one is the destruction of the other; the preservation of the one is the preservation of the other.

"The true theory is that all pretended acts of secession were, from the beginning, null and void. The States cannot commit treason, nor screen the

individual citizens who may have committed treason, any more than they can make valid treaties or engage in lawful commerce with any foreign power. The States attempting to secede placed themselves in a condition where their vitality was impaired but not extinguished, their functions suspended but not destroyed."

It was but the Johnson theory which we presented to the world, denying the right of any State to secede; asserting the perpetuity, the indissolubility of the Union.

But the question was, whether the members from the seceding States should be admitted to the Senate and House; and he dealt with this most difficult problem in a statesmanlike way. He said:

"The amendment to the Constitution being adopted, it would remain for the States whose powers have been so long in abeyance, to resume their places in the two branches of the National Legislature, and thereby complete the work of restoration. Here it is for you, fellow citizens of the Senate, and for you, fellow citizens of the House of Representatives, to judge, each of you for yourselves, of the elections, returns and qualifications of your own members."

On the suffrage question, he said:

"On the propriety of making freedmen electors by proclamation of the Executive, I took for my counsel the Constitution itself, the interpretations of that instrument by its authors, and their contemporaries, and the recent legislation of Congress. They all unite in inculcating the doctrine that the regulation of the suffrage is a power exclusively for the States. So fixed was this reservation of power in the habits of the people, and so unquestioned has been the interpretation of the Constitution, that during the Civil War the late President never harbored the purpose,—certainly never avowed it,—of

disregarding it; and in acts of Congress nothing can be found to sanction any departure by the Executive from a policy which has so uniformly obtained."

Aside from the worst radicals, the message pleased every one, the country at large and the majority in Congress; and there was a general disposition to give the President a reasonably free hand in working out his plan of reconstruction. But as I stated, the Legislatures of the Southern States and their Executives assumed so domineering an attitude, practically wiping out the results of the war, that the Republican majority in Congress assumed it to be its duty to take control from the Executive.

What determined Johnson in his course, I do not know. It was thought that he would be a radical of radicals. Being of the "poor white" class, he may have been flattered by the attentions showered on him by the old Southern aristocrats. Writers of this period have frequently given that as a reason. My own belief has been that he was far too strong a man to be governed in so vital a matter by so trivial a cause. My conviction is that the radical Republican leaders in the House were right; that he believed in the old Democratic party, aside from his loyalty to the Union; and was a Democrat determined to turn the Government over to the Democratic party, reconstructed on a Union basis.

I cannot undertake to go into all the long details of the memorable struggle. As I look back over the history of it now, it seems to me to bear a close resemblance to the beginning of the French Revolution, to the struggle between the States General of France and Louis XVI. Might we not, if things had turned differently, drifted into chaos and revolution? If Johnson had been impeached and refused to submit, adopting the same tactics as did Stanton in retaining the War Department; had Ben Wade taken

the oath of office and demanded possession, Heaven only knows what might have been the result.

But reminiscing in this way, as I cannot avoid doing when I think back over those terrible times, I lose the continuity of my subject.

An extension to the Freedman's Bureau bill was passed, was promptly vetoed by the Executive, the veto was as promptly overruled by the House, where there was no substantial opposition, but the Senate failed to pass the bill, the veto of the President to the contrary notwithstanding.

I had not the remotest idea that Johnson would dare to veto the Freedman's Bureau bill, and I made a speech on the subject, declaring a firm conviction to that effect. A veto at that time was almost unheard of. Except during the administration of Tyler, no important bill had ever been vetoed by an Executive. It came as a shock to Congress and the country. Excitement reigned supreme. The question was: "Should the bill pass the veto of the President regardless thereof?"

Not the slightest difficulty existed in the House; Thaddeus Stevens had too complete control of that body to allow any question concerning it there. The bill, therefore, was promptly passed over the veto of the President.

But the situation in the Senate was different. At this time the Sumner-Wade radical element did not have the necessary two-thirds majority, and the bill failed to pass over the veto of the President. The war between the executive and legislative departments of the Government had fairly commenced, and the first victory had been won by the President.

The Civil Rights bill, drawn and introduced by Judge Trumbull, than whom there was no greater lawyer in the United States Senate, in January, 1866, on the reassembling of Congress, was passed. Then began the real

struggle on the part of the radicals in the Senate, headed by Sumner and Wade, to muster the necessary two-thirds majority to pass a bill over the veto of the President.

Let me digress here to say a word in reference to Charles Sumner. For ten years he was chairman of the Foreign Relations Committee of the United States Senate, and no man, by education, experience, knowledge of world politics, and travel, was ever more fitted to occupy that high position. He was one of the most cultivated men of his day, a radical, and filled one of the most important places in the history of his time. When he entered the Senate, the South dominated this Government; the great triumvirate, Webster, Clay, and Calhoun, had just passed. The day he entered, Clay for the last time, feeble, emaciated, appeared on the Senate floor. Compromise was the word, and the Southerners so dominated that it was considered treason to mention the slavery question. Charles Sumner was an abolitionist; he was not afraid, and at the very first opportunity he took the floor and denounced the institution in no unmeasured terms. Chase and Seward were present that day, and quickly followed Sumner's lead. Seward, however, was far more conservative than either Sumner or Chase.

It was the mission of Charles Sumner to awake the public conscience to the horrors of slavery. He performed his duty unfalteringly, and it almost cost him his life. Mr. Lincoln was the only man living who ever managed Charles Sumner, or could use him for his purpose. Sumner's end has always seemed to me most pitiful. Removed from his high position as chairman of the Foreign Relations Committee of the Senate, followed relentlessly by the enmity of President Grant, than at the very acme of his fame; drifting from the Republican party, his own State repudiating him, Charles Sumner died of a broken heart.

But to return to the struggle between the President and Congress. Trumbull, Sumner, Wade, and the leaders were bound in one way or another to get the necessary two-thirds. The vote was taken in the Senate: "Shall the Civil Rights bill pass the veto of the President to the contrary notwithstanding?" It was well understood that the vote would be very close, and the result uncertain.

The excitement was intense. The galleries were crowded; members of the House were on the Senate floor. The result seemed to depend entirely upon the vote of Senator Morgan, of New York, and he seemed to be irresolute, uncertain in his own mind which way he would vote. The call of the roll proceeded. When his name was reached there was profound silence. He first voted nay, and then immediately changed to yea. A wonderful demonstration burst forth as it was then known that the bill would pass over the veto of the President, and that the Republican party in Congress at last had complete control. Senator Trumbull made a remarkable speech on that occasion, and I was never prouder of any living man.

So the struggle went on from day to day and year to year, growing all the time more intense. I have always been disposed to be conservative; I was then; and it was with profound regret that I saw the feeling between the President and Congress becoming more and more strained.

I disliked to follow the extreme radical element, and when the row was at its height, Judge Orth, a colleague in the House from Indiana, and I concluded to go and see the President and advise with him, in an attempt to smooth over the differences. I will never forget that interview. It was at night. He received us politely enough, and without mincing any words he gave us to understand that we were on a fool's errand and that he would not yield. We went away, and naturally joined the extreme radicals in the House, always voting with them afterwards.

The row continued in the Fortieth Congress. Bills were passed, promptly vetoed, and the bills immediately passed over the President's veto. Many of the bills were not only unwise legislation but were unconstitutional as well. We passed the Tenure of Office bill; we attempted to restrict the President's pardoning power; and as I look back over the history of the period, it seems to me that we did not have the slightest regard for the Constitution. Some of President Johnson's veto messages were admirable. He had the advice and assistance of one of the ablest lawyers of his day, Jeremiah Black.

To make the feeling more intense, just about this time Johnson made his famous "swing around the circle," as it was termed. His speeches published in the opposition press were intemperate and extreme. He denounced Congress. He threatened to "kick people out of office," in violation of the Tenure of Office act. He was undignified in his actions and language, and many people thought he was intoxicated most of the time, although I do not believe this.

The radicals in both the House and Senate determined that he should be impeached and removed from office. They had the votes in the House easily, and they thought they could muster the necessary number in the Senate, as we had been passing all sorts of legislation over the President's veto. When the subject was up, I was doubtful, and I really believe, strong Republican that I was, that had it not been for Judge Trumbull I would have voted against the impeachment articles. I advised with the Judge, for whom I had profound respect. I visited him at his house. I explained to him my doubts, and I recall very clearly the expression he used in reply. He said: "Johnson is an obstruction to the Government and should be removed." Judge Trumbull himself changed afterwards, much to the astonishment of every one, and denounced the impeachment proceeding as unworthy of a justice of the peace court.

It seems to me difficult to realize that it was as far back as March 2, 1868, that I addressed the House in favor of the impeachment articles. I think I made a pretty good speech on that occasion and supported my position very well. I took rather an extreme view in favor of the predominance of the legislative department of the Government, contending that the executive and judiciary departments of the Government, while they are finally responsible to the people, are directly accountable to the legislative department.

The first and principal article in the impeachment proposed by the House was the President's issuance of an order removing Edwin M. Stanton as Secretary of War, he having been duly appointed and commissioned by and with the advice and consent of the Senate, and the Senate having been in session at the time of his removal.

I contended then, on the floor of the House, that such a removal was a violation of the Constitution and could not be excused on any pretext whatever, in addition to being a direct violation of the Tenure of Office act.

I do not intend to go into the details of the various articles proposed by the House; suffice it to say that they were mainly based on the attempted removal of Mr. Stanton, and the appointment of Mr. Thomas as Secretary of War.

I was very serious in concluding my speech. My words were:

"Mr. Chairman: The administration of Mr. Johnson since he became President of the United States has been characterized by an utter disregard of the laws and Constitution of the United States. And, sir, I am of the opinion that there should be another article adopted by this House, and sent to the Senate, upon which he should be tried, the substance of which should be that Andrew Johnson, President of the United States, is guilty of high

crimes in office, in that he violated the Constitution and laws of the United States, by using his influence, patronage and power of said office to hinder, delay and prevent a restoration of the States lately in rebellion against the Government, to their proper practical relations to the Union. Congress provided by law for the reconstruction of the rebel States. The President, from whatever motives it matters not, stands in his Executive Office, and by all his influence and power opposes restoration according to law. As an Executive Officer, he has no such right, and his opposition to the laws of Congress on the subject of reconstruction has cost this Nation thousands of loyal men who have been murdered in the South on account of their devotion to the Flag, and millions of money which is to be added to the enormous public debt to be cast upon the necks of the people. Shall the Nation endure it longer? Shall we struggle on and on until the welcome day comes when his term shall expire? The people say 'No'; men struggling in business say 'No'; men longing for peace and harmony in the land say 'No'; the loyal men of the South, who have been abused and hunted by wicked rebels, say 'No'; and I trust that the answer of all these may be the answer of this House to-day, and the answer of the Senate of the United States within a reasonable time after these articles shall be sent to them."

Needless for me to say, that as the subject continued feeling remained at a high pitch in the House. It was debated from day to day. Stevens was urging the impeachment with all the force at his command; some were doubtful and holding back, as I was; some changed—for instance, James G. Blaine, who was taunted by Stevens and sneered at for his change of front.

Under the law then existing the President of the Senate succeeded a Vice-President who became, by the death or removal of the President, President of the United States. The radicals in complete control—and I have no doubt that Stevens had a hand in it—elected the most radical of their number as

President of the Senate—Ben Wade, of Ohio. Johnson removed, Wade would have been President, and the extreme radicals would have been in supreme control of the legislative and executive departments of the Government.

This condition is what made Mr. Blaine hesitate. He told me on one occasion: "Johnson in the White House is bad enough, but we know what we have; Lord knows what we would get with old Ben Wade there. I do not know but I would rather trust Johnson than Wade." But in the end Blaine supported the impeachment articles, just as I did, and as Senator Allison and other somewhat conservative members did, all feeling at the same time not a little doubtful of our course.

Stevens, Logan, Boutwell, Williams, and Wilson were appointed managers on the part of the House, and solemnly and officially notified the Senate of the action of the House in impeaching the President of the United States. The Senate proceeded without long delay to resolve itself as a High Court of Impeachment, for the purpose of trying the President of the United States for high crimes and misdemeanors. The most eminent counsel of the Nation were engaged. Mr. Evarts was President Johnson's principal counsel. He was ably assisted by lawyers of scarcely less renown.

The trial dragged along from day to day. Part of the time the Senate considered the matter in executive session. The corridors were crowded; and I remember with what astonishment we heard that Judge Trumbull had taken the floor denouncing the proceeding as unworthy of a justice of the peace court. The Illinois delegation held a meeting, and Logan, Farnsworth, and Washburne urged that we unite in a letter to Judge Trumbull, with a view to influencing his vote for conviction, or of inducing him to withhold his vote if he could not vote for conviction. A number of our delegation opposed it, and the letter was not sent.

I do not think that it would have made the slightest effect on Judge Trumbull had we sent it. All sorts of coercing methods were used to influence wavering Senators. Old Bob Schenck was the chairman of this movement, and he sent telegrams broadcast all over the United States to the effect that there was great danger to the peace of the country and the Republican cause if impeachment failed, and asking the recipients to send their Senators public opinion by resolutions and delegations. And responses came from all over the North, urging and demanding the impeachment of the President.

It is difficult now to realize the intense excitement of that period. General Grant was there, tacitly acknowledged as the next nominee of the Republican party for the Presidency. He took no active part, but it was pretty well understood, from the position of his friends such as Logan and Washburne, that the impeachment had his sympathy; and in the Senate Conkling was especially vindictive. Grimes, Fessenden, and Trumbull led the fight for acquittal. Many were noncommittal; but in the end the struggle turned on the one doubtful Senator, Edmund G. Ross of Kansas.

It was determined to vote on the tenth article first, as that article was the strongest one and more votes could be mustered for it than any other. It was well understood that the vote on that article would settle the matter.

More than forty-three years have passed into history since that memorable day when the Senate of the United States was sitting as a Court of Impeachment for the purpose of trying the President of the United States for high crimes and misdemeanors. The occasion is unforgettable. As I look back now, I see arising before me the forms and features of the great men who were sitting in that high court: I see presiding Chief Justice Chase; I see Sumner, cold and dignified; Wade, Trumbull, Hendricks, Conkling, Yates; I see Logan as one of the managers on the part of the House; I see

old Thad Stevens, weak and wasted from illness, being carried in—all long since have passed to the beyond, the accused President, the members of the high court, the counsel. Of all the eminent men who were present on that day, aside from the Hon. J. B. Henderson, I do not know of a single one now living.

As the roll was called, there was such a solemn hush as only comes when man stands in the presence of Deity. Finally, when the name of Ross was reached and he voted "No"; when it was understood that his vote meant acquittal, the friends of the President in the galleries thundered forth in applause.

And thus ended for the first, and I hope the last, time the trial of a President of the United States before the Senate, sitting as a Court of Impeachment for high crimes and misdemeanors.

CHAPTER X SPEAKER OF THE LEGISLATURE, AND GOVERNOR 1871 to 1883

After my six years' service in the Lower House of Congress, I returned home, not expecting ever again to take office, or engage in politics. There was a contest going on in the State over the location of the State Capitol. The State had committed itself to the erection of a new Capitol building, and had really made considerable progress on its construction.

In the meantime, the question of changing the location from Springfield to some other city was agitated. Peoria made a very strong effort for the removal to that city. The work on the new building, as an immediate result, was stopped. The Legislature had adjourned, and another election of members was to occur. This condition of local affairs existed when I returned home after my service was finished in Washington.

The friends in my home county, in which the State Capitol is located, waited on me and expressed a desire that I should allow my name to be used as a candidate for the Legislature. I made known my resolve not to enter politics again; but they based the proposal upon a ground that made it extremely difficult and embarrassing not to accede, to-wit: they had been with me for anything I had ever wanted, and now they wanted me to reciprocate, and do as *they* desired. I did not feel that I could disregard their wishes, and so yielded to their demand; it was nothing less.

They then went to the Hon. Milton Hay, who was a great lawyer, and as good a man as I ever knew, and made the same demand upon him. He was under no special obligation to yield to their wishes, for he had never asked for office at the hands of the people. He declined; but they also declined to take "No" for an answer. The result was that both Hay and I became candidates, were both elected, and the contest over the removal of the State Capitol was renewed.

I was chosen Speaker. Mr. Hay was the foremost lawyer of the Legislature. One million dollars was reported from the proper committee of the House, and passed without opposition, and the work on the Capitol was once more taken up.

Finding myself again in politics, I determined to become a candidate for Governor. To be successful, it seemed to be important that I should go back into the Legislature, which I did. After my re- election I was supported by the Republican party for Speaker for my second term.

However, the House of Representatives was in control of the opposition, composed of Democrats and Independents, the latter being more generally wrong than the Democrats, and much less reliable. The combination organized the House, the Hon. Elijah Haines being elected Speaker, and the Republicans casting their united vote for me. This Legislature has ever

since been known as the "Haines Legislature," the most notorious Legislature ever known in the State. Haines was a man of ability—especially, to stir up strife and produce confusion.

The Legislature convened in the Winter of 1875. I was nominated for Governor early in 1876, elected in November of the same year, and sworn in January, 1877.

On re-examining my inaugural address, I find much stated there that is at the present time, and must long remain, of historic interest to the people of Illinois; but since its length precludes reproduction here, I can merely touch upon certain points, more fully covered in the address, that offer many curious aspects and contrasts in the light of latter-day conditions.

To begin with, the Legislature of that year was the first to meet in the new Capitol. The effects of the financial panic of 1873 were still felt, but it was pointed out that the State's resources were in no way impaired; that on the contrary—circumstances to be proud of—the volume of private indebtedness had been materially reduced, while the productive wealth of farms, buildings, factories, mines, and railroads had never before been so great.

Of matters educational, there had been enrolled as pupils the preceding year (1876) 687,446 persons, and appropriations for public-school purposes for the corresponding period had amounted to \$8,268,539.58.

Among other matters of local interest adverted to, which to-day are as alive and momentous as they were then, were the subjects of navigation—particularly on the Illinois River and the canal—and the supervision of the railroads by the Railroad and Warehouse Commission. At that time there were 7,285 miles of railroad in the State—a greater mileage than any other State in the Union could boast of.

Only eleven years had elapsed since the close of the Civil War, and its after-effects still worked like an obnoxious ferment in the State's political conditions; closely allied with this was the influence of the Hayes-Tilden contest, all of which commanded a large proportion of my speech.

One extract I wish to quote in full, since it was prelude to events which followed so soon afterwards:

"I desire to add one suggestion in reference to the affairs of our own State, by calling your attention to the Militia Law. I believe a more perfect law should be enacted, which will secure a more thorough organization of the State militia.

"The spirit of our institutions and the temper of our people are hostile to a standing army, and I am opposed to any policy, State or National, looking to governing the people by bayonet; yet in the most highly civilized communities a trained militia, recruited from the intelligent and industrious classes, is an almost indispensable auxiliary to the civil power in the interests of peace and good order."

Little did I dream that within six months of my inauguration the timeliness and force of the suggestions, and any recommendations contained in the closing paragraphs above, would find convincing illustrations in conditions throughout the Nation, and especially in Illinois.

In July, 1877, the famous strike of the railway employees came on. It was exceptionally strong in the cities of Illinois—Chicago, Decatur, Springfield, Galesburg, East St. Louis, and every other city of considerable size. The State was ill prepared for such a crisis. The strike ran along for several days with the State unready to bring the matter to a close. Having been in office but a few months, I had not yet secured any arms or other military equipment with which to combat organized violations of the law. The

Illinois National Guard was inchoate—in fact, scarcely organized at all, except in companies voluntarily formed, which were almost entirely without military equipment. Finally, however, I determined to order the National Guard to East St. Louis.

I telegraphed to Chicago for a locomotive and car to take me to East St. Louis about two o'clock on a specified night. After ordering the troops from different parts of the State to assemble at East St. Louis on a given day, I went to East St. Louis myself, three or four gentlemen accompanying me. There I found several thousand men sitting about on the curbs of the sidewalks, apparently perfectly quiet and inoffensive, if not unconcerned, and I concluded that there was no reason why trains should not move.

However, I first consulted with several railroad men, expressing the opinion that the strikers and their sympathizers did not seem desirous of disturbing anybody, and insisted that they proceed to move out their trains.

The superintendent of one of the roads finally promised to have a train made up, and undertake to move it.

"All right," said I. "Fire up, and I will come around about the time you are ready to move." He did as he had promised, and I went around with the friends who were accompanying me.

But about the time the train was ready to move, these mild-mannered laboring men, to the number of five or six hundred, gently closed in upon the train, and put out the fire in the engine so it could not be moved.

Thereupon, I stood upon the sidewalk and addressed this crowd of five or six hundred fire-extinguishers. I told them that I had come there to move the trains, and while I did not want to hurt any one, that the trains would be started, if everybody who interfered first had to be disabled. They gradually

skulked away, and I ordered the fire built up again, asserting that I would be back in half an hour to see the trains move. But the men notified the engineer that they would kill any man who undertook to take the train out, and in the fact of that threat no one could be prevailed upon to man the engines or train.

Finally, however, one man agreed, if I would accompany him as far as Decatur, about a hundred miles, to endeavor to go out with the train. I told him I could not do that, but I would stand by his side while he was going through the streets of East St. Louis. But he would not agree to this, so that my efforts to move a single train had met with complete failure. The result was that I was driven to the expediency of calling upon the military arm of the State authority.

That evening the troops began to arrive. They were stationed at the strategic points of the city during the night, and the next morning the trains moved out without a single accident or disturbance.

In Chicago, the National Guard did not seem to accomplish anything. The people there did not take them seriously, and the result was that I called upon the National Government to send to that city a few companies of regular troops. I think they came from Omaha. When they arrived, and marched up the streets—that was the end of the strike in that city.

So I managed to get through the trouble without injury to a single person, or the loss of any property except that caused by the delay in the transaction of business. These results were quite different from those in some other parts of the country. My chief private secretary was in the East somewhere, and could not return to me until the trouble was all over.

As Governor of a State in a time when actual war was not flagrant, I could only watch, as might any other American citizen, the exciting

proceedings at the National Capital, and hope that our country might issue from the political contest without a weakening of our institutions or loss of prestige. At the same time, I felt that I might appropriately express my approval of the attitude of the National administration, which I did in a letter to the President.

When I was Governor of the State of Illinois, I had the good fortune of becoming intimately acquainted with one of the great soldiers of the recent Civil War, who was, in my judgment, the greatest cavalry leader of modern times,—General Phil Sheridan. He was Commander of the Department of the Lakes during my administration, and I had the pleasure of meeting him on numerous occasions.

At an immense reunion of volunteer soldiers from Northern Illinois, Michigan, and Wisconsin, which was held in Aurora, I, as Governor of the State, was invited to make the first address. General Sheridan was invited to be present and take part in this celebration, and he came down from Chicago, accompanied by his wife. I met them at Aurora. We rode in the same carriage, at the rear of the procession, to the fair grounds, a mile or so distant from the city. The day was hot, and as we entered a dense grove, on the road, the soldiers halted for a breathing spell, and while at rest many of them went to a well near by for water. It was observed by some of the soldiers that General Sheridan remained in the carriage, and they immediately surrounded us. He greeted all cordially and good-naturedly, being very fond of soldiers who had fought on the Union side of the great struggle between the North and the South. What immediately followed pleased Mrs. Sheridan and those who were near, and amused Sheridan himself. A big Irish soldier-boy got hold of Sheridan's hand and pulled him out of the carriage. Being of small stature, General Sheridan was at the mercy of the stalwart Irishman, who dealt with him in a very rough way,

slapping him on the back with great force, and with as much earnestness exclaiming: "Boys, this is the damnedest, bravest little Mick in America!"

As is well known now, the operations of General Sheridan in the Shenandoah Valley and the region of Richmond called forth the plaudits of the Nation and the commendation of his superiors. His victories had much to do with bringing the Civil War to a close. He was conscious of the power and value of the cavalry arm of the army. In discussing his great achievements he made the remarkable statement that with a force of five or ten thousand cavalymen, well organized, he could run over an army of almost any size. Whether this be true or not, it remains that General Grant had implicit confidence in Sheridan's ability to command the cavalry forces in a manner superior to any other officer in the Union Army.

It was on the suggestion of Grant that Sheridan was brought from the West to take command of the cavalry. After coming East, he was presented to President Lincoln. The President scrutinized him closely. He did not appear to be the officer recommended to him by Grant as the one man who could bring the cavalry forces to that standard which was so much desired.

The first time Lincoln met Grant after Sheridan called on him he expressed his doubt. "The officer you brought from the West seems rather a little fellow to handle your cavalry," said he.

Grant, however, unshaken in the belief that he at last had an officer under him whom he could trust in charge of all the armies of the Union if necessary, replied: "You will find him big enough for the purpose before we get through with him."

Sheridan was not only popular with his superior officers and men under him, but with the people generally. He was held in the highest esteem by the people of my State. After his promotion to the rank of Lieutenant-General,

the citizens of Chicago presented him with a house in Washington, as a mark of their friendship and devotion.

While Governor I rendered a decision in an extradition case, which formed a precedent, and which is referred to by writers on extradition.

Moore comments on it as follows:

"In December, 1878, an interesting decision was made by Governor Cullom, of Illinois, in the case of two persons named Gaffigan and Merrick, whose surrender was demanded by the Governor of Pennsylvania on a charge of murder committed in that State in January, 1865. Accompanying the requisition was an indictment found against them in Pennsylvania in March, 1865, for the crime for which their rendition was demanded. It was alleged in their behalf that soon after the murder was committed, and before the indictment was found, they left their place of residence in Pennsylvania and went to Illinois, where they had resided continuously in an open manner, bearing their own names, transacting daily business, and holding responsible public positions. In 1870 or 1871 Gaffigan was joined by his father, who left their former place of residence in Pennsylvania with the avowed purpose of joining his son in Illinois. The residence of the latter in Illinois was also known to other persons in the particular locality in Pennsylvania, among whom were a constable and a witness whose name was endorsed on the indictment. On the other hand, the prosecuting attorney in Pennsylvania denied that there had been any laches in the matter, and declared that he had acted upon the first knowledge that he had acquired in respect to the whereabouts of the persons charged. Governor Cullom held that while it might be inferred from the fact that the accused left the State of Pennsylvania shortly after the date of the murder that they were fugitives from justice, yet this character did not always adhere to them; and that their long residence in Illinois, which was so entirely unconcealed and well

known, that the officers of justice in Pennsylvania could have been ignorant of it only because they made no effort to find it out, had purged them of the character of fugitives from justice. It may be argued that this decision rests on moral rather than on strictly legal grounds. It is generally held that there is no limitation as to the time in recovery of fugitives from justice other than such as may be established by statutes of limitations of the Governments concerned, and it does not appear to have been suggested in the case under consideration that any such limitation had been established either by the laws of Pennsylvania or of Illinois. The decision of Governor Cullom may also be thought to involve the theory that the authorities of the demanding State may be called upon to show that they have used due diligence in pursuing the fugitives and in seeking their surrender."

The decision created much comment at the time, some adverse, suggesting that it amounted to the exercise of the pardoning power by a Governor of one state for a crime committed in another.

My administration as Governor of Illinois was a very quiet, uneventful one. I endeavored to give the State strictly a business administration, and I believe I succeeded. I appointed the very best men that I could find to State offices. I did not interfere with the conduct of the various departments and institutions, except to exercise a general supervision over them. I held my appointees strictly accountable for the conduct of the affairs of their respective offices, and did not attempt to dictate to them the appointment of their subordinates.

During the six years I served as Governor there was not a single scandal connected with the executive department of Illinois. I never had the slightest trouble with the Legislature. I never interfered in the organization of the Senate or House. I believed then, and I believe now, in the independence of the three co-ordinate branches of the Government. I no

more thought of influencing the Legislature than I would have thought of attempting to influence the Judiciary. My recommendations were made in official messages, as the Constitution prescribes, and generally, I might say, the Legislature carried out my recommendations. The administration was an economical one, and it was during this period that the entire State debt was paid.

CHAPTER XI GRANT

My acquaintance with General Grant began when he visited Springfield the first time immediately after the beginning of the Civil War. He came to Springfield with a company of soldiers raised at Galena. General John A. Rawlins, afterwards Secretary of War under President Grant, one of the best men whom I ever knew, and especially my friend, was with this company. General Grant offered his services to Governor Yates in any capacity, and the Governor requested him to aid General Mather, then our Adjutant-General. General Grant, having been a West Point graduate, and having served as a captain in the regular army, rendered the Adjutant-General very material service. On the morning I saw him in the Adjutant-General's office at Springfield, nobody ever dreamed that this quiet, unassuming subordinate would, in less than four years, become one of the greatest generals in all the world's history. At the outbreak of the war he resided at Galena, where he was in business.

He was sent by Governor Yates to muster in the various regiments, and continued in that work until made Colonel of the Twenty-first Illinois Regiment. This regiment had been raised and organized by another man, whose habits were not regular, and under whose command the regiment had become demoralized. General Grant took the Twenty-first Illinois on foot from Springfield into Missouri, and before he had travelled very far with it,

the men quickly learned that he was a real commanding officer, a strict disciplinarian, and that orders were issued to be obeyed. The regiment became one of the best in the service.

General Grant was soon made a Brigadier-General, the first to be commissioned from Illinois, and was sent to command at Cairo.

I became pretty well acquainted with him at Springfield, and subsequently I visited Cairo, and found there General Grant, Governor Oglesby, and other Illinoisans in command of regiments.

General Grant's career as a soldier is too well known to the world to be repeated by me here. The history of his career is the history of the Civil War. He was formally received by the people of Springfield on two occasions: once while he was still in command in the army; and again in 1880, after his trip around the world, he was my guest at the Executive Mansion in Springfield. He was then accompanied by Mrs. Grant, and by E. B. Washburne, who had been one of his closest personal friends during his administration.

The time was approaching for the National Convention at Chicago, and General Grant's friends had prevailed upon him to permit the use of his name as a candidate for a third term. Washburne had become considerably flattered by the demonstration that was made over him on the road from Galena to Springfield, and I believe he had an idea that he might be the nominee instead of General Grant, and hence for some reason or other he did not want to identify himself with General Grant at all. When the time came to go to the reception at the State House, Washburne could not be found. It seemed that he had hid in his bedroom until the party left the Executive Mansion for the State House, and then went by himself to the State House, and secreted himself in the office of the Secretary of State,

where he surreptitiously watched proceedings from behind the sheltering folds of a curtain.

His conduct in the evening was still more remarkable. I had arranged a reception to General and Mrs. Grant and Mr. Washburne at the Executive Mansion that same evening, but Mr. Washburne gave some excuse which he claimed necessitated his presence in the East, and departed—apparently with the conviction that he might secure the Presidential nomination himself, and feeling that his presence in company with General Grant—an avowed candidate—created an embarrassing situation that he could not endure. I know that General Grant was deeply grieved at his conduct. The General's friends were so outraged that they determined Washburne should have no place upon the ticket at all.

General Grant was not a candidate for re-election at the end of his second term; I am not at all sure whether he would not have been glad to be re-elected for a third term—at least, he would have accepted the nomination had it been tendered to him. But the third-term proposition, at that time, received a severe blow when, in December, 1875, the House of Representatives passed a resolution by a vote of 234 to 18, declaring that in its opinion, the precedent established by Washington and other Presidents of the United States, in retiring from the Presidential office after their second terms, had become, by universal concurrence, a part of our republican system of government, and that any departure from this time-honored custom would be unwise, unpatriotic, and fraught with peril to our free institutions.

The passage of this resolution, the scandals in the administration, the hard times, and the bitter and determined opposition to General Grant at this time, put an end temporarily to all third-term talk.

But during his absence, when he was making his tour of the world, after he had retired from the Presidency, Senator Conkling, General Logan, Don Cameron, and other leading politicians concluded that they would nominate him to succeed Rutherford B. Hayes, who was not a candidate. After his return to the United States, they secured his consent to use his name as a candidate for the nomination in 1880; but after a bitter fight in the Chicago Convention they failed, and General Garfield obtained the nomination.

Mr. Blaine, before the Convention met, was the leading candidate against General Grant. I had been a warm friend of Mr. Blaine's in Congress; but as General Grant was a candidate from my own State, and as I was at that time Governor of Illinois and a candidate for renomination, I did not feel that I could take any part in the contest between Grant and Blaine.

When the State Convention met to select a candidate to succeed me as Governor, the contest between Grant and Blaine was very bitter. Mr. Blaine and I had been very friendly in the House; indeed, I was one of the few personal friends who brought him out as a candidate for Speaker of the House. From our past relations, he felt perfectly free to write me, and about the time of the Convention, I received a letter from him, in which he said, among other things, "Why cannot you put yourself at the head of my forces, and lead them? If you are not careful you will fall between."

The tone of the letter annoyed me, and I did not answer it until the contest was over, which resulted in my own nomination, and until after the National Convention met, in which Blaine was defeated. I then wrote him a letter, informing him that I had been nominated; but, of course, I did not refer to his defeat.

During the session of the convention in Springfield, about the time it was to convene, General Logan came down from Chicago, proceeding at once to

my house. He told me that he desired I should help him to secure the delegation for General Grant.

I replied: "General Logan, if you are my friend, and I suppose you are, you will not ask me to take any part in this contest, as I am a candidate for renomination myself."

He was a little huffy about it, and seemed to be disappointed that I would not do as he asked. And I may remark that this was characteristic of Logan. He went away considerably out of humor, but saying nothing especially to the point.

A short time afterwards the Hon. Charles B. Farwell, who was later an honored colleague of mine in the Senate, drove up to my house and said: "Cullom, I want you to help me carry this State for Blaine."

"Charley," I replied, "you know very well that I am a candidate for re-election; and you know very well, also, that if I were to take a hand in this contest, I would probably be beaten." He agreed with me, and went away satisfied, assuring me that in his opinion I was doing the right thing.

The contest in our State Convention between Blaine and Grant lasted for at least three days, and resulted in the division of the delegation to the National Convention, part for Grant and part for Blaine. I had quite a contest for the nomination, but was finally named on the fourth ballot. I had expected to be nominated on the third ballot. Farwell was about my office a good deal during the convention. When the third ballot was taken, and I had not been nominated, I said: "Farwell, there is something wrong upstairs; I wish you would go up and straighten it out."

He went; but what he did, if anything, I do not know. However, I was nominated on the next ballot.

General Grant was nominated both the first and second times without opposition. He was first nominated in Chicago, with great enthusiasm. The second time he was nominated in Philadelphia. I was chairman of the Illinois delegation at Philadelphia, and as such placed him in nomination.

I believe I made about the shortest nominating speech for a Republican candidate for President ever made in a National Republican Convention. I said:

"Gentlemen of the Convention: On behalf of the great Republican party of Illinois, and that of the Union—in the name of liberty, of loyalty, of justice, and of law—in the interest of economy, of good government, of peace, and of the equal rights of all—remembering with profound gratitude his glorious achievements in the field, and his noble statesmanship as Chief Magistrate of this great Nation—I nominate as President of the United States, for a second term, Ulysses S. Grant."

There was a considerable contest over the platform, and as usual, it was determined to adopt the platform before making the nominations of President and Vice-President. But the Convention became very restless after the day of speechmaking; evening was approaching, and the Committee on Platform being still out, it was determined to make the nomination for President that day. I mounted the platform, and in the brief speech I have quoted, placed General Grant in nomination. I never saw such a fervid audience. The floors and galleries were crowded, and the people seemed wild with enthusiasm for Grant. As I uttered the word "Grant," at the conclusion of my speech, and his picture was lowered from the ceiling of the hall, the demonstration was indescribable.

While we were waiting for the Committee on Platform to report, there were quite a number of speeches by favorite sons of the different States, Senator Logan and Governor Oglesby, from Illinois, being among them.

Senator Logan's speech is not very clear in my memory; but I do remember very well the speech by Governor Oglesby. He made a wonderful impression. I do not recall that I ever saw a man electrify an audience as did Governor Oglesby on that occasion. It was the first convention where there were colored men admitted as delegates. Some of the colored delegates occupied the main floor. Old Garret Smith, the great abolitionist, was in the gallery, at the head of the New York delegation. Oglesby took for his theme first the colored man, represented there on the floor of that convention, and then Garret Smith. He set the crowd wild. They cheered him to the echo. We adjourned for luncheon immediately after he concluded his speech, and many of the delegates asked me who that man was. I was proud to be able to tell them that it was Governor Oglesby of Illinois; and the remark was frequently made that it was no wonder that Illinois gave sixty thousand Republican majority with such a man as its Governor.

The platform was finally adopted, and Wilson of Massachusetts was nominated for Vice-President, in place of Schulyer Colfax. Colfax was much mortified at his defeat, but it turned out for the best, because Colfax became involved in the *Crédit Mobilier* before the campaign was over, and his name on the ticket would have injured the chances for success. Wilson, who was nominated to succeed Colfax for Vice-President, was a very good man. He was a Senator, and it was said of him that he came from the shoemaker's bench to the Senate of the United States.

General Grant got along very well during his first term as President. He was wonderfully popular, and no one could have beaten him; but during his second term, so many scandals came to light, and the finances were in such bad shape, that generally his second term as President cannot be said to have been a success. One trouble with him as President was that he placed too much implicit reliance on those about him, and he never could be convinced that any friend of his could do a wrong. Some of his friends were

clearly guilty of the grossest kind of misconduct, and yet he would not be convinced of it, and stuck to them until they nearly dragged him down into disgrace with them. He was not a politician. Before entering the White House he had had no previous experience in public office. For a considerable time he attempted to act as Chief Executive with the same arbitrary power that he used as commander of an army; hence he was constantly getting into trouble with Senators and Representatives.

I remember one little experience along this line which I had with him. It is an unwritten rule that Representatives in Congress, if in harmony with the Administration, control the post-office appointments in their respective districts. On my recommendation Isaac Keyes was appointed postmaster of my own city of Springfield. Much to my astonishment and mortification, in a month, without any warning, without any request for Keyes' resignation, General Grant sent in the appointment of Elder Crane. When I came to inquire the cause, he said he had just happened to remember that he had promised the office to Elder Crane, and he immediately sent in the appointment without considering for a minute the position in which he left Keyes and the embarrassment it would cause me.

Sometime afterward, as Colonel Bluford Wilson tells me, General Grant asked Colonel Wilson, then Solicitor of the Treasury, who would make a good Commissioner of Internal Revenue. Colonel Wilson replied that Cullom was just the man for the place, and General Grant said at once, "I will appoint him." When Colonel Wilson went to the White House with the commission prepared for my appointment, General Grant said: "I have changed my mind about making that appointment. I offended Cullom in reference to the appointment of a postmaster of his town; and if I should appoint him Commissioner of Internal Revenue now, I know he would decline it, so I will not appoint him."

And in this he was quite right. I would have declined the office, not because I was offended at him, but because I would not accept that or any other appointive office.

Not being quite certain that my memory served me correctly in reference to this incident, I took occasion to ask Colonel Bluford Wilson, who had called on me at Washington, to give me the facts, which he later did in a long letter that sets forth the facts somewhat more elaborately than I have given them, but presenting the incident in an identical light.

While I would not say that General Grant was a failure as President, certain it is that he added nothing to his great fame as a soldier. Indeed, in the opinion of very many people, who were his friends and well-wishers, when he retired from the White House he had detracted rather than added to his name. It would probably have been better if General Grant had been content with his military success, and had entered neither politics nor business.

General Grant was one of the greatest soldiers of modern times; indeed, if not of all time. Standing as he does the peer of Frederick, Napoleon, Wellington, the time will come when the very fact that he was President of the United States will be forgotten, while he will be remembered only as one of the world's great captains.

The last time I saw the General was about a month before he died. I was in New York, with the select Committee on Interstate Commerce, and on Sunday morning we learned that General Grant, General Arthur, and ex-President Hayes were all in town, and that Grant and Arthur were ill. We determined to call on each of them.

We first called on General Grant at his home, and found that his son, General Frederick D. Grant, was with him. To him we sent our cards and

asked to see his father. He said he would ascertain, and he came back directly and said that his father would be glad to see us, but cautioned us not to permit him to talk too much, as the trouble was in his throat. We went in and took seats for a moment. He greeted us all very cordially, and seemed to be specially interested in meeting Secretary Gorman. He wanted to talk, and did talk so rapidly and so incessantly that, fearing it was injuring him, we arose from our seats and told him that we had called simply to pay our respects, and expressed our gratification that he was so well.

I can see him yet, as I saw him then. He was sitting up, surrounded by the manuscript of his memoirs. He knew that his end was approaching, and he talked about it quietly and unconcernedly; said he was about through with his book, that if he could live a month or two longer he could improve it, but did not seem to feel very much concern whether he had any more time or not. Mrs. Grant and Nellie, and Mrs. Frederick D. Grant were in an adjoining room, with the door open, and knowing them all very well, I went in to pay my respects. Mrs. Grant at once inquired about my daughters. I told her that one of them was married, and she expressed surprise. General Grant, hearing us, came into the room and said, "Julia, don't you remember that we received cards to the wedding?" He again began to talk, so I took my leave.

From there we called on General Arthur, and then on General Hayes. Both passed away within a short time.

I returned to my home in Springfield, and in about a month the news came that General Grant was dead. On the day of his funeral in New York, in cities of any importance in the country, services were held. Services were conducted in Springfield, on which occasion I delivered the principal address.

CHAPTER XII GENERAL JOHN A. LOGAN

General John A. Logan was a man much more capable of accomplishing results than either General Palmer or General Oglesby.

I first met him when he was a member of the Legislature, in 1856. He was a Democrat then, and a very active and aggressive one. It was in that year that we first elected a Republican Administration in Illinois, the Republican party having been organized only two years previously. Bissell was elected Governor; Hatch, Secretary of State; and Dubois, Auditor.

Governor Bissell was ill, having suffered a stroke of paralysis, and it became necessary for the Legislature, after organizing, to go to the Executive Mansion to witness the administration of the oath of office to him. After the Legislature reconvened in their respective Houses, General Logan immediately obtained recognition and made a bitter attack on Governor Bissell on the ground that the latter had sworn to a falsehood, he having challenged, or been challenged by Jefferson Davis to fight a duel. The duel was never actually fought; but Governor Bissell took the ground that whatever did occur was outside the jurisdiction of the State of Illinois, and he therefore could truthfully take the oath of office. Logan was then about as strong a Democrat as he afterwards was a Republican. His attack on Bissell was resented by Republicans and under the circumstances was regarded as cruel. I became very much prejudiced against him.

After this episode Logan was elected to Congress as a Democrat, and was a follower of Douglas. Douglas was true to the Union, and after he made his famous speech before the Legislature at Springfield, General Logan entered the war and finally became a Republican.

It was alleged that there was an understanding between Douglas and the Democratic delegation in Congress from Illinois that they should all act

together in whatever course they pursued. The delegation from Illinois contained some very able men, among them being General Logan. Douglas came out for the Union without consulting his colleagues in the delegation, and it was said that General Logan and the other Democratic members of the delegation were quite angry. However, they all followed Douglas and became loyal Union men.

Like Governor Oglesby, General Logan had a brief military service in the Mexican War, and also like Governor Oglesby, and General McClelland, he was among the first to raise a regiment for service in the Civil War. He resigned his seat in Congress in 1861, and immediately went into active service. Senator Douglas and General Logan did much to save Southern Illinois to the Union, and that portion of the State contributed its full quota to the Union Army.

To describe the part General Logan took in the Civil War, after he raised the Thirty-first Illinois Regiment and took the field, would be to recite the history of the war itself. The records of his bravery at Belmont; of his gallant charge at Fort Donelson, where, as a Colonel, he was dangerously wounded; of his service as Major-General commanding the Army of the Tennessee; of the memorable siege of Vicksburg, when with the great leader of the Union armies he stood knocking at the door of that invincible stronghold; of his service with Sherman on his famous march to the sea, all are written on the pages of history and lend undying lustre to the name of Logan.

He was a natural soldier. His shoulders were broad, his presence was commanding; with his swarthy face and coal black hair, "and eye like Mars, to threaten and command," he was every inch a warrior. There is no question that General Logan was the greatest volunteer officer of the Civil War.

After the war Logan returned to Illinois, intending to re-enter the practice of the law; but he loved public life and politics, was the idol of the people of his section of the State, and was soon elected Congressman-at-large on the Republican ticket. When I entered the House in 1865, I found General Logan there, ranking as one of the leaders of the more radical Republicans. He was a forceful speaker, and did his full share as one of the managers on the part of the House in the impeachment of Andrew Johnson.

He was devoted to General Grant and General Grant was very fond of him. General Grant, in talking of General Logan and Senator Morton of Indiana, used to say that they were the two most persistent men in the Senate in securing offices for their friends; but there was this difference between them: if Morton came to him and wanted ten offices and he gave him one, he would go away feeling perfectly satisfied, and make the impression on the people that he was running the Administration; while if Logan came to the White House to secure ten offices, and did not get more than nine of them, he would raise a great row, and claim that he could not get anything out of the Administration.

But Logan stood strongly for General Grant, not only during his two terms, where he had little or no opposition, but he was one of the leaders in the unsuccessful attempt to nominate him for a third term. Logan, Conkling, Cameron and others failed, and I believe that General Logan felt the failure more than even General Grant himself.

General Logan was a tremendously industrious man. He was always doing favors for his people, and seemed to delight in being of service to any one. That was the difference between him and Governor Oglesby. Logan was always willing and anxious to do favors for people, while Oglesby was not.

I remember an incident that illustrates this very well. Jacob Bunn, of Springfield, as honest a man as ever lived and a man of high standing, was compelled to take a distillery in part payment of a very large debt which was owing to him, and to make it of any account he had to operate it until such a time as he could dispose of it. He had some explanation he desired to make to the Commissioner of Internal Revenue, and he came to Washington and asked Governor Oglesby, who was then in the Senate, to introduce him to the Commissioner of Internal Revenue. Oglesby knew Bunn very well, and yet he cross-examined him at great length and detail. Bunn left Oglesby and next morning sought Logan, who at once agreed to perform the favor, with the result that Mr. Bunn very readily adjusted the matter with the Commissioner of Internal Revenue. Bunn afterwards said to me: "I had a good deal more trouble convincing Governor Oglesby that I was an honest man than I had convincing the Commissioner of Internal Revenue."

I give this incident as illustrating the difference between the characters of Oglesby and Logan.

The latter's honesty and integrity were never doubted. I believe he would not have hesitated for a moment to kill any one who would have questioned his honesty. He was a poor man, and when I came to the Senate as his colleague we often sat together condoling with each other on our poverty, and "abusing" the men in the Senate who were wealthy. This was one of the common bonds between us. When I became well acquainted with General Logan, I believed in him and admired him as one of the ablest men of Illinois. He was a man of intense feeling, intense friendships, and I might also add that he was a man of the most intense hatreds.

General Logan, while never doubting his friends, yet expected his friends to swear devotion to him every time they saw him. He was "touchy" in this respect, and would not readily overlook any fancied slights. On one

occasion, my old friend, the Hon. David T. Littler, now deceased, of Springfield, Illinois, who was also a warm friend of Logan, went to Washington, and neglected to call on Logan until he had been there several days. Logan knew that he was in town, and when he finally did call, Logan abused him roundly for not coming to see him the first thing. It made Littler angry for the time being, and he showed his resentment as only Littler could. He made Logan apologize and agree never to find fault with him again. They were on good terms as long as they lived.

General Logan was my friend, and was always for me when I was running for office. It was sometimes tolerably hard to him to be for me as against a soldier, because there was never a man who was more thoroughly devoted to the soldiers. As colleagues in the Senate, we got along very agreeably and never had any cross-purposes or differences of opinion.

The only time I remember of ever having any feeling at all was on one occasion when Senator Logan, Senator Evarts, and Senator Teller were strongly advocating the seating of Henry B. Payne, of Ohio, as a matter of right and without investigation. I was disposed to vote for the taking of evidence and an investigation. When the discussion was going on, I stated to Logan that I felt like voting in favor of the investigation. He was very much out of humor about it. I consulted with some friends in the Senate as to what I ought to do under the circumstances, and they advised me, in view of General Logan's personal feeling on the subject—and he felt that he was personally involved—that I ought to vote with him.

After the vote was announced, I went around to General Logan's seat, and he expressed intense gratification that I had voted with him, remarking that if I had been involved in a struggle as he was, he would take the roof off the house before he would let me be beaten; and I believe he would have gone to almost any extent.

I then said to him: "General Logan, I want to assure you that hereafter you must not feel concerned about my vote being the same as yours. In other words, when I want to vote one way and you want to vote another, I shall be perfectly satisfied, and shall have no feeling against you on account of it; I want you to feel the same way when conditions are reversed." He acquiesced in this proposal; but we never afterwards had occasion to differ on any important question before the Senate.

General Logan had an ambition to become President, and I believe he would have realized his ambition had he lived.

I placed him in nomination for President at the National Convention which met at Chicago in 1884. In *The Washington National Tribune* appears the following report:

"The next State that responded was Illinois, and as Senator Cullom mounted the platform to present the name of General John A. Logan, cheer after cheer followed him. When he was at last allowed to proceed, he began by referring to the nominations of Lincoln and Grant, both from Illinois, and both nominated at Chicago:

'In 1880, the party, assembled again at Chicago, achieved success by nominating Garfield; and now in 1884, in the same State, Illinois, which has never wavered in its adherence to the Republican party, presents, as the standard-bearer of that party, another son, one whose name would be recognized from one end of the land to the other as an able statesman, a brilliant soldier, and an honest man —John A. Logan.'

"The announcement of General Logan's name was received with a wild burst of applause, a great many persons rising to their feet, waving their hats and handkerchiefs, and the thousands of people in the gallery joining in

the roars of applause. The cheers were renewed again and again. The speaker resumed:

'A native of the State which he represents in the Council of the Nation, reared among the youth of a section where every element of manhood is early brought into play, he is eminently a man of the people. The safety, the permanency, and the prosperity of the Nation depend upon the courage, the integrity, and the loyalty of its citizens. . . . Like Douglas, he believed that in time of war men must be either patriots or traitors, and he threw his mighty influence on the side of the Union; and Illinois made a record second to none in the history of States in the struggle to preserve the Union. . . .

'During the long struggle of four years he commanded, under the authority of the Government, first a regiment, then a brigade, then a division, then an army corps, and finally an army. He remained in the service until the war closed, when at the head of his army, with the scars of battle upon him, he marched into the capital of the Nation, and with the brave men whom he had led on a hundred hard-fought fields was mustered out of the service under the very shadow of the Capitol building which he had left four years before as a member of Congress to go and fight the battles of his country.

'When the war was over and peace victoriously restored, he was again invited by his fellow-citizens to take his place in the Councils of the Nation. In a service of twenty years in both Houses of Congress he has shown himself to be no less able and distinguished as a citizen than he was renowned as a soldier. Conservative in the advocacy of measures involving the public welfare, ready and eloquent in debate, fearless—yes, I repeat again, fearless—in defence of the rights of the weak against the oppression

of the strong, he stands to-day closer to the great mass of the people of this country than almost any other man now engaging public attention."

At the conclusion of my speech there was a tremendous demonstration, and General Prentiss seconded the nomination. General Logan received sixty-three and one-half votes on the first ballot, and sixty-one votes on the second and third ballots.

Immediately after the third ballot, I received this telegram from General Logan, who was in Washington:

"Washington, D. C., *June 6, 1884.*

"To Senator Cullom, Convention Hall, Chicago, Ill.:"

"The Republicans of the States that must be relied upon to elect the President having shown a preference for Mr. Blaine, I deem it my duty not to stand in the way of the people's choice, and recommend my friends to assist in his nomination.

"John A. Logan."

When Illinois was called on the fourth ballot, I attempted to read the telegram to the convention, but a point of order was raised by Senator Burrows, which the Chair sustained. It was thoroughly well understood in the convention that I had such a telegram, and after the chair sustained the point of order I made the following statement: "The Illinois delegation withdraws the name of General John A. Logan, and gives for Blaine thirty-four votes, for Logan seven, and for Arthur three."

This announcement was punctuated with another deafening outburst, and Blaine was nominated amidst great enthusiasm. After I withdrew General

Logan's name and cast the vote for Blaine the result was a foregone conclusion.

There was immediately a strong disposition to place Logan on the ticket as our candidate for Vice-President. There was considerable doubt as to whether he would accept. Finally he sent a telegram in which he said: "The Convention must do what they think best under the circumstances."

He was then nominated for Vice-President without much opposition.

It was a superb ticket, and every one thought it would sweep the country. Blaine, in the opinion of many people, was the most popular statesman since the days of Henry Clay; Logan, the greatest volunteer officer of the Civil War.

I do not, however, believe that Blaine and Logan got along very well together in the campaign. In my opinion Logan felt that he would have been a stronger candidate for the Presidency than Blaine, as after events proved that he would. Had Logan headed the ticket, there would have been none of the scandal nor charges of corruption that were made in the campaign with Blaine at the head. There would have been no "Rum, Romanism, and Rebellion," which in the opinion of many people resulted in the defeat of Blaine and Logan.

Whatever the causes, the ticket was defeated; and then came Logan's famous fight for re-election to the Senate, continuing three and a half months, the Legislature being tied; but the fight ended by a rather clever trick on the part of Dan Shepard and S. H. Jones of Springfield, in electing by a "still hunt" a Republican in the thirty-fourth District to succeed a Democrat who died during the session, and finally on May 19, 1885, I received a telegram from Logan while in New York saying, "I have been elected."

Three or four days before General Logan's death he and Mrs. Logan were at my house to dinner, to meet some friends—General and Mrs. Henderson and Senator Allison. After dinner, we were in the smoking- room. General Logan was talking about the book he had recently written, showing a conspiracy on the part of the South, entitled "The Great Conspiracy." He had sent each of us a copy of the book, and he remarked that he ventured to say that neither of us had read a word of it; the truth was that we had not, and we admitted it.

General and Mrs. Logan went home a little early, because he was then suffering with rheumatism. They invited Mrs. Cullom and me to dinner the following Sunday evening. General Logan had grown worse, and he could not attend at the table, but rested on a couch in an adjoining room. He never recovered, and passed away some two or three days afterward. I was present at his death-bed. The last words he uttered were, "Cullom, I am terribly sick."

The death of no other General, with the possible exception of General Grant, was so sorrowfully and universally mourned by the volunteer soldiery of the Union as was the death of General Logan.

CHAPTER XIII GENERAL JOHN M. PALMER

General Palmer had a long, varied, and honorable career, beginning as an Anti-Nebraska Democrat in the State Senate of Illinois, in 1855, and ending as a Gold Democrat in the United States Senate in 1897, after being for a time a Republican.

I first met him as a member of the State Senate, in which service he showed considerable ability. His one leading characteristic, I should say, was his independence, without any regard to what party he might belong to

or what the question might be. He would not yield his own convictions to his party. If the party to which he belonged differed from him on any question, he did not hesitate to abandon it and join the opposition party; and this change he did make several times during his public career. He was one of the four Anti-Nebraska Democrats in the Legislature of 1855, who might be said to have defeated Lincoln for the Senate by supporting Trumbull, until it became apparent that if Lincoln continued as a candidate, Governor Matteson would be elected. Lincoln sacrificed himself to insure the election of Judge Trumbull, a Free-soiler. The other Anti-Nebraska Democrats, who with General Palmer, elected Trumbull, were Norman B. Judd, Burton C. Cook, G. T. Allen, and Henry S. Baker, the last two from Madison County.

For some reason or other General Palmer resigned from the Senate. He was one of the first to join the Republican party. He was a delegate to the first Republican State Convention of Illinois. I attended that convention, and recall that General Palmer made quite an impression on the assemblage, in discussing some question with General Turner, himself quite an able man, and then Speaker of the House of Representatives of the Illinois Legislature. Intellectually, General Palmer was a superior man, but he lacked stability of judgment. You were never quite sure that you could depend on him, or feel any certainty as to what course he would take on any question.

His qualifications as a lawyer were not exceptional, nevertheless I would rather have had him as my attorney to try a bad case than almost any lawyer I ever knew; his talent for manipulating a jury nearly, if not quite, offset all his legal shortcomings.

General Palmer was well known as the friend of the colored people, both individually and as a race. His sympathy for them was so thoroughly understood, that whenever a colored man had an important case, or

whenever there was a case involving the rights of the colored people—such, for instance, as the school question of Alton —General Palmer was appealed to, and he would take the case, no matter how much trouble and how little remuneration there would be in it for him.

He started out as a Democrat, but became a strong Republican, and so continued for many years; but finally he became dissatisfied with the Republican party and left it to support Tilden for President. He continued a Democrat, being elected to the United State Senate as such; but he left the regular organization of that party, and became the head of the Gold Democracy, was its candidate for President, and as such advised his friends to vote for McKinley.

He was the Republican Governor of Illinois during the great Chicago fire. He acted with the poorest kind of judgment in his controversy with General Sheridan and the National Administration, for using the Federal troops in Chicago to protect the lives and property of the people of that stricken city. He had visited Chicago, witnessed the splendid work which the troops were doing, seemed to be satisfied, returned to Springfield, and commenced a quarrel with General Sheridan and President Grant over the right of the National Administration to send troops into Chicago, and this quarrel finally became so bitter that it was one of the reasons for his leaving the Republican party.

General Palmer had a fairly good record as an officer during the Civil War; but he did far better at the head of the Department of Kentucky than he did as a fighting general. He was a native Kentuckian, understood the people, was a man of good nature and considerable tact, and handled that trying situation very much to the satisfaction of Mr. Lincoln. He might have had a brilliant record as a general had it not been for his unfortunate controversy with General Sherman at the capture of Atlanta, which resulted

in his resigning his command as the head of the Fourteenth Army Corps, and being granted leave to return to Illinois, there to await further orders. General Sherman says of this incident in his memoirs:

"I placed the Fourteenth Corps (Palmer's) under General Schofield's orders. This corps numbered at the time 17,288 infantry and 826 artillery; but General Palmer claimed to rank General Schofield in the date of commission as Major-General, and denied the latter's right to exercise command over him. General Palmer was a man of ability, but was not enterprising. His three divisions were compact and strong, well commanded, admirable on the defensive but slow to move or to act on the offensive. His corps had sustained up to the time fewer hard knocks than any other corps in the whole army, and I was anxious to give it a chance. I always expected to have a desperate fight to get possession of the Macon Road, which was then the vital objective of the campaign. Its possession by us would in my judgment result in the capture of Atlanta and give us the fruits of victory. . . . On the fourth of August I ordered General Schofield to make a bold attack on the railroad, anywhere about East Point, and ordered General Palmer to report to him for duty. He at once denied General Schofield's right to command him; but, after examining the dates of their respective commissions, and hearing their arguments, I wrote to General Palmer:

'From the statements made by yourself and General Schofield to-day, my decision is, that he ranks you as a Major-General, being of the same date of present commission, by reason of his previous superior rank as a brigadier-general. The movements of to-morrow are so important that the orders of the superior on that flank must be regarded as military orders and not in the nature of co-operation. I did hope that there would be no necessity for my making this decision, but it is better for all parties interested that no question of rank should occur in actual battle. The Sandtown Road and the

railroad if possible must be gained to-morrow if it costs half your command. I regard the loss of time this afternoon as equal to the loss of two thousand men.'

"I also communicated the substance of this to General Thomas, to whose army Palmer's corps belonged, who replied on the fifth:

'I regret to hear that Palmer has taken the course he has, and I know that he intends to offer his resignation as soon as he can properly do so. I recommend that his application be granted.'

"On the fifth I again wrote to General Palmer, arguing the point with him, as a friend, not to resign at that crisis lest his motives might be misconstrued and because it might damage his future career in civil life; but at the same time I felt it my duty to say to him that the operations on that flank during the fourth and fifth had not been satisfactory, not imputing to him any want of energy or skill, but insisting that the events did not keep pace with my desires. . . .

"I sanctioned the movement and ordered two of Palmer's divisions to follow in support of Schofield, and summoned General Palmer to meet me in person. He came on the sixth to my headquarters and insisted on his resignation being accepted, for which formal act I referred him to General Thomas. He then rode to General Thomas's camp, where he made a written resignation of his office as commander of the Fourteenth Corps and was granted the usual leave of absence to go to his home in Illinois, there to await further orders."

I quote freely from General Sherman on this incident, as I do not want to do General Palmer an injustice. No one for a moment doubted General Palmer's bravery, and I must say that it took a brave man, and I might add an extraordinarily stubborn man, to resign a magnificent command just

before one of the great movements of the war on a mere question of some other general's outranking him.

I happened to be on the same ferry-boat crossing from St. Louis with General Palmer when he was taken home ill. He had brought a colored servant with him, who accompanied him to his home in Carlinville. It created considerable excitement, and General Palmer was indicted for bringing the colored man into the State. There was not much disposition to try him, but he insisted on being placed on trial, conducted his own defence, and was acquitted.

He made an honest, conscientious Governor, but did not work in harmony with the Legislature. He vetoed more bills than any Governor before or since. His vetoes became too common to bear any influence, and a great many of the bills were passed over his veto.

I was very much opposed to his renomination. I supported Governor Oglesby, and I prepared a letter, to be signed by members of the Legislature, asking Governor Oglesby to be a candidate. Furthermore, an agent was employed to go to Decatur to remain there until he obtained a favorable reply from Oglesby, and then go to Chicago and have the letter and reply published in the Chicago papers.

The scheme worked successfully. Governor Oglesby was nominated and elected.

Oglesby, Palmer, Logan, and Yates were all ambitious to go to the Senate, and were rivals for the place at one time or another, and they all succeeded in their ambition, Palmer being the last. When Governor Yates was a candidate, in 1865, Senator Palmer thought that he should have been elected. I liked Governor Yates and believed that his record as Governor entitled him to a seat in the Senate. Governor Palmer complained of me for

taking any active part in the contest, and thought that as I was a member of Congress I should remain neutral. In those days Governor Palmer and I were not on very friendly terms, although after he came to the Senate we became quite intimate. He had a struggle in securing his election as Senator. It was a long contest, but he was finally successful.

General Palmer was very popular with his colleagues in the Senate. He was one of the best *raconteurs* in the Senate, and he delighted to sit in the smoking-room, or in his committee room, entertaining those about him with droll stories. During his term he made some very able speeches, and was always sound on the money question. He was consistently in harmony with President Cleveland, and consequently he controlled the patronage in the State. He was a man of great good heart, full of generosity and good humor; and altogether it would have been impossible to have a more agreeable colleague.

We had been neighbors in Springfield, and when General Palmer was elected to the Senate, he felt quite free to write to me. I retain the letter and quote it here:

"Springfield, *March 14, 1891.*

"Hon. S. M. Cullom,

"Washington, D. C.

"My dear Sir:—

"I am just in receipt of your kind favor of the eleventh inst., and thank you for its friendly and neighborly expressions. More than once since my election, Mrs. Palmer has expressed the hope that when she meets Mrs. Cullom at Washington, or here, they may continue to enjoy the friendly relations that have so long existed between them, to which I add the

expression of my own wish that in the future, as in the past, we may be to each other good neighbors and good friends.

"I do not know what the usage is in such cases, but I suppose I might forward my credentials at an early date to the Secretary of the Senate, who is, I believe, my old army friend, Gen. Anson G. McCook. If such is the proper course I would be glad to do so through you, if agreeable to you. I will depend upon you also for such information as your experience will enable you to furnish me. I will be glad to know about what time you will probably leave Washington.

"I am, very respectfully,
"John M. Palmer."

While General Sherman and General Palmer were not particularly friendly, General Palmer was always ready to forgive and forget and do the agreeable thing.

On the occasion of a celebration in Springfield, where there was a very large crowd, General Sherman was present, and, with General Oglesby and General Palmer, occupied a seat on the platform. Looking over the crowd, General Palmer recognized General McClernand in the audience. McClernand and Sherman were not friends, McClernand being bitterly inimical to Sherman. General Palmer, thinking only of doing an agreeable act, at once pushed his way through the crowd to where General McClernand was seated and invited him to come onto the platform. It was only after a great deal of urging that he consented to go, but he finally said, "I will go, *pro forma*." He did go "*pro forma*," and paid his respects to General Sherman, but remained only a short time.

General Palmer retired from the Senate at the end of his term, the Legislature of Illinois being Republican.

I recollect that I went home from Washington to Springfield, and on arriving there was informed that General Palmer had just died. I immediately called at the house. He had only just passed away, and was still lying on his death-bed. I attended the funeral at his old home in Carlinville, and I do not know that I was ever more impressed by such a ceremony. He was buried with all the pomp attending a military funeral.

CHAPTER XIV GOVERNOR RICHARD J. OGLESBY

I knew the late Governor Oglesby intimately for very many years. As a young man, he served as a lieutenant in the gallant Colonel E. D. Baker's regiment in the Mexican War, was at the battle of Cerro Gordo, and fought the way thence to the City of Mexico. He remained with the army until he saw the Stars and Stripes waving over the hall of the Montezumas. Returning to Illinois, he took up again the practice of law; but with the gold fever of 1849 he took the pioneers' trail to California, where, in a short time, he was financially successful, then returned home, and later went on an extended tour through the Holy Land, where he remained nearly two years.

On his return home, in 1860, he was elected to the State Senate. I recall the night the returns came in. He had a fisticuff encounter with "Cerro Gordo" Williams, in which he came out victorious, having knocked Williams into the gutter. By many of the onlookers this was regarded as the first fight of the Rebellion.

With his military experience in the Mexican War, it was only natural that he should be one of the first to enlist for service in the Civil War. He resigned from the Senate, raised a regiment, was appointed its Colonel, and participated in a number of important engagements under General Grant, acquitting himself with great honor at Donelson, and was subsequently appointed a Brigadier-General. He was severely wounded at Corinth, and

his active service in the Civil War was over. Although he was elevated to the rank of Major-General, he was assigned to duty at Washington, where he remained until 1864, and saw no more service on the field of battle.

He enjoyed the distinction of being elected Governor of Illinois three times, first in 1864, again in 1872, resigning the following year, after having been elected to the United States Senate; and after he had served one term in the Senate and retired to private life, he was again elected Governor of Illinois in 1884.

Governor Oglesby was a remarkable man in many respects. Judged by the standards of Lincoln and Grant, he was not a great man. In some respects he was a man of far more than ordinary ability. He was a wonderfully eloquent speaker, and I have heard him on occasion move audiences to a greater extent than almost any orator, aside from the late Robert G. Ingersoll.

I have already referred, in these reminiscences, to the speech he delivered at the Philadelphia Convention of 1872. He produced a greater impression on that assemblage than any orator who spoke. On rare occasions he would utter some of the most beautiful sentiments. For instance, his speech on "Corn" at Chicago was a masterpiece in its way. But generally speaking, with all his eloquence, he seldom delivered a speech that would read well in print; hence it was that his speeches were hardly ever reported. His earnestness, his appearance, his gestures, his personality, all carried the audience with him, as much as, if not more, than the actual words he used, and hence it was that when a speech appeared in print, one was very apt to be disappointed.

His record in the Civil War was honorable, but not exceptional. He was not the dashing, brilliant soldier that General Logan was, and I may remark here in passing that after the war was over there was considerable jealousy

between General Logan and General Oglesby. They were rivals in politics. On one occasion both Governor Oglesby and General Logan made each a splendid address, and each was cheered to the echo by the audience, but Governor Oglesby sat silent and glowering when the audience applauded General Logan, and General Logan occupied the same attitude when the audience cheered Governor Oglesby. I was present, and was glad to cheer them both.

Under the administration of General Oglesby, as Governor, the affairs of the State were administered in an honest, businesslike manner. There was no scandal or thought of scandal, so far as the Executive was concerned, during all the years that he was Governor, although there was considerable corruption in one or two of the Legislatures, and some very bad measures were passed over his veto.

Having been a Major-General in the Civil War, and considering his excellent record as Governor, his popularity, his eloquence, it seemed certain that Governor Oglesby would take his place as one of the foremost United States Senators, when he entered the Senate in 1873; but strange to say, his service in that body added nothing to the reputation he had made as a soldier and as Governor of Illinois; indeed, I am not sure but that it detracted from rather than added to his reputation. Perhaps too much was expected of him. The environment did not suit him. His style of oratory was neither appreciated nor appropriate to a calm, deliberative body such as the United States Senate. He did not have the faculty of disposing of business. As Chairman of the Committee on Pensions, he was so conscientious that he wanted to examine every little detail of the hundreds of cases before his committee, and would not trust even the routine to his subordinates. The result was the business of the committee was far behind, much to the dissatisfaction of Senators.

I do not believe that Governor Oglesby ever did feel at home in the Senate; but nevertheless he was much chagrined at his defeat, and retired reluctantly.

But he was soon again elected Governor of Illinois, a place that suited him much better than the Senate of the United States.

His honesty, his patriotism, his earnest eloquence, the uniqueness of his character, made him beloved by the people of his State; and wherever he went, to the day of his death, Uncle Dick Oglesby, as he was called, was enthusiastically and affectionately received.

He was a true Republican from the very beginning of the party, although toward the end of his life I do not believe that he was quite satisfied with the expansion policy of the party.

The last campaign in which he took an active part was that of 1896. Owing to his advanced years and failing health, and perhaps being somewhat dissatisfied with our candidate for Governor, it took considerable urging to induce him to enter that campaign actively; but when it was arranged that all the living ex-Governors of Illinois —Oglesby, Beveridge, Fifer, Hamilton, and myself—should tour the State on a special train, he consented to join, and christened the expedition "The Flying Squadron." He did his full part in speaking, and seemed to enjoy keenly the enthusiasm with which he was everywhere received. He was particularly bitter in his denunciation of Mr. Bryan—even to the extent of using profanity (to which he was much addicted), greatly to the delight of the thousands of people whom he addressed.

Governor Oglesby was one of the most delightfully entertaining conversationalists whom one would wish to meet. He will go down in the

history of Illinois, as one of the most popular men among the people of our State.

Late in life Governor Oglesby took up a church affiliation. It always seemed strange to me, in his later life, that a man of his undoubted bravery should have such a perfect horror of death, which was an obsession with him. To his intimate friends he constantly talked of it. It was not the physical pain of dying; with a man of his pronounced religious convictions it could not have been the uncertainty of the hereafter. What was the basis of the fear I cannot imagine—but certain it is, I do not remember ever knowing a man who seemed to have such a fear of death.

At an advanced age, he passed away peacefully and painlessly at his beautiful home at Elkhart, Illinois, mourned by the people of the whole State, whom he had served so long and faithfully and well.

CHAPTER XV SENATORIAL CAREER 1883 to 1911

After I was re-elected Governor of Illinois, in 1880, my friends in the State urged me to become a candidate for the United States Senate to succeed the late Hon. David Davis, whose term expired March 3, 1883. I finally consented. There were several candidates against me, Governor Richard Oglesby and General Thomas J. Henderson being the two most prominent. It was not much of a contest, and I had no serious struggle to secure the caucus nomination. The objection was then raised in the Legislature itself that I was not eligible under the Constitution of our State for election to the United States Senate while I was serving as Governor of Illinois. The point looked somewhat serious to me, and I consulted with my friend, the Hon. Wm. J. Calhoun, then a member of the Legislature, later Minister to China, for whose ability I had the most profound respect. I asked him to give attention to the subject and, if he agreed with me that I was eligible, to

make the fight on the floor of the House. He looked into it and came to the conclusion there was no doubt as to my eligibility. He made a speech in the Legislature, which was regarded then as one of the ablest efforts ever delivered on the floor of the House, and he carried the Legislature with him. When the time came, I received the vote of every Republican member of both Houses, excepting one, the Hon. Geo. E. Adams. He was thoroughly conscientious in voting against me, and did so from no ulterior motive, as he honestly believed that I was not eligible. We became very good friends afterwards, and I never harbored any ill feeling against him on account of that vote.

I appreciated the high distinction conferred upon me by the people of the State, through the Legislature, in electing me to the United States Senate, but I confess that I felt considerable regret on leaving the Governorship, as during my six years I had enjoyed the work and had endeavored to the best of my ability to give to the people of my State a businesslike administration.

I retired from the office of Governor on February 5, 1883, and remained in Springfield until sworn in as a member of the Senate, December 4, 1883. General Arthur was President at that time, having succeeded to the office after the assassination of General Garfield.

I liked General Arthur very much. I had met him once or twice before. I went with my staff to attend the Yorktown celebration, and I may remark here that it was the first and only time during my service of six years as Governor on which my whole military staff accompanied me. We stopped in Washington to pay our respects to the President. It was soon after the assassination of General Garfield, and Arthur had not yet moved into the White House. He was living in the old Butler place just south of the Capitol, and I called on him there and presented the members of my staff to

him. The President was exceedingly polite, as he always was, and was quite interested, having been a staff officer himself, by appointment of Governor Morgan of New York. We were all very much impressed with the dignity of the occasion and the kindly attention the President showed us.

General Arthur had taken considerable interest in New York politics and belonged to the Conkling faction. He came into the office of President under the most trying circumstances. The party was almost torn asunder by factional troubles in New York and elsewhere. Blaine, the bitter enemy of Conkling, had been made the Secretary of State; Garfield had made some appointments very obnoxious to Conkling—among them the Collector of the Port of New York—and, generally, conditions were very unsatisfactory. Arthur entered the office bent on restoring harmonious conditions in the party, as far as he could. He did not allow himself to be controlled by any faction, but seemed animated by one desire, and that was to give a good administration and unite the party.

He was a man of great sense of propriety and dignity, believing more thoroughly in the observance of the etiquette which should surround a President than any other occupant of the White House whom I have known. He was very popular with those who came into contact with him, and especially was he popular with the members of the House and Senate. I have always thought that he should have been accorded the honor of a nomination for President in 1884; as a matter of fact most of the Republican Senators agreed with me, and many of us went to the National Convention at Chicago, determined to nominate him; but we soon found there was no chance, and that the nomination would go to Blaine.

President Arthur was very kind to me in the way of patronage. He not only recognized my endorsement for Federal offices in my State, but gave me a number of appointments outside. One of the first of these was the

appointment of Judge Zane as Territorial Judge of Utah. President Arthur showed his confidence in me by appointing Judge Zane, without any endorsement, excepting a statement of his qualifications, written by me on a scrap of paper in the Executive Office. The Senate Committee on the Judiciary called on the President for the endorsements of Judge Zane, and Senator Edmunds was quite disgusted when the President could send him only this little slip of paper written by me, which was all the President had when he made the appointment. Senator Edmunds hesitated to recommend his confirmation. There was no question about Judge Zane's qualifications. He had been a circuit judge in our State for many years. I saw Senator Teller, whom I knew, and who knew something of Judge Zane, and asked him to help us, as he could do, being then Secretary of the Interior. On one occasion I spoke to Teller about Judge Zane, and purposely spoke so loud that Senator Edmunds could hear me. I said, among other things, there had not been a man nominated for Territorial Judge in the country who was better qualified for the position. Judge Zane's nomination was soon reported from the committee and confirmed. He made a great record on the Bench and did much to break up the practice of polygamy. He is still living, a resident of Salt Lake City, Utah.

I entered the Senate at a very uninteresting period in our history. The excitement and bitterness caused by the Civil War and Reconstruction had subsided. It was what I would term a period of industrial development, and there were no great measures before Congress. The men who then composed the membership of the Senate were honest and patriotic, trying to do their duty as best they could, but there was no great commanding figure. The days of Webster, Clay, and Calhoun had passed; the great men of the Civil War period were gone. Stevens, Sumner, Chase of the Reconstruction era, had all passed away.

Among the leaders at the beginning of the Forty-eighth Congress were Senators Aldrich and Anthony, of Rhode Island; Edmunds and Morrill, of Vermont; Sherman and Pendleton, of Ohio; Sewell, of New Jersey; Don Cameron, of Pennsylvania; Platt and Hawley, of Connecticut; Harrison, of Indiana; Dawes and Hoar, of Massachusetts; Allison, of Iowa; Ingalls, of Kansas; Hale and Frye, of Maine; Sawyer, of Wisconsin; Van Wyck and Manderson, of Nebraska; all on the Republican side. There were a number of quite prominent Democrats—Bayard, of Delaware; Voorhees, of Indiana; Morgan, of Alabama; Ransom and Vance, of North Carolina; Butler and Hampton, of South Carolina; Beck, of Kentucky; Lamar and George, of Mississippi; and Cockrell and Vest, of Missouri.

The Senate was controlled by the Republicans, there being forty Republican and thirty-six Democratic Senators; and Senator George F. Edmunds, of Vermont, was chosen President *pro tempore*. In the House the Democrats had the majority, and John G. Carlisle was chosen Speaker.

Senator Edmunds is still living, and he has been for many years regarded as one of the foremost lawyers of the American bar. I know that in the Senate when I entered it, he was ranked as its leading lawyer. He was chairman of the Committee on the Judiciary of the Senate and, with Senator Thurman, of Ohio, dominated that committee. I became very intimately acquainted with him. He was dignified in his conversation and deportment, and I never knew him to say a vicious thing in debate.

I believe I had considerable influence with Senator Edmunds. He always seemed to have a prejudice against appropriations for the Rock Island (Illinois) Arsenal. He had never visited Rock Island, but he seemed to think that the money spent there was more or less wasted, and he was disposed to oppose appropriations for its maintenance. One day we were considering an appropriation bill carrying several items in favor of Rock Island, and I

anticipated Senator Edmunds' objections. Sitting beside him, I asked him not to oppose these items. I told him that I did not think he was doing right by such a course. He asked me where they were in the bill and I showed them to him without saying a word. Just before we reached them I observed him rising from his seat and leaving the chamber. He remained away until the items were passed, then he returned, and the subject was never mentioned between us afterwards.

Senator Edmunds resigned before his last term expired. There were two reasons for his resignation, the principal one being the illness of his only daughter; but in addition, he had come to feel that the Senate was becoming less and less desirable each year, and began to lose interest in it. He did not like the rough-and-tumble methods of debate of a number of Western Senators who were coming to take a more prominent place in the Senate. On one occasion Senator Plumb, of Kansas, attacked Senator Edmunds most violently, and without any particular reason.

During his service in the Senate, Senator Edmunds seemed to be frequently arguing cases before the Supreme Court of the United States. His ability as a lawyer made him in constant demand in important litigation before that court. Personally, I do not approve of Senators of the United States engaging in the active practice of the law or any other business, but his practice before the Supreme Court did not cause him to neglect his Senatorial duties.

Justice Miller, one of the ablest members of the court, was talking with me one day about Senator Edmunds, and he asked me why I did not come into the Supreme Court to practise, remarking that Edmunds was there a good deal. I replied that I did not know enough law, to begin with; and in addition it did not seem to me proper for a Senator of the United States to engage in that kind of business. Justice Miller replied that Senators did do

so, and that there seemed to be no complaint about it, and he urged me to come along, saying that he would take care of me. But needless for me to say, I never appeared in any case before the Supreme Court of the United States during my service as Senator.

Senator Edmunds' colleague, Justin S. Morrill, was one of the most lovable characters I ever met. I served with him in the House. Later he was a very prominent member of the Senate, when I entered it, and was Chairman of the Committee on Finance. He was a wonderfully capable man in legislation. He had extraordinary power in originating measures and carrying them through. He was not a lawyer, but was a man of exceptional common sense. His judgment was good on any proposition. I do not believe he had an enemy in the Senate. Every one felt kindly toward him, and for this reason it was very easy for him to secure the passage of any bill he was interested in.

While Senator Morrill was chairman of the Committee on Finance, owing to his advanced age and the feeble condition of his health the real burden of the committee for years before his death fell on Nelson W. Aldrich, of Rhode Island. He was prominent as far back as the Forty-eighth Congress, and was a dominant unit even then. His recent retirement is newspaper history and need not be aired here.

Senator Aldrich has had a potent influence in framing all tariff and financial legislation almost from the time he entered the Senate. Personally, I have great admiration for him and for his great ability and capacity to frame legislation, and it is a matter of sincere regret with me that he has determined to retire to private life. His absence is seriously felt, especially in the Finance Committee.

The Hon. John Sherman, of Ohio, was one of the most valuable statesmen of his day and one of the ablest men. He was exceedingly

industrious, and well posted on all financial questions. Toward the close of his Senatorial term, he failed rapidly, but he was just as clear on any financial question as he was at any time in his career. He was Secretary of the Treasury when in his prime, and I believe his record in the office stands second only to Hamilton's. He was of the Hamilton school of financiers, and his judgment was always reliable and trustworthy. He was a very serious man and could never see through a joke. He was one of the very best men in Ohio, and would have made a splendid President. For years he was quite ambitious to be President, and the business interests of the country seemed to be for him. His name was before the National Convention of the Republican party many times, but circumstances always intervened to prevent his nomination when it was almost within his grasp.

I have always thought that one reason was that his own State had so many ambitious men in it who sought the honor themselves, that they were never sincerely in good faith for Sherman. At least twice he went to National Conventions, apparently with his own State behind him, but he was unfortunate in the selection of his managers, and, really, when the time came to support him they seemed only too ready to sacrifice him in their own interests.

I have always regretted that he closed his career by accepting the office of Secretary of State under President McKinley. It was unfortunate for him that it was at a most trying and difficult time that he entered that department. The Spanish-American War was coming on, and there was necessity for exercising the most careful and skillful diplomacy. Senator Sherman's training and experience lay along other lines. He was not in any sense a diplomat, and his age unfitted him for the place. He retired from office very soon, and shortly thereafter passed away. His brief service as Secretary of State will be forgotten, and he will be remembered as the great Secretary of the Treasury, and one of the most celebrated of Ohio Senators.

Senator George F. Hoar, of Massachusetts, was quite prominent at the beginning of the Forty-eighth Congress. He was jealous of New England's interests, and was always prejudiced in its favor, and in favor of New England men and men with New England ancestry, or affiliations. He opposed the Interstate Commerce Act because he thought it would injuriously affect his locality, although he knew very well it would be of inestimable benefit to the country as a whole. Senator Hoar was a scholarly man. Indeed, I would say he was the most cultivated man in the Senate. He was highly educated, had travelled extensively, was a student all his life, and in debate was very fond of Latin or Greek quotations, and especially so when he wanted to make a point perfectly clear to the Senate. He opposed imperialism and the acquisition of foreign territory. He opposed the ratification of the treaty of peace with Spain. When the Philippine question was up in the Senate, I made a speech in which I compared Senator Hoar with his colleague, Senator Lodge, said that Senator Lodge had no such fear as did Senator Hoar on account of the acquirement of non-contiguous territory, and made the remark that Senator Hoar was far behind the times. He was not present when I made the speech, but afterwards read it in the *Record*. He came down to my seat greatly out of humor one day and stated that if three-fourths of the people of his State were not in harmony with his position he would resign.

He was one of the most kindly of men, but during this period he was so deadly in earnest in opposition to the so-called imperialism that he became very ill-natured with his Republican colleagues who differed from him. I do not know but the passing of time has demonstrated that Senator Hoar was right in his opposition to acquirement of the Philippines; but at the time it seemed that the burden was thrust upon us and we could not shirk it.

Senator Hoar was disposed to be against the recognition of the Republic of Panama, and it has been intimated that he was of the opinion that the

Roosevelt Administration had something to do with the bloodless revolution that resulted in the uniting with the United States of that part of Colombia which now forms the Canal Zone.

President Roosevelt entertained a very high regard for Senator Hoar, and he wanted to disabuse his mind of that impression. He asked him to call at his office one morning. I was waiting to see the President and when he came in he told me that he had an engagement with Senator Hoar, and asked me if I would wait until he had seen the Senator first. I promptly answered that he should see the Senator first at any rate, as he was an older man than I, and was older in the service. Senator Hoar and the President entered the room together. Just as they went in, the President turned to me. "You might as well come in at the same time," said he. I accompanied them. And this is what took place:

The President wanted the Senator to read a message which he had already prepared, in reference to Colombia's action in rejecting the treaty and the canal in general; which message showed very clearly that the President had never contemplated the secession of Panama, and was considering different methods in order to obtain the right of way across the Isthmus from Colombia, fully expecting to deal only with the Colombian Government on the subject. The President was sitting on the table, first at one side of Senator Hoar, and then on the other, talking in his usual vigorous fashion, trying to get the Senator's attention to the message. Senator Hoar seemed adverse to reading it, but finally sat down, and without seeming to pay any particular attention to what he was perusing, he remained for a minute or two, then arose and said: "I hope I may never live to see the day when the interests of my country are placed above its honor." He at once retired from the room without uttering another word, proceeding to the Capitol.

Later in the morning he came to me with a typewritten paper containing the conversation between the President and himself, and asked me to certify to its correctness. I took the paper and read it over, and as it seemed to be correct, as I remembered the conversation, I wrote my name on the bottom of it. I have never seen or heard of the paper since.

Senator Hoar was very much interested in changing the date of the inauguration of the President of the United States. March, in Washington, is one of the very worst months of the year, and it frequently happens that the weather is so cold and stormy as to make any demonstration almost impossible. Inaugurations have cost the lives of very many men. I was looking into the subject myself, and I took occasion to write Senator Hoar a letter, asking his views. He replied to me very courteously and promptly. I was so pleased with the letter that I retained it, and give it here.

"Worcester, Mass., *August 26, 1901.*

"My dear Senator:—

"I do not think the proposed change of time of inauguration can be made without change in the Constitution. I prepared an article for so changing the Constitution. It has passed the Senate twice certainly, and I think three times. It was reported once or twice from the Committee on Privileges and Elections, and once from the Committee on the Judiciary. It received general favor in the Senate, and as I now remember there was no vote against it at any time. The only serious question was whether the four years should terminate on a certain Wednesday in April or should terminate as now on a fixed day of the month. The former is liable to the objection that one Presidential term should be in some cases slightly longer than another. The other is liable to the objection that if the thirtieth of April were Sunday or Saturday or Monday, nearly all persons from a distance who come to the inauguration would have to be away from home over Sunday.

"The matter would, I think, have passed the House, if it could have been reached for action. But it had the earnest opposition of Speaker Reed. It was, as you know, very hard to get him to approve anything that was a change.

"I have prepared an amendment to be introduced at the beginning of the next session, and have got some very carefully prepared tables from the Coast Survey, to show the exact length of an administration under the different plans. The advantage of the change seems to me very clear indeed. In the first place, you prolong the second session of Congress until the last of April; you add six or seven weeks, which are very much needed, to that session. And you can further increase that session a little by special statute, which should have Congress meet immediately after the November election, a little earlier than now. In that case, you can probably without disadvantage shorten the first session of Congress so as to get away by the middle of May or the first of June and get rid of the very disagreeable Washington heat.

"I wish you would throw your great influence, so much increased by the renewed expression of the confidence of your State, against what seems to me the most dangerous single proposition now pending before the people, a plan to elect Senators of the United States by popular vote.

"I am, with high regard, faithfully yours,
"Geo. F. Hoar.

"Hon. S. M. Cullom,
"Chicago, Ills."

Senator Dawes, of Massachusetts, Senator Hoar's colleague, was not the cultivated man that Senator Hoar was, and neither would I say he was a man of strong and independent character. He was very popular in the

Senate, probably far more popular with Senators than his colleague, and it was much easier for him to pass bills in which he was interested. He was influential as a legislator and a man of great probity of character.

For some reason or other—why, I never knew—he was one of the very few Eastern Senators of my time who gave special attention to Indian affairs. He was chairman of the Committee on Indian Affairs for years, and was the acknowledged authority on that subject in the Senate. When he retired he was placed at the head of the so-called Dawes Commission, having in charge the interests of the tribes of Indians in Oklahoma and the Indian territory. He was an honest man, and having inherited no fortune, he consequently retired from the Senate a poor man. The appointment was very agreeable to him on that account, but it was given to him more especially because he knew more about Indian matters than any other man.

As I have been writing these recollections of the men with whom I have been associated in public life for the last half-century, I have had occasion to mention a number of times, Senator Orville H. Platt, of Connecticut, who was two years older than I, and who took his seat in the Senate in 1879, serving there until his death in 1905.

We became very friendly almost immediately after I entered the Senate. One bond of friendship between us from the beginning was, we each had a senior colleague a celebrated General of Civil War fame—Hawley, of Connecticut and Logan, of Illinois. Senator Platt and I necessarily were compelled to take what might be termed a back seat, our colleagues being almost always in the lime-light. As a member of the select committee on Interstate Commerce, Senator Platt rendered much valuable assistance in the investigation and in the passage of the Act of 1887, although he was almost induced finally to oppose it on account of the anti-pooling and the long- and-short-haul sections.

He was a modest man, and it was some years before Senators that were not intimate with him really appreciated his worth. Had he not yielded to the late Senator Hoar, he would have been made chairman of the Committee on the Judiciary instead of Senator Hoar, a position for which there was no Senator more thoroughly qualified than Senator Platt. It seems strange that he never did succeed to an important chairmanship until he was made chairman of the Committee on Cuban Relations during the war with Spain, and he really made that an important committee. Not only in name but in fact was he the author of those very wise pieces of legislation known as the Platt Amendments. I was a member of the Committee on Cuban Relations, and know whereof I speak in saying that it was Senator Platt who drafted these so-called amendments and secured their passage in the Senate. They were finally embodied in the Cuban Constitution, and also in the treaty between Cuba and the United States.

After the late Senator Dawes retired, Senator Platt was an authority on all matters pertaining to Indian affairs.

As the years passed by he became more and more influential in the Senate. Every Senator on both sides of the chamber had confidence in him and in his judgment. As an orator he was not to be compared with Senator Spooner, but he did deliver some very able speeches, especially during the debates preceding the Spanish-American War.

I have often said that Senator Platt was capable in more ways than any other man in the Senate of doing what the exigencies of the day from time to time put upon him. He was always at his post of duty, always watchful in caring for the interests of the country, always just and fair to all alike, and ever careful and conservative in determining what his duty should be in the disposition of any public question; and I regarded his judgment as a little more exactly right than that of any other Senator.

General Joseph R. Hawley, of Connecticut, was quite a figure in the Senate when I entered it, and was regarded as one of the leaders, especially on military matters. He was a man of fine ability and address, brave as a lion and enjoyed an enviable Civil War record. He was president of the Centennial at Philadelphia and permanent President of the Republican Convention of 1868, which nominated General Grant. He was a very ambitious man, and wanted to be President; several times the delegation from his State presented his name to national conventions. He had no mean idea of his own merits; and his colleague, Senator Platt, told me once in a jocular way that if the Queen of England should announce her purpose of giving a banquet to one of the most distinguished citizens from each nation, and General Hawley should be invited as the most distinguished citizen of the United States, he would take it as a matter of course.

Senator F. M. Cockrell and Senator George Vest represented Missouri in the United States Senate for very many years.

Senator Cockrell was one of the most faithful and useful legislators I ever knew. I served with him for years on the Committee on Appropriations. That committee never had a better member. He kept close track of the business of the Senate, and when the calendar was called, no measure was passed without his close scrutiny, especially any measure carrying an appropriation. He was a Democrat all his life, but never allowed partisanship to enter into his action on legislation. It was said of him that he used to make one fiery Democratic speech at each Congress, and then not think of partisanship again. He was not given much to talking about violating the Constitution, because he knew he had been in the Confederate Army himself and that he had violated it.

One day Senator George, who was, by the way, a very able Senator from the South, was making a long constitutional argument against a bill,

extending over two or three days. I happened to be conversing with Cockrell at the time, and he remarked: "Just listen to George talk. He don't seem to realize that for four years he was violating the Constitution himself." Senator Cockrell retired from the Senate in 1905, his State for the first time in its history having elected a Republican Legislature.

President Roosevelt had the very highest regard for him, and as soon as it was known he could not be re-elected, he wired Senator Cockrell, tendering him a place on either the Interstate Commerce Commission or the Panama Canal Commission. He accepted the former, serving thereon for one term. He gave the duties of this position the same attention and study that he did when a member of the Senate.

Senator Vest was an entirely different style of man. He did not pay the close attention to the routine work of the Senate that Senator Cockrell did, but he was honest and faithful to his duty, and an able man as well. He was a great orator, and I have heard him make on occasion as beautiful speeches as were ever delivered in the Senate. At the time of his death he was the last surviving member of the Confederate Senate.

He told me a rather interesting story once about how he came to quit drinking whiskey. He said he came home to Missouri after the war, found little to do, and being almost without means, took to drinking whiskey pretty hard. He awoke one night and thought he saw a cat sitting on the end of his bed. He reached down, took up his boot-jack and threw it at the cat, as he supposed. Instead, a pitcher was smashed to atoms. Needless to add there was no cat at all, which he realized, and he never took another drink of liquor.

Senator Vest was not a very old man, but he was in poor health and feeble for his years. One day he looked particularly forlorn, sitting at his desk and leaning his head on his hands. I noticed his dejected attitude, and said to

Senator Morrill, who was then eighty-five or eighty-six years old: "Go over and cheer up Vest." Morrill did so in these words: "Vest, what is the matter? Cheer up! Why, you are nothing but a boy."

Senator Vest retired from the Senate, and shortly thereafter died at his home in Washington.

Allen G. Thurman, of Ohio, was another very prominent Democrat in this Congress. He was one of the leading lawyers of the Senate, ranking, probably, with Edmunds in this respect. He was chairman of the Committee on the Judiciary for a brief period, was later nominated for Vice-President of the United States, but was defeated with the rest of the Democratic ticket.

Senator Eugene Hale, who retired from the Senate on his own motion, March 4, 1911, was elected in 1881, and was always regarded as a very strong man. It was unfortunate for the Senate and country that Senator Hale determined to leave this body. He was chairman of the Committee on Appropriations, and chairman of the Republican caucus, in which latter capacity I succeeded him in April, 1911. He was for years chairman of the Committee on Naval Affairs; and there is no man in the country, in my judgment, who knows more about the work and condition of the Navy and the Navy Department than does Senator Hale. Hence it has been for years past, that when legislation affecting the Navy came up to be acted upon by Congress, generally we have looked to Senator Hale to direct and influence our legislative action.

He is a very independent character, and was just the man for chairman of the great Committee on Appropriations. Senator Hale was more than ordinarily independent, even to the extent of voting against his party at times, and was very little influenced by what a President or an Administration might desire. I regretted exceedingly to see him leave the Senate, where for many years he served his country so well.

Charles F. Manderson, of Nebraska, was twice elected to the United States Senate, and was an influential member. I have regarded him as one of the most amiable men with whom I have served. He was a splendid soldier, a splendid legislator, and a splendid man generally. He was the presiding officer of the Senate, and a good one. I have always thought that he ought to have been the Republican nominee for Vice-President of the United States; but for some reason or other he never seemed to seek the place, and finally became one of the attorneys for the Chicago, Burlington, and Quincy Railroad, since when he seems to have lost interest in political affairs. He visits old friends in Washington once each year, and it is always a great pleasure for me to greet Mr. and Mrs. Manderson.

Another Senator who first served many years in the House, was Philetus Sawyer, of Wisconsin. It was in the Senate that I served with him, and came to have for him a very great respect. He was not very well educated, not a lawyer nor an orator, and excepting in a conversational way, not regarded as a talker; yet he was an uncommonly effective man in business as well as in politics, and was once or twice invited to become chairman of the National Republican Committee.

I cannot resist the temptation to tell a little story in connection with Senator Sawyer. One day he was undertaking to pass an unimportant bill in the Senate concerning some railroad in his own State, and as was the custom when he had anything to say or do in the Senate, he took his place in the centre aisle close to the clerk's desk, so that he could be heard. Senator Van Wyck offered an amendment to the bill, and was talking in favor of the amendment, when Sawyer became a little alarmed lest the bill was going to be beaten. He turned his back to the clerk, and said in a tone of voice that could be distinctly heard:

"If you will stop your damned yawp I will accept your amendment."

Van Wyck merely said, "All right." The amendment was adopted, and the bill passed.

As is quite the custom in the disposal of new members, I was appointed a member of the Committee on Pensions—really the only important committee appointment I received during my first service in the Senate. I naturally felt very liberal toward the old soldiers, and it seemed that every case that was referred to me was a worthy one, and that a liberal pension should be allowed. I became a little uneasy lest I might be too liberal, and I went to Sawyer, knowing that he was a man of large wealth, seeking his advice about it.

He said, and I have been guided by that advice largely ever since: "You need not worry; you cannot very well make a mistake in allowing liberal pensions to the soldier boys. The money will get into circulation and come back into the treasury very soon; so go ahead and do what you think is right in the premises; and there will be no trouble."

Senator Sawyer retired from the Senate voluntarily at a ripe old age. He was largely instrumental in selecting as his successor, one of the greatest lawyers and ablest statesmen who has ever served in that body, of whom I shall speak later, my distinguished friend, the Hon. John C. Spooner.

In the Forty-eighth Congress the Democrats had a majority in the House and the Republicans a majority in the Senate, and as is always the case when such a situation prevails, little or no important legislation was enacted.

I entered the Senate having three objects in view: First, the control of Interstate Commerce; second, the stamping out of polygamy; third, the construction of the Hennepin Canal.

I was not quite as modest as I have since advised younger Senators to be, because I see by the *Record* that on January 11, 1884, a little more than a month after I had entered the Senate, I made an extended address on the subject of Territorial Government for Utah, particularly referring to polygamy. I was especially bitter in what I said against the Mormons and the Mormon Church. I used such expressions as these:

"There is scarcely a page of their history that is not marred by a recital of some foul deed. The whole history of the Mormon Church abounds in illustrations of the selfishness, deceit, and lawlessness of its leaders and members. Founded in fraud, built up by the most audacious deception, this organization has been so notoriously corrupt and immoral in its practices, teachings, and tendencies as to justify the Government in assuming absolute control of the Territory and in giving the Church or its followers no voice in the administration of public affairs. The progress of Mormonism to its present strength and power has been attended by a continual series of murders, robberies, and outrages of every description; but there is one dark spot in its disgraceful record that can never be effaced, one crime so heinous that the blood of the betrayed victims still calls aloud for vengeance."

I introduced a bill on the subject, in which I provided for the appointment of a legislative council by the President, this council to have the same legislative power as the legislative assembly of a Territory. I distrusted the local Legislature because it was dominated by men high up in the Mormon Church.

During this Congress I pushed the bill as best I could, but was never able to secure its passage. Laws were passed on the subject, and the Mormon question is practically now a thing of the past.

Since that time conditions in Utah and in the Mormon Church have changed greatly. The Prophets received a new revelation declaring polygamy unlawful, and I believe that the practice has ceased. As a matter of fact, Judge Zane, the Territorial Judge of Utah, did more to stamp it out than any other one man. He sentenced those guilty of the practice to terms in the penitentiary, and announced that he would continue to do so until they reformed. I do not think that the Church or the Mormon people deserve to-day the severe criticism they merited twenty-five years ago.

CHAPTER XVI CLEVELAND'S FIRST TERM 1884 to 1887

The Republican Convention of 1884 was held at Chicago. The names of Joseph R. Hawley, John A. Logan, Chester A. Arthur, John Sherman, George F. Edmunds, and James G. Blaine were presented as candidates for the Republican nomination for President of the United States. Blaine and Logan finally were the nominees, neither of them having much of a contest to secure the nomination for President and Vice- President respectively.

The Democratic Convention met later, and nominated Grover Cleveland and Thomas A. Hendricks.

The Presidential campaign of 1884 was unique in the extreme. It was the most bitter personal contest in our history. The private lives of both candidates, Cleveland and Blaine, were searched, and the most scandalous stories circulated, most of which were false.

The tide was in favor of Blaine only a short time before the election. I do not intend to go into the cause of his defeat. It was accomplished by a margin so narrow that any one of a dozen reasons may be given as the particular one. The Burchard incident, the dinner given by the plutocrats at Delmonico's, certainly changed several hundred votes—important when we

remember that a change of less than six hundred votes in the State of New York would have elected him. Conkling, too, was accused of playing him false, and it was alleged that there were hundreds of fraudulent votes cast in the city of New York and on Long Island. Colonel A. K. McClure, in "Our Presidents and How We Make Them," says, with reference to this contest:

"Blaine would have been matchless in the skilful management of a Presidential campaign for another, but he was dwarfed by the overwhelming responsibilities of conducting a campaign for himself, and yet he assumed the supreme control of the struggle and directed it absolutely from start to finish. He was of the heroic mould, and he wisely planned his campaign tours to accomplish the best result. In point of fact, he had won his fight after stumping the country, and lost it by his stay in New York on his way home. He knew how to sway multitudes, and none could approach him in that important feature of a conflict; but he was not trained to consider the thousand intricacies that fell upon the management of every Presidential contest."

Grover Cleveland was inaugurated on the fourth of March, 1885, being the first Democratic President since James Buchanan, who was elected in 1856, and marking the first defeat of the Republican party since the election of Lincoln.

There was a wild scramble for offices on the part of the Democrats as soon as Cleveland was inaugurated. He proceeded to satisfy them as rapidly as he could, and out of 56,134 Presidential positions he appointed 42,992 Democrats.

I always admired Grover Cleveland. I first saw him at the time of his inaugural address, which he delivered without notes. He never faltered from the beginning to the end, never skipped a line or missed a word, or made a false start. He was the first, and so far as I know the only President who did

not read his inaugural address. His speeches, his messages, and his public utterances generally all showed that he was a man of extraordinary ability. He made a wonderful impression upon the country. As Chief Executive, he was strong-minded and forceful, and adhered to his views on public questions with a remarkable degree of tenacity, utterly regardless of his party.

He appointed a very fair cabinet. There was really no great man in it, but they were all men of some ability. The Secretary of State, Thos. F. Bayard, of Delaware, was one of the prominent Democrats of the Senate when I entered it, and had represented his State in that body for many years. I believe he conducted the affairs of the State Department satisfactorily, and he was later made Minister to the Court of St. James.

Daniel Manning, of New York, was Secretary of the Treasury. And, referring to Manning, I am reminded of a little story.

Soon after he came into the office I had occasion to go to the Treasury Department on some business. I saw the office secretary, who had been there under the previous Administration, and whom I knew well. He informed me that the Secretary of the Treasury was not in, but that he would be in a few minutes. I expressed a desire to see him and said that I would like very much to be introduced to him. Mr. Manning came in presently, and I was introduced, after which I disposed of my business without delay. Looking around, I saw Senator Beck and a number of other Senators, accompanied by a horde of Democratic office-seekers from the South, sitting against the wall waiting for me to get through with my business. Beck came forward, and in a half serious sort of way said to me: "You do not seem to know that the Administration has changed. You march in here and take possession, and we Democrats are sitting here against the wall cooling our heels and waiting for an opportunity to see the Secretary. You

have seen him already, and are ready to go." It did plague me a little, as I was not quite sure whether Beck was in earnest or not. He soon returned to the Senate from the Treasury, and coming into the Senate Chamber a little later I found that he had been telling my colleagues how he had "plagued Cullom" and how Cullom was much embarrassed about it. He considered it quite a joke on me.

L. Q. C. Lamar, of Mississippi, was made Secretary of the Interior. Lamar was also one of the prominent Democrats of the Senate when I entered it. I had the very greatest respect for him as a Senator and as a man. Later, Mr. Cleveland nominated him for Associate Justice of the Supreme Court. The nomination pended before the Judiciary Committee for a long time, as it was well known that Mr. Lamar had not been an active, practising lawyer.

I happened to be at the White House one day, and Mr. Cleveland said to me: "I wish you would take up Lamar's nomination and dispose of it. I am between hay and grass with reference to the Interior Department. Nothing is being done there; I ought to have some one on duty, and I can not do anything until you dispose of Lamar."

He had, I suppose, spoken to other Senators along the same line. The nomination was taken up soon after, and he was confirmed. I voted against his confirmation in the Senate; not because I had anything against him personally, or because he was a Southern Democrat, but I understood that he had not practised law at all, and I did not believe that sort of man should be appointed to fill so high and responsible a position.

Generally speaking, I got along very well with President Cleveland, considering the fact that he was a Democrat and I a Republican. I visited the White House frequently, and he generally granted anything that I asked for.

He was keenly interested in the passage of the first Interstate Commerce Act. It became a law under his administration, and although the Democrats supported it, it succeeded mainly through the influence of Republican Senators and a Republican Senate. When the bill went to the President, and while he had it under consideration, he sent for me to explain one or two sections which he did not understand. I called one night about nine o'clock and found him surrounded by a multitude of papers, hard at work reading the bill. I explained the sections concerning which he was in doubt as best I could, and he said: "I will approve the bill."

I immediately took advantage of the occasion to say: "Now, Mr. President, I might just as well take this opportunity to talk with you with reference to the appointment of a Commission. A Republican Senate has passed this bill, and as I had charge of it in the Senate, I think you ought to permit me to recommend the appointment of one commissioner." He agreed to this, asking me to present the name of some Republican whom I desired appointed.

Afterward there were complications with the members of his own party in Congress, and he sent for me to tell me that Colonel Morrison, of Illinois, had been recommended by the whole "Free Trade Party," as he called it, and that he did not see how he was going to avoid appointing him. I suggested that he give Morrison something else. He undertook to do so; but Morrison, true to his independent nature, declined to accept anything else, declaring that he would like to have the office of commissioner, and if he could not have that he would accept nothing.

The President sent for me again, and told me he could not satisfy Morrison, and he did not know how he was going to solve the complication. I said, in effect, that I had been a Governor of a State and I knew sometimes that an executive officer had to do things he did not expect to do, and did

not desire to do, but that he had to yield to party pressure. I ceased insisting upon an appointment, and allowed Morrison to be named. At the same time I was a little provoked and out of patience and I added: "Colonel Morrison knows nothing about the subject whatever. If you are going to appoint broken-down politicians who have been defeated at home, as a sort of salve for the sores caused by their defeat, we might as well repeal the law."

I inquired of him: "Who else are you going to appoint on that Commission?" I had previously recommended Judge Cooley.

"I will appoint Cooley," promised the President.

"Will Cooley take it?" I asked; to which he replied, "I will offer any place on the Commission he desires, and will telegraph him at once."

I expressed my satisfaction with this arrangement. He did telegraph Judge Cooley, who accepted, and was the first and most distinguished chairman of the Interstate Commerce Commission.

The Forty-ninth Congress assembled on December 7, 1885, with Thomas A. Hendricks, Vice-President, presiding in the Senate, John Sherman having been elected President *pro tempore*. The Senate was still in the control of the Republicans by a majority of five. The Democrats had a majority of something like forty in the House, and elected John G. Carlisle Speaker. This is practically the same situation that had prevailed during the previous Congress, except this time the Democrats, in addition to a majority, had the Chief Executive as well. But they were just as powerless to enact legislation as they had been before.

Senators Evarts, of New York; Spooner, of Wisconsin; Teller, of Colorado; Stanford, of California; Gray, of Delaware; Brown, of Georgia; Blackburn, of Kentucky; and Walthall, of Mississippi, were a few of the

prominent men who entered the Senate at the beginning of the Cleveland Administration.

Senator Evarts was recognized for many years as the leader of the American Bar. He was not only a profound lawyer, but one of the greatest public speakers of the day. I remember him as a good natured, agreeable man, who was pre-eminently capable of filling the highest places in public life. He was Attorney-General under President Johnson, Secretary of State under President Hayes, and counsel representing the United States before many great international tribunals. He defended President Johnson in his impeachment proceedings, and I remember yet his lofty eloquence on that memorable occasion. He did not accomplish much as a Senator, but he did take an active part where a legal or constitutional question came before the Senate.

Illustrating how great lawyers are as apt to be wrong on a legal question as the lesser legal lights, Senator Evarts expressed the opinion that Congress did not possess the constitutional power to pass the Act of 1887 to regulate commerce. He contended in the debate that the act was a restriction and not a regulation of commerce, and consequently was beyond the power of Congress. The Supreme Court of the United States very soon afterwards sustained the constitutionality of the act.

Before his term expired he became partially blind, and the story is told by the late Senator Hoar that Senator Evarts and he had delivered speeches in the Senate on some great legal, constitutional question, Senator Hoar on one side, Senator Evarts on the other. The latter asked Senator Hoar to look over the proof of his speech and correct it, and in reading over the proof Senator Hoar told me that he became convinced that his position was wrong and that Evarts was right.

I do not know of a Democrat with whom I have served in the Senate for whom I have greater respect than George Gray, of Delaware. We became quite intimate and were paired all during his service. He was one of the few Senators that every Senator on both sides believed in and was willing to trust. Indeed, our country would not suffer if he were elected President of the United States. He has held many important positions,—Senator, member of the Paris Peace Commission, United States Circuit Judge, member of many arbitration commissions,—in all of which he acquitted himself with great honor.

My friend, Senator Henry M. Teller, of Colorado, returned to the Senate at the beginning of this Congress. He had previously served in the Senate, and resigned to accept a Cabinet position under President Arthur. Senator Teller has had a long and honorable public career. He was elected to the Senate several times as a Republican, and appointed to the office of Secretary of the Interior as a Republican. He continued this affiliation until the silver agitation, in 1896, when he regarded himself as being justified in leaving the party, and was twice elected afterward to the Senate by the Legislature of his State, and during this last term I believe he became a pretty strong Democrat; yet he never allowed partisanship to enter into his action on legislation, excepting where a party issue was involved, when he would vote with his party.

I served with him on the Appropriation Committee and other committees of the Senate, and regarded him as one of the best Senators for committee service with whom I was ever associated. The friendly relations between Senator Teller and myself have been very close and intimate since I first knew him, and I am glad to say that the fact that he left the Republican party has not disturbed them in the least.

Mr. Teller's withdrawal from the Republican party after its declaration for the Gold Standard in the St. Louis Convention of 1896 was due to his abiding conviction in support of the principles of bimetallism. He had been a member of the party almost since its organization, and up to '96, although independent upon many points at issue, had been regarded as one of the party's staunchest and most reliable adherents. The severance of the ties of a lifetime could not be made without producing a visible effect upon a man of Mr. Teller's fine sensibilities, but I was pleased to observe that he did not allow the incident to change his personal relations. He continued as a member of the Senate for twelve or thirteen years after he left the Republican party, and I am sure that he did not lose the respect or personal regard of a single Republican member of the body. Personally, I regarded him just as warmly as a Democrat as I had esteemed him as a Republican, and I am sure that my attitude toward him was reflected by his attitude toward myself.

The Colorado Senator's nature is such that he cannot dissemble, and when his conviction led him to condemn the Republican party because of its position on the money question, he could not find it in his conscience to remain in that party. Time has shown that he was mistaken as to the results that might follow the adoption of the gold standard, but it has not served to alter the character of the man. He will stand for what he believes to be right, whatever the consequences to himself. As a legislator, he was faithful in his work in committee and in the Senate. No man was more constant in his attendance, and none gave more conscientious attention to the problems of legislation. An unusually strong lawyer and a man given to studious research, he never failed to strengthen any cause which he espoused nor to throw light upon any subject which came within his range of vision. With the exception of three years spent as Secretary of the Interior he was a member of the Senate from 1876, the year of Colorado's admission to the

Union, until 1909, during which time he had nine different colleagues from his own State.

Mr. Teller was a resident of Illinois before he removed to Colorado in 1861, and was one of the earliest supporters of Mr. Lincoln. His father and mother remained in Illinois as long as they lived, and Senator Teller always has retained interests in that State. I think he still has relatives residing in Whiteside County.

William Eaton Chandler, of New Hampshire, was one of the first government officials with whom I became acquainted when I came to Washington, in 1865, as a member of the House of Representatives. He was Assistant Secretary of the Treasury. We became quite intimate and our relations ever since have been the most cordial and friendly.

Senator Chandler is a man of wonderfully acute intellect. For many years he served his people in the Legislature of New Hampshire and was a member of the Senate of the United States for several terms. After he retired from the Senate in 1901, President McKinley appointed him a member of the Spanish Claims Commission. In the discharge of the duties of that office he manifested the same high conception of his trust as in every position he occupied, either elective or appointive, and I think he saved to the government of the United States many millions of dollars in the adjudication of claims growing out of the Spanish-American War.

While Senator Chandler is very combative in his attitude toward others, yet his innate sincerity draws one close to him after becoming acquainted with him. A little incident which will illustrate this trait, occurred in the Senate of the United States some years ago. Mr. Chandler was induced to believe that the late Senator Proctor, of Vermont, did not like him very much. So Chandler went up to Proctor, and said: "Proctor, don't you like

me?" Proctor in his coarse gruff voice replied: "I have acquired a liking for you." He established the point without circumlocution or diplomacy.

As Chairman of the Committee on Interstate Commerce of the Senate, I objected to the appointment of Chandler as a member of that committee. I did not believe he would be very attentive. It turned out that I was mistaken and I often wished that he would stay away from the meetings, because he was always stirring up some new question that involved the time of the committee. He was inspired, however, by the highest motive, recognizing as he did that the control of the railroads of the country was a matter of supreme importance to the people of the United States. He rendered valuable service on the committee in the enactment of legislation on this important subject.

Senator Leland Stanford, of California, was a man of large wealth, and became famous on account of his having built the Central Pacific Railroad. He was a man of business experience and made a valuable Senator. He died as a member of the Senate, and his wife founded Leland Stanford Jr. University.

Senator Stanford's colleague, Senator Hearst, who entered the Senate two years after Senator Stanford, was also a man of very large wealth and possessor of a interesting character. Concerning him many amusing stories are told. He gave an elaborate dinner one evening, which I attended. There were twenty-five of us present with our wives, and after dinner was over the men went down to the smoking-room. Senator Hearst had thought out a little speech to make to us, in which he said: "I do now know much about books; I have not read very much; but I have travelled a good deal and observed men and things, and I have made up my mind after all my experience that the members of the Senate are the survival of the fittest." Senator Hearst died while serving as a member of the Senate.

Matthew Stanley Quay was a conspicuous figure in our political history. He had been a soldier in the Civil War and afterwards occupied many positions of importance in the civil affairs in his State. Few men in American political life have had so constant a struggle as did Senator Quay to retain his ascendancy in Republican politics in Pennsylvania. Quay in Pennsylvania, and T. C. Platt in New York, were regarded as two of the greatest political bosses in the country. In national convention after national convention they exercised a paramount influence over the nomination of Presidents, and the two usually worked together. Their political methods were about the same. Quay was the bigger man of the two; but it must be said, in justice to both of them, that the word of either was as good as his bond. Senator Quay was returned to the Senate after a desperate struggle. I was glad to see him return, but saddened to see that he was sorely afflicted with a disease that finally proved fatal. Senator Quay and Senator Platt have both passed away. They were the two last survivors of the old coterie of politicians who so long dominated Republican national conventions.

Toward the close of the Cleveland Administration, a vacancy occurred in the office of Chief Justice of the United States, to fill which President Cleveland appointed the Hon. Melville W. Fuller, of Illinois. I had something to do with this appointment.

Chief Justice Fuller has only recently passed away, after serving as Chief Justice of the United States for a longer period than any of his predecessors in that high office, with the two exceptions of Marshall and Taney. I knew Melville W. Fuller for many years before he became Chief Justice. Away back in war times, I knew him as a member of the Illinois Legislature and as a member of the Constitutional Convention, and subsequently as one of the leading lawyers of the Chicago Bar.

President Cleveland was in a considerable quandary over the appointment of a Chief Justice. He wanted to bestow the seat upon an able lawyer, and he wanted a Democrat, but as the Senate was in control of the Republicans he wanted to make sure to name some one whom the Senate would confirm. He at first seriously considered Judge Phelps, of Vermont, a cultivated and able man, who had been Minister to England, but for some reason or other—why I never knew—he finally rejected Phelps as an available candidate and determined upon a Western man as Chief Justice.

Prior to this, however, he had considered the appointment of Justice Scholfield, of our own State, who was then a member of the Supreme Court of Illinois, which never had an abler or better lawyer as a member of its personnel. He would have been given the honor had he signified a willingness to accept; but when he was approached by Representative Townsend, at the suggestion of President Cleveland, after considering the matter, he demurred, asserting that although he would enjoy the distinction of being Chief Justice of the United States, he did not think that life in Washington, and especially the social side of the life which the Chief Justice of the United States naturally is expected to lead, would suit either him or his family. He had a family of growing children, who had been raised in the country, and they would naturally have to accompany him to Washington. He feared that Washington life would ruin them, so he finally declined the appointment.

Judge Fuller had been a close friend of President Cleveland, had been a member of the national convention that nominated him, was recognized as one of the leading Democrats of Illinois, and had been consulted by Mr. Cleveland in the distribution of the patronage in that State; so naturally Judge Fuller was considered in connection with the office. It was not surprising, considering that the Senate was then in the control of the

Republicans, that he would want to enlist my aid in securing his confirmation.

I called on Mr. Cleveland about nine o'clock one morning in regard to some personal matter. He at once sent out word for me to come in, that he wanted to see me. I apologized for appearing at so early an hour, whereupon he said that he was very glad that I had come because he desired to have a talk with me. Then he inquired whom I considered the best lawyer, belonging to his party, in Illinois, who would make a good Chief Justice. He at once himself mentioned Judge Fuller. I told him that Judge Gowdy was probably the ablest Democratic lawyer in Illinois, but that he was a railroad attorney, and it would probably not be a good thing to appoint him. He next questioned me particularly about Fuller. I told him that I knew Fuller very well indeed; that if I were called upon to name five of the best lawyers of Illinois belonging to his party, I would name Fuller among the five; that he was not only a good lawyer, but a scholarly man, a gentleman who would grace the position. He at once intimated that he would send his name to the Senate.

I said to him: "Mr. President, the selection of a Chief Justice is one of the greatest duties you have to perform. *You* can make a mistake; we can raise the devil in Congress; but with a capable Supreme Court standing steady and firm, doing its full duty, the country is safe."

He agreed with me; and very soon thereafter Melville W. Fuller was nominated as Chief Justice of the United States.

But this was only the prelude to the real struggle. The nomination was referred to the Committee on the Judiciary, of which Senator Edmunds, of Vermont, was chairman. The latter was very much out of humor with the President, because he had fully expected that Judge Phelps, of his own State, was to receive the honor, and he did not take it kindly that the

appointment should go to Illinois. He had told me himself, in confidence, that he had every assurance that Judge Phelps was to be nominated.

The result was the Senator Edmunds held the nomination, without any action, in the Judiciary Committee for some three months, as I now recollect. Finally there began to be more or less scandal hinted at and suggestions of something wrong, and so forth; which I considered so entirely uncalled for and unfair to Judge Fuller that I appeared before the Judiciary Committee of the Senate and asked that the nomination be reported favorably if possible, unfavorably if the committee so determined; and if the committee was not disposed to report the nomination either favorably or unfavorably that they report the nomination to the Senate without recommendation, so that the Senate itself might have an opportunity to act upon it. The latter action was taken, and the nomination was laid naked before the Senate. The matter was considered in executive session. Senator Edmunds at once took the floor and attacked Judge Fuller most viciously as having sympathized with the Rebellion, together with much to the same effect.

In the meantime some one had sent me a printed copy of a speech which Judge Phelps had delivered during the war, attacking Mr. Lincoln in the most outrageous and undignified fashion. When I read that speech I then and there determined that Judge Phelps would never be confirmed as Chief Justice, even though the President might send his nomination to the Senate. I put the speech in my desk, determining that if I ever had a good chance I would read it in the Senate, at the same time pointing out that the only objection which Senator Edmunds opposed to Judge Fuller was his pique because Phelps had not received the appointment. Edmunds' attack on Judge Fuller gave me the opportunity, and I read the speech of Judge Phelps to the Senate, much to the chagrin and mortification of Senator Edmunds.

The Democrats in the Senate enjoyed the controversy between Senator Edmunds and myself; Senator Voorhees was particularly amused, laughing heartily all through it. Naturally, it appeared to them a very funny performance, two Republicans quarreling over the confirmation of a Democrat. They sat silent, however, and took no part at all in the debate, leaving us Republicans to settle it among ourselves. The vote was taken and Judge Fuller was confirmed by a substantial majority.

Judge Fuller was very grateful to me for what I had done in behalf of his confirmation, and afterwards he wrote me a letter of thanks:

"Chicago, *July 21, 1888.*

"My dear Senator:—

"I cannot refrain from expressing to you my intense appreciation at the vigorous way in which you secured my confirmation. I use the word 'vigorous' because, though it was more than that, that was the quality that struck me most forcibly when I saw the newspapers this morning. When we meet, as I hope we will soon, I would very much like to talk this matter over with you. I hope you will never have cause to regret your action. I can't tell you how pleased I am that Maine and Illinois, both so dear to me, stood by me. But because I love them, I do not love my country any the less, as you know.

"And so I am to be called 'Judge' after all! This is between ourselves.

"Faithfully yours,

"M. W. Fuller."

Senator Frye voted in favor of Judge Fuller's confirmation. He did this partly, I believe, because Fuller was a Maine man and a classmate of his at

Bowdoin College, he previously having entertained some doubts, as he told me afterwards, whether Fuller was really qualified to be Chief Justice of the United States. Very soon after his appointment, the Chief Justice was invited to deliver an address before the Joint Session of the two Houses of Congress. I think it was on the occasion of the one-hundredth anniversary of the inauguration of the first President of the United States. Senator Frye and I walked together over to the hall of the House where the joint session assembled, and he said as we went along: "I will determine to-day, after I hear Fuller deliver his address, whether I did right or wrong in voting for his confirmation as Chief Justice." Judge Fuller delivered a most beautiful speech, which would have done credit to any man, no matter how high a position he occupied in this or any other country; and as we returned together to our own chamber, Senator Frye remarked: "Cullom, it is all right. I am satisfied now that I did right in voting in favor of the confirmation of Fuller's nomination."

Melville W. Fuller filled the position of Chief Justice of the United States with great credit and dignity. He wrote, during his long term of service, many very able opinions. I did not agree with his conclusions in the Income Tax case; but I think every lawyer will conceded that this opinion was about as able a presentation of that side of the case as could be made. He was a most conservative and safe man for the high position which he occupied. Of necessity the Chief Justice of the United States must be an executive officer as well as an able lawyer and judge. There was no better executive officer than Chief Justice Fuller. Justice Miller told me on one occasion that Fuller was the best presiding judge that the Supreme Court had had within his time; and in addition he was a most lovable, congenial man.

The last time I saw Judge Fuller he was particularly agreeable. I called to invite him to deliver an address at a great banquet to be held in Springfield on Lincoln's birthday in February, 1909. I have had a great deal of

experience in trying to prevail upon prominent men to deliver addresses in Illinois, and I know how they always hesitate, and hem and haw, then, if they do accept, destroy all feelings of gratitude and appreciation by the ungracious manner in which they do so. It was certainly a pleasant surprise and a contrast to custom to hear Judge Fuller's reply when I extended the invitation to him. "Why, certainly," he responded promptly; "I will be delighted to accept. I have been wanting to visit Springfield for twenty years, and I am glad to receive the invitation."

This reply was quite characteristic of Chief Justice Fuller. I could not imagine him saying an unkind word to any one. His disposition was to treat his colleagues on the Bench, the members of the Bar who appeared before him, and every one with whom he came in contact, with the greatest kindness and consideration. He passed away, quietly and peacefully, as he would have wished, honored and respected by the Bench and Bar of the Nation, and by the people of his home State, who took pride in the fact that Illinois had furnished to the United States a Chief Justice for so long a period.

Chief Justice Fuller was succeeded by Hon. Edward D. White, of Louisiana, with whom I served for three years in the Senate of the United States. Justice White was an able Senator, and in the disposition of some of the most important cases which have come before the Supreme Court in recent years affecting corporations he has shown great ability and is a worthy successor of his predecessors in that high office.

Aside from the act to regulate commerce, an act providing for the Presidential succession, and an act in reference to polygamy, there was very little, if any, important legislation during the first Cleveland Administration.

It was a very quiet administration. The country clearly comprehended that the Senate stood in the way of any Democratic doctrine being enacted into law, and generally, as I remember it now, the country was fairly prosperous. This condition continued until President Cleveland's famous Free Trade message of December 5, 1887, came as a startling blow to the business and manufacturing interests of the United States.

Why he should have sent such a message to Congress when his administration was about to come to a close, and when he knew perfectly well that no tariff legislation could be enacted with a Democratic House and a Republican Senate, I do not know. He for the first time stepped out boldly and asserted his Free Trade doctrine, and made the issue squarely on tariff for protection as against Free Trade, or tariff for revenue. This message naturally precipitated a tariff discussion in both House and Senate, and the Democratic majority of the House considered it incumbent on them to make some attempt to carry out the President's policy. As a result the so-called Mills Bill was reported, upon which debates continued for many months. One member in closing this discussion very aptly said:

"This debate will perhaps be known as the most remarkable that has ever occurred in our parliamentary history. It has awakened an interest not only throughout the length and breadth of our own country, but throughout the civilized world, and henceforth, as long as our government shall endure, it will be known as 'the great tariff debate of 1888.'"

It was in this debate in the House that both Mr. Reed and Mr. McKinley so distinguished themselves as the great advocates of Protection. Mr. Reed was then the floor leader of the minority. He made a magnificent speech against Free Trade in which he used many familiar allegories, one of which I have often used myself in campaign speeches. It is substantially as follows:

"Once there was a dog. He was a nice little dog—nothing the matter with him, except a few foolish Free Trade ideas in his head. He was trotting along, happy as the day, for he had in his mouth a nice shoulder of succulent mutton. By and by he came to a stream bridged by a plank. He trotted along, and looking over the side of the plank, he saw the markets of the world, and dived for them. A minute afterwards he was crawling up the bank the wettest, the sickest, the nastiest, the most muttonless dog that ever swam ashore."

Thomas B. Reed was one whom I unquestionably would term a great man. He was conspicuous among the most brilliant presiding officers that ever occupied the chair of the Speaker. He ruled the House with a rod of iron, thus earning for himself the nickname of "Czar."

And this was more or less warranted. He was the first Speaker to inaugurate the new rules. He found a demoralized House in which it was difficult to enact legislation, and in which the right of the majority to rule was questioned and hampered. He turned the Lower House into an orderly legislative body in which legislation was enacted expeditiously by the majority. He had more perfect control over the House than any former Speaker, and his authority remained unquestioned until he retired. He ruled alone; after he became Speaker he had no favorites; he had no little coterie of men around him to excite the jealousy of the members of the House, and it has even been said that so careful was he in this respect that he would scarcely venture to walk in public with a member of the House. He was a powerful man intellectually and physically, and he looked the giant he was among the members of the House. He wanted to be President; and it seems rather a queer coincidence that his election as Speaker paved the way for his rival, Mr. McKinley, as by his acceptance of the chair Mr. McKinley became the leader of the majority, chairman of the Committee on Ways and Means, the author of the McKinley Bill, which finally resulted in its

author's defeat for Congress, but in his election as President of the United States in 1896.

But to return to the Mills Bill. It passed the House by a substantial majority and came to the Senate, where a substitute was prepared by the Finance Committee and reported by Senator Allison early in October. I remember the discussion on it in the Senate very well. We all thought it incumbent upon us to make speeches for home consumption, for campaign use, showing the iniquities of the Mills Bill, and of the Democratic tariff generally, although we knew it was impossible for either bill to become law.

The Congressional session continued until about the middle of October with nothing done in the way of practical legislation.

This was the situation when the National Republican Convention assembled in 1888.

CHAPTER XVII CLEVELAND'S DEFEAT AND HARRISON'S FIRST TERM 1888 to 1891

At the time the delegates gathered, Cleveland's Free Trade message of 1887 was before the country, interest in it having been augmented and enlivened by the passage of the Mills Bill and the renowned tariff debate of that year. The issue was clear. It was Protective Tariff *versus* Free Trade. After a rather strenuous contest in the convention in which nineteen candidates were voted for, for the nomination for President, including the leading candidates, John Sherman, of Ohio, Walter Q. Gresham, of Indiana, Harrison, of Indiana, and Allison, of Iowa, Benjamin Harrison finally was chosen on the eighth ballot.

In his autobiography Senator Hoar affirms that William B. Allison came nearer being the nominee of the party than any other man in its history who was a candidate and failed to secure the endorsement. According to Senator Hoar, it was the opposition of Senator Depew, angered by the agrarian hostility toward himself, that prevented Senator Allison's nomination. I have no personal knowledge that might refute this statement, but I have been disposed to question its correctness.

President Cleveland was of course renominated. The campaign came on, and he was defeated squarely on the Tariff issue, and the Republicans were again in the ascendancy in both branches of the Government, the Senate being composed of forty-seven Republicans and thirty-seven Democrats, while the House contained one hundred and seventy Republicans and one hundred and sixty Democrats, Mr. Reed being elected Speaker.

President Harrison was inaugurated with a great civic and military display, equalling, if not surpassing, that of any other President. There was great rejoicing among Republicans on account of the return of the party to power. The Cabinet was duly appointed, with Mr. Blaine, the foremost Republican and statesman of his day, as Secretary of State—which, by the way, was an unfortunate appointment both for Mr. Harrison and Mr. Blaine. There was the usual scramble for offices, the usual changes in the foreign service, in the executive departments in Washington and in the federal offices generally throughout the country. Robert T. Lincoln, of whom I have already written, was appointed Minister to the Court of St. James.

Colonel Clark E. Carr, of Illinois, was appointed Minister to Denmark, and made a splendid record in that position. He was very popular with the royal family. I had the pleasure of visiting Copenhagen while he was Minister there, and was the guest of Colonel and Mrs. Carr, who entertained me very handsomely. They gave a dinner in my honor, which was attended

by the whole diplomatic corps at Copenhagen. The Colonel also arranged for a private audience with the King, and he presented me to him, as he also did my friend, Colonel Bluford Wilson, who accompanied me on my visit to Copenhagen. Altogether, through the courtesy of Colonel Carr, I enjoyed my stay in Copenhagen exceedingly.

He retired from office after Mr. Cleveland was elected, and has since achieved distinction as an author. He has written several very interesting books which have had a wide circulation. For many years Colonel Carr has taken an active part in our State and National campaigns. He is a forceful speaker, so naturally his services have been in constant requisition by the State and National Republican Committees. He has rendered very valuable service to the Republican party both in the State and in the Nation.

I had known President Harrison for many years. He represented a neighboring State in the Senate, of which body he was a leader when I entered it in 1883. I probably knew him as well as any of my Republican colleagues; but his was a very cold, distant temperament, even in the Senate, hardly capable of forming a very close friendship for any one, and he had no particular friends.

In justice to Mr. Harrison, however, it must be said that he was a masterly lawyer, and his appointments generally were first-class. Especially was he fortunate in his selection of Federal judges. He selected them himself, and would tolerate no interference from any one. He did select the very best men he could find. For instance, he appointed such men as Justice Brewer, of Kansas; Justice Brown, of Michigan; Judge Woods, of Indiana; and it was Harrison who appointed President Taft as a Federal Judge. He was an exceptionally able President, and gave the country an excellent administration.

But at the same time he was probably the most unsatisfactory President we ever had in the White House to those who must necessarily come into personal contact with him. He was quite a public speaker, and the story has often been told of him that if he should address ten thousand men from a public platform, he would make every one his friend; but that if he should meet each of those ten thousand men personally, each man would go away his enemy. He lacked the faculty of treating people in a manner to retain their friendship. Even Senators and Representatives calling on official business he would treat with scant courtesy. He scarcely ever invited any one to have a chair.

Senator Platt, of Connecticut, asked me one day if I was going to the White House to dine that evening, stating that he had an invitation. I told him no, that I had not yet been invited, that I had never yet during the Harrison administration even been invited to take a seat in the White House. Some one overheard the remark and it was published in the newspapers. I visited the White House shortly afterwards, and I assume that Harrison had seen it because as soon as he saw me, without a smile on his face or a gleam in his eye, he hastened to get me a chair, inviting me to be seated. I declined to sit down, explaining that I was in a hurry, and closed the business I had come for, and left. Afterwards he invited me to dinner and treated me with marked consideration.

I have sometimes wondered whether President Harrison's apparent coldness may not be ascribed to an absorption in his duties that made him unintentionally neglectful of the little amenities of polite usage, they never even having occurred to him. Despite his cold exterior and frigid manner, it may have been he was sympathetic at heart. When the Tracey homestead was destroyed by fire, which resulted in the death of several persons, including the daughter, and finally resulted in the death of Mrs. Tracey,

President Harrison took the family into the White House and did everything a man could do to relieve their sufferings.

I suppose he treated me about as well in the way of patronage as he did any other Senator; but whenever he did anything for me it was done so ungraciously that the concession tended to anger rather than please.

In looking over the letters which I received from President Harrison, I find one which would show that he placed considerable confidence in my recommendations.

"Executive Mansion,
"Washington, *Oct. 24, 1889.*

"Hon. Shelby M. Cullom,
"Springfield, Ills.

"My dear Senator:—

"I want to say a few words further to you about the Chicago appointments. There has been for some months a good deal of complaint that changes were not made.

"I find that the Collector of Customs and the Collector of Internal Revenue were appointed, the one Sept. 14, and the other Sept. 10, 1885, and that the first was confirmed May 17, 1886; and the last, April 17, 1886. I do not have before me the record as to the appointment of the United States District Attorney. The Assistant Treasurer was appointed Sept. 29, 1885, and confirmed May 6, 1886. If there had been no question raised as to the qualifications and fitness of the persons recommended, it is quite possible that I would have taken some steps in the matter during this month; but the fact is, as you have told me, that at least one, and possibly two, of the

persons suggested were not of a high order of fitness, to say the least, and some members of your Congressional delegation interested have given me the same impression, while from outside sources there have been a good many things said to the prejudice of persons named for appointment. I am informed that Senator Farwell desires to leave the case just where his recommendations have placed it, feeling that he cannot change to any one else. I write to know whether you also feel in that way, or whether you desire to make any further suggestions about the matter. I have no other purpose in connection with these appointments than to find men, the mention of whose names will commend them to the great business community they are to serve. No one of those named, so far as I know, is suggestive of any personal claim upon me, and I have no personal ends to serve. You agreed with me, I think, when we conversed, that the appointees there should be men of as high character for integrity and intelligence, etc., as those they would supersede.

"In the case of the Assistant Treasurer I found on examining the papers yesterday, very full and strong papers for Mr. Nichols, whom I do not know. He is supported, apparently, by the bankers and many leading merchants of Chicago, and their letters give in detail his business character and experience. Of the gentleman recommended by you and Senator Farwell, there is absolutely nothing said in the papers, so that Mr. Windom or I could have any information as to whether his business experience had been such as to fit him for this place. Now, I am sure that on reflection you will agree that we ought to have full information, and that it should be upon record.

"I told Mr. Taylor, in conversation, day before yesterday, that I could not appoint Mr. Babcock marshal, as I told you when you were here; and I remember that you said you had yourself refused to recommend him. If things have assumed that shape that you are of the opinion that it must be left to me as it stands, then I will do the best I can with it. I do not conceal

the fact that after the essential of fitness is secured that I have a desire to please our party friends in these selections. But I cannot escape the responsibility for the appointments, and must therefore insist upon full information about the persons presented, and upon my ultimate right, in all kindness to everybody, to decide upon what must be done. It would be very gratifying to me if the responsibility were placed upon some one else.

"Please let me have any suggestions you may care to make.

"Very truly yours,

"Benj. Harrison.

"P. S. Responding to your telegram asking delay till Nov. 5, I would say that I have no disposition to hurry a decision. Others have been pressing me and complaining bitterly of delay. I think, however, that the sooner some of these cases can be treated as submitted for decision the better. If the appointments are delayed till the middle of Nov. there is little use of making temporary appointments, as the appointee would have to make two bonds. If you can in writing, confidentially if you prefer, give me your views and submit any alternative suggestions for these places I will carefully consider them. But if you prefer to see me personally before any decision is made as to Collector of the Port I will of course lay that case to one side till the time you have suggested.

"Yours,

"B. H."

I never became entirely estranged from him, however, and when his term was about to expire, and he wanted a renomination, I supported him. My motive in so doing was not so much that I favored Harrison as because I felt outraged at the way *The Chicago Tribune* had treated me. The *Tribune* was then supporting Blaine with all its power, and I determined that Mr. Medill

should not have his way; hence I became one of the leaders in the renomination of President Harrison.

Before leaving Washington for the convention I called to see the President to learn what information he had to impart to me as one of the delegates who expected to support him. He was more friendly, free, and frank than he had ever been during his term as President. We talked about different things, and in the course of the conversation he adverted to Secretary Blaine.

Harrison and Blaine had fallen out. Jealousy was probably at the bottom of their disaffection. Harrison did not treat Blaine with that degree of confidence and courtesy one would expect from the Chief Executive to the premier of his cabinet; while on the other hand Blaine hated Harrison and was plotting more or less against him while he was a member of the cabinet. The President talked very freely about Mr. Blaine. He declared that he had been doing the work of the State Department himself for a year or more; that he had prepared every important official document, and had the originals in his own handwriting in the desk before him. And yet, he said, Mr. Blaine, as Secretary of State, was giving out accounts of what was being done in the State Department, taking all the credit to himself. He expressed himself as being perfectly willing, to use a familiar figure, to carry a soldier's knapsack when the soldier was sore of foot and tired, and all that he wanted in return was acknowledgment of the act and a show of appreciation. This was all he expected of Mr. Blaine. He said, in closing the conversation, that he intended some day to disclose the true condition of their relations.

The Harrison Administration was a very busy one, and should have been a very satisfactory one to the country at large. The first great subject taken up by Congress was the tariff, the final disposition of which was embodied

in what afterwards became known as the "McKinley Tariff Bill." I never thought that Mr. McKinley showed any particular skill in framing that tariff. My understanding is that it was prepared by the majority of the Committee on Ways and Means.

The manufacturers of the country appeared before that committee and made known what protective duties they thought they ought to have in order to carry on their industries, and the committee gave them just about the rate of duty they desired. It was a high protective tariff, dictated by the manufacturers of the country. It resulted in a great stimulus to the country's industries, and great prosperity followed its enactment. It has been difficult from then till now to reduce duties below the McKinley rate. The manufacturers have since persisted and insisted upon higher duties than they really ought to have.

I may remark here, in passing, that the McKinley Law was not passed until October, and we were immediately plunged into the campaign. The McKinley Law was the issue, and the Democrats swept everything before them, carrying the House by the overwhelming majority of ninety-seven. The Senate still remained Republican, forty-seven Republicans to thirty-nine Democrats. McKinley himself was beaten and never afterwards returned to Congress.

It is strange what a revolution periodically occurs among the voters of the United States. When the Mills Bill was the issue the Democratic party was beaten, and badly beaten; the Republican party came into power; the McKinley Bill was passed, and we suffered about as bad a defeat as had the Democrats two years previously. The difference was that the Democrats were cleaned out on the shadow of an issue, without the reality (the Mills Bill never having become a law), and we went down in defeat on the reality, the McKinley Bill having become a law.

It was during this time also that the bill known as the Sherman Law, or the Coinage Act of 1890, was passed, which directed the purchase of silver bullion to the aggregate of 4,500,000 ounces in each month, and the issuance for such purchases silver bullion treasury notes. This was probably the beginning of the silver agitation. It created a long discussion in the Senate and House, and that subject was constantly before Congress until it was finally settled by the election of McKinley, in 1896.

It was this Congress also that passed the Sherman Anti-Trust Act (April 8, 1890). It was one of the most important enactments ever passed by Congress; and yet, if it were strictly and literally enforced, the business of the country would have come to a standstill. The courts have given it a very broad construction, making it cover contracts never contemplated when the act was passed. It was never seriously enforced until the coming in of the Roosevelt Administration, when the great prosperity brought about under the McKinley Administration tended to the formation of vast combinations which seriously threatened the country. The people do not seem disposed to consent even to its amendment, much less its repeal; and yet we all realize that if strictly enforced as construed by our courts, it would materially affect the business prosperity of the nation. The people take the same attitude towards the Sherman Law as they take toward the anti-pooling section of the Interstate Commerce Act; they will allow neither of them to be tampered with by Congress. There has been considerable dispute as to the paternity of the Sherman Anti-Trust Law. Senator Hoar claims he wrote it; it bears Senator Sherman's name; and my own opinion is that Senator Edmunds had more to do with framing it than any other one Senator.

It was during the first and second session of the Fifty-first Congress that the Federal Election Bill, so-called, or as it is familiarly known, the "Force Bill," was discussed. It was in charge of Senator Hoar, and occupied the attention of both sessions for a long time. The Republicans seemed

determined to force it through, but the Democrats from the South were bitterly opposed to it, resorting to all sorts of tactics to kill or delay it.

This measure I never considered much of a "force" bill. I could never see that there was any force to it, but on the contrary, considered it a very mild measure, and gave it my support. The opposition to it was so bitter and strong and so skillfully managed by the late Senator Gorman on the part of the minority, and it stood for so long a time in the way of other legislation, that one after Senator Wolcott arose in his seat and, very much to the astonishment of every one, moved to lay it aside and take up some other bill. The motion carried, and that was the last we heard of the Force Bill.

The McKinley Tariff, the Anti-Trust Law, the Sherman Coinage Act, and the Federal Election Bill were the important bills passed before this Congress.

Notwithstanding the magnificent record in the way of legislation made by the first Congress under the Harrison Administration, the Democratic victory was so complete that at the beginning of the first session of the Fifty-second Congress, which met December 7, 1891, there were but eighty-eight Republicans in the House, as against two hundred and thirty-six Democrats, and Mr. Charles F. Crisp, of Georgia, was elected Speaker. The Senate still remained in the control of the Republicans.

It was during this Congress that the silver agitation came to the front as one of the foremost issues. Senator Stewart of Nevada, introduced his bill for the free coinage of gold and silver bullion. The free coinage question consumed months of the time of both Senate and House, and finally came to naught.

The Act to establish the World's Fair at Chicago was passed. I took a very active interest in this in behalf of Chicago. A meeting was held in the

Marble Room of the Capitol, where Senator Depew represented New York, and Colonel Thomas B. Bryan, Chicago. They each made a speech. Very much to my surprise, Colonel Bryan's was the more effective. We afterwards, by all sorts of efforts in the House and Senate, captured the location for Chicago. The Fair, when it was finally held, was the greatest world's fair ever known. There was an almost utter abandon in the expenditure of money, and Congress assisted by a liberal appropriation. That Fair was a great injury, rather than a benefit, to the city of Chicago. The hard times came on, and it was years before the city was restored to normal conditions.

Toward the end of this session, the Homestead riots were a subject of debate and investigation by Congress. A Presidential campaign was approaching, and the Democrats were eager to throw upon the Republicans the blame for all labor disturbances, the riots at Homestead in particular.

CHAPTER XVIII CLEVELAND'S SECOND TERM 1892 to 1896

I have already, in other parts of these recollections, referred to the National Convention of 1892, and the reasons which induced me to support President Harrison for renomination. I attended as one of the delegates, and took a more or less active part in the work of the convention. Harrison was chosen on the first ballot. No other candidate had any chance. Mr. Blaine and Mr. McKinley on that ballot received one hundred and eighty-two votes each, but neither was really considered for the nomination.

Grover Cleveland, of course, was the principal candidate before the Democratic Convention, and had no serious opposition aside from the bitter personal enmity evinced toward him by David B. Hill, of New York, who had succeeded him as Governor of that State, and had hoped to succeed him as President. Senator Hill has only recently passed away. He was one of the

most astute and ablest politicians in the history of the Democratic party. President Cleveland determined, for some reason or other, to drive him out of public life, and he succeeded in doing so during his second administration as President.

The campaign of 1892, just as the previous Presidential campaign had been, was entirely fought out on the tariff issue; and the question in general was the McKinley Law and its results. The Democrats were able to show that there had been increase in cost in many articles regarded as necessities, while the Republicans pointed to a great era of national prosperity. The Republicans contended also that wages had advanced and prices declined under the McKinley Law; but I have always doubted whether we were able to sustain that contention. For instance, the department stores and retail merchants generally marked up prices, and wholly without reason, on articles on which there had been no increase in the tariff; and when asked why, they would reply, "It is because of the McKinley tariff."

For these economic reasons, added to the labor disturbances, Mr. Cleveland was again elected President of the United States, and carried with him for the first time both the Senate and the House. The Democrats now had complete control of all branches of the Government, and were in a position, if united, to enact any legislation they might desire. The result of the election was a complete surprise to every one. Why the voters should have turned against the Republican administration, it is hard to say. Mr. Harrison's personality had much to do with it.

The times were never more prosperous. In his message to the Congress which convened after his defeat, President Harrison appositely said: "There never has been a time in our history when work was so abundant, or when wages were so high, whether measured in the currency in which they are paid, or by their power to supply the necessities and comforts of life." And

yet, with this admitted condition prevailing, the Democratic party was returned to power.

I felt very badly over President Harrison's defeat, as I had done everything I could to secure, first, his renomination and then his re-election. After the election I wrote President Harrison as follows:

"U. S. Senate Chamber,
"Washington, D. C., *Nov. 11, 1890.*

"Dear Mr. President:—

"I have delayed writing you since the election for the reason that the result so surprised me I scarcely knew what to make of it. We lost Illinois by the overwhelming Democratic vote in Chicago. I feared that city all the time, but was assured by the committees that it would not be very much against us. I said all the time that we would take care of the country and carry the State if the Cook County vote could be kept below ten thousand Democratic, and was assured by all hands there that it would be. We did carry the country about as heretofore. As things have gone bad nearly everywhere, I am not feeling so chagrined as I would if Illinois had been the pivotal State. I specially desire to say that the cause of the defeat does not lie at your door personally. Any man in the country standing upon the doctrine of high protection would have been defeated. The people sat down upon the McKinley Tariff Bill two years ago, and they have never gotten up. They were thoroughly imbued with the feeling that the party did not do right in revising the tariff up instead of down. They beat us for it in '90 and now again.

"Hoping to see you in ten days, I am, with great respect,

"Truly yours,
"S. M. Cullom."

Curtis, in his work on the Republican party, in commenting on the result of this election, said:

"It will be seen that to the Solid South were added, California, Connecticut, Illinois, Indiana, New Jersey, New York, West Virginia, and Wisconsin; while Mr. Cleveland obtained one electoral vote in Ohio, and five in Michigan. The result was certainly disastrous, and left no doubt that the people at large for the time being had rebuked the Republican party for what they wrongly supposed to be against their best interests. And yet, though a large majority of the people had voted for Mr. Cleveland, they were probably sorry for it within twenty-four hours after the election. There was no such rejoicing as took place in 1885. In fact, as soon as it was determined without doubt that the next Congress would be Democratic in both branches, and would enable Mr. Cleveland and his party to carry out their threats to repeal the McKinley Law and enact in its stead a Free Trade measure, apprehension and alarm took possession of the industrial and financial interests of the country, and could the election have been held over again within ten days, it may be estimated that a million or more votes would have been changed from the Cleveland column to that of Harrison. The people, as it were, awoke from a dream; they saw at once how they had been deceived by the methods of the Democratic campaign managers, and how an incident which had no bearing whatever upon the issue of the campaign had influenced their vote in a time of temporary anger and resentment."

This perfectly sums up the situation, as I now recollect it, on the election of President Cleveland; it was the beginning of the most protracted era of hard times that this country has ever known.

Mr. Cleveland was inaugurated the second time on March 4, 1893, and, as Mr. Curtis says, there was very little enthusiasm. The ceremonies were quiet and unenlivened.

Of course, it goes without saying, that I was not glad to see the Democratic party returned to power; but I confess I was a little pleased to meet President Cleveland in the White House again. His manner, his treatment of those with whom he came in contact, was so different from that of his predecessor, that it was a real pleasure, rather than a burden, to call at the executive offices.

Mr. Cleveland promptly proceeded to remove Republicans from Presidential offices and appoint Democrats. This even went to the extent of the removal of postmasters, large and small, against whom almost any sort of charge might be trumped up.

Adlai E. Stevenson was a past master in this respect. He was First Assistant Postmaster-General under Cleveland's first Administration and removed Republican postmasters whose terms had not expired, without cause or reason. He was elected Vice-President when Mr. Cleveland again came into office. He was a great favorite among the Democrats, because he believed in appointing Democrats to every office within the gift of the Executive.

I remember, after Stevenson was elected, Senator Harris, of Tennessee, remarking to me: "Now we have got Cleveland and Stevenson elected, if Cleveland would drop out and Stevenson was President, we would get along finely." He meant that Stevenson would never permit a single Republican to remain in office, if he could help it.

Mr. Stevenson made a popular presiding-officer of the Senate. He has been a strong Democrat all his life, and it has repeatedly been charged

against him, although I believe he denies it, that he was a Southern sympathizer during the Civil War. He served in Congress two terms, having been elected from the Bloomington district, and was quite an influential member. He was defeated as a candidate for Vice-President with Mr. Bryan in 1900, and was also defeated as a candidate of the Democratic party for Governor of Illinois, in 1908.

As a candidate for Governor he made a splendid showing in 1908, as he was defeated by 23,164 votes, while President Taft carried Illinois by 179,122.

President Cleveland's Cabinet contained some very able men. He appointed Judge Walter Q. Gresham as Secretary of State. Why he should have appointed Gresham, I do not know. It would seem to me that there were men of as much ability in his own party whom he might have selected, but for some reason or other he did appoint him.

Judge Gresham was then serving as United States Circuit Judge, at Chicago. He had always been a Republican, and in the convention which nominated Harrison he received on one ballot one hundred and twenty-three votes as the candidate of the Republican party for President of the United States. He probably supported Mr. Cleveland, although of this I am not sure. He was a bitter enemy of President Harrison,—so much so, indeed, that he could scarcely be polite to any one whom he thought favored Harrison. He was holding court in Springfield, during the Harrison Administration, when I met him, and, not appreciating his feeling, I casually commended President Harrison for some particular thing which I approved. Gresham did not like it, and he almost told me in so many words that he did not think much of me or any one else who thought well of Harrison. Whereupon we separated somewhat coolly, I giving him to understand that I would insist upon my views and my right to commend a

man who I thought was following a proper course. I do not believe he ever avowed himself a Democrat, and in the State Department he always declined to make any recommendations for appointments, on the ground that he was not a Democrat, and that those appointments must be left to the President himself. I had more or less intercourse with him as Secretary of State, and always found him polite and agreeable. He was regarded as an able Secretary, and served in that office until his death.

Richard Olney succeeded him as Secretary of State. He had been the Attorney-General in the cabinet. He was to me a much more satisfactory Secretary than Judge Gresham, and fully as able as a lawyer.

John G. Carlisle was appointed Secretary of the Treasury. He had been seven times elected to Congress and three times Speaker. He resigned his seat in the House, having been elected as a member of the Senate from Kentucky, and remained in the Senate until he resigned to accept the position of Secretary of the Treasury under Cleveland.

Mr. Carlisle was in entire harmony with the President on the tariff and also on the monetary questions—and, indeed, I remark here that Mr. Carlisle had very much to do toward the defeat of Mr. Bryan in 1896. Although a life-long Democrat himself, he believed that Mr. Bryan's theories on the monetary question would ruin the country, and he stood with Mr. Cleveland in opposing his election. Had Cleveland, Carlisle, and other patriotic Gold Democrats stood with their party, Mr. Bryan would probably have been elected and the history of this country would have been written differently.

After Mr. Cleveland's election, our industrial conditions became so depressed—and it was alleged by many that the cause for this was the Sherman Coinage Act of 1890—that a special session of Congress was

called to meet August 7, 1893. The President said in his message to this Congress:

"The existence of an alarming and extraordinary business situation, involving the welfare and prosperity of all our people, has constrained me to call in extra session the people's representatives in Congress, to the end that through a wise and patriotic exercise of the legislative duty with which they are solely charged, present evils may be mitigated and danger threatening the future may be averted. . . . With plenteous crops, with abundant promise of remunerative production and manufacture, with unusual invitation to safe investment, and with satisfactory returns to business enterprise, suddenly financial fear and distrust have sprung up on every side. . . . Values supposed to be fixed are fast becoming conjectural, and loss and failure have involved every branch of business. I believe these things are principally chargeable to Congressional legislation touching the purchase and coinage of silver by the general Government."

And Mr. Cleveland earnestly recommended the prompt repeal of the Sherman Coinage Act of 1890.

The extra session continued until October 30, when the Sherman Act was finally repealed.

But the repeal of the Sherman Act did not at all remedy industrial conditions. It was not the Sherman Act that was at fault, but the well-grounded fear on the part of our manufacturers of the passage of a free trade measure. The panic commenced, it is true, under the McKinley Bill, but it was the direct result of what the business interests felt sure was to come; and that was the passage of a Democratic Tariff act.

The year 1893 closed with the prices of many products at the lowest ever known, with many workers seeking in vain for work, and with charity

laboring to keep back suffering and starvation in all our cities. And yet, in view of the condition, Mr. Cleveland sent to Congress at the beginning of the annual session a free trade message, advocating the repeal of the McKinley Act and the passage of a Democratic free trade, or Tariff for Revenue, measure. From the tone of this message, however, he seems to have changed somewhat from his message of 1887; yet it was strong enough to startle the business interests, and make more widespread financial panic.

Speaker Crisp at once proceeded to the formation of the committees of the House, and particularly the Committee on Ways and Means.

I was naturally anxious concerning our industries in Illinois, and I wanted one of our strongest Illinois Representatives placed on that committee. I happened to enjoy particularly friendly relations with Mr. Crisp, he having been a House conferee on the Interstate Commerce Act of 1887, and I felt quite free to call upon him. After looking over the Illinois delegation, I came to the conclusion that the Hon. A. J. Hopkins, my late colleague in the Senate, and who was then serving in the House, was the very best man he could select for that place. I urged Mr. Crisp to appoint him, saying that he was capable of doing more and better work on the committee than any other man in the delegation. Crisp was very nice about it, and whether he did it on my recommendation or not I do not know; but he appointed Hopkins. Senator Hopkins was, during his service on that committee, regarded as one of its leading members, and had a prominent part in framing the Dingley tariff. He served in the House until elected to the Senate, where he remained for six years. Senator Hopkins is an able man, and was constantly growing in influence and power in the Senate. He was an agreeable colleague, and I regretted very much indeed that he was not re- elected.

It did not take long for the Democratic majority of the Committee on Ways and Means of the House to frame and report the Wilson Bill, repealing the McKinley Bill, and recommending in its stead the enactment of a Tariff for Revenue, which was fairly in harmony with Democratic Free Trade principles, and in harmony with the President's message. The bill was passed without long delay, Mr. Reed leading the ineffectual opposition to its passage in the House, with a speech of great eloquence, in which he depicted conditions that would surely arise after the passage of such a measure.

But this bill still had to run the gantlet of the Senate, where many Democratic Senators did not sympathize to the full extent with the Cleveland-Carlisle Free Trade theory. Senators Gorman, Hill, Murphy, Jones, Brice, and Smith of New Jersey, led the opposition, uniting with the Republicans in securing some seven hundred amendments, all in the interest, more or less, of Protection.

The truth is, we were all—Democrats as well as Republicans—trying to get in amendments in the interest of protecting the industries of our respective States. I myself secured the adoption of many such amendments. After I had exhausted every resource, I went to Senator Brice one day and asked him if he would not offer some little amendment for me, as I felt pretty sure that if Brice offered it it would be adopted, and I knew if I did it myself it stood a good chance of being defeated. Brice, by the way, was a very bluff, frank man; he replied to me, half jocularly, "Now, you know when your party is in power you will never do anything for a Democrat, and I won't offer this amendment for you. You go and get your colleague, Senator Palmer, to offer it for you." I left him and went to General Palmer; he presented the amendment, and it was adopted.

The bill passed the Senate; and after going to conference, when it seemed likely the Conference Committee would not agree, the Democratic leaders of the House, fearing the bill would fail entirely, decided to surrender to the Senate and accept the Senate bill with all its amendments. President Cleveland denounced this temporizing, coining the famous expression, "party perfidy and party dishonor" in the Wilson letter, evidently referring to Mr. Gorman and other leaders of the Senate.

There has been endless controversy and discussion over the attitude of Senator Gorman on the Wilson Bill. I myself have always believed that Senator Gorman felt that the industries of the country could not prosper under a Democratic Free Trade Tariff, and that he was willing to afford them a certain amount of protection. Especially was he criticised on account of the sugar schedule. Senator Tillman in his memorial address in the Senate, on the occasion of the delivery of eulogies on Senator Gorman, said in reference to this:

"In the conversations I had with the Democratic leaders, it was clearly brought out that the sugar refineries were ready to contribute to the Democratic campaign fund if it could be understood that the industry would be fostered and not destroyed by the Democratic Tariff policy, and I received the impression, which became indelibly fixed on my mind then and remains fixed to this day, that President Cleveland understood the situation and was willing to acquiesce in it if we won at the polls. I did not talk with Mr. Cleveland in person on this subject, though I called at his hotel to pay my respects, and I am thoroughly satisfied that the charge of party perfidy and party dishonor was an act of the grossest wrong and cruelty to Senator Gorman. If Mr. Cleveland, as I was told, knew of these negotiations and was the beneficiary of such a contribution, it is inconceivable how he could lend his great name and influence toward destroying Senator Gorman's influence and popularity, in the way he did."

Senator Gorman himself was very justly indignant and displayed much feeling when he addressed the Senate on July 23, 1894, replying to Mr. Cleveland's letter.

He used, in part, the following language:

"As I have said, sir, this is a most extraordinary proceeding for a Democrat, elected to the highest place in the Government, and fellow Democrats in another high place, where they have the right to speak and legislate generally, to join with the commune in traducing the Senate of the United States, to blacken the character of Senators who are as honorable as they are, who are as patriotic as they ever can be, who have done as much to serve their party as men who are now the beneficiaries of your labor and mine, to taunt and jeer us before the country as the advocates of trust and as guilty of dishonor and perfidy."

It was a Democratic controversy, and I am not in a position to say whether Mr. Cleveland or Mr. Gorman was right; whether it was a bargain in advance of the election to secure campaign funds; whether the sugar schedule was framed to secure the support of the Louisiana Senators; but I do know that Mr. Cleveland's attacks on Mr. Gorman turned the State of Maryland over to the Republicans and relegated Mr. Gorman to private life.

The Wilson Bill became a law without the approval of the President, Mr. Cleveland taking the position that he would not permit himself to be separated from his party to such an extent as might be implied by a veto of the tariff legislation which, though disappointing to him, he said was still chargeable to Democratic efforts.

There was one provision of the Wilson Bill which, I have been convinced since, was a very wise measure, and which will yet be enacted into law; and that is the income tax provision. That bill provided for a tax of two per cent

on incomes above four thousand dollars. A separate vote was taken on this section and I voted against it. It was Republican policy then to oppose an income-tax, and the view I took then was, that if we started out taxing incomes the end would be that we would derive, from the source, sufficient amount of revenue to run the Government and that it would gradually break down the protective policy. It was declared unconstitutional by a vote of five to four of the Supreme Court. A previous income- tax had been declared constitutional during the Civil War, and I am very strongly of the opinion that if the case is again presented to the Court the decision will be in harmony with the first decision, overruling the decision of 1895. An income-tax is the fairest of all taxes. It is resorted to by every other nation. It falls most heavily on those who can best afford it. The sentiment in the Republican party has changed, and I believe that at no far distant day Congress will pass an income-tax as well as an inheritance-tax law.

The passage of the Wilson Bill increased, rather than diminished, the hard times commencing with the panic of 1893. The Democratic party, or the free silver element of it, claimed that the panacea was the free and unlimited coinage of silver at the ratio of sixteen to one. The silver question was argued week after week in both branches of Congress, and was never finally settled until the election of McKinley and the establishment by law of the Gold Standard. In recent years we hear very little about free silver; but the Democratic party split on that issue, Mr. Cleveland heading the faction in favor of sound money.

In those closing days of the Cleveland Administration, it was very seldom that a Democratic Senator was seen at the White House. The President became completely estranged from the members of his party in both House and Senate, but it seemed to bother him little. He went ahead doing his duty as he saw it, utterly disregarding the wishes of the members of his party in Congress.

I saw him many times during this period, and I remember on one occasion I had seen a notice in one of the papers indicating that the President was about to appoint my old friend Mr. Charles Ridgely, of Springfield, Illinois, as Comptroller of the Currency. I had the highest regard for Mr. Ridgely, and I called at the White House to congratulate the President on the selection. He seemed to be out of humor, and was more than usually abrupt. He declared that he knew nothing about it, that he did not know Ridgely, and never had had any intention of appointing him. I repeated that I had seen the announcement in a newspaper, adding that it looked to me as though the report were authentic, and that I only wanted to congratulate him. But the President merely reiterated, somewhat curtly, that he knew nothing about it. I became a little annoyed, finally losing my temper.

"I don't care a damn whether you appoint him or not," I exclaimed; "Ridgely's a Democrat, anyhow."

Thereupon his attitude quickly changed, and he inquired about Ridgely, listening with interest to what I had to say. He then talked with me on the silver question and other matters, detaining me while he kept his back to the crowd waiting to see him. I almost had to break away in order to give others a chance.

Among the other embarrassments and difficulties of the Cleveland Administration were the famous Chicago riots of 1893. The trouble grew out of a railroad strike; much damage was done and a great deal of property was destroyed, with consequent loss of life. The city itself seemed to be threatened, the business and manufacturing interests appealed to the Governor first, and then to the President, to send troops to Chicago to protect property. When the Governor failed to act, the President ordered Federal troops to Chicago. The action was regarded as very wise, and it

endeared him to the business people of that city. Governor Altgeld protested, and that was one of the reasons why he became Mr. Cleveland's most bitter enemy.

I think I should say a few words in reference to Governor Altgeld. He has been called an anarchist and a socialist. In my judgment, he was neither. Of his honesty, his integrity, his sincerity of purpose, his determination to give the State a good administration, I never had the slightest doubt. The mainspring of the trouble, I believe, was an inability to select good men for public office. He was not a good judge of men; he surrounded himself with a coterie that betrayed his trust and used the State offices for personal gain. I have always sympathized with Governor Altgeld. Had he been eligible I believe he would have been the nominee of his party for the Presidency; but he was born abroad.

One can scarcely imagine industrial conditions in a worse state than they were at the close of the Cleveland Administration. The election of a Republican Congress in 1894 had helped some, but the revenues were not sufficient to meet the ordinary running expenses of the Government; bonds had to be issued, labor was out of employment, the mills and factories were closed, and business was at a standstill.

This was the condition of affairs when the Republican National Convention assembled in 1896.

CHAPTER XIX McKINLEY'S PRESIDENCY 1896 to 1901

The hard times, the business depression, all attributable to the Wilson Tariff Bill, made the Republicans turn instinctively to Governor McKinley, the well-known advocate of a high protective tariff, as the nominee of the Republican party, who would lead it to victory at the polls.

The Republican National Convention of 1896 was held at St. Louis. It was one of the few national conventions which I failed to attend. Since entering the Senate, I have been usually honored by my party colleagues in the State by being made chairman of the Illinois delegation to Republican national conventions. But for some reason or other—just why I do not now recollect—I was not a delegate to the St. Louis Convention. Congress was in session until near the time when the convention was to meet, and Mr. McKinley, who, it was well known, would be the nominee of the party, invited me to stop off in Canton on my way from Washington to Illinois and spend a day with him. I did so, arriving at Canton about nine in the morning, Mr. McKinley meeting me at the station and driving me to his house, where I remained until my train left at nine in the evening. From his residence in Canton, I wired the Illinois delegation, appealing them to vote for McKinley. He received all but two of the votes of the delegation. He was nominated without any serious opposition, through the brilliant generalship of that master of party manipulation, the Hon. Marcus A. Hanna.

I was talked about a little as a candidate for President during the closing days of the Cleveland Administration. I was urged to lend my name for the purpose, particularly by men in the East whom I always regarded as my friends. I afterwards learned, although I was not so informed at the time, that they had determined to beat McKinley at all hazards and nominate Speaker Reed if they could, their policy being to have the different States send delegations in favor of "favorite sons." Senator Allison was selected as the "favorite son" from Iowa, and efforts were made to carry the Illinois delegation for me. They hoped by this means, when the delegates assembled at St. Louis, to agree on some one, almost any one, except McKinley—Reed if they could, or Allison, or me.

Mr. McKinley, through friends, about this time offered me all sorts of inducements to withdraw. Judge Grosscup was the intermediary, and there was hardly anything in the Administration, or hardly any promise, he would not have made me if I had consented to withdraw. I felt that I could not do so. When they found it was impossible to beg me off they determined to carry the State over me. Money was spent freely in characteristic Hanna fashion, his motto being, "accomplish results." McKinley was exceedingly popular, in addition, and after our State Convention had assembled and endorsed him, I withdrew from the contest. At the time I thought that if I could have carried the delegation from my own State, as Senator Allison did his, it would have broken the McKinley boom, and one or the other of us would have been nominated. But as I look back on it now, it seems to me that no one could have beaten McKinley; and even if he had lost Illinois, as he lost Iowa, he still would have had sufficient delegates to secure his nomination.

The McKinley campaign was one of the most interesting and quite the liveliest in which I have ever participated. It was a campaign of education from beginning to end. At first the Republicans tried to make the tariff the issue, and in a sense it remained one of the most important; but we were soon compelled to accept silver as the issue, and fight it out on that line. Silver was comparatively a new question; the people did not understand it, and they attended the meetings, listening attentively to the campaign speeches.

There was considerable satisfaction in speaking during the campaign of 1896: one was always assured of a large and interested audience. In addition to this, the prevailing sentiment was one of cheerful good-feeling; and while there had been several candidates before the St. Louis Convention, including Speaker Reed, Senator Allison, and Levi P. Morton, the convention left no bitterness—the party was united, and every

Republican did his full duty. Southern Illinois was a little uncertain; but it finally came around, and the full Republican vote was cast for McKinley and Hobart.

I took a very active part in this campaign. Mr. McKinley was exceedingly polite to me and invited Senator Thurston and me to open the campaign in Canton, which invitation I accepted, addressing there a vast audience. It was said that some fifty or seventy-five thousand people were assembled there that day. Subsequently I spoke in Kentucky and Michigan, and made a thorough campaign in my own State.

While the Republicans were united, the Democrats were hopelessly divided. The so-called Gold Democrats held a convention and nominated my colleague, Senator Palmer, and General Buckner as its candidates for President and Vice-President respectively. They did not receive a very large vote, because I believe they advised the Gold Democrats to vote for McKinley. The Gold Democrats had great influence in the election. General Palmer was thoroughly in earnest on the silver question, more so perhaps than any Democrat whom I knew. He believed strongly in the Democratic doctrine on the tariff, and was a Democrat on every other issue; but he could not follow his party in espousing free silver.

There was doubt all the time over the result of the election. After the Democratic convention was held in Chicago, and in the early Summer and Fall, the Democrats certainly seemed to have the best of it; but later in the campaign, as the people became educated, it began to look brighter. I was very much surprised at the result, however. McKinley carried the election by a vote of 7,111,000 as against 6,509,000 for Mr. Bryan, and the electoral vote by 271 as against 176 for Mr. Bryan.

When Mr. McKinley was inaugurated I cannot forget the expression of apparent relief in President Cleveland's face, as he accompanied his

successor to the ceremony. He seemed rejoiced that he was turning his great office over to Mr. McKinley. The last days of his Administration had been troublesome ones. Estranged from his own party, war clouds appearing in the near distance,—I do not wonder that he gladly relinquished the office.

Mr. McKinley came into office under the most favorable circumstances. A Congress was elected fully in harmony with him, whose members gladly acknowledged him as not only the titular, but the real head of the Republican party. We never had a President who had more influence with Congress than Mr. McKinley. Even President Lincoln had difficulties with the leaders of Congress in his day, but I have never heard of even the slightest friction between Mr. McKinley and the party leaders in Senate and House.

In many respects, President McKinley was a very great man. He looked and acted the ideal President. He was always thoroughly self-poised and deliberate; nothing ever seemed to excite him, and he always maintained a proper dignity. He had the natural talent and make-up to be successful to a marked degree in dealing with people with whom he came into contact. He grew in popular favor from the day of his election until his death, and I have always maintained that he would go down in history as our most popular President among all classes of people in all sections of the country. His long training in public life—his service as a member of the House and Governor of Ohio—had well fitted him for the high office of President. He had many favorites whom he desired to get into office; and on many occasions, instead of going ahead and appointing his friends without consulting any one, he asked me if I would have any objection to his appointing some personal friend living in Illinois to one office or another in or out of the State. I always yielded; in fact it was impossible to resist him.

Illustrating this, there happened to be a vacancy in a Federal Judgeship in Chicago. Presidents usually have selected their own judges regardless of Senatorial recommendation, and McKinley selected his; but he managed to secure Senatorial recommendation at the same time. I was in favor of the appointment of a certain lawyer in Chicago whom I regarded as thoroughly well qualified for the place, and the President wanted to appoint Judge Christian C. Kohlsaas. My colleague and I insisted for a long time on our recommendation. The President and I debated the question frequently, he always listening to me and seeming impressed with what I had to say, at the same time remaining fully determined to have his own way in the end. Finally, when I was in the executive office one day, he came over to where I was and, putting his arm on my shoulder, said: "Senator, you won't get mad at me if I appoint Judge Kohlsaas, will you?" I replied: "Mr. President, I could not get mad at you if I were to try." He sent the nomination in; Judge Kohlsaas was confirmed, and is now serving on the United States Circuit Bench.

Mr. McKinley wanted to appoint his old friend and commander, General Powell, as Collector of Internal Revenue at East St. Louis. I did not want General Powell to have the office, as I did not believe he had rendered any service to the party sufficient to justify giving him one of the general Federal offices in the State. State Senator P. T. Chapman, who has since been elected to Congress several times, and Hon. James A. Willoughby, then a member of the Illinois State Senate, were both candidates, and I should have been very glad to have had either one of them appointed.

Chapman came to Washington to my office, where he waited while I went to the White House to attempt to have the matter of the appointment settled. I saw the President, to whom I expressed a willingness to have the post of Collector of Internal Revenue for the East St. Louis District to go either to Chapman or Willoughby.

"Cullom," returned the President, "if you had come to me this way in the first place, and urged me to appoint one of them, I would have done it; but you have waited until everything is filled, and now I must either appoint Powell to this place, or turn him out to grass." He continued: "I was a boy when I entered the army, and General Powell took me under his wing; he looked after me, and I became very much attached to him. I was standing only a little way off and saw him shot through." The tears came to the President's eyes and ran down his cheeks. When I saw with what feeling he regarded the matter, I threw up my hands.

"I am through," said I; "I have nothing more to say."

General Powell was given the office. This illustrates the manner in which Mr. McKinley always managed to get his own way in the matter of appointments without the slightest friction with Senators and Representatives.

During the early days of his Administration I did not feel so close to him as I had felt toward some of his predecessors. I did not feel that he quite forgave my not yielding to him, and declining to become a candidate for President in 1896. He was always polite to me, as he was to every one, yet I could not but feel that he was holding me at arm's length. My colleague, Senator Mason, who was an old friend of his, had secured a number of appointments, and the President himself was constantly asking me to yield to the appointment of this or that "original McKinley man," mostly either my enemies or men of whom I knew nothing. I was much out of humor about it, and several consular appointments having been made about that time, I wrote some one in the State a letter setting forth that those appointments were but the carrying out of promises made in advance of McKinley's nomination. This letter, or a copy of it, was sent to the President. I called at the White House one day concerning the appointment

of some man, whose name I do not remember, but whom I regarded as my personal enemy. I told him I had no objection, but that I regarded the man as a jackass. McKinley evidently did not like my remark very well; he reached back on his table, pulled out this letter, or a copy of it, and asked me if I had written it. I replied that I did not know whether I had or not, but that it sounded very much as I felt at the moment. He said that he had not expected an expression of that sort from me. Whereupon we had a general overhauling, in the course of which I told him with considerable feeling that I had been more or less intimate with every President since, and including, Mr. Lincoln, and had always been treated frankly and not held at arm's length; but with himself that I had been constantly made to feel that he was reserved with me. We quarrelled about it a little, and finally he asked me what I wanted done. I told him. He promptly promised to do it, and did.

That quarrel cleared the atmosphere, and we remained devoted friends from that day until his death.

Had it not been for the Hon. Marcus A. Hanna, Mr. McKinley would probably never have been nominated or elected President of the United States.

I knew Mr. Hanna very many years before he became identified with the late President McKinley. He always took an interest in Republican politics, particularly in Ohio politics; and when Mr. Blaine was a candidate for the Presidency, and I was campaigning in Ohio, I rode with Mr. Hanna from Canton to Massillon, some seven or eight miles distant, where a great meeting was held, with Mr. Blaine as the central figure. I was even then very much impressed with Mr. Hanna as a man of the very soundest judgment and common sense.

But it was not until Mr. McKinley became a candidate for President that Hanna took a very great interest in national political affairs. He had the

deepest affection for the late President, and was determined that he should be nominated and elected President of the United States, at whatever cost. Mr. Hanna took hold of Mr. McKinley's campaign for the nomination and controlled it absolutely and, to use the common expression, he "ran every other candidate off the track."

He came into Illinois and carried the State easily. He was not sparing in the use of money, but believed in using it legitimately in accomplishing results.

It must have been a great satisfaction to him when the St. Louis Convention nominated his candidate, William McKinley, of Ohio, on the first ballot by a vote of 661 as against 84 votes for Thomas B. Reed, of Maine, the next highest candidate. He had it all organized so perfectly that the St. Louis convention was perfunctory so far as Mr. McKinley's nomination was concerned. The Convention recognized that it was Mr. Hanna had achieved this great triumph; and after Senator Lodge, Governor Hastings, and Senators Platt and Depew had moved that the nomination of Mr. McKinley be made unanimous, a general call was made for Mr. Hanna. He finally yielded in a very brief address:

"Mr. Chairman and Gentlemen of the Convention:—I am glad there was one member of this Convention who has had the intelligence at this late hour to ascertain how this nomination was made—by the people. What feeble effort I may have contributed to the result, I am here to lay the fruits of it at the feet of my party and upon the altar of my country. I am now ready to take my position in the ranks alongside of my friend, General Henderson, and all good Republicans from every State, and do the duty of a soldier until next November."

Naturally, Mr. Hanna was made chairman of the Republican National Committee, and as such conducted Mr. McKinley's campaign for election

just as he had conducted the preliminary campaign for the nomination. He there showed the shrewdest tact and ability in its management, and many people believe that he elected McKinley very largely by his own efforts.

I do not know whether Mr. Hanna was very ambitious to enter the Senate or not, but I do believe that Mr. McKinley saw that he would be probably the most useful Senator to his Administration; and he contrived to make a vacancy in the Senatorship from Ohio by inducing John Sherman to accept the position of Secretary of State in his Cabinet, thereby making a place for Mr. Hanna in the Senate. Senator Sherman resigned to enter the State Department; and on March 5, 1897, Mr. Hanna was appointed by Governor Bushnell to fill the vacancy.

From the very first Mr. Hanna took rank as one of the foremost leaders of the Senate. Of course, he had everything in his favor. He had nominated and elected McKinley; he had been Chairman of the Republican National Committee, and it was known that he stood closer to the President than any other man in public life.

But notwithstanding this, he had the real ability naturally to assume his place as a leader. He assumed a prominent place more rapidly than any Senator whom I have ever known. He took hold of legislation with a degree of skill and confidence that was remarkable, and carried his measures thorough apparently by his own individual efforts and energy. He changed the whole attitude of the Senate concerning the route for an interoceanic canal. We all generally favored the Nicaraguan route. Senator Hanna became convinced that the Panama route was best, and he soon carried everything before him to the end that the Panama route was selected.

During the first McKinley campaign, Mark Hanna was probably the most caricatured man in public life. He was made an issue in the campaign and was usually pictured as being covered with money-bags and dollars. But it

is very strange how public sentiment changed concerning him. Before the first McKinley Administration was over, Mark Hanna enjoyed quite a degree of popularity; but it was not until he entered the campaign of 1900 that he really became one of the popular figures in American politics.

Some one, I do not know who, induced him to go among the people and show himself, and try to make some speeches. His first few efforts were so successful that it was determined he should make a speech-making tour. Senator Frye, of Maine, one of the oldest and most experienced and finest orators in the country, accompanied him on his tour. Senator Frye told me that he prevailed upon Senator Hanna to make short campaign speeches first. He requested him to try a fifteen-minute speech, then extend them to thirty minutes. Before their tour was ended, he was making just as long and just as good a speech as any old experienced campaigner. During this campaign, there were more calls on the Republican National Committee for Senator Hanna than there were for any other campaign speaker. Everywhere he went he made friends, not only for President McKinley, the nominee of the party, but for himself as well. Mark Hanna became one of the most popular leaders in the Republican party, and I have never for a moment doubted that he could have been the nominee of the party for the Presidency in 1904, had he consented to accept it. He told me in a private conversation had been gratified when he had seen his great personal friend, Mr. McKinley, twice elected President of the United States, and now that he had passed away he had no particular ambition on his own account.

Mr. McKinley promptly proceeded to call a special session of Congress, which convened March 15, 1897, and in which Mr. Reed was elected Speaker of the House. This session was called for the purpose of enacting a law for the raising of sufficient revenue to carry on the Government; and on March 31 the Dingley Bill passed the House. The bill was debated in the Senate for several weeks, and after eight hundred and seventy-two

amendments were incorporated, it passed the Senate July 7, 1897. The conference report was agreed to, and the act was approved July 24, 1897. The country was in such condition then that we heard no complaint concerning the high protective tariff. The Republicans were united in advocating such a protective tariff as would enable the mills and factories to open, thereby affording employment and restoring prosperity.

From the election of President McKinley and the enactment of the Dingley Law I do not hesitate to say that we can date the greatest era of prosperity, and the greatest material advancement, of any period of like duration in our history.

Toward the close of the Cleveland Administration and all during the first part of the McKinley Administration, conditions were leading up inevitably to the Spanish-American War. The enthusiasm of some Senators, especially Senator Proctor, of Vermont, and my own colleague, Senator Mason, of Illinois, became so intense that war was brought on before the country was really prepared for it. Mr. McKinley held back. He knew the horrors of war and, if he could avoid it, did not desire to see his country engage in hostilities with any other country. He acted with great discretion, holding things steadily until some degree of preparation was made; and I have no doubt at all that the war would have been averted had not the *Maine* been destroyed in Havana harbor. The country forced us into it after that appalling catastrophe.

The entire Nation stood behind the President, and so did Congress. One of the most dignified and impressive scenes I ever witnessed since I became a member of the Senate was the passage of the bill appropriating fifty million dollars to be expended under the direction of the President, in order to carry on the war. The Committee on Appropriations, of which I had long been a member, directed Senator Hale to report the bill. It was agreed in

committee that we should endeavor to secure its passage without a single speech for or against it. Some of the Senators who seemed disposed to talk, were prevailed upon to desist, and it was passed without any speeches. The ayes and nays were called, and amid the most solemn silence the bill was passed. The galleries were crowded; a great many members of the House were on the floor, and it reminded me of the days when the great Reconstruction legislation was being enacted, in the sixties. It was a demonstration to the country and the world of our confidence in the President, and the determination on the part of Congress to do what was necessary to uphold the dignity and honor of the United States. The vote for the bill in the Senate was unanimous.

The war came on immediately afterwards. The history of it is yet too fresh in the minds of the people to need repetition here. It was soon over, and with its conclusion came new and greater responsibilities. Whether it was wise for the United States to assume these new responsibilities, I am not prepared to say. Time alone can determine that.

I have always had great sympathy for General Russell A. Alger, of Michigan, who was in President McKinley's Cabinet as Secretary of War. It was not his fault that conditions in the War Department were as they existed in 1897, when he assumed office. We must remember that the country had enjoyed a continuous period of peace from 1865 to 1898. We were unprepared for war, and in the scramble and haste the Department of War was not administered satisfactorily, the whole blame being laid upon General Alger. It had been the policy of the Democratic party in Congress to oppose liberal appropriations for the maintenance of the War Department and the Army. Many Republicans thought that the best means of limiting appropriations was in cutting down the estimates for the War Department. They seemed to think that we would never again engage in a foreign war.

General Alger was a thoroughly honest man, of whose integrity I never had any doubt. He was made the scapegoat, and President McKinley practically was forced by public sentiment to demand his resignation. Personally, I have always believed the President should have stood by General Alger. I was much gratified when his own people in Michigan showed their confidence in him, very soon after he was forced out of the McKinley Cabinet, by electing him to a seat in the United States Senate made vacant by the death of the late Senator McMillan.

During his Administration, President McKinley did me quite an honor by appointing me chairman of a commission to visit the Hawaiian Island, investigate conditions there, and report a form of government for those islands. He appointed with me my colleague, Senator Morgan of Alabama, and my friend the Hon. R. R. Hitt, chairman of the House Committee on Foreign Affairs. In all my public life this was the second executive appointment that I ever received, the first being from President Lincoln during the Civil War, to investigate commissary and quartermasters' accounts, to which I have already referred.

It had been the well-known policy of the United States for many years that in no event could the entity of Hawaiian statehood cease by the passage of the islands under the domination or influence of another power than the United States. Their annexation came about as the natural result of the strengthening of the ties that bound us to those islands for many years. The people had overthrown the monarchy and set up a republic. It seemed certain that the republic could not long exist, and they appealed to the United States for annexation. The treaty of annexation was negotiated and then ratified by Hawaii, but it was withdrawn by President Cleveland before the Senate acted upon it; finally, the islands were annexed by the passage of an act of Congress during the McKinley Administration.

It was under these circumstances that Senator Morgan, Mr. Hitt, and I visited the islands. The appointment came about in this way. I had been urging the President to appoint Mr. Rheuna Lawrence, of Springfield, Illinois, as one of the commissioners. The Hon. James A. Connolly, then representing the Springfield district in Congress, had also been very active in trying to secure Lawrence's appointment. He came to me in the Senate one day and told me that there was no chance of Lawrence being appointed and that the President had determined to appoint me. I told Connolly I did not see how I could accept an appointment, under the circumstances, and that Lawrence might misunderstand it. Connolly said he thought I must take the place. The President himself afterwards talked with me about it. I hesitated. He urged me, insisting that I could not very well afford to decline. Finally I said that if he insisted, I would accept. He nominated us to the Senate for confirmation. This precipitated considerable debate in the Senate, for, by the member of the Committee on the Judiciary, the appointment of Senators and members on such a commission was regarded as unconstitutional; but the committee determined to take no action on the nominations at all, so we were neither confirmed nor rejected. President McKinley urged us to go ahead, however, visit the islands, and make our report, which we did. This was the beginning of expansion, or Imperialism, in the campaign of 1900.

One writer, in speaking of the acquisition of these islands, said:

"One of the brightest episodes in American history was the acquisition of the Hawaiian Islands, and Senator Cullom's name is prominently associated with that act. He read aright our history as a nation of expansionists. He was not afraid to permit the great republic to become greater. He deemed it wise that to the lines of our influence on land should be added a national influence on the seas. This view was accepted by the people and by the national Legislature. By President McKinley, Senator Cullom was

appointed chairman of the Hawaiian Commission, composed of Senator Morgan of Alabama, and Congressman Hitt of Illinois, and Senator Cullom, to visit the islands and frame a new law providing for their civil government and defining their future relations with the United States. Since the days of Clyde in India, few men have been clothed with a more important duty than this commission, whose mission it was to prepare a Government for the Hawaiian Islands. The bill recommended by the commission was enacted by Congress, and stands as the organic law of the islands to-day."

We had an exceedingly interesting time in the Hawaiian Islands. They were not known so well then as they are to-day. We visited several of the islands composing the group, and publicly explained our mission. The people seemed to have the impression that American occupancy of the islands was only temporary, and that as soon as the Spanish-American War was over they would return to old conditions. We told them that annexation was permanent, and they would remain a part of the United States for all time to come. I did not favor giving them statehood. There was not a sufficient number of whites and educated natives to justify giving them the franchise as an independent State in the American Union. Senator Morgan and I differed on this a great deal, and on several occasions in the hearings of the commission, he stated that they were to become a State. I always interposed to the effect that, so far as my influence was concerned, they would remain a Territory.

There was one island of the group called Molokai devoted entirely to the care of lepers, leprosy being quite common in the Hawaiian Islands. We deemed it our duty to visit this island as well as the others. It was one of the most interesting and pathetic places of which the human mind can conceive—a place of grim tragedies. There were about twelve hundred lepers on the island, divided into two colonies, one at each end of the island. The island itself forms a natural fortress from which escape is almost impossible, the

sea on one side and mountains on the other. We spent the day there and ate luncheon on the island. We saw the disease in all its stages. We entered a schoolhouse in which there were a crowd of young girls ranging from ten to sixteen years of age. They were all lepers. They sang for us. It was very pathetic. We visited the cemetery and saw the monument erected to the memory of a Catholic priest, Father Damien, who went there from Chicago, to devote his life to the spiritual care of the unfortunates, but who, like all others residing on the island, finally succumbed to the disease. We met an old lady at the cemetery and I asked her if there was any danger of contracting the disease. She said there was not unless we had some abrasions on the skin, and advised us as a matter of caution to wear gloves. I promptly put mine on and kept them on until I left the island.

I was told that they expected me to speak to them, and I did make them a speech. A large number of them assembled. I have addressed many audiences in my life, but this was the queerest I was ever obliged to face. There were men and women in all stages of the disease. Leprosy attacks the fingers and they fall off, and some natural instinct prompts the victim to hide his hands; but as my speech was translated to them, in the excitement they would forget and throw out their hands and applaud. It was a hideous sight and I most fervently wish never to see the like of it again.

For our expenses one hundred thousand dollars had been appropriated. I am not one of those who believe in lavish expenditures of public money by commissions. While I was willing as chairman of the commission to permit travelling expenses and the reasonable necessities and probably the luxuries of life while abroad, yet I differed with my colleague, Senator Morgan, and insisted that no money should be spent for entertaining. Out of the hundred thousand dollars we spent something like fifteen thousand; and Senator Morgan, Mr. Hitt, and I agreed that it would not be lawful or right for us to accept any compensation for our services as members of the

commission. Something like eight-five thousand dollars reverted to the Treasury.

We returned and made our report to Congress, and the bill which we recommended was enacted. I do not think the present form of government of Hawaii will be changed for many years to come. I have regretted exceedingly that, despite the repeated recommendations of Presidents McKinley and Roosevelt, Congress has not seen fit to make an appropriation to improve the harbor and fortify the islands. It is true they afford us a coaling station in the middle of the Pacific, but that is all. Should hostilities break out in the Far East, our country being a party, it would be almost impossible for us to defend them, and they would become easy prey to foreign aggression. I hope that this policy will change in the near future, and that Pearl Harbor will be improved and the islands fortified.

The important events of the first McKinley Administration were the enactment of the Dingley Tariff, the successful conclusion of the war with Spain, the ratification of the Treaty of Peace, the independence of Cuba, and the acquisition of Porto Rico, the Philippines, and the Island of Guam; the establishment of the gold standard by law, and the annexation of the Hawaiian Islands.

At the close of the Administration no one questioned that the country was in a more prosperous condition than it ever had been before, and that McKinley was probably the most popular President that ever occupied the White House. He was unanimously nominated at the Republican Convention, at Philadelphia, for a second term.

The campaign of 1900 was fought out on the issue of Imperialism; the tariff was almost forgotten, and the silver question was only discussed incidentally.

Mr. McKinley's popular vote was not much greater than it was in 1896. He received 7,207,000 as against 6,358,000 votes cast for Mr. Bryan.

During the short session which convened after his election, the Platt amendment concerning our future relations with Cuba was passed. The War Revenue Act was reduced. It was an uneventful session, and Mr. McKinley was again inaugurated March 4, 1901.

On September 6, 1901, the President attended the Buffalo Exposition, accompanied by Mrs. McKinley and the members of his cabinet, and during the reception which he held at the Temple of Music on that day, he was shot and wounded by an assassin, one Leon F. Czolgosz. After lingering along until Saturday, September 14, he passed away, and Theodore Roosevelt, Vice-President, was sworn in as President of the United States. On taking the oath of office, he uttered but one sentence:

"I wish to say that it shall be my aim to continue absolutely unbroken the policy of President McKinley for the peace, prosperity, and the honor of our beloved country."

CHAPTER XX ROOSEVELT'S PRESIDENCY 1901 to 1909

Colonel Roosevelt served as President of the United States from September 13, 1901, to March 4, 1909. What he accomplished during those years is still too fresh in the minds of the people of the United States to justify its recital by me here; suffice it to say that he gave one of the best Administrations ever known in the history of the United States. He accomplished more in that term than any of his predecessors; more laws were enacted, laws of more general benefit to the people; but above all, his Administration enforced all laws on the statute books as they had never been enforced before.

The Sherman Anti-Trust Law was a dead letter until Mr. Roosevelt instructed the Attorney-General to prosecute its violators, both great and small. No fear or favor was shown in the enforcement of the laws against the rich and poor alike. There were many other notable features of his administration, but that, to my mind, stands out conspicuously before all the others. By his speeches, by his public messages, he awakened the slumbering conscience of the Nation, and he made the violators of the law in high places come to realize that they would receive the same punishment as the lowest offenders. He did more than any of his predecessors to prevent this country from drifting into socialism.

I have known Colonel Roosevelt for many years. I knew him as Civil Service Commissioner under President Harrison. In that position, as in every other public office he held, he saw to it that the law was strictly enforced. I once wrote him a note, when he was Civil Service Commissioner, requesting him to act favorably on some matter, which he considered was contrary to his duty. He promptly returned this characteristic reply: "You have no right to ask me to do this, and I have no right to do it."

As Assistant Secretary of the Navy under President McKinley, he was able, aggressive, and pushing in preparing the Navy for the Spanish-American War. He seemed so interested in what he was doing that he would appear to an outsider to be nervous and excitable. My old friend, the Hon. W. I. Guffin, than whom there was no better man, was visiting the Department with me one day, and I took occasion to introduce him to Colonel Roosevelt, who was then Assistant Secretary. Guffin was astonished at Roosevelt's manners and his way of speaking, and I recall Guffin's remark when we left the office. I was very much amused at it. He said: "Well, that is Roosevelt, is it! He is one hell of a Secretary." Doubtless that was the impression that Colonel Roosevelt left on many people whom

he met in the Navy Department, who did not know him and who had not yet come to know the degree of promptness and ability with which he despatched public business.

I was at the Philadelphia Convention which nominated Colonel Roosevelt for Vice-President. I know that he did not desire the nomination, but it was thrust on him through the manipulation of Senator T. C. Platt, of New York, then the acknowledged "easy boss" of that State. Platt himself said afterwards that he did it to get rid of him as Governor of New York, and that he regretted it every day of his life after Roosevelt became President. The politicians of New York did not want Roosevelt in control at Albany, and they thought it would be an admirable plan to remove him from the State, and eventually relegate him to private life—to nominate him for Vice-President. But the fates willed differently, and the nomination for Vice-President opened the way for him to become Mr. McKinley's successor, in which position he made such a splendid record that no one thought of opposing him for the nomination for President in 1904.

As President, Colonel Roosevelt was not popular with Senators generally. Personally, I got along with him very well. In all the years that he was President, I do not think he ever declined to grant any favor that I asked of him, with one exception. In that case, while he declined to give a very distinguished gentleman in Illinois a position, for which I thought him admirably qualified, and for which I was urging him, he later tendered him another office, which my friend declined to accept. His methods of transacting business were far more expeditious than those of any of his predecessors. President McKinley, in every case, insisted on Senators placing in writing their recommendations for Federal offices; I do not think he ever made an appointment without such written endorsements; but Colonel Roosevelt never bothered much about written endorsements. He

would either do or not do what you asked, and would decide the question promptly.

He took a deep interest in the passage of the necessary amendments to the Interstate Commerce Act, and as I have said elsewhere, had it not been for Colonel Roosevelt, the Hepburn Bill would not have been passed. He thought that I could be of very great service in securing the passage of the amendments which both he and I deemed necessary to the Interstate Commerce Act, by remaining chairman of the Senate's Committee on Interstate Commerce, and when the time came for me to decide whether I should remain chairman of that committee, or accept the chairmanship of the Committee on Foreign Relations, he took occasion personally to urge me to remain at the head of the Interstate Commerce Committee. But at the time the personnel of the committee was such that I had despaired of securing favorable action in the committee on an amended Interstate Commerce Act, and I retired to accept the chairmanship of the Committee on Foreign Relations.

Colonel Roosevelt has proven over and over again, in every position he has occupied, from Police Commissioner of New York to the Presidency itself, that he is a marvellous man, a man of great resources, great intellect, great energy and courage, and a man of the highest degree of integrity. He will go down in the history of this country as the most remarkable man of his day.

The Hon. John Hay, at the urgent request of Colonel Roosevelt, continued to act as Secretary of State (to which position he had been appointed by President McKinley) until his death in 1905. John Hay was the most accomplished diplomat, in my judgment, who ever occupied the high position of Secretary of State.

I knew him from his boyhood, and knew his father and all the members of his family. The Hon. Milton Hay, whom I have mentioned elsewhere, and who was my law partner, was an uncle of John Hay. John was a student in our law office in Springfield, and as a student of the law he showed marked intellectual capacity and grasp. It was from our law office that President Lincoln took him to act as one of his private secretaries when he left Springfield for Washington to be inaugurated as President of the United States, and Mr. Hay continued to act as such until the President's death. He abandoned the law as a profession and became finally the editor of *The New York Tribune*. I probably knew him more intimately than any one else in public life, and when Mr. McKinley became President I urged him to appoint Hay as Ambassador to Great Britain. He served in that position with great credit to himself and his country. He was very popular with the members of the British Government, and seemed to have more influence, and to be more able to accomplish important results, than any of his predecessors in that office. When it was rumored that there was to be a vacancy in the State Department, by the retirement of Mr. Day, who was ambitious to go on the Federal Bench, I wrote Mr. McKinley a letter, in which I told him that he could find no better man to succeed Mr. Day as Secretary than his Ambassador to Great Britain, John Hay. And he was appointed.

As Secretary of State, Mr. Hay was successful in carrying to a triumphant conclusion our Far Eastern diplomacy. For years the situation in the Far East, and especially in China, had been delicate and critical to an extreme. The acquisition of Hawaii and the Philippines gave to the United States an extraordinary interest in events occurring in the Orient. The United States stood for the "open door" in China; and as the result of the diplomacy and influence of Secretary Hay, freedom of commerce was secured, and the division of China among the powers has been prevented. In our relations with China, we have pursued a disinterested policy of disavowal of

territorial aggrandizement, and a disposition to respect the rights of that Government, confining our interests to the peaceful development of trade. Secretary Hay never hesitated on all proper occasions to assert our influence to preserve its independence and prevent its dismemberment.

For many centuries China had been a hermit nation, successfully resisting foreign influence and invasion; but gradually, on one pretext or another, she was compelled to open her ports, and Great Britain, Russia, and Germany had gained special advantages and exceptional privileges in portions of China, where, under the guise of "spheres of interest," they were exercising considerable control over an important part of that Empire. It seemed probable that not only would these nations absorb the trade of China, but that the Empire itself would be dismembered and divided among the powers. To prevent this, Secretary Hay advanced the so-called "open door" policy and successfully carried it out.

In September, 1899, he addressed communications to the Governments of Great Britain, Russia, Germany, Italy, and Japan, suggesting that, as he understood it to be the settled policy and purpose of those countries not to use any privileges which might be granted them in China as a means of excluding any commercial rival, and that freedom of trade for them in that ancient empire meant freedom of trade for all the world alike, he considered that the maintenance of this policy was alike urgently demanded by the commercial communities of these several nations, and that it was the only one which would improve existing conditions and extend their future operation. He further suggested that it was the desire of the United States Government that the interests of its citizens should not be prejudiced through exclusive treatment by any of the controlling powers within their respective spheres of interest in China, and that it hoped to retain there an open market for all the world's commerce, remove dangerous sources of international irritation, and promote administrative reform. Secretary Hay

accordingly invited a declaration by each of them in regard to the treatment of foreign commerce in their spheres of interest. Without inconsiderable delay the Governments of Great Britain, Russia, Germany, Italy, and Japan replied to his circular note, giving cordial and full assurance of endorsement of the principles suggested by our Government. Thus was successfully begun the since famous "open door" policy in China.

But this great triumph in the interest of the freedom of the world's commerce was followed by the Boxer outbreak of 1900. The German Minister was murdered in the streets of Peking, the legations were attacked and in a state of siege for a month.

The Boxer outbreak was made the occasion of a joint international expedition for the relief of the diplomatic representatives and other foreigners whose lives were in peril. Congress was not in session, but on Secretary Hay's advice, there was despatched a division of the American Army composed of all arms of the service. This almost amounted to a declaration of war, or the waging of war without the consent of Congress. The Executive was justified, however, and did not hesitate to assume the responsibility.

In the midst of the intense excitement throughout the world, when the downfall of the Empire of China seemed almost certain, Secretary Hay, with the foresight which always distinguished his official acts, issued a circular note on July 3, 1900, to all the powers having interests in China, stating the position of the United States; that it would be our policy to find a solution which would bring permanent safety and peace to China, preserve its territorial and administrative entity, protect all rights guaranteed by treaty and international law, and safeguard for the world the principle of equal and impartial trade with all parts of the Chinese Empire. Secretary Hay's note gave notice to the world that the United States would not permit

the dismemberment of China, and it was so in accord with the principles of justice that it met with the approval of all.

After the relief of the legations and the suppression of the Boxer troubles by the allied powers, there followed a long period of negotiation, and an enormous and exorbitant demand was made by the allies as an indemnity. So exorbitant was it at first that China probably never would have been able to pay. Secretary Hay constantly intervened to reduce the demands of the powers and cut down to a reasonable limit the enormous indemnity they were seeking to exact. Finally the protocol of 1901 was signed, imposing very heavy and humiliating burdens on China. It has been the province of the United States to alleviate these burdens, and we have only recently remitted a very large portion of the indemnity which was to have come to the United States.

Later, Secretary Hay negotiated a very favorable commercial treaty with China which further strengthened the "open door," gave increased privileges to our diplomatic and consular officers, and to our citizens in China, and opened new cities to international trade and residence.

One of Secretary Hay's last acts in the State Department was another diplomatic triumph in the interest of China. It had been apparent for some time that war between Russia and Japan was inevitable, and Mr. Hay realized that war might seriously impair the integrity of China and the benefits of the "open door" policy. Immediately after the war commenced, therefore, on February 10, 1904, Mr. Hay addressed to the Governments of Russia, Japan, and China, and to all other powers having spheres of influence in China, a circular note in which he said:

"It is the earnest desire of the Government of the United States that in the military operations which have begun between Russia and Japan, the neutrality of China, and in all practicable ways her administrative entity,

shall be protected by both parties, and that the area of hostilities shall be localized and limited as much as possible, so that undue excitement and disturbance of the Chinese people may be prevented, and the least possible loss to the commerce and peaceful intercourse of the world may be occasioned."

Mr. Hay's proposition was commended by the world and was accepted by the neutral nations, and also by China, Russia, and Japan.

Secretary Hay's measures respecting China were of the greatest importance and significance, because they not only tended to the peace of the world, but they have preserved the extensive territory and enormous population of that empire to the free and untrammelled trade and commerce of all countries.

In addition to securing from Great Britain, through the Hay-Pauncefote treaty, the abrogation of the Clayton-Bulwer treaty, thereby making it possible for the United States to construct the Isthmian Canal, Secretary Hay succeeded in settling the controversy over the Alaskan boundary, which had been a subject of dispute between the United States and Great Britain for half a century. The treaty of 1868, between the United States and Russia, by which we acquired Alaska, in describing the boundary of Alaska, adopted the description contained in the treaty of 1825, between Great Britain and Russia. Years ago it was discovered that the boundary described in the treaty of 1825 was incorrect as a geographical fact.

While the country remained unsettled the definite boundary was not so material, but since the first Cleveland Administration the Alaskan boundary had been an important subject of dispute. The feeling among our people in Alaska and among the Canadians became very bitter. This was one of the principal reasons for the creation of the Joint High Commission in 1899, whose purpose it was to settle all outstanding questions between the United

States and Canada, the principal one being the Alaskan boundary. The Joint High Commission made considerable progress in adjusting these questions, but failing to reach an agreement as to the Alaskan boundary, the commission adjourned without disposing of any of the subjects in controversy. President Roosevelt and Secretary Hay, in view of our long and undisputed occupation of the territory in question, declined to allow the reference of the Alaskan boundary to a regular arbitration at the Hague, but instead, Secretary Hay proposed the creation of a judicial tribunal composed of an equal number of members from each country, feeling confident that our claim would be successfully established by such a body. There was very great opposition, and there were many predictions of failure, but on January 24, 1903, a treaty between the United States and Great Britain was signed, providing for such a tribunal.

The treaty was duly ratified, and the tribunal appointed, and on October 20, 1903, reached a conclusion which was a complete victory for the United States, sustaining as it did every material contention of our Government.

The settlement of the Alaskan boundary was a very notable diplomatic triumph, and Secretary Hay is entitled to much credit for it.

I cannot go into the many important matters which Mr. Hay disposed of as Secretary of State. He left a splendid record. I made it a point to keep in constant touch with him by visiting at his office frequently, and he always talked with me frankly and freely concerning the important negotiations in which he was engaged. The only criticism I have to make of him as Secretary of State is, that he was disposed, wherever he could possibly do so, to make international agreements and settle differences without consulting the Senate. And, in addition, I never could induce him to come before the Committee on Foreign Relations and explain to the committee personally various treaties and important matters in which the State

Department was interested. Why he would not do so I do not know. He was an exceedingly modest man and shrank from all controversy. It is seldom, however, that the State Department has had at its head so brilliant and scholarly a man as John Hay. He will go down in history as among the greatest of our Secretaries of State.

I will make some further references to the important results of the Roosevelt Administration in what I shall say in a later chapter concerning the work of the Committee on Foreign Relations.

William Howard Taft, now President of the United States, was President Roosevelt's Secretary of War, and a very able Secretary he was. I first knew him in Washington when, as a young man but thirty-three years of age, he was serving as Solicitor General under President Harrison. I followed his career very closely from the time that I first became acquainted with him.

As a United States Circuit Judge, to which position he was appointed by President Harrison, he was regarded as one of the ablest in the country. The Circuit Court of Appeals on which he served was a notable one. It was composed of three men who have since occupied the highest positions in the United States. William R. Day was first Assistant Secretary of State, then Secretary of State, one of the negotiators of the Paris Peace Treaty, Circuit Judge, and later a Supreme Court Justice. Judge Taft was first civil Governor of the Philippines, Secretary of War, and then President; and he has only recently appointed his old colleague, Judge Lurton, the third member of the Court of Appeals, to the position of Justice of the Supreme Court of the United States.

Judge Taft has occupied many high positions, all of which he has filled with great honor and distinction. I doubt whether he has enjoyed the high office of President of the United States. I myself have always thought that

he would have made one of our greatest Chief Justices had he been appointed to that position.

Just before the National Convention of 1908 assembled at Chicago, in which convention I was chairman of the Illinois delegation, when every one knew that Taft was sure to be the nominee, I called on him at the War Department, and in the course of the conversation I took occasion to remark that I had always been in favor of him for Chief Justice, but it seemed now that he was certain to be the nominee for President, and his career would consequently go along another line. He replied: "If your friend Chief Justice Fuller should retire and the President should send me a commission as Chief Justice, I would take it now."

It is my purpose to practically close these memoirs with the end of the Roosevelt Administration, for the reason that I do not feel at liberty to write in detail of events occurring within the past two years. All that I will venture to say is that my relations with Mr. Taft as President have been of the most cordial and friendly character; and no one can question that he has been thoroughly conscientious in the discharge of the duties of President of the United States. That in 1910 the party went down in defeat for the first time in eighteen years cannot be charged to President Taft. Nothing that he did as Chief Executive was responsible for that defeat. I myself believe that it was simply the result of the people becoming tired of too much prosperity under Republican administration. The newspaper agitation over the Aldrich-Payne Tariff Bill was mainly instrumental in turning the House of Representatives over to the Democracy.

The Hon. Philander C. Knox was Attorney-General in President Roosevelt's cabinet, as he had been in the cabinet of his predecessor. He is now serving as Secretary of State under President Taft. He has had a long and highly distinguished career at the bar, and is probably one of the

greatest lawyers of his day. He served in the Senate of the United States for some years, and upon entering that body he at once took his place as a leader on all questions of a legal and constitutional nature. As a member of the Judiciary Committee, he had quite a commanding influence on important legislation coming from that committee. As Secretary of State Mr. Knox has been successful to an eminent degree, and I have no doubt that his career as the Premier of the Taft Administration will add to his great fame as a lawyer and statesman.

I cannot refrain from saying a word in reference to the Hon. James Wilson, who was appointed Secretary of Agriculture by President McKinley, in which position he has been retained by both President Roosevelt and President Taft. He has served as a cabinet officer for a longer consecutive term than any man in our history.

I have been more or less familiar with the administration of the Agricultural Department ever since its creation, and I do not hesitate to say that Mr. Wilson has been the most efficient Secretary of Agriculture that we have ever had. He has accomplished greater results in that office than any of his predecessors, and should remain there as long as he will consent to serve.

CHAPTER XXI INTERSTATE COMMERCE

At the time I am writing these lines, no question of governmental policy occupies so prominent a place in the thoughts of the people as that of controlling the steady growth and extending influence of corporate power, and of regulating its relations to the public. And there are no corporations whose proceedings so directly affect every citizen in the daily pursuit of his business as the corporations engaged in transportation.

Of the many new forms introduced into every department of civilized life during the past century, none have brought about more marvellous changes than the railroad, as an instrumentality of commerce. The substitution of steam and electricity for animal power was one of the most important events in our industrial history. The commercial, social, and political relations of the nations, have been revolutionized by the development of improved means of communication and transportation. With this changed condition of affairs in the commercial world came new questions of the greatest importance for the consideration of those upon whom devolved the duty of making the nation's laws.

In the early days of railroads, the question was not how to regulate, but how to secure them; but in the early seventies their importance grew to such proportions that the railroads threatened to become the masters and not the servants of the people. There were all sorts of abuses. Railroad officers became so arrogant that they seemed to assume that they were above all law; rebating and discrimination were the rule and not the exception. It was the public indignation against long continued discrimination and undue preferences which brought about the Granger Movement, which resulted, seventeen years later, in the enactment of the first Interstate Commerce Act.

With the Granger Movement of the early seventies, and the passage of State laws for the control of railroad transportation, began the discussion which is still before Congress and the public as one of the live issues of the day.

It so happens that I have been intimately connected with this subject from the time I was serving as Speaker of the Illinois House of Representatives in 1873.

The State of Illinois, like most of the Western States, had a law on the subject of railroad regulation; but it was ineffective, and the commission

under it had no practical power. I appointed the committee of the House of Representatives of the Illinois Legislature in 1873, of which John Oberly, of Cairo, Illinois, was a member, and it was that committee that reported to the House the bill which finally became a law, known as the Railroad and Warehouse Law of 1873. It is still the existing law in Illinois, and was for many years regarded as one of the broadest and most far-reaching of State enactments.

After I became Governor of the State, in 1877, I appointed a new Railroad and Warehouse Commission under the new law, and naturally took a deep interest in its work. During my term as Governor a resolution was adopted by the General Assembly really looking to the abolition of the Railroad and Warehouse Commission, but on its face inquiring of me as Governor for information concerning the cost of maintaining the Railroad and Warehouse Commission, and the benefits, if any, of the commission, to the people of the State of Illinois.

To this resolution I promptly responded in a message to the General Assembly, dated February 17, 1879, which in part I take the liberty of quoting here, because never afterwards in Illinois, so far as I know, was there any movement to abolish the Railroad and Warehouse Commission and repeal the Illinois Railroad and Warehouse Act.

After giving the pay and expenses of the board, I continued:

"To answer this portion of the resolution in a manner satisfactory to myself would include a recital of the many attempts that have been made in this and other countries to control railroad corporations by legislation. In a paper of this kind such a reply can not be made. I must therefore be satisfied with a glance at the advance that resulted in the enactment of the railroad and warehouse laws of this State.

"Since the passage of the laws creating the railroad and warehouse commission, in 1871, Illinois has made very important advances toward the solution of the railroad problem.

"The questions involved in this problem have not only been before the people of this State, but in other States and countries.

"In England, after the railroad had become a fact, it was recognized as a public highway. The right of Parliament to fix rates for the transportation of passengers and freight by railroad corporations was therefore asserted, and schedules of rates were put into their charters. Those familiar with the subject need not be told that the attempt to establish rates in this manner was a failure. Then it was asserted that competition, if encouraged by the Government, would prove a remedy for the abuses with which the railroads were charged. The suggestion was acted upon. The Government encouraged the construction of competing lines. As a result, rates fell. Competition, however, finally began to entail disaster upon the competitors and compel them to become allies to escape destruction. The competitors combined; railroads were consolidated; rival lines were united, and competition was thus destroyed. The danger of great combinations of this kind, not only to the business interests of the country, but also to the State, was at once suggested, and occasioned alarm. This alarm resulted in a public opinion that the Government should own the railroads. But consolidation, to the surprise of the prophets of evil, did not result in higher rates. On the contrary, lower rates and higher dividends resulted.

"Thus by a logical process of attempt and failure to control railroad corporations, the conclusion was reached that wise policy required permission to such corporations to operate their railroads in their own way upon ordinary business principles. But at the same time a board of commissioners was wisely created and authorized to hear and determine

complaints against railroad corporations, and to exercise other important powers. This board was created about five years ago; and the most notable feature in its career, says Charles Francis Adams, junior, is the very trifling call that seems to have been made upon it. The cases which come before it are neither numerous nor of great importance. It would, however, be unwholly safe to conclude from this fact that such a tribunal is unnecessary. On the contrary, it may be confidently asserted that no competent board of railroad commissioners clothed with the peculiar power of the English board, will, either there or anywhere else, have many cases to dispose of. The mere fact that a tribunal is there, that a machinery does exist for the prompt and final decision of that class of questions put an end to them. They no longer arise.

"The process through which the public mind in America has passed on the railroad question is not dissimilar to that through which the public mind of England passed. But here competition was relied on from the first. To all who asked for them railroad charters were granted. The result has been the construction of railroads in all parts of the country, many of them through districts of country without business, or even population, as well as between all business centres and through populous, fertile, and well cultivated regions. Free trade in railroad building, and the too liberal use of municipal credit in their aid, has induced the building of some lines which are wholly unnecessary, and which crowd, duplicate, and embarrass lines previously built and which were fully adequate to the needs of the community.

"In Illinois, railroad enterprises have been particularly numerous and have made the State renowned for having the most miles of railroad track—for being the chief railroad State.

"But competition did not result according to public anticipation. The competing corporations worked without sufficient remuneration at

competing points, and, to make good the losses resulting, were often guilty of extortion at the non-competing points. They discriminated against persons and places. Citizens protested against these abuses in vain. The railroad corporations, when threatened with the power of the Government, indulged in the language of defiance, and attempted to control legislation to their own advantage. At last public indignation became excited against them. They did not heed it. They believed the courts would be their refuge from popular fury. The indignation of the people expressed itself in many ways and finally found utterance in the Constitution of 1870. In this Constitution may be found all the phases of opinion on the railroad question through which the English mind has run. The railroad is declared a public highway. The establishment of reasonable rates of charges is directed; competition between railroads is recognized as necessary to the public welfare; and the General Assembly is required to pass laws to correct abuses and to prevent unjust discrimination and extortion in the rates and passenger tariffs on the different railroads of the State, and enforce such laws by adequate penalties to the extent, if necessary for that purpose, of forfeiture of their property and franchises.

"The Constitution did more than this. To correct abuses of the interests of the farmers from whose fields warehousemen in combination with corporate common carriers had been drawing riches, it declared all elevators or structures where grain or other property was stored for a compensation, public warehouses, and expressly directed the General Assembly to pass laws for the government of warehouses, for the inspection of grain, and for the protection of producers, shippers, and receivers of grain and produce.

"Promptly after the adoption of the Constitution the Legislature attempted to give these provisions vitality by the enactment of laws to carry them out. One of these created the Railroad and Warehouse Commission

and imposed on it important duties. Another was an act to regulate public warehouses and warehousing. By this act other important duties were imposed upon the Railroad and Warehouse Commission."

After reviewing the attempt to enforce these laws the message continues:

"In 1873, the present law to prevent extortion and unjust discrimination in rates charged for the transportation of passengers and freight on railroads in this State was passed. It was prepared and enacted with the decision of the Supreme Court in the case of *Illinois vs. C. and A. R. R.*, fresh in the minds of the members of the General Assembly, and every suggestion made by the court was observed.

"The Commission since the enactment of this statute has brought many suits against railroad corporations for violation of the law."

After reviewing the various cases I proceeded:

"In 1871, the Railroad and Warehouse Commission was established. Its creation was resisted by both railroad corporations and public warehousemen, and after its organization they treated it with little consideration. They refused to recognize its authority, but after the decision of the Supreme Court of the United States declaring the doctrine that the Government may regulate the conduct of its citizens to each other, and, when necessary, for the public good, the manner in which each shall use his own property, the railroad corporations and public warehousemen began to grow less determined in their opposition to the attempts to control them, until at this time there is very little opposition. They now give prompt attention to requests of the Commission for the correction of abuses called to its notice by their patrons; and thus the Commissioners not only settle questions arising between railroad corporations and those who patronize them, but it may as truthfully be said of this as of the English or

Massachusetts Commission, that the very fact of its existence has put an end to many of the abuses formerly practised by such corporations, and which were angrily complained of by the people. . . .

"It is a curious fact that the conclusion reached by the English statesmen in 1874, was reached in Illinois in 1873; the conclusion that railroad companies ought to have the right to control their own affairs, fix their own rates of transportation, be free from meddlesome legislation, and, as has been said, work out their own destiny in their own way, just so long as they show a reasonable regard for the requirements of the community."

After analyzing the law of 1873, referring to the procedure under it, to the decision of the courts, and the fact that the Railroad and Warehouse Commissioners made under it a schedule of maximum rates of charges, I said:

"The schedule will require revision from time to time, and this work can only be done by men who can give it their whole time, and who will become students of the great subject of transportation.

"Before action by the Supreme Court it has not been deemed advisable that the Commissioners should revise the schedule, and put the State thereby to what might be unnecessary expense; nor that they should multiply suits under the law of 1873, against railroad companies for similar offences to those set up in the cases now pending.

"Ever since its organization the board has been putting into operation new laws founded upon old principles applied to new facts and it has been compelled to walk with slow step. It has been required, in the assertion of its authority to go from one court to another, and await the approval by the Supreme Court of the legislation directed by the Constitution of 1870.

"It has won a victory in the warehouse controversy and secured the judicial endorsement of doctrines which in this age of concentration and monopoly, are absolutely necessary to the public welfare. . . .

"Leaving out of view the benefits that have resulted to the people by the mere fact of the existence of the Board, which has prevented many abuses that would have been committed save for its presence in the State, it has been at work, and useful. It has perfected the organization of the Grain Inspection Department at Chicago; it has gathered statistics in reference to transportation that are of very great benefit to the public; it has adopted the policy of railroad examinations with a view to security of life; and, in my judgment, the authority of the Commission ought to be enlarged so as to enable it to compel the railroad companies to improve their tracks and bridges, when, in the judgment of the Commission, such portions of railroads become unsafe. The Railroad Commissioners act as arbitrators between the railroad companies and their patrons; and in the Commissioners' report they say they have succeeded in settling most of the complaints made to them in a manner satisfactory to all the parties to the controversies.

"In my judgment if the Commission were dispensed with by the Legislature, difficulties would soon arise, agitation would commence again, and controversies would run riot. New legislation would follow, another board of some kind would soon be created, and the track we have just passed over would be again travelled by the people's representatives.

"The Board should be sustained in the interest of all the people. Instead of being destroyed it should be strengthened. It should not only have the authority with which it is now vested, but more. It should be made a legal arbitrator in all matters of controversy between railroad companies and warehouses and their patrons; and it should be required to make

examination of roads, and be invested with authority to compel reparation of unsafe and defective bridges, culverts, track, and rolling-stock.

"(Signed) S. M. Cullom,
"Governor."

My experience, as Chief Executive of the State, with the practical workings of the Railroad and Warehouse Law, clearly demonstrated to me that a State statute, no matter how drastic it might be, was utterly inadequate to meet the evils complained of, and that effective regulation must be Federal and not State, or probably Federal and State combined. Some of the States had attempted to exercise control over interstate traffic which originated in the State, but it seemed perfectly clear from a long line of decisions of the Supreme Court, beginning with *Gibbons vs. Ogden*, and continuing with *Reading Railway vs. Pennsylvania*; *Baltimore and Ohio vs. Maryland*, and many other cases, that the States as such had no control over interstate commerce. But it was not until our own Illinois case (*Wabash Railroad vs. Illinois*), that the Supreme Court settled it once and for all. It was clearly stated in that case that the power of Congress was exclusive, and the Court said that, "notwithstanding whatever *dicta* might appear in other cases, this court holds now and has never consciously held otherwise, that a statute of a State intended to regulate or tax or to impose any restriction upon the transmission of persons or property from one State to another is not within the class of legislation which the States may enact in the absence of legislation by Congress, and that such statutes are void."

This decision of the Supreme Court was rendered just about the time I was elected to the United States Senate, and I then and there determined that I would make it one of my great aims in the Senate to secure the enactment of a Federal statute regulating interstate commerce.

It would seem astonishing that the Commerce clause of the Constitution should have remained dormant, as it did for nearly a century. Aside from two unimportant acts, no statute had been passed under it from the beginning of the Government until the Act to Regulate Commerce was passed in 1887.

Not even a serious attempt had been made to pass an act for the regulation of interstate commerce. Bills were introduced from Congress to Congress and laid aside; some investigations were made—as, for instance, the Windom investigation by a select committee of the House in 1873—but it all came to naught. It seemed that no one man, either in the Senate or House, had made it his business to secure the passage of such an act.

Very fortunately, as I see it now, when I first came to the Senate, I received no important committee assignments. Having been in public life for many years, member of Congress, Governor of my State, I naturally felt that I would be properly taken care of without appealing to my older colleagues for assistance. Even my own colleague, General Logan, did not interest himself in the matter. I attended the caucus when the committee announcements were made, and observing that I received nothing of any consequence, I addressed the caucus and protested that I had not been treated properly. Later Senator Edmunds resigned his place as a regent of the Smithsonian Institution and I was appointed to succeed him in that position.

I was assigned, however, to the Committee on Railroads—which was then what we know now in the Senate as a non-working committee. I determined that the committee should have something to do, and I immediately became active in securing the consideration of an act for the regulation of interstate commerce. I drew up a bill, introduced it, had it referred to the committee, and finally secured its consideration and report to

the Senate. No one paid any particular attention to what I was doing until then. When the bill was reported to the Senate, and I was pushing and urging and doing everything in my power to secure its consideration, Senator Allison, always my friend, always wanting to assist me in any way in his power, came to me one day and said:

"Cullom, we know nothing about this question; we are groping in the dark; and I believe that there ought to be a select committee of the Senate appointed to investigate the question, to go out among the people, take testimony, and find out what they know about it,—what the experts know, what the railroad officials know, what public opinion generally is, and report their conclusions to the Senate at the beginning of the next session. I am willing to help you secure the passage of a resolution with that end in view."

This was perfectly agreeable to me and, on March 17, 1885, a resolution of the Senate, introduced by me, was adopted. This resolution provided—

"That a select committee of five Senators be appointed to investigate and report upon the subject of the regulation of the transportation by railroad and water routes in connection or in competition with said railroads of freights and passengers between the several States, with authority to sit during the recess of Congress, and with power to summon witnesses, and to do whatever is necessary for a full examination of the subject, and report to the Senate on or before the second Monday in December next. Said committee shall have power to appoint a clerk and stenographer, and the expenses of such investigation shall be paid from the appropriation for expenses of inquiries and investigations ordered by the Senate."

The committee, of which I was made chairman, was appointed in due course, my colleagues being Senator O. H. Platt, of Connecticut; Senator Warner Miller, of New York; Senator Arthur Pugh Gorman, of Maryland;

and Senator Isham G. Harris, of Tennessee. Leaving out any reference to myself, the selection was regarded as having been most judicious and suitable.

And here let me digress to say a few words in reference to my colleagues on that committee.

Senator Warner Miller was a strong man intellectually, and a good business man. He had succeeded Senator T. C. Platt on March 4, 1881, and readily took his place in the Senate as one of its influential members, although he served but one term. He was a valuable man as a member of the committee, and took a very prominent part in the debates preceding the passage of the act.

Senator Gorman had a remarkable public career. Without the advantages of influential family, without wealth, with only limited education, through his own exertions alone he arose from the position of a page in the United States Senate to the position of Senator and leader of his party in the Senate. He was a *protégé*, friend, and follower of that illustrious son of Illinois, Stephen A. Douglas. He was one of the most sagacious politicians of his day. By his shrewd management of the Cleveland campaign he secured the defeat of Mr. Blaine and the election of Mr. Cleveland. His charming personality, his suavity of manner, his magnetic influence over men with whom he came into contact, combined with his marked ability, made it easy for him to retain the difficult position of a leader of his great party. He enjoyed in the highest degree the respect and confidence of every Senator with whom he served, on both sides of the chamber, and specially was his influence felt in securing the support of the Democratic Senators in the passage of the Act of 1887.

Senator Harris, of Tennessee, was a very useful member of the Senate, and was a man possessed of more than ordinary ability. His ability, perhaps,

was not as great as Senator Gorman's, although he was a very influential and highly respected member of the Senate. He was a hard worker; and one trait in particular that I remember about him was, he never failed to attend promptly on time the meeting of any committee of which he was a member. Indeed, I do not know of any man with whom I have served in the Senate, aside from my respected colleague, Senator Frye, who was so punctual.

He was a man of convivial habits, and used to poke considerable fun at me because I would not drink or play poker. At the time when the select committee was to meet in Memphis, the home of Senator Harris, the prominent business men of that place waited on him and told him they understood a very eminent committee was coming there in a few days, and they would like to show them some courtesies. Harris replied that he did not know who would be there; that Senator Platt would not, and he did not believe Senator Gorman would—in fact, he did not believe any one would be there, excepting the chairman and himself; and so far as the chairman, Senator Cullom, was concerned, they could not do anything for him, as he did not drink or smoke, and was "one of the damndest, poorest card-players he had ever known." So, about all the entertaining they could do for him would be to show him about the city.

Many amusing stories were told of him. When I called the committee together, preliminary to starting out on our tour, I told them that I would be very glad to allow them everything within reason that was necessary, but the Government would not pay for their whiskey and cigars. Harris promptly replied: "That's right, Mr. Chairman. So far as I am concerned, if I can't get my whiskey by standing around the bar when other people are drinking, I will pay for it myself."

When the committee were in Minneapolis, we were sitting at a long table at dinner; I was at one end, and Harris was at the other, facing me. An old

soldier came up to speak to me, and glancing down toward the other end of the table, he asked: "Is n't that old Harris of Tennessee?" When I replied that it was, he continued: "Well, well! The last time I saw him, he was wearing a linen- duster, riding a mule, and going South like hell."

Harris was a man of the most rigid honesty. He not only rendered valuable assistance in conducting the investigation, especially through the South, which section of the country he particularly represented, but took a prominent part in the debates and generally performed his full share toward securing the passage of the act.

Of Senator O. H. Platt I have already written.

But to return. Immediately after the adjournment of Congress this select committee visited Boston, New York, Philadelphia, Buffalo, Detroit, Chicago, St. Louis, Des Moines, Omaha, Minneapolis, and St. Paul, where we adjourned to meet in the South. We went to Memphis first, then to New Orleans and Atlanta, whence we returned to Washington, where I prepared the report of the committee which was submitted to the Senate, January 18, 1886.

The committee began its work impressed with the importance of the duty with which it had been charged, and with each step taken in prosecuting the inquiry we realized more fully how heavy were the obstacles to be overcome, how serious were the abuses that existed, how the public sentiment over the entire country was aroused, and how difficult it was going to be to frame and secure the passage of a measure adequate to relieve the situation. After many sessions and long conferences the select committee finally agreed upon a bill which, in its opinion, would correct the evils complained of.

Even after the committee had agreed to the bill, I was not entirely satisfied; I feared the existence of some absurdities, some features, which the railroads could not possibly comply with; and so I asked Senator Platt to meet me in New York, previously having arranged with Mr. Fink and Mr. Blanchard, two of the great railroad men of their day, and a gentleman representing specially the people's interests, whose name I do not recall, but who had been interested in securing regulation in New York and was an expert on the proposition, to meet with us in that city. We all met as planned. I stated that I desired to take the bill up with them, section by section, paragraph by paragraph, and if anything absurd or impracticable was found, or anything that could not be carried out, attention should be called to it, and we would discuss it and amend it if necessary. We went ahead on this line and were arguing over some proposition, when Mr. Fink got up and remarked: "Let it go; the whole thing is absurd anyhow." I arose and said that if that was the attitude of the railroad men, when the committee's only object was to report to the Senate a fair bill, that the conference might as well end. The other members of the conference intervened and said it was not fair that the chairman of the committee should be treated in this way, that Senator Cullom was acting in absolute good faith, whereupon Mr. Fink apologized, and the reading was resumed, and some amendments made where found necessary.

And this incident recalls to mind another aspect of the investigation. While the select committee was considering the subject, travelling from city to city, the high railroad officials paid no attention to us; rather, I might say, they avoided being called before us, probably considering it a waste of time, as they had no serious thought that anything would come of the investigation. They considered the railroads superior to the laws of Congress, and depended upon their old State charters. In those days they were the most arrogant set of men in this country; they have since learned that they are the servants and not the masters of the people. But when the

bill seemed pretty certain to pass, the attitude of the railroad officials suddenly changed. They came to Washington and complained that they had not been given the opportunity to be heard; that it would not be fair under the circumstances to pass a bill so largely affecting them; and they seemed to be sorely aggrieved when they could not prevent or delay its passage.

I introduced the bill in the first session of the Forty-ninth Congress, and after a great deal of difficulty, even with my colleague, General Logan, against it, finally had it made the special order. General Logan knew nothing about the subject; he cared nothing about it, and on one occasion he told me that I would ruin myself by advocating it.

When I called the bill up for consideration, I was so anxious to press it along that I did not care to make any general speech, excepting to explain as carefully and minutely as I could the various provisions of the measure. I said, in opening:

"I believe I am justified in saying that there is no subject of a public nature that is before the country about which there is so great unanimity of sentiment as there is upon the proposition that the National Government ought in some way to regulate interstate commerce. The testimony taken by the Committee shows conclusively to my mind, and I think to every man's mind who reads it, that there is necessity for some legislation by the National Government, looking to the regulation of interstate commerce by railroad and by waterways in connection therewith.

"I believe the time has gone by when it is necessary for any one to take up the time of the Senate in discussing the proposition that Congress has the power to regulate interstate commerce. These questions have been discussed over and over again in Congress, and the highest judicial tribunals of the country have decided over and over again that Congress has the power to regulate commerce among the States. So I do not feel at

liberty, if I were disposed, to occupy the attention of the Senate in discussing the general subject of whether there is any necessity for our doing anything, or the question of constitutional right of Congress to pass some act regulating commerce among the States.

"If the three propositions are correct: that the public sentiment is substantially unanimous that we should act; that the necessity for action exists; and that the power of Congress is admitted,— the only question left is, what Congress ought to do specifically; in other words, what kind of an act should Congress pass. The committee has reported a bill which is the best judgment that the committee had upon the subject."

I then proceeded to explain the bill carefully, section by section, and concluded by saying:

"I am led to believe that the bill as it stands is perhaps a more perfect bill on this subject than has ever been introduced in the Congress of the United States before. There may be many suggestions of amendment by honorable Senators during the consideration of the bill; and if any Senator has any suggestion of amendment to make, of course it is within the privilege of the Senate to adopt it, but I am very anxious that this bill shall be as promptly considered as possible, and as promptly acted upon and passed as possible, if in the judgment of the Senate it ought to be passed at all.

"As the Senate know, this subject has been up for consideration from one term of Congress to another, almost time out of mind; until the people of the United States have come almost to believe that there is no real purpose on the part of Congress to do anything more than introduce and report bills and discuss them a while, and then let them die before any final action is reached upon them.

"I said in the outset that in my judgment there is no public question before the American people to-day about which there is greater unanimity of sentiment than there is upon the proposition that the Congress of the United States ought to enact some law looking to the regulation of commerce among the several States, and I trust without taking up the time of the Senate longer that every Senator will give attention to this subject until we can pass some bill and get it to the other branch of Congress in the hope that before this session adjourns we shall get some legislation on this subject that will be of some service to the people and reasonably satisfy public opinion."

I pressed the bill on the attention of the Senate every day, never allowing it to be displaced where I could avoid it. I was determined that some bill should be passed at that session. The debate was long and interesting. There were comparatively few set speeches. It was a hot, running debate almost from the beginning, participated in by the strongest men in the Senate, many of whom were the ablest men of their day. Senators Aldrich, Edmunds, Evarts, Gorman, Hoar, Ingalls, Manderson, Miller, Mitchell, Morrill, Platt, Sewell, Sherman, Spooner, Teller, Vest, Morgan, Cameron, Dawes, Frye, Hale, Harrison, and Voorhees all engaged in it.

The bill was finally passed May 12, 1886.

In the meantime, Mr. Reagan, of Texas, who had been urging a bill in the House, and had it up for consideration during the same time the Senate bill was being considered, passed his bill, which differed essentially from the Senate bill. Both bills went to conference together, Mr. Reagan being the head of the conferees on the part of the House, and I being the head of the conferees on the part of the Senate. Then came the real struggle, the two measures remaining in conference from June to the following January. The contention finally centred on the pooling provision. Reagan had yielded on

nearly everything else; but Platt of Connecticut was bound there should be no prohibition against pooling. Reagan affirmed that the whole matter would have to drop, that he would never yield on that. I came back and consulted the leaders in the Senate, Allison among others, and they advised me to yield; that the country demanded a bill, and I had better accept Reagan's anti-pooling prohibition section than offer no measure at all—which I did.

Whether it is right or wrong, I do not know even to this day. I have never been quite certain in my mind on the question of pooling, and it is still a subject on which legislators and statesmen differ. But one thing does seem certain—public sentiment is as much opposed to pooling to-day as it was twenty years ago. There was a great fight in the Senate to secure the adoption of the conference report. Its adoption was opposed by such Senators as Cameron, Frye, Hawley, Hoar, Morrill, Sawyer, Sewell, Sherman, and Spooner. The pooling and long-and-short-haul clauses were the most fought over. Senator Platt, although a member of the conference, made a very able speech on the subject of pooling, in which he showed considerable feeling, and I at one time feared that he would oppose the adoption of the conference report on that account altogether. He concluded a very able address during the last days of the consideration of the report, by saying:

"Nine-tenths of all the interstate commerce business done to-day is done under these arrangements which are sought to be damned because of the evil meaning which has been given to the word 'pooling.' Whatever stability has been given to the railroad business, and through it to other business of the country, has been secured by these traffic arrangements, and in my judgment a bill which breaks them all up ruthlessly within sixty days, which invites the competition which is to demoralize business, will be far-reaching in its injurious results. For one I prefer to stand by my judgment. I will try

to have the courage of my convictions; I will try to do what I believe to be right, and I cannot consent to a bill which, though I accept its other provisions, contains a provision which I regard as positively vicious and wrong."

I was greatly provoked, almost outraged, at the manner in which Senators opposed the adoption of the conference report. It became almost a personal matter with me, and I finally concluded on the very day the vote was to be taken, whether the adoption of the report was to be beaten or not, that I would make a speech, and in that speech I indicated just how I felt. I said in part:

"I have been sitting here to-day listening to the assaults upon this bill, until I have become almost convinced that I am the most vicious man toward the railroads of any man I know. I started in upon the investigation of this subject two or three years ago with no prejudices, no bias of sentiment or judgment, no disposition whatever to do anything except that which my deliberate judgment told me was the best thing to do. I have believed I have occupied that position ever since, until within the last twenty-four hours, when the attacks upon this bill have become such that I have become a little doubtful whether I have not been inspired from the beginning, so far as my action has been concerned, with a determination to destroy the railroads of this country. To listen to the Senator from Alabama [Mr. Morgan] descanting upon the provisions of the bill, one can scarcely resist the conclusion that it is a bill to destroy the commerce of the country, and especially to break down all the railroads.

"So far as I am concerned, I repeat that I have no disposition of that kind, and I am unaware that either of the Senators on the conference committee have had any such disposition. We tried to do the best we could with the bill the Senate passed during the last session, to keep the bill as near to what the

Senate had it as we could do, and to arrive at an agreement between the House and Senate conferees.

"I submit that the majority of the assaults have been against provisions that were in the bill when the Senate voted for it during the last session of Congress. I am of the opinion that if this discussion lasted another day Senators would find in every line of the bill a very serious objection to its adoption. They started in to object to some provisions of the fourth and fifth sections. The Senator who has just concluded his remarks got over to the thirteenth section and I believe went one or two sections beyond that, and if there are any more speeches to be made against the bill I suppose the very last section of it will be attacked before a vote is taken.

"The Senate conferees regarded it as their duty to cling to every portion of the Senate bill, as it was passed, that they could cling to and reach an agreement between the conferees of the House and Senate. Hence it was that all these portions of the Senate bill not objected to by the House conferees were allowed to remain in the bill by the Senate conferees, the Senate conferees, as a matter of course, believing that the Senate of the United States knew what it was doing when it voted for the bill in the first place, and thinking that it remained of the same mind still. . . .

"The Senator from Georgia assaults the bill because he says that under it the provisions are so rigid that the railroads of the country can do no business at all. The Senator from Oregon assaults the bill because he says the fourth section amounts to nothing, and that the words 'under like circumstances and conditions' ought to be taken out.

"The Senator from Massachusetts [Mr. Hoar] assaults the bill because he says it is going to interfere with foreign commerce, and that the fourth section will be construed as not allowing a rebate of five cents a hundred upon commerce shipped across the country for exportation. . . .

"So I might go on referring to every Senator who has spoken against the bill, and nearly every one of them has founded his objections to the bill upon the use of the language that he had previously voted for in the Senate of the United States before the bill went to conference at all."

Men who opposed any legislation at all never supposed that the conference report would be agreed to, and I so stated in the Senate of the United States. I pointed out, moreover, that when they were met by a conference report the railroad men of the Senate rallied to the support of the transportation companies. I continued:

"Sir, it has just come to the point where you have got to face the music and vote for an interstate commerce bill, or vote it down. That is all there is to it. I have nothing more to say. I have discharged my duty as best I knew how. I reported on the part of the Senate conferees the bill that is before you. I am not responsible for what the Senate does with it. I am not going to find fault with anybody upon the question whether we concur in the report or reject it, but I warn Senators that the people of the United States for the last ten years have been struggling to assert the principle that the Government of the United States has the power to regulate transportation from one end of the country to another. I believe that if this report is rejected it is very doubtful whether we shall get any legislation at all during this present Congress, so when the Senate acts upon the question my duty will have been done so far as I am able to see it.

"I have believed from the time I have given any attention to public affairs that it was necessary to bring into force the provisions of the Constitution giving Congress the power to regulate commerce among the States. The Senator from New York [Mr. Evarts] attacked the bill and said that it was unconstitutional because, as I understand it, the Constitution was framed for

the purpose of facilitating commerce, and this was a bill to hinder or to militate against it.

"I undertake to say that the purpose of the bill, at least, whatever may be the strained construction which has been placed upon it or which may be placed upon it by the transportation companies of the country, has been to facilitate commerce and to protect the individual rights of the people as against the great railroad corporations. I have no disposition to interfere with their legitimate business. I have no disposition, God knows, to interfere with the commerce of the country, properly conducted, but I do say that it is the duty of the Congress of the United States to place upon the statute book some legislation which will look to the regulation of commerce upon the railroads that they will not treat one man differently under similar circumstances and conditions. . . .

"The Senator from Alabama [Mr. Morgan] says that we had better go slow and remain quiet under the old regime. Well, Mr. President, I remember only a few days ago hearing the Senator from Alabama alleging that the railroads, the common carriers of the country, were eating up the people, were destroying the interests of the people. I do not know whether he confined his remark to his own State or extended it to the country, but I should have inferred from the language he used against the railroad companies that he would have been in favor of almost any legislation that would in any way restrict them in their reckless disregard of the rights of the people. I can only conclude that the Senator from Alabama would rather that destructive system should go on, as he charged it to exist when he made his speech the other day, without control, than to trust a commission who he says are individually liable to corrupt influences either at the hands of the President or somebody else outside.

"Sir, we have got to trust somebody. We must either leave this matter to the discretion and judgment and sense of honor of the officers of the railroad companies, or we must trust the commission and the courts of the country to protect the people against unjust discrimination and extortion on the part of the common carriers. Is it the President of the United States as against a corporation? Is it an honest commission honestly selected by the President of the United States as against a railroad company? I say that there are not those inducements to be placed in the hands of a set of men selected for their integrity, selected for their ability, selected for their capacity to regulate railroads and enforce the law, that are left in the hands of the officers of the railroad companies themselves.

"I take it that there is somebody honest in this country, and that the President, if this bill becomes a law, will select the broadest gauge men, the men highest in integrity and intelligence as the men to enforce this law as against the corporations and as a go- between, if you please, between the shippers and the railroads of the country. I am willing to trust them. If they are not honest the President has the right to remove them; and if the shipper is unwilling to submit to their judgment, under the bill he has a right to go directly to the courts. I say that there is not anything that can be done by these corporations against individuals where the shipper himself has not a right to get into court in some way or other, if he is not willing to abide by the decision of the commissioners appointed by the President."

The conference report was adopted by a vote of thirty-seven yeas to twelve nays; but it was a rather significant fact that there were twenty-six absent, including Senators Aldrich, Dawes, Evarts, Morgan, and some of the most bitter opponents of railroad regulation.

The provisions of the Act of 1887 are too well known to need any recital here. In a word, it was partly declaratory of the common law, its essential

features being that railroad charges must be reasonable; that there must be no discriminations between persons and no preference between localities; railroads were prohibited from charging less for a long haul than for a shorter haul, "included within it under substantially similar circumstances"; pooling was prohibited; and a commission was established with power to hear and decide complaints, to make investigations and reports, and generally to see to the enforcement of the Act.

Considering the abuses that existed, the Act of 1887 was conservative legislation, but in Congress and among the people generally it was considered radical, until the courts robbed it by judicial construction of much of its intended force. During the debates, Senators remarked that never in the history of governments was a bill under consideration which would inevitably affect directly or remotely so great financial and industrial interests. It marked the beginning of a new era in the management of the railway business of the United States. It was the beginning of Governmental regulation which has finally culminated in the legislation of the Sixty-first Congress. And it is no little satisfaction to me to say that the fundamental principles of the original Act of 1887 have been retained in all subsequent acts. No one has seriously advocated that the fundamental principles of the Act of 1887 be changed, and subsequent legislation has been built upon it.

After the passage of the original Act of 1887, a permanent Interstate Committee of the Senate, of which I had the honor to be chairman, and in which position I remained for many years, was created. It was a very active committee at first. Necessarily, amendments were made to the law, and the railroads generally observed the law in good faith. Even the long-and-short-haul clause was observed, as it was intended by Congress that it should be. That is, the railroads did not set up at first that competition would create a dissimilarity of conditions and circumstances so as to justify them in charging more for the short haul than for the long haul. But it was not many

years before the railroads attacked first one and then another provision of the law, and they generally secured favorable decisions from the courts. I do not intend to go into the details of these decisions, the last one being the decision in the case which held that the Commission had no power to fix a future rate, because the act did not give it that express power. My own judgment is, and was at the time, that the original act by implication did give to the Interstate Commerce Commission the power to say after complaint and hearing, and after a given rate had been declared to be unreasonable, what in that case would be a reasonable rate; but the courts decided otherwise. Immediately, I drew up and introduced a bill, number 1439, of the Fifty-sixth Congress, and had it referred to the Committee on Interstate Commerce. This bill contained provisions substantially the same as were contained in the Hepburn Bill which passed the Senate in 1906. And in addition it was designed to give effect to the provisions of the original act which had been nullified by judicial construction. I worked my hardest to secure a favorable report of this bill. We had many hearings; but the Committee on Interstate Commerce, far from being in favor of favorably reporting the bill, were inclined to decline to allow me to report it to the Senate at all. I insisted that I would report it even though adversely, which I was finally permitted to do. But when reported to the Senate I stated that I reported it adversely because a majority of the committee were against it, but that I favored the bill personally, and would do what I could to secure its passage. This was in the year 1899.

It was not until seven years later that public sentiment was aroused to such an extent that it was possible to secure the amendments to the Act of 1887 which were embodied in Senate bill 1439.

I think it is only justice to myself to say—and I say it with much regret—that there were two reasons why it was impossible to secure at that time the report and passage of Senate bill 1439. First of all, the Executive did not

manifest any special interest in securing additional railroad regulation. Secondly, the railroads themselves had been very active in securing a change of the personnel of the Committee on Interstate Commerce, and men had been elected to the Senate and placed on that committee whose sympathies were in favor of very conservative regulation, if any regulation at all. The railroads had firmly determined to stop any further railroad regulation. And finally, in the make-up of the Committee, a majority of the Senators placed on the Committee on Interstate Commerce were men whose sympathies were with the railroads.

But even with the personnel of the committee made up against me, I have thought that had the late President McKinley given me the active support which he could have given, I could have secured, in 1899, practically all the legislation that was secured six years later. It is only justice to ex-President Roosevelt to say that had it not been for his earnest advocacy of railroad rate regulation the Hepburn Bill would never have been passed. With a chairman of the Committee on Interstate Commerce well known for his conservatism on the subject, with a majority of Republicans on the committee in sympathy with him, without the arousing of public sentiment by President Roosevelt, nothing would have been done.

I continued to take an exceptionally active part in railroad regulation until I was placed at the head of the Foreign Relations Committee of the Senate, and even afterwards I remained as the ranking member, next to the Chairman, of the Committee on Interstate Commerce, where I was glad to further as best I could such measures as came before the Committee in the way of strengthening and giving force to the original act.

I consented very reluctantly to leave the chairmanship of the Committee on Interstate Commerce, where I had served during all my term in the Senate, and I do not believe I would have done so had it not been for the

manner in which the committee was packed against me in the interest of non-action. At the last it became so that even the simplest measures which affected the railroads in the slightest degree would receive adverse action or none at all. I was utterly disgusted, and on several occasions told prominent railroad men that if they continued such methods the time would surely come when the people would become so aroused that they would see enacted the most drastic of railroad rate laws.

I had much to do with the passage of the Hepburn Act of 1906. After President Roosevelt had repeatedly urged it in his messages to Congress, and privately brought influence to bear on Senators, it seemed pretty certain that public sentiment demanded that practically the amendments to the original act embodied in Senate bill 1439, to which I have already referred, would sooner or later have to be enacted into law. As usual, those opposed to such legislation demanded that hearings be held, and the Committee on Interstate Commerce was authorized to sit during the recess of Congress and to hold hearings. Many weeks were consumed in these hearings, and many volumes of testimony were taken. I do not believe that I missed a session of the committee, and I tried as best I could to bring forth from the numerous witnesses summoned before the committee evidence to assist in securing the passage of the amendments to the original act, which I then thought necessary to perfect it.

I had expected to render what assistance I could during the next session, which convened in December, in framing the bill in committee and to assist in its passage in the Senate. But very unfortunately, just at the beginning of the next session of Congress, when the hearings were all concluded and the committee was prepared to go into executive session to consider the bill itself, I was taken ill and compelled to spend a couple of months in Florida to recover my health. It may seem strange, but the fact is, that my absence expedited the consideration of the bill by the committee and its report to the

Senate. I had telegraphed and written my late colleague, Senator Dolliver, to record me as voting for the favorable report of the bill from the committee to the Senate. It was expected that the committee would have to hold many sessions to consider the numerous amendments that had been offered. Senator Dolliver, at one of the first meetings of the committee called to consider the bill, read my telegram and letter asking to be voted in favor of reporting the bill. Objection was made to recording me, and one distinguished Senator raised the point respecting how I was to be recorded on the question of amendments. Considerable controversy, I understand, took place, and Senator Dolliver then moved to report the bill to the Senate with the amendments already adopted in committee. This closed the discussion in the committee; the vote was taken, and the bill was ordered reported to the Senate, my vote being recorded in the affirmative; after which Senator Aldrich, in order to make it appear all the more ridiculous, moved that Senator Tillman, a minority member of the committee, be authorized to report the bill. This motion prevailed; Senator Tillman did report it, and he had charge of its passage in the Senate. So, as I have stated, my absence, through the controversy over counting my vote, really expedited the bill through the committee.

I returned to my seat in the Senate in February, while the bill was being considered, and assisted as best I could through conferences with President Roosevelt and members of the Senate in agreeing on sections of the bill which were in controversy, particularly the court review section. I was also one of the conferees on the part of the Senate that finally settled the differences between the two Houses.

It was a very satisfactory bill, in the form in which it finally became a law.

CHAPTER XXII JOHN MARSHALL HARLAN

I have always admired Mr. Justice John Marshall Harlan, who has served some thirty-five years as a member of the Supreme Court of the United States, and who for a time after the death of Chief Justice Fuller acted as Chief Justice of the United States.

Upon the death of Judge Allen, who had for many years been United States District Judge for the Southern District of Illinois, it was suggested that his portrait be placed in the court room of the United States Circuit and District Court at Springfield, Illinois. The movement developed into the broader suggestion that portraits of other distinguished judges, who had presided over the United States Court at Springfield, and also a portrait of Chief Justice Marshall, be procured and added to the collection. The portraits of Judges John Marshall, Walter Q. Gresham, David Davis, Samuel H. Treat, Thomas Drummond, William J. Allen, John McLean, Nathaniel Pope, and John Marshall Harlan were procured, and it was planned that a suitable ceremony should take place in Springfield on June 2, 1903.

Judge Humphrey wrote me, telling me of the plans of the committee appointed by the Bar of the United States Court at Springfield, and asking me to say something concerning any one of these distinguished judges whom I might designate, leaving the selection to me.

I thought the matter over and determined that, inasmuch as I had known Justice Harlan more or less intimately ever since I became a member of the Senate, I should like to talk about him.

The occasion was quite a notable one. Vice-President Fairbanks delivered an address on Judge Gresham; Judge Kohlsaatt, on Chief Justice Marshall; Lawrence Weldon, on David Davis; Judge Creighton, on Samuel H. Treat; Mr. John W. Jewett, on Thomas Drummond; J. C. Allen, on W. J. Allen; Mr. Logan Hay, on John McLean; General Alfred Orendorff, on Nathaniel Pope;

and the portraits were accepted in the name of the Court at Springfield by the Hon. J. Otis Humphrey, the District Judge.

There was a very distinguished gathering of lawyers, of Federal and State judges from Illinois and adjacent States, and of many members of the families of the deceased jurists. Judges Kohlsaas, Humphrey, and Anderson occupied the bench. The whole proceeding was a very dignified and appropriate one.

I cannot give a better estimate of my regard for Justice Harlan than by quoting some extracts from the address I delivered on that occasion:

"The Supreme Court to-day is composed of nine eminent justices, of one of whom I have been asked to speak; and I do believe that the Justice of whom I speak, in all that goes to make a noted and able jurist, is second only to that learned Chief Justice, John Marshall, of whom Judge Kohlsaas has so interestingly spoken.

"I speak of John Marshall Harlan, who has been an honored member of the Supreme Court of the United States for more than a quarter of a century.

"Justice Harlan from his youth was the architect of his own fortune; he has been a man of remarkable individuality and force of character; he impressed himself from boyhood upon the community in which he lived. Before he reached his nineteenth year he was made Adjutant-General of the State of Kentucky. Like Lincoln, he performed the obligations of a citizen, both in private and official life, with zeal and faithfulness to duty. . . .

"When Justice Harlan was but a young man, slavery became the paramount issue of the day, and naturally being a staunch Union man, he took an active part in the discussion and struggles that became more or less bitter in his very early manhood. He was one of the first to enlist and lead

his regiment in the field in favor of the Union and was assigned a place in that division of the army commanded by the gallant old soldier and patriot, General Thomas. . . .

"Justice Harlan's record as a soldier was a brilliant one. Certain promotion and higher honors were assured him, and he was nominated by President Lincoln to the position of Brigadier-General; but the responsibilities resulting from the death of his father compelled him to abandon what was certain to have been a distinguished military career, and he reluctantly returned to Kentucky. . . .

"Following the struggle in arms came important reconstruction legislation and important Constitutional amendments, necessitating judicial interpretations. These grave questions of state gave opportunity for the development of great statesmen and judges.

"Great crises produce great men. Justice Harlan was at home in the thickest of the struggle, through the period of reconstruction, an able lawyer, an uncompromisingly bold man, asserting his position without fear or favor. While many of the important judicial and Constitutional questions growing out of reconstruction legislation remained unsettled, Justice Harlan took his place on the Supreme Bench, having been appointed by President Hayes in 1877, and an examination of the decisions of the Court since that year will show the prominent part he has taken in the disposition of these Constitutional questions.

"It has been said that there never was a very powerful character, a truly masculine, commanding man, who was not made so by struggles with great difficulties. Daily observation and history prove the truth of this statement. Hence I believe that the rough-and-tumble existence to which the majority of ambitious young men of our country are subjected, does much to prepare them for the higher duties of substantial, valuable citizenship. The active

life and early struggles of Justice Harlan in his State have had their influence in making him the fearless jurist that he is.

"Shortly after his appointment, Justice Harlan was assigned as the Supreme Justice for this circuit, and served here for eighteen years. Many of you present remember his visit to Springfield and his holding court in this room.

"To be a member of the Federal Judiciary is the highest honor that can be conferred upon an American lawyer. The crowning glory of our Nation was the establishment, by the fathers, of the independent Federal Judiciary, which is the conservator of the Constitution. I have unbounded faith in it. It is the protector of those fundamental liberties so dear to the Anglo-Saxon race. State Legislatures and the Congress may be swayed by the heat and passion of the hour; but so long as our independent Federal Judiciary remains, our people are safe in their legal, fundamental, Constitutional rights.

"Perhaps there is nothing that illustrates so well Justice Harlan's character, the equality of all men before the law, as do some of his dissenting opinions."

I then referred to his famous dissent in the Civil Rights case, delivered in 1883; to his dissent in the Income Tax case, and others of his notable utterances from the Supreme Bench; and at the same time I referred to the fact that he had written more than seven hundred opinions, covering nearly every branch of the law, the opinions on Constitutional questions being unusually large. I added:

"In many respects Justice Harlan resembles his namesake, John Marshall. Like John Marshall, he received his early training for the bench in the active practice at the Bar. Like John Marshall, he enlisted and fought for his

country. Like John Marshall, while still a young man, he was appointed a Justice of the Supreme Court, and has for more than a quarter of a century occupied that position. And like John Marshall, his great work on the bench has been in cases involving the construction and application of the Constitution. He has been especially assigned by the Court to the writing of opinions on Constitutional Law. In my opinion he stands to-day as the greatest living Constitutional lawyer.

"If the Court please, I desire to refer to one more phase of Justice Harlan's character. He is a religious man. He does not parade his belief before the world, yet he possesses deep and devout convictions and has given deep study to church questions. And it may be said that the great men of the world from the earliest dawn of civilization, with but few exceptions, have believed that the life of the soul does not end with the death of the body. Cicero, long before the birth of the Saviour, said:

'When I consider the wonderful activity of the mind, so great a memory of what has passed, and such a capacity of penetrating into the future; when I behold such a number of arts and sciences, and such a multitude of discoveries thence arising, I believe and am firmly persuaded that a nature which contains so many things within itself can not be mortal.'

"Centuries later the famous Dr. Johnson well said: 'How gloomy would be the mansions of the dead to him who did not know that he should never die; that what now acts shall continue its agency, and what now thinks shall think on for ever.'

"Justice Harlan is a firm and devout believer in the immortality of the soul.

"He is now approaching the age when under the law he may retire from the bench, yet he is in the vigor of health and is perhaps the greater judge

to-day than at any time in his past career. I am sure I voice the general desire of the Bar of the whole country that he shall, so long as his health and strength continue, remain an active member of that great Court."

It is more than eight years since I delivered that address. In the ensuing period, five justices of the Supreme Court have either retired under the law, or passed away, none of whom enjoyed a length of service equal to Judge Harlan's; and yet Justice Harlan is attending daily to his duties as a member of that court, apparently in vigorous health and certainly as profound and learned a judge to-day as at any time in his past career. And I repeat now what I said eight years ago—that I hope he shall for years to come remain an active member of that great court.

CHAPTER XXIII MEMBERS OF THE COMMITTEE ON FOREIGN RELATIONS

It has been said that Charles Sumner considered the chairmanship of the Committee on Foreign Relations as the highest honor that could have been conferred upon him by the United States Senate.

I have been chairman of the Committee on Foreign Relations for a longer consecutive period than any man in our history, aside from Mr. Sumner, who served as chairman for ten years. If I continue as chairman during the remainder of my term, I shall have exceeded the long service of Mr. Sumner.

The Committee on Foreign Relations was among the first of the permanent standing committees of the Senate. Prior to 1816, there were no permanent standing committees, the custom being to appoint select committees to consider the different portions of the President's messages, and for the consideration of any other subject which the Senate might from

session to session determine necessary for committee reference. On December 13, 1816, the Senate, by rule, proceeded to the appointment of the following standing committees, agreeably to the resolution of the tenth instant, which was as follows:

"Resolved, that it shall be one of the rules of the Senate that the following standing committees be appointed at each session: a Committee on Foreign Relations, a Committee on Finance, a Committee on Commerce and Manufactures, a Committee on Military Affairs, a Committee on the Militia, a Committee on Naval Affairs, a Committee on Public Lands, a Committee on Claims, a Committee on the Judiciary, a Committee on Post-offices and Post-roads, and a Committee on Pensions."

It will be noted that under this rule, the Committee on Foreign Relations was named first, and Mr. Barbour, of Virginia, was its first chairman. Whether it was at that time considered the most important committee, I do not know; but I do know that from the date of its formation, the Committee on Foreign Relations has been among the most important committees of the Senate, and at times in our history it has been *the* most important committee. It has been from the beginning particularly noted for the high character of the men who composed its membership, and we find in the archives of the Senate the names of some of the greatest men in our national history, who have from time to time acted as its chairmen.

Barbour of Virginia, Henry Clay, James Buchanan, Rives, Benton, King, Cass, Sumner, Windom, John F. Miller, John T. Morgan, John Sherman, and Cushman K. Davis are a few of those who have at different times occupied the position of chairman of the Committee on Foreign Relations.

My predecessors, as their names will indicate to those familiar with American history, have been noted for their conservatism in dealing with matters pertaining to our foreign relations, and there is no position in the

Senate where conservatism is so essential. My ambition has been so to conduct the business coming before the committee as to keep up the high standard set and the high standing maintained by the distinguished statesmen who have preceded me in the position.

The work of the Foreign Relations Committee is almost exclusively executive and confidential, and consists largely in the consideration of treaties submitted by the President to the Senate for ratification. Very little important legislative business comes before this committee, although it has jurisdiction over claims of foreign citizens against the United States, and all legislation that in any wise affects our relations with other nations.

It was almost, I might say, by accident that I became a member of this important committee. I had been a member of the Committee on Commerce for a number of years, and took quite an interest in the very important legislation coming before that committee; and the improvement of rivers and harbors was a subject in which Illinois was greatly interested.

The late Senator Mitchell, of Oregon, was in 1895 chairman of the Committee on Organization, having in charge the make-up of the committees of the Senate, and he wanted a place on the Committee on Commerce for some Western Senator. He came to me and explained his embarrassment, and asked me if I would be willing to be transferred from the Committee on Commerce to the Committee on Foreign Relations. I wanted to accommodate Senator Mitchell, and I told him that I would consent to be transferred, but at the same time I was not at all anxious to leave the Committee on Commerce. The transfer was made in due course, and I have served continuously on the Foreign Relations Committee since that time, 1895.

John Sherman was chairman of the committee when I became a member of it. It was at a period when there were very few material foreign matters

to engage the attention of the Senate. Sherman served as chairman of the committee, at different periods, for nearly ten years. He was a wise, conservative chairman; not especially brilliant, as was Senator Davis, or Senator Sumner; but every one had confidence in him and felt that in his hands nothing unwise or foolish would emanate from the committee.

I was chairman of the Committee on Interstate Commerce at that time, and the work of that committee, added to the work devolving upon me as a member of the Committee on Appropriations, engrossed most of my time; and while I regularly attended the meetings of the Committee on Foreign Relations, I cannot say that I took a prominent part, or, indeed, a very deep interest, in it until I became its chairman, succeeding the late Cushman K. Davis in 1901.

Cushman K. Davis was a warm personal friend of mine. As the years passed by and I grew to know him more and more intimately, I became more deeply attached to him, and my respect for him as a statesman constantly increased. He was what I would term a specialist in legislation. He took little or no interest in any other subject than matters pertaining to our foreign relations. He was a prominent figure in public affairs for many years. A soldier in the Civil War, serving in many prominent places in civil affairs in his State, including the position of Governor, he came to the Senate as a ripened statesman. He entered the Senate in 1887, and in 1891 became a member of the Foreign Relations Committee, and very early became one of its leading members. Succeeding the late Senator Sherman, in 1897, he became its chairman and served in that position until his death. Few more scholarly or cultivated men have ever occupied a seat in the Senate.

He was a peculiar man in many respects, and did not court, or even encourage, the advice of his colleagues on the committee, or even of the

Secretary of State. I had served on the Committee on Foreign Affairs of the House when Mr. Seward was Secretary of State and I knew what a help it was to the committee to have the Secretary meet with us personally and discuss matters of more or less importance. We all listened to Secretary Seward with the profoundest respect and attention; but as I look back on it now, I think that Secretary Seward probably entertained more than he instructed the members. He seemed to enjoy attending the sessions.

I thought that it would be a help if we could have Mr. Olney, then Secretary of State, before us. I suggested to Senator Davis at one meeting, that Secretary Olney should be invited to come and explain some question concerning which we seemed to be in doubt. Senator Davis declined to invite him, and said so in so many words. Apparently he did not desire any interference or information from the Executive Department. I felt pretty free to express my opinion to Senator Davis, and I told him that inasmuch as he did not care to invite Secretary Olney, I would invite him myself, if he did not object. I did so, and Secretary Olney, at a subsequent meeting, met with the committee and very quickly explained the question under consideration.

Senator Davis was a well recognized authority on international law, both as a lecturer on that subject and a writer. Judging from his display of ability, he ought to have been able to write a monumental work on the subject. But he was an indolent man and contented himself with publishing merely a little volume containing a *résumé* of his lectures before a Washington college of law. The publication of this work detracted from, rather than added to, his reputation as a student and writer.

He was not an orator, but on occasions, in executive session, when great international questions were before the Senate, I have heard him deliver wonderfully eloquent speeches. He always commanded the closest attention whenever he spoke in the Senate, whether in executive or open session

(which latter he only infrequently did, by the way), and he always exhausted the subject.

President McKinley appointed him a member of the Paris Peace Commission to frame the treaty of peace with Spain. How well he performed that service those of his colleagues on the commission who are still living, can attest. He returned from Paris and had charge of the ratification of the treaty in the Senate.

I have always believed that Senator Davis's death was the result of his indolent habits. I do not believe he ever took any physical exercise; at least he did not do so during the time that I knew him. He was so much of a student, and so interested in books, that he seemed to think that time devoted to the proper care of his physical condition was so much time wasted. The result was that when disease attacked him he became an easy prey, and when he passed away it was said that he bore all the marks of a very old man, even though he was comparatively young in years. It was my sad duty, as a member of the United States Senate, to attend his funeral in St. Paul, in 1900.

The northwest section of the United States has not now, and never had before, as capable a scholar and statesman as Cushman K. Davis.

I succeeded Senator Davis as chairman of the Committee on Foreign Relations. I have enjoyed my work on the committee more than I have enjoyed any other work that I have done in the Senate. There are a number of reasons for this. First, the members of the committee, during my service, have been particularly able and agreeable men, and during those years some of the greatest men of the Senate have been numbered among its members. Aside from one, whom I have long since forgiven, I do not recall now that I have had a single controversy or unkind word with any member. In addition, the work is not only of the greatest importance, but it has been

very satisfactory, because partisanship has not at all entered into the disposition of matters pertaining to our foreign affairs. The members of the committee during my time have always seemed to take a deep interest in the work coming before them, and, unlike most of the committees of the Senate, it has never been difficult to secure the attendance of a working quorum. In the ten years that I have been chairman, I do not believe the committee has ever been compelled to adjourn for want of a quorum when any important business was before it.

Until his death in 1911, Senator Wm. P. Frye, of Maine, was in point of service the oldest member of the committee. He had served as one of its members ever since 1885. He could have been chairman, by right of seniority, when Mr. Davis was made chairman in 1891, on the retirement of Mr. Sherman; and again he could have become chairman when Senator Davis died. He did act in that capacity for nearly a year, but he always seemed to prefer the chairmanship of the Committee on Commerce.

I believe that the late Senator Hanna had a good deal to do with Senator Frye's declining to succeed the late Senator Davis as chairman. Ship-subsidy and the building up of the merchant marine of the United States were then before the Senate, and Senator Hanna, a ship owner himself, was deeply interested in that legislation. Senator Hanna and Senator Frye were devoted friends; and, although I do not know, I have always felt that it was Senator Hanna who induced Senator Frye to remain at the head of the Committee on Commerce.

Senator Frye was a very capable and faithful Senator, and enjoyed the confidence and respect of the people of his State to a greater degree than any other Maine statesman, with the exception of Mr. Blaine. As chairman of the Committee on Commerce, I would say he dominated that committee, and at the same time he was a most satisfactory chairman to every Senator

who served on it. He was thoroughly familiar with every question pertaining to rivers and harbors, the shipping interests, and the multitude of matters coming before the committee. Senator Burton, of Ohio, is probably the only member of the United States Senate at present who is as well posted on matters before the Committee on Commerce.

Mr. Frye was an active member of the Committee on Foreign Relations, and during the brief periods when I have been compelled by reason of illness to remain away from the Senate I always designated Senator Frye to act in my stead.

Among his colleagues in the Senate, he enjoyed the greatest degree of popularity; and aside from one or two occasions when his own colleague opposed him, no Senator ever objected to any ordinary bill which Senator Frye called up and asked to have placed on its passage. In fact it was his custom to report a bill from his committee, or the Committee on Foreign Relations, the only two working committees of which he was a member, and ask for its immediate consideration. No one ever objected, and the bill went through as a meritorious measure without question, on his word alone to the Senate.

He was an ideal presiding officer. For years he was president *pro tempore*, and the death of Vice-President Hobart, and the accession of Mr. Roosevelt to the Presidency, necessitated his almost constant occupancy of the chair. With the peculiar rules existing in the Senate, the position of presiding officer is comparatively an easy one. Senator Frye made an especially agreeable presiding officer, expediting the business of the Senate in a degree equal to that of any presiding officer during my service.

I recollect when he was elected president *pro tempore*, in 1896, I had been talked of for the place, but he had not heard that I desired it; and a Republican caucus was held which named him president. Senator Chandler,

for whom I have always had the greatest respect as a man and as a Senator, after the caucus was held told Senator Frye that he had heard I had some ambition for the place. Mr. Frye came at once to my house and to my study and asked me, in so many words, if I had desired to be president of the Senate. I replied that I had not, adding that I had had no particular concern about it at any time. He thereupon asserted that he had called simply to apprise me that whenever I wanted the position he would very cheerfully resign and yield it to me. I assured him that if he did not yield it until I asked him to do so, he would hold it for a long time. He never had any opposition, and on both sides of the chamber he was, as presiding officer, equally popular. He voluntarily relinquished the office at the beginning of the Sixty- second Congress.

When the tariff was one of the issues—during the first Cleveland, the Harrison, and the second Cleveland campaigns and to a lesser degree in 1896 and 1900,—Senator Frye was regarded as one of the foremost orators and stump speakers on the tariff question. During his later years it was very much to be regretted that he did not feel able to take an active part in national campaigns.

The news of Senator Frye's death comes to me while I am engaged in reading the proof of what I have said about him in this book. He died at four o'clock on the eighth day of August, 1911, passing away at the age of eighty-one years. When asked by a newspaper man for a brief estimate of Mr. Frye's character, I said: "He was not only one of the ablest and most devoted of public servants, but one of the most charming men that I have ever known." This expression I desire to repeat here for perpetuation in enduring form.

Seldom has this country commanded the services of a more enlightened or more self-sacrificing man than Mr. Frye. He was patriotic to the very

heart's core; no sacrifice for the country would have been too great for him. He, and his colleague Mr. Hale, and Senators Allison, of Iowa, Platt, of Connecticut, Teller, of Colorado, Cockrell, of Missouri, Morgan, of Alabama, and Spooner, of Wisconsin, constitute a coterie of public men of the last half century such as any nation should be proud of. Unselfish, energetic, and patriotic, they have done much to keep the United States on the proper level. Let us hope, as we must, that the public councils of the nation may always be guided by men of their character and abilities.

Senator Frye's death leaves me the oldest member of the Senate in point of service. He entered the Senate in March, 1881, giving him more than thirty years of service, while I entered in March, 1883, which gives me more than twenty-eight years up to date. It thus will be seen that we have served together for almost an average lifetime.

Senator Jacob H. Gallinger of New Hampshire, who was promoted from the House to the Senate in 1891, now becomes the second member of the latter body in respect to length of service. Mr. Gallinger is not a member of the Committee on Foreign Relations, of whose membership I am now especially speaking, but it cannot be out of place for me to pause here to give him a word of commendation and salutation as I pursue my way through this maze of memory. A physician by profession, and a native of Canada, Mr. Gallinger has shown marked adaptability in taking on the American spirit and in performing the public's service. He has for many years been Chairman of the Senate Committee on the District of Columbia, which, possessing many of the attributes of an ordinary city council, requires minute attention to detail. Mr. Gallinger is the second member of the important Committee on Commerce, and one of the leading members of the Committee on Appropriations. His committee work therefore covers a wide range of subjects. Never has he been known to fail in the performance of his duties in all these connections. Moreover, he is a constant attendant

upon the sessions of the Senate, and one of the most alert of its members. Apparently, often, he is impulsive and explosive, and occasionally under the excitement of debate says what seems to be a harsh thing. If, however, his manner is indicative of feeling, such a feeling, like a passing summer cloud, is soon dissipated, and almost immediately gives way to the sunshine of his really genial and lovable nature. Senator Gallinger as a member of the House and Senate has given the American public as much genuine and patriotic service as any man in public life during the past quarter of a century. I hope he may continue long to adorn the Senate.

Senator John T. Morgan, of Alabama, was appointed a member of the Foreign Relations Committee in 1879, and served continuously as a member of it until his death in 1907, a total service of twenty- eight years. I do not know of any other Senator who served on that committee for so long a period. When the Senate was in control of the Democrats under the second Cleveland Administration, he was chairman of the committee.

Senator Morgan was an extraordinary man in many respects. He had a wonderful fund of information on every subject, but was not a man of very sound judgment, and I could not say that he was a man on whose advice one could rely in solving a difficult problem. At the same time, no one could doubt his honesty and sincerity of purpose. He did not have the faculty of seeing both sides of a question, and once he made up his mind, it was impossible to change him, or by argument and reason to move him from a position deliberately taken. I probably had as intimate an acquaintance with him as any other Senator enjoyed, for we not only served as colleagues on the Committee on Foreign Relations, but, as I have stated in another chapter, we served together on the Hawaiian Commission. He was one of the most delightful and agreeable of men if you agreed with him on any question, but he was so intense on any subject in which he took an

interest, particularly anything pertaining to the interoceanic canal, that he became almost vicious toward any one who opposed him.

If an Isthmian canal be finally constructed, Senator Morgan must be accorded a large share of the credit; and his name will go down as the father of it, even though he himself affirmed in debate in the Senate one day, after the Panama route had been selected, that he would not be "the father of such a bastard." Senator Morgan fought for the Nicaraguan route with all the power at his command. He fought the treaties with Colombia and Panama, first for many weeks in the committee, and then in the executive sessions of the Senate. He wanted to arouse public sentiment against the Panama route, and he addressed the Senate about five hours every day for thirteen days on the subject, desisting only when we consented to publish his speeches and papers on the subject, notwithstanding they had been made and presented in executive session. Nevertheless, it was Senator Morgan who for very many years kept the subject of an interoceanic canal before Congress and the country, and finally, partially through his efforts, interest in the project was kept alive until it was determined, first, that the canal should be constructed; and second, that it should be over the Panama route. Many people thought that the selection of the Panama route would break Senator Morgan's heart; but they did not know him. He made the best fight he could, and when the Panama route was selected he took the same deep interest in the legislation to carry the work forward that he had always taken in the possible alternative route. He was firmly convinced that the canal, on account of certain physical reasons, could never be constructed across the Isthmus of Panama.

Time alone will tell whether or not Senator Morgan was right. Time has demonstrated that he was right in his contention that the Panama Canal could never be constructed for the amount estimated by the engineers, one hundred and eighty-three million dollars. It has already cost over two

hundred million dollars, and it is not yet nearly completed. The latest estimates are that it will cost over three hundred and eighty-five million dollars. How much more it will cost the United States, no one can say.

During the later years of his life, he was probably the most interesting and unique figure in the Senate. Toward the close of his Senatorial career he became very feeble, but he attended to his Senatorial duties as long as he was able to be about at all. The last time I saw him alive was on the fourth of March, 1907, the last day of the session, and the last time he ever entered the Senate or the Capitol. He looked very emaciated and feeble. I spoke to him, inquiring about his health. He replied, "I am just tottering around," and after a pause, added, "Cullom, when I die and you die and Frye dies, and one or two others, this Senate will not amount to much, will it?"

He died a few months afterwards at his home in Washington, and in his death there passed away the last of the old familiar type of Southern statesmen, so frequently to be met with in Washington before the Civil War, and the last Senator who served as a Brigadier- General in the Confederate Army.

Senator Henry Cabot Lodge, of Massachusetts, became a member of the committee at the same time that I was placed on it; but, by reason of my longer service in the Senate, according to the usual custom, I outranked him.

Senator Lodge, by general consent I believe, is regarded to-day as the most cultivated man in the Senate. He is a scholar, an author, and a noted historian. He is a very able man in any position in which he is placed. Judged by the standard of his great predecessor in the Senate from Massachusetts, Daniel Webster, he is not an orator, but he is a very effective speaker and a good debater. He is one of the very active members and has always taken a prominent part in the disposition of matters coming before

the Upper House. He is always ready to work, and when I desire any matter to be disposed of without delay, I refer it to Senator Lodge as a subcommittee, with confidence that it will be attended to quickly and correctly.

He is a strong, active Republican, and a politician (using that term in its higher sense) of no mean order. For years in Republican National Conventions he has been a conspicuous figure; and twice at least—once at Philadelphia in 1900, and again in Chicago in 1908—he has been permanent chairman. On both occasions—and I attended both conventions—he proved himself to be a splendid presiding officer. He regards his position as the senior Senator from Massachusetts, the successor of Webster and Sumner and a long line of noted men, as even a higher honor than the Presidency itself.

I have seen it repeatedly stated that Senator Lodge is unpopular in the Senate,—that he is cold and formal. From my long acquaintance with him, extending over some seventeen years, I have not found this to be true. In times of trouble and distress in my own life, I have found him to be warm and sympathetic.

I hope that he will remain in the Senate for many years to come. Should he retire, his loss would be severely felt both as a member of the Committee on Foreign Relations and as a member of the Senate.

Senator Augustus O. Bacon, of Georgia, is now the senior member of the minority on the committee; and should the control of the Senate pass into the hands of the Democrats, he will, if he remain in the Senate, naturally become its chairman. He is an able lawyer, and if subject to criticism at all, I would say that he is a little too technical as a jurist. I do not say this to disparage him, because in the active practice of his profession at the bar this would be regarded to his credit rather than otherwise; and even as a member

of the Judiciary Committee of the Senate, this disposition to magnify technicalities makes him one of the most valuable members of that committee. As a Senator, he is jealous of the prerogatives of the Senate, and vigorously resists the slightest encroachment on the part of the Executive. He is one of the effective debaters on the Democratic side of the Senate, and seems to enjoy a controversy for its own sake. My intercourse with Senator Bacon as a member of the Committee on Foreign Relations has been most agreeable, and I have come to like and respect him very much. In my time, he has been an exceptionally active, useful member, and he has often told me that he prefers his place as a member of the Foreign Relations Committee to any other committee in the Senate. He is well equipped, by education and training, for the work of the committee, and gives close attention to important treaties and other measures coming before it. He stood with Senator Morgan in opposing the ratification of the Panama canal treaty, and he was as much in earnest in his opposition to it as was Senator Morgan; but unlike the Senator from Alabama, he did not attack Senators personally who differed from him. When technical matters of importance came before the committee I usually appointed Senator Spooner and Senator Bacon as a subcommittee, as I felt that anything that these two might agree upon would be right, and would be concurred in by the committee and by the Senate as well.

Senator Clarence D. Clark, of Wyoming, was a member of the House for two terms, and has served in the Senate for about fifteen years. In point of service, he is one of the oldest of the Western Senators. Unlike the Eastern States, very few of the Western States return their Senators for term after term; and the value of this, as a matter of State pride, is well demonstrated in the case of Senator Clark. It has enabled him to reach the high position of chairman of the Judiciary Committee, the successor of a long line of able lawyers,—Trumbull, Edmunds, Thurman, Hoar, and O. H. Platt being a few of his immediate predecessors.

Senator Clark has been a member of the Committee on Foreign Relations for thirteen years, and a more agreeable member of a committee it would be difficult to find. He is a capable lawyer, and a man of sound common sense. I regret that his arduous duties as chairman of the Judiciary Committee do not permit him to give as close attention to the Foreign Relations Committee as I would like; but he always attends when there are matters of particular importance before it; and I have great respect for his judgment in the disposition of matters in which he takes any interest at all.

The Hon. Hernando de Soto Money, of Mississippi, has for years been one of the leading Democratic members of Congress. For fourteen years he was a member of the House of Representatives, a prominent member, too, and he has been a member of the Senate since 1897. His long service in the House at once enabled him to take his place as a leader of his party, a Senator admired and respected by his colleagues on both sides. He was appointed to the Foreign Relations Committee in 1899, and I have been intimately acquainted with him since.

Senator Money is a highly educated, cultured gentleman, and has travelled extensively over the world. His broad liberal education, added to his travel, and his extensive knowledge of world history, made him an especially valuable member of the committee of which I am chairman. During the past few years I have sympathized with him very greatly as he has suffered physical pain to a greater degree than any other man whom I have known, and yet has insisted on attending diligently to his official duties. He must be a man of extraordinary will power, or he would never have been able to conquer his physical suffering to such an extent as to enable him to attend to his Senatorial duties, and at the same time to obtain the fund of information which he possesses, as he demonstrated over and over again in the Senate.

He retired voluntarily from the Senate on the fourth of March, 1911.

Of the many Senators with whom I have been associated in the committee on Foreign Relations, and especially since I became its chairman, there are two, both now retired to private life, in whom I had the greatest confidence and for whom I entertained great affection, as they both did for me—these Senators were the Hon. J. B. Foraker of Ohio, and the Hon. John C. Spooner of Wisconsin.

Senator Foraker preceded Senator Spooner as a member of this committee by some four years. I do not know how it first came about, but I became very intimate with Senator Foraker almost immediately after he entered the Senate, and at once grew to admire him exceedingly. He is a very brilliant man, and has had a notable career. He enlisted in the Union Army as a private when sixteen years old, and retired at the close of the war, a Captain. He then completed his education, and entered upon the practice of the law. He was elected Judge of the Superior Court at Cincinnati, and later became a candidate for Governor. The occupant of many civil positions of importance in his State, a prominent figure in national convention after national convention, nominating Senator Sherman for the Presidency in 1884 and 1888, and placing in nomination Mr. McKinley in 1896, Senator Foraker had established a record in public life, and had gathered a wealth of experience, sufficient to satisfy the ambitions of most men, before his great public career really commenced as a member of the United States Senate, in 1897. He also nominated McKinley in 1900.

Senator Foraker was one of the most independent men with whom I ever served in the Senate. He was a man of such ability and unquestioned courage that he did not hesitate to take any position which he himself deemed to be right, regardless of the views of others. It would inure to the advantage of the country if there was a more general disposition among

public men to adhere to their own convictions, regardless of what current opinion might be. Senator Foraker always made up his mind on public questions and clung to his own opinion in the face of all criticism. The most striking instance of this trait was when he, the only Republican Senator to do so, voted against the Hepburn Rate Bill, because he believed it to be unconstitutional. The very fact that he stood alone in his opposition to that bill did not seem to bother him in the least.

On the recommendation of President Roosevelt, the Committee on Immigration of the Senate attempted to pass a very drastic Chinese exclusion law. I examined the bill and became convinced at once that it was absolutely contrary to and in violation of our treaties with China. I was very much surprised at the time that even Senator Lodge, one of the most conservative of Senators, supported the bill. I was deluged with telegrams from labor organizations, as I knew Senator Foraker was, favoring the passage of the bill; but he, with Senator Platt of Connecticut, and some others in the Senate, whom I assisted as best I could, led the opposition to the bill reported by the Committee on Immigration and defeated it. Senator Foraker very well knew that his opposition to this bill would not strengthen him at home, but he disregarded that fact and opposed it because he believed it was contrary to our treaty obligations.

A more recent case in which he showed his independence was his taking up the fight of the troops dismissed on account of the so-called Brownsville affair. This was very unselfish on the part of Senator Foraker. He had nothing to gain by espousing the cause of a few negroes, but much to lose by antagonizing the National administration. He did not hesitate a moment, however. There is no question that President Roosevelt acted hastily in dismissing the entire company; but this was one occasion when President Roosevelt would not recede even though it became perfectly clear to almost every one in Congress that he was wrong.

Senator Foraker always did make it a point to attend the meetings of the Committee on Foreign Relations, but for some reason or other he was never punctual and was seldom in attendance when the committee was called to order. But at the same time he was prepared on all important questions coming before the committee. He seemed to me to have given attention beforehand to subjects which he knew would come before a particular meeting, and his opinion on any treaty or bill before the committee was always sought by his colleagues and listened to with respect, and almost without exception his opinion prevailed.

I regretted exceedingly to see him retire from the Senate. From the time he entered that body, he was consistently one of the principal defenders of Republican policies and Republican administrations on the floor of the Senate.

Senator John C. Spooner, of Wisconsin, was, in my judgment, one of the best lawyers who ever served as a member of the Senate, and among its membership we find the names of the greatest lawyers and judges of America. He had served in the Civil War, having retired at its close with the brevet of Major. He early took up the law as a career, and never abandoned it, even when elected to the Senate; and as I write this, I believe he is regarded as one of the foremost lawyers of New York.

He came into the Senate two years after I entered that body, and I remember him there as opposing the conference report on the Interstate Commerce Act. His State having passed into the control of the Democrats, he retired from the Senate in 1891, but was re-elected in 1897. He declined several tenders of cabinet positions, preferring to remain independent as a Senator.

I knew him for a good many years. Representing a neighboring State, as he did in the Senate, I became very intimate with him, and never had the

slightest hesitancy in seeking his advice when I was in doubt concerning any legal or constitutional question.

Senator Spooner was a much more technical lawyer than Senator Foraker, but not quite so technical as Senator Bacon. On questions coming before the Committee on Foreign Relations, his advice was always to be trusted. My judgment in this respect may be influenced by our close personal friendship; but I always felt that when I had his support on any question I was safe and right in the position I took respecting it. Seldom within my knowledge did the Senate fail to agree with any attitude that Senator Spooner assumed on a controverted question.

Senator Spooner was placed on the committee at the time I became its chairman. At that time there were before the committee treaties, legislation, and matters of the utmost importance. He entered upon the work with the greatest interest, and exercised commanding influence in the disposition of matters under consideration. He always seemed to take particular interest in my success as chairman of the committee, and always wanted to assist and help me wherever he could.

We were wrestling with the Reciprocity treaty with Cuba at a meeting. It had been before the committee for a number of meetings; Senator Spooner feared that I was about to turn the treaty over to another Senator to report, and he sent me, while the committee was in session, a brief note marked "Confidential." It read:

"The report is that you will give this treaty to another to report. I think you should report it yourself, as you are not only chairman of the committee, but you are also a member of the Committee on Relations with Cuba. Platt spoke to me about it. He felt sensitive in the first place because the treaty did not go to his committee. The fact that you and others on this

committee were on his committee reconciled him. I will stand to your shoulder in the fight for its ratification.

"Yours,
"Spooner."

I hope Senator Spooner, if he does me the honor of glancing through these rambling recollections, will forgive my quoting this confidential note without his consent; but I do so only to show the very friendly and confidential relationship that existed between us.

I doubt very much whether the Colombia or Panama treaty would have been ratified, or the Panama route selected in preference to the Nicaraguan route for the Isthmian canal, despite the great influence of Senator Hanna, had not Senator Spooner joined in advocating the Panama route.

It was a long and difficult struggle, not only before the Committee on Foreign Relations, but before the Committee on Interoceanic Canals, and resulted in the retirement of Senator Morgan as chairman of the last-mentioned committee—a position he had held for many years—and in the selection of Senator Hanna to succeed him. But Senator Spooner, through his technical knowledge, dominated the Committee on Interoceanic Canals, and succeeded finally in the passage of the Spooner act which designated Panama, if that route could be purchased, as the route for the canal.

Senator Spooner was one of the real leaders of the Senate from 1897 until he retired. He was one of the most eloquent men who served in the Senate during that period. During all the debates on the Cuban question, the important results growing out of the Spanish- American War, the question of Imperialism—his participation in all these momentous subjects was above criticism. I have heard him in the Senate, speaking day after day. He never grew tiresome; never repeated himself; always held the most

profound attention of the Senate; and his closing words were listened to with the same attention and with the same interest, by his colleagues and by the galleries, as marked the beginning of any of his speeches. After his conclusions his Republican colleagues invariably gathered around him, offering their congratulations.

Senator Spooner and Senator Foraker have both retired. It was thought at the time that their places could not be filled, and I, as one of the older Senators who remember them well, can not believe that their places have been filled. Of all the Senators with whom I have served, Spooner and Foraker were most alike in their combative natures, in their willingness to take the responsibility to go to the front to lead the fight. Senators come and go, the personnel of the Senate changes, one Senator will be replaced by another, but the Senate itself will go on as long as the Republic endures.

One of the most dignified, honest, straightforward, capable men with whom I have served, was the Hon. Charles W. Fairbanks, of Indiana. He was a devoted adherent, friend, and follower of the late President McKinley, and had been his friend long before he was nominated for President in 1896. Senator Fairbanks took a very prominent part in that convention, was its temporary chairman, and in 1900 was chairman of the Committee on Resolutions of the National Convention which met at Philadelphia. He entered the Senate in 1897, and during the following year was appointed by President McKinley a member of the United States and British Joint High Commission for the adjustment of all outstanding questions concerning the United States and Canada. The commission was an exceedingly important one, but failing to agree on the Alaskan boundary, it was compelled to adjourn without settling any of the questions before it. Its labors were not wasted, however, as it furnished the nucleus for the final adjustment of those questions under the administration of Mr. Root, in the State Department.

Senator Fairbanks was a close personal friend of President McKinley, and almost immediately assumed quite an important position in the Senate. He was appointed to the Committee on Foreign Relations, of which he was quite an able and influential member, as he was of every committee of the Senate on which he served. He accepted the nomination of the Republican Convention of 1904 for Vice-President. I considered that his proper place was in the Senate; but for some reason or other he gave it out that he would not decline the nomination for the office of Vice-President, and neither would he seek it. The Convention very wisely determined that he was the best candidate that could be nominated. The duties of the Vice-President are not very arduous; but in all my service in the Senate I do not know of a Vice-President who so strictly observed the obligation adherent to the office as did Mr. Fairbanks. He was a candidate for President in 1908 but was defeated by President Taft.

Since his retirement from the Vice-Presidency, he has at least twice been tendered high appointments in the diplomatic service, first as Ambassador to the Court of St. James, and, later (it having been rumored while he was travelling in China that he had expressed himself as favorably inclined toward the acceptance of the position of minister to that country), Secretary Knox indicated a desire through mutual friends to have him appointed. Mr. Fairbanks thanked his friends, but declined the appointment.

In his tour around the world after retiring from the office of Vice-President, he conducted himself with great dignity and propriety.

Senator Albert J. Beveridge succeeded Senator Fairbanks, as a member of the Committee on Foreign Relations. For years Senator Beveridge had seemed more than anxious to become a member of this committee. When he first entered the Senate he thought he should have been made one of its members, as he had always taken a deep interest in foreign matters; but the

Committee on Organization determined that his colleague, Senator Fairbanks, was entitled to the preference. When Senator Fairbanks retired, I requested the Committee on Organization to place Senator Beveridge on my committee, which it did.

I have always admired Senator Beveridge. He is an exceptionally engaging speaker, a brilliant man, and so talented that one cannot help being attracted to him. I had heard of him years before he entered the Senate. The late Senator McDonald of Indiana, a strong, gifted lawyer and the highest type of a man, told me one day that he had a young man in his office, named Beveridge, who knew more about the politics of the day than almost any other man in the State, and he believed he would be a controlling factor in Republican politics in Indiana.

Senator Beveridge is a popular magazine writer, as he is one of the most popular public speakers of to-day. As a campaign orator, his services are constantly in demand.

I regret very much to say, that notwithstanding Senator Beveridge's prior anxiety to become a member of the Committee on Foreign Relations, after his appointment he attended very few meetings and apparently took little interest in its business. His duties as Chairman of the Committee on Territories, combined with work on other committees, necessarily consumed most of his time.

For a number of years after the Hon. John Kean, of New Jersey, entered the Senate, I had no special acquaintance with him, and I did not welcome him particularly when he was made a member of the Committee on Foreign Relations, in 1901. Since then I have become very intimate with Senator Kean, and there have been few men on the committee for whom I entertained a higher regard, or in whom I placed more confidence. He was a very industrious and useful member, as he is in the Senate. He filled quite a

prominent place in the Senate, and watched legislation probably more closely than any other member. He was always familiar with the bills on the calendar, and made it a point to object to any questionable measures that came before the Senate. He advanced in influence and power very rapidly in the last few years of his service. Through Senator Kean, I have been enabled very often to expedite the passage of measures, not only coming from the Committee on Foreign Relations, but bills in which I have been interested pertaining to the affairs of my own State. If the Senate had what is known as a "whip," I would say that Senator Kean comes more nearly being the Republican "whip" than any other Senator, with the possible exception, in recent years, of Senator Murray Crane, of Massachusetts.

Senator Thomas H. Carter, of Montana, a member of the committee in the Sixty-first Congress, was one of the most popular members of the Senate. His ability as a lawyer and legislator, combined with his wit and keen sense of humor, enabled him to assume quite a commanding position in that body. When feeling ran high in debate, sometimes almost to the point of personal encounter, Senator Carter would appear, and by a few well-chosen words, voiced in his calm, quiet manner, throw oil upon the troubled waters, and peace again reigned supreme.

I have known Senator Carter for very many years. I knew him as a young man. His home was at one time in Illinois, at the little town of Pana, about twenty-five miles from my own home at Springfield. He has held many public offices. Delegate from the Territory of Montana, member of the Fifty-first Congress, Commissioner of the General Land Office, Senator from 1895 to 1901 and from 1905 to 1906, Chairman of the Republican National Committee in 1892, he has in all these positions distinguished himself as a man of a high order of ability. I have always liked Senator Carter very much, and I was glad indeed that he was named a member of the Committee on Foreign Relations. He is a very useful and influential member, as he is of the Senate.

Senator William Alden Smith, of Michigan, was only recently placed on the Committee on Foreign Relations, quite a distinction for a Senator who had served for so brief a time as a member of the Senate. Senator Smith, however, was a prominent member of the House for many years, and was elected to the Senate while serving as a member of the House of Representatives. He has taken position in the Senate very rapidly. He is a lawyer of experience and long practice, and an industrious and competent legislator. He is always watchful of the interests of his State. He took a prominent part in the consideration of the treaties between the United States

and Great Britain concerning Canada, more especially the boundary and water-way treaties. It was through his efforts that an amendment to the latter treaty was adopted, which he considered necessary to protect the interests of his State, and which I greatly feared would result in the rejection of the treaty by the Canadian Parliament. I am very glad to say, however, that the treaty has been ratified by both Governments, and only recently proclaimed.

Senator Smith has taken a keen interest in matters before the Committee on Foreign Relations, and with his experience, industry, and capacity, he is bound to become a very useful member of the committee.

One of the last members to be appointed on the Committee on Foreign Relations was the Hon. Elihu Root, of New York. He is one of the greatest men and ablest Senators who have ever been members of the committee. When he became a member of it, he was not at all a stranger, for the reason that he, on my invitation, had, while Secretary of State, for two years previous to his retirement from that office, attended almost every meeting of the committee. Between Mr. Hay and the members of the Senate, there was not the close relationship which should have existed between that body and the State Department.

Secretary Hay was not disposed to cultivate friendly relations with Senators, and certain remarks he made concerning the Senate as a body were very distasteful to Senators; and although I had invited him, he seemed very averse to coming before the Committee on Foreign Relations. I did not press the point. The result was that important treaties and other matters were constantly sent in, with which the members of the committee were not familiar, and we had to grope in the dark, as it were, and inform ourselves concerning them as best we could.

But when Mr. Root became Secretary of State, I resolved to insist that the Secretary meet with us from time to time, and explain such treaties and

measures as might need explanation, and upon which the Administration was anxious to secure favorable action. In other words, there should be closer relationship between the Committee on Foreign Relations and the State Department than had formerly existed. I first saw President Roosevelt and told him I hoped Mr. Root would come before the committee as occasion might require. The President seemed at once impressed with the propriety of the proposed plan, and remarked in his own characteristic fashion: "That is just the thing." I then saw Mr. Root, whom I knew very well as Secretary of War, and he was more than pleased with the suggestion, asserting that it was just what he wanted to do. It so happened that during his administration of the State Department he found it necessary to negotiate more treaties, and treaties of greater importance, than any of his more recent predecessors in that high office, and he became so constant and punctual in his attendance at the meetings of the committee that we grew almost to regard him as a regular member, even before he entered the Senate.

He has served on the committee but two sessions, but even in that short time he has proved his fitness to fill the gap left by the retirement of Senators Spooner and Foraker. As a lawyer he is as brilliant as either of those men, and probably, owing to his executive experience, a more efficient statesman. I regard him as the best qualified man in this country for any position in the public service which he would accept. He would make a strong President, and as a Senator he is equipped with extraordinary qualifications. If he remains in the Senate, by sheer force of ability alone he is bound to become its acknowledged leader. We have never had a stronger Secretary of State. Mr. Hay was a very great man in many respects, and could handle an international question, especially pertaining to the Far East, with more skill than any of his predecessors; but Mr. Root, while probably not as well versed in diplomacy as Mr. Hay, is one of the foremost lawyers in America, and has the faculty of going into the minutest details of every

question, large or small, even to the extent of reorganizing all the multitude of details of the State Department. He was the real head of the department, and supervised every matter coming before it.

As Secretary of State he made it one of his policies to bring the republics of this hemisphere into closer relationship with one another. He visited South and Central America, and did much to bring about a friendly feeling with the republics of those regions.

He is one of those who insisted upon the absolute equality of nations, both great and small; and in this he was particularly pointed in his instructions to the delegates representing the United States at the Second Peace Conference at The Hague.

He did not retire from the State Department until he had adjusted almost, if not all, outstanding questions between the United States and other Nations. He closed up the work of the Joint High Commission, and by a series of treaties adjusted every factor of difference between the United States and Great Britain concerning Canada.

Bringing the consideration of the personnel of the committee up to the close of the Sixty-first Congress, there remain to be mentioned only William J. Stone, of Missouri, and Benjamin F. Shively, of Indiana, both Democrats. Mr. Stone and Mr. Shively are not only new men on the committee, but both of them are comparatively new to the Senate. They had, however, been sufficiently tried in other fields of effort to justify their States in sending them to this exalted body, and the records both have made here have well vindicated their selection. In a comparatively brief time they have attained to positions of leadership on the Democratic side of the chamber, and since they have become members of this committee they have manifested an unusual grasp of international subjects. They are from States

which adjoin my own State of Illinois, and I am especially pleased to have them as members of the committee of which I am chairman.

CHAPTER XXIV WORK OF THE COMMITTEE ON FOREIGN RELATIONS

When I became chairman of the Committee on Foreign Relations, in 1901, I found a large quantity of undisposed of matter on the dockets, both legislative and executive. I determined that I would at once proceed to clear the docket and endeavor to make the committee an active working one. I have since made it a policy, as best I could, to secure some action, favorable or unfavorable, on every matter referred to the committee by the Senate.

The first subject to which I turned my attention was the reciprocity treaties between the United States and Barbados, Bermuda, British Guiana, Turk Islands and Caicos, Jamaica, Argentine Republic, France, Dominican Republic, Ecuador, and Denmark.

These treaties had been pending before the committee for two years, and I resolved as I expressed it to one Senator, who was opposed to them, that I would get them out of the committee "if I had to carry them out in a basket." These treaties were negotiated under the authority contained in the fourth section of the Dingley Act, which provided:

"Section 4. That whenever the President of the United States, by and with the advice and consent of the Senate, with a view to secure reciprocal trade with foreign countries, shall, within a period of two years from and after the passage of this act, enter into commercial treaty or treaties with any other country concerning the admission to such country of goods, wares, or merchandise of the United States . . . and in such treaty or treaties shall provide for reduction during a specified period of the duties imposed by this

act, to the extent of twenty per centum thereof, upon such goods, wares, or merchandise as may be designated therein, . . . or shall provide for the transfer during such period from the dutiable list of this act to the free list thereof of such goods, wares, or merchandise the product of foreign countries; and when . . . any such treaty shall have been duly ratified by the Senate and approved by Congress, then and thereafter the duties which shall be collected by the United States upon any of the designated goods, wares, or merchandise from the foreign country with which such treaty has been made, shall, during the period provided for, be the duties specified and provided in such treaty, and none other."

There was a considerable opposition to the ratification of these treaties in the Senate, and very strong opposition to them in the committee. President McKinley was very much in favor of their ratification, and as one treaty after another expired, a new one would be made reviving it.

The first problem which confronted me was this: The fourth section of the Dingley Act provided that such treaties should be made only within two years after the passage of the act; the two years had long since expired—could the Senate ratify them at all?

I submitted to the Senate a report on the constitutional question. The single question covered was, whether the treaties not having been ratified by the Senate within the two years specified in the Dingley Act were still within its jurisdiction.

The committee determined that the President and the Senate are, under the Constitution, the treaty-making power. The initiative lies with the President. He can negotiate such treaties as may seem to him wise, and propose them to the Senate for the advice and consent of that body. The power of the President and the Senate is derived from the Constitution. There is under our Constitution no other source of treaty-making power.

The Congress is without power to grant to the President or to the Senate any authority with respect to treaties; nor does the Congress possess any power to fetter or limit in any way the President or the Senate in the exercise of this constitutional function. It cannot in any way enlarge, limit, or attach conditions to the treaty-making power, and the subcommittee concluded their report on this branch of the subject with this statement:

"The committee is clearly of the opinion that nothing contained in section four of the Dingley Act constitutes any valid restriction upon the jurisdiction and power of the Senate to act upon the commercial treaties now pending."

That question being disposed of to my satisfaction, I proceeded to urge the consideration of the treaties at every meeting of the committee for many months, but it was not until June, 1902, that I secured the favorable report of all the treaties, excepting the treaty with the Argentine Republic and that with Jamaica.

There was another very serious question which I raised myself, and that was, whether legislation was necessary to carry them into effect, or whether the treaties were self-executing. None of the treaties contained any provision for legislation, and by their terms, they would go into effect without legislation. John A. Kasson, who negotiated them, told me that he purposely left out any reference to legislative action, because the executive department had serious doubts on the subject, and preferred to permit the Senate itself to pass upon it.

I have always contended that reciprocity treaties, like other treaties in general, are self-executing, if by their terms they do not provide for legislative action.

I made a very extended address in the Senate on January 29, 1902, because I wanted to get the attention of the Senate to this important constitutional subject. I said in opening:

"Has Congress any power or authority, under the Constitution, over treaties? This subject has been discussed at different times during our entire Constitutional history. It is a very complicated question, not only because the authority of the House on the subject of treaties has been disputed and argued almost from the very adoption of the Constitution, but the fourth section of the Dingley Act specifically provides how and when such treaties shall be made. . . . In my opinion the fourth section of the Dingley Act, so far as it attempts to confer, limit, or define the treaty-making power is not only an unwarranted interference with the powers of the President and Senate, but is unconstitutional, because it comes in conflict with that clause of the Constitution which says that the President shall have power, by and with the advice and consent of the Senate to make treaties. No law of Congress can in any way modify or limit those powers. The Dingley Law can not limit the time in which we shall be allowed to make a treaty; it can not give to Congress any power on the subject of treaties not given it by the Constitution, and under the Constitution Congress as a legislative body is not a part of the treaty-making power."

I contended that the fourth section of the Dingley Act, if considered by the Executive at all, should be merely as an expression of the views of Congress in the adjustment of the specific terms of each treaty.

But the particular question in which I was more interested and to which I devoted most of my remarks was, whether a reciprocity treaty, which by its terms provides that the duties to be collected after its ratification shall be those specified in the treaty, and none other (and which makes no reference to further Congressional action), would of its own force operate to repeal so

much of the tariff act as may come in conflict with it, or whether it would be necessary for Congress to act on a treaty before those duties are reduced, and before the treaty shall become the supreme law of the land.

I then proceeded to a minute examination into the history of the treaty-making provision in the Constitution, tracing it through the Constitutional Convention, and giving the views of the framers of the Constitution as to its scope and effect. It was Alexander Hamilton who drafted the treaty-making clause of the Federal Constitution, and it was purposely so framed as to exclude the House from all consideration of treaties. Twice it was proposed in the Constitutional Convention to unite the House of Representatives with the Senate in the approval of treaties, but both times it was rejected almost unanimously, Pennsylvania alone voting in the affirmative. The treaty-making clause of the Federal Constitution was adopted in the Constitutional Convention only after a most vigorous fight against it by those who contended that the authority conferred was too great. Patrick Henry thought that, "If the clause were adopted as it was submitted to the State, two-thirds of a quorum of the Senate would be empowered to make treaties that might relinquish and alienate territorial rights and our most valuable commercial advantages. In short, should anything be left, it would be because the President and Senators would be pleased to admit it. The power of making treaties under the Constitution extends farther than in any country in the world. Treaties have more force here than in any part of Christendom." And he begged the convention to stop before it conceded this power unguarded and unaltered.

The power was conferred on the President and the Senate, unguarded and unaltered, when the Constitution was adopted.

The question came before the House of Representatives the first time just seven years after the Constitution was adopted, and has been before the

House many times since then. The Jay Treaty called for an appropriation of eighty thousand dollars. It was a very unpopular treaty, and a very notable debate took place on the resolution requesting the President to lay before the House copies of the correspondence and other papers relating to the treaty. President Washington declined to furnish the papers, on the ground that the treaty needed no legislative action, and the House had nothing whatever to do with treaties, but was morally bound to make the appropriation, thereby carrying out the contract. The House responded by passing a long series of resolutions; but finally the appropriation was made.

The whole question has been discussed in the House, practically every time an appropriation has been called for to carry out a treaty; but the House, while always contending that it had a voice in the treaty-making power, never declined to make the appropriation, and only on one occasion do I now recall that the House declined to enact legislation to carry out a treaty where the treaty specifically itself provided for such legislation. This was in the case of the reciprocity treaty with Mexico, negotiated by General Grant.

I concluded my speech in the Senate with this statement:

"This question before us here has been before the Senate for a hundred years. The Executive and Senate have taken one position, and that is a treaty is the supreme law of the land. That position has been sustained by the Supreme Court. On the other hand, during all these hundred years, the House of Representatives has, as a rule, insisted that they should be considered in reference to certain treaties. That does not relieve the Senate from standing by its prerogatives and rights and insisting that the rights of the Executive be maintained. The point here is this: the Constitution gives to the Executive, with the advice and consent of the Senate, the right to negotiate treaties. We have been negotiating commercial treaties

continuously prior and subsequent to the adoption of the Constitution, and those treaties have been sustained as the supreme law of the land.

"It is said that the Constitution has given to Congress the right to regulate commerce with foreign nations, to lay and collect taxes, duties, and imposts, and to the House of Representatives the right to originate bills for raising revenues, and to the President and Senate the right to make and ratify treaties. These are all co- equal and independent powers. One does not interfere with the other. One is not exclusive of the other. A law passed in any of the ways provided by the Constitution is the supreme law of the land until it is changed or repealed. A treaty made by the Executive and ratified by the Senate is the supreme law of the land as well as an act of Congress. If the Congress is not satisfied with the treaty, it has a perfect right to repeal it, as it has any other law; but until such action is taken, the treaty remains as a part of the supreme law of the land; and I cannot see any distinction between treaties which affect the tariff laws, and treaties affecting any other law."

The subject was very seriously and carefully considered, but it was thought expedient that the committee should not take any position either for or against the unlimited power of the Senate over reciprocity treaties. It was Senator Spooner who suggested that each of the treaties be amended by inserting therein a provision that "the treaty not take effect until the same shall have been approved by the Congress."

The merits of the question were not considered; but my position was, and still is, that amending the treaties in the manner suggested by Senator Spooner, by inference indicated that if such a provision had not been inserted, the treaties would go into effect immediately without any Congressional action.

Aside from the reciprocity treaty with France, none of the treaties was considered by the Senate itself. I pressed them as best I could, but Senator Aldrich, Senator Hanna, and other advocates of high protection, were so bitterly opposed to them—no one in the Senate aside from myself seeming to have much interest in them—that they were dropped and allowed to expire by their own terms. I particularly regretted that the Kasson treaties were not ratified.

Had the Senate ratified those treaties, a large number of other treaties probably would have been negotiated, and we would not have been compelled to go through the long struggle and agitation over the passage of the Aldrich-Payne Tariff Bill. There would have been no tariff revision necessary. At the same time, we could not possibly help vastly increasing our foreign commerce. It was a very short-sighted policy on the part of Senator Aldrich and others in the Senate when they insisted that those treaties should be killed. After it was determined, and it became so known to the country that it would be impossible to secure the ratification of reciprocity treaties, the agitation for tariff revision commenced, and finally culminated in the act of 1909, which resulted in the election of a Democratic House of Representatives.

The committee did favorably report, and the Senate ratify, a reciprocity treaty with Cuba. This was the treaty of December 11, 1902, and it was the third reciprocal agreement in all our history ratified, proclaimed, and placed in effect. The first one was the treaty of 1854, providing for reciprocity with Canada. The second was the treaty of 1875, with the Hawaiian Islands, and the third and the only one now in effect is the treaty with Cuba.

That treaty would never have been ratified, and would have suffered the same fate as the Kasson treaties, had it not been for the determined, vigorous fight made by President Roosevelt for its ratification, and had not

Cuba stood in a relation to us entirely different from any other country. We bound her to us by insisting that the Platt amendments be made a part of her Constitution, and in addition that a treaty be made between the two countries embodying those amendments.

This treaty with Cuba and the law carrying it into effect were the occasion of a very bitter struggle in both Senate and House. The sugar and tobacco interests used all the power at their command to defeat, first the treaty, and then the law carrying the treaty into effect. The beet-sugar people asserted that it would ruin that industry, and that a reduction of twenty per cent on Cuban sugar would enable the Cubans to ship their sugar into the United States and undersell the beet sugar. I never could see that there was any force in their contention, because the United States does not produce more than half the sugar we consume, and it was absolutely necessary to import sugar from Cuba and other sugar-producing countries.

When the treaty was before the committee for consideration, it was amended by inserting the following proviso:

"Provided that while this convention is in force, no sugar exported from the Republic of Cuba and being the product of the soil or industry of the Republic of Cuba, shall be admitted to the United States at a reduction of duty greater than twenty per centum of the rates of duty thereon as provided by the tariff act of the United States, approved July 24, 1897; and no sugar, the product of any other foreign country, shall be admitted by treaty or convention into the United States, while this convention is in force, at a lower rate of duty than that provided by the tariff act of the United States, approved July 24, 1897."

The effect of this amendment was not only to prevent a greater reduction being made on Cuban sugar, but it had a more important effect that it made

reciprocity treaties with the sugar-producing countries, including the West Indies, impossible so long as the Cuban treaty remains in force.

I had charge of this treaty in the Senate, and addressed the Senate at considerable length explaining its provisions.

There was a spirited contest in the Senate over the ratification of the treaty, but there was more of a contest both in the Senate and the House when the bill to carry the treaty into effect came up at the next session of Congress, it first having been considered at a special session called by President Roosevelt in November, 1903. A provision was inserted in the treaty (which I opposed, as I thought it was unnecessary), that it should not go into effect until it was approved by the Congress. The bill was passed in the House and came to the Committee on Foreign Relations, was considered there, and favorably reported to the Senate. The bill, of course, was considered in open session, and I again made some remarks, probably more in the nature of a report than a speech, trying to show where the treaty was not only absolutely necessary, if Cuba was to be prosperous at all, but that it would open a considerable market for American products.

The Cuban reciprocity treaty has increased very materially our trade with that Republic. Since that treaty went into effect our imports from Cuba have increased from \$62,942,000 in value to \$122,528,000 in value; and our exports to Cuba have increased from \$21,000,000 in 1903, to nearly \$53,000,000 in 1910, or more than doubled. But even with this considerable increase in our exports to Cuba, I had hoped that by this time we should have increased them to at least one hundred million dollars. Our own exporters and manufacturers are at fault, because they will not do business with the Cubans on the same credit basis as will the exporters of Spain, Germany, and England; and American exporters do not cater to the peculiar

needs of the Cubans. They seem to go on the theory that if their goods are good enough for Americans they should be good enough for Cubans, too.

The Cuban treaty is a good illustration of the scare and the unwarranted opposition on the part of American industries when even the slightest reduction of the tariff is attempted. To listen to the beet-sugar and tobacco interests during the consideration of the Cuban treaty, one would think they would have been absolutely ruined if the treaty were ratified. The Cuban treaty has not in the slightest degree injuriously affected the American sugar or tobacco interests.

The principle of Reciprocity as heretofore applied in this country has been extended somewhat by the agreement of 1911 between the United States and Canada. This compact was negotiated by President Taft and Secretary Knox on the one side, and by Premier Laurier and Mr. Fielding on the other. Under this agreement a wide exchange of articles of every-day use is provided for, and it is hoped and believed that if the treaty becomes effective it will prove more satisfactory and enduring than the previous reciprocal agreement with the Dominion of Canada.

The pending agreement was entered into between representatives of the two Governments in January, 1911, but it was not until the latter part of July of that year that a law was enacted by Congress to provide for its enforcement. Much opposition was manifested, especially in the Senate, in both the Sixty-first and Sixty-second Congresses, on the ground that under its terms a great many agricultural products are admitted free from Canada; but this objection has been, I think, successfully met by the Administration and its friends in the argument that any injury that might be sustained by agriculture would be more than compensated for by the benefits derived by the manufacturing interests. For one I have never believed that agriculture would suffer in any degree through the operation of the agreement, and I do

believe that the general industries of the country will experience much benefit. Too much is to be gained through the cultivation of proper trade relations with our great and growing neighbor on the North to abandon the general principle involved in the agreement on account of an apprehension which may not and probably will not be realized.

In many respects nations are like individuals, and in their relations with one another they should be controlled by the same rules of amity and equity as pertain to the associations of mankind generally. In the end no nation can lose any material thing through an act of generosity or fair-dealing.

Notwithstanding the United States has acted favorably upon the agreement, it is not yet in force. This circumstance is due to the fact that in the matter of ratification Canada has waited upon this country. There is opposition there as there was here, and at this writing (August, 1911) Sir Wilfred Laurier is engaged in a struggle for favorable endorsement such as that from which President Taft has just emerged.

CHAPTER XXV THE INTEROCEANIC CANAL

Probably the most important work before the Committee on Foreign Relations since the treaty of peace with Spain, were the several treaties concerning the construction of the Isthmian Canal.

In 1850, the United States entered into what is known as the Clayton-Bulwer Treaty with Great Britain, the purpose of which was to facilitate the construction of a canal; but instead of operating to this end, it stood for fifty years or more as an effectual barrier against the construction by the United States of any canal across the Isthmus of Panama. Succeeding Administrations had endeavored to secure the consent of Great Britain to its abrogation, but it was not until Secretary Hay's time that Great Britain

finally agreed to annul it and substitute in its place a new treaty. Secretary Hay had been Ambassador to Great Britain, and he enjoyed the confidence of the then existing British Ministry to a greater degree than almost any minister or ambassador we have ever sent to Great Britain. After entering the State Department, Mr. Hay at once directed his attention to the making of a new treaty with Great Britain and this resulted in the first Hay-Pauncefote Treaty. This convention was considered by the committee, but was not found satisfactory, and certain amendments were added to it. These amendments Great Britain would not accept, and the treaty died.

Secretary Hay was very much disappointed, but he at once set to work to negotiate such a treaty as would go through the Senate without amendment and such a one as Great Britain would consent to. He wrote to a number of Senators, members of the committee, I suppose, asking for suggestions as to just what the Senate would agree to. I was not at that time chairman of the Committee on Foreign Relations, but I was very deeply interested in the subject and had given it considerable study and thought. Secretary Hay wrote me, and I replied at length, giving my views both as to the Clayton-Bulwer Treaty and what I thought should be inserted in the new treaty.

Mr. Hay promptly renewed negotiations, which resulted in what is known as the second Hay-Pauncefote Treaty. After a good deal of effort this agreement was ratified without amendment. This act signalized the beginning of my service as chairman of the Committee on Foreign Relations.

The principal contention arose over the subject of fortifications, a question that is still a mooted one. It occurs to me that the proper reasoning is this—and I believe I took the same position when the treaty was under consideration:

The first and second Hay-Pauncefote treaties must be construed together; the first Hay-Pauncefote Treaty contained a prohibition against fortification; the second Hay-Pauncefote Treaty neither prohibited nor in terms agreed to fortifications, but was silent on the subject; therefore, the legal construction would be that Great Britain had receded from the position that the canal should not be fortified. In any event, we will go ahead and fortify the canal, and do with it whatever we please, regardless of any of the nations of the world.

That obstacle having been finally removed, the question which next arose was: What route should be selected? The selection of the route was not a subject over which the Foreign Relations Committee had jurisdiction; but after the Panama route was decided on, it became necessary to negotiate with Colombia, the owner of that route, for the right of way for the canal. Secretary Hay promptly proceeded with the negotiation, as it was his duty to do, under the Spooner Act, and on January 3, 1903, submitted the treaty to the Senate for its Constitutional action thereon. Senator Morgan and others led the fight against it; but a vote was taken, and the treaty was ordered favorably reported. On February 12, 1903, I called it up in the Senate and made quite an extended speech, explaining its provisions, and urging its ratification. The session was to close on March 4, and it finally became manifest that it would be hopeless to attempt to ratify it before that day, and the effort was abandoned. President Roosevelt called a special session of the Senate after the fourth of March, when there would be nothing for the Senate to consider except the Colombian treaty and other executive matters. According to the usual rule, the treaty was referred back to the committee, at the beginning of the special session, and the subject was again gone over in committee as if there had been no proceedings on it at all during the regular session. The proposed agreement was finally reported to the Senate, and ratified. There is no need for me to go over the story of its rejection by Colombia. The action of the Colombian Congress

was a hold-up pure and simple, and the treaty was rejected in the hope that the United States would offer a greater amount for the right-of-way. Panama promptly seceded, which she had a perfect right to do. Many people have charged that the Roosevelt Administration actually incited the revolution. Whether this is true or not, I do not know. I contended at the time, and still believe, that it is not true. I hope it is not; but the correspondence did show that the State Department had pretty close knowledge of events which were occurring on the Isthmus, and had seen to it that there was a sufficient naval force in the vicinity "to protect American interests." It was a remarkable revolution—I think the most remarkable I have ever read of in history. It was practically bloodless. One or two shots were fired, a Chinaman was killed, and yet a new and independent republic entered the family of Nations.

We were able to make with Panama a much more satisfactory treaty than we had with Colombia. Senator Morgan this time was assisted by most of his Democratic colleagues; he denounced the treaty and made all sorts of charges against the Administration; but after numerous long sessions of the Committee on Foreign Relations, I was authorized to report it to the Senate with certain minor amendments, which, in my opening speech, I asked the Senate to reject, and to ratify the treaty without amendment. I did this at the earnest insistence of the State Department. And, in addition, I did not think that the amendments were of such importance as would justify resubmitting the treaty to Panama after that little country had once ratified it. The State Department was led to this action by the receipt of the following cable from Mr. Buchanan, the first Minister of the United States to Panama:

"Panama, *January 22, 1904.*

"Hay, Washington:

"I can not refrain from referring to my belief that no amendment to the treaty should be made. The delimitation of Panama and Colon involves several things which can only be satisfactorily adjusted on the ground by joint action. There are several other points in the treaty which will require a mutual working agreement, or regulation, including sanitation. While the treaty covers broadly all these things, my observation here is that the details of development of the authority conferred by the treaty in these regards can not be satisfactorily carried out by amendments, but should be done through a mutually agreed upon regulation or understanding reached here on the ground between the two countries. The executive power here can secure for the convention ample authority to do such things without their being referred to the convention hereafter. Would it not be possible and best to adopt this course with these amendments to the treaty; will bring up here much discussion of many articles which can all be avoided and our purpose gained by above course. Any time when any specific grants of land or power not implied in the treaty is desired, it appears to me the wise course to take will be to do this by a supplemental convention.

"(Signed) Buchanan."

Secretary Hay showed the most eager anxiety to have the treaty ratified as it stood, and he wrote me quite a lengthy letter on the subject, which I now feel at liberty to quote.

"Department of State, Washington. *"January 20, 1904.*

"Dear Senator Cullom:—

"I enclose a copy of a letter from the Panama Minister which he sent me last night. He, as well as Mr. Buchanan, who is on the ground, is greatly disturbed over the possible complications which may arise if amendments are added to the treaty in the Senate. Of course, I need not say nobody

questions the right of the Senate to amend the treaty as may seem to them best. I am only speaking of the matter of opportuneness and expediency. We insisted on an immediate ratification of the treaty by the Panama Government, and they acceded to our wishes. If we now, after a very long delay, send the treaty back to them amended, you can at once imagine the state of things that it will find there. The moment of unanimity and enthusiasm, which only comes once in the life of a revolution, will have passed away and given way to the play of politics and factions. They will have a certain advantage which they have not had before in dealing with the matter. We shall have ratified the treaty with amendments, which gives them another chance to revise their perhaps hasty and enthusiastic action. They will consider themselves as entitled to make amendments as well as we, and it needs only a glance at the treaty to show what an infinite field of amendments there is from every point of view. The Junta in making their report to the present Constitutional Convention said that, although many of the provisions seemed harsh and hard, yet it was judged for the public good to accept it as it was. When they get the amended treaty in their hands again, they will compare it with the treaty we made with Colombia, and see how vastly more advantageous to us this treaty is than that one was, and there are never lacking in a body of men like the Constitutional Convention a plenty of members who like to distinguish themselves by defending the interests of their country through the advantageous amendment of a treaty. Meanwhile the country will be open to the intrigues of the Colombians, and even to the military attacks upon the frontier.

"All these considerations would, of course, have no weight whatever if the amendments were vital to our interests, but, as I said to you yesterday, it was the opinion of all of us who have studied the matter that every point made by the amendments was intended to be covered—I do not say how successfully—by the provisions of the treaty itself. This letter of Mr. Varilla's shows that the intentions of each Government were thoroughly

understood by the other, exactly in the sense of the amendments now proposed. I earnestly hope that our friends in the Senate may see the strength of our present position if the treaty is ratified without amendment, and the certain complications that will arise if, after a long debate here, the treaty is put once more in the hands of the Panamans for reconsideration and amendment.

"If the object of the amendments, as some people say, is to get it ratified by the new permanent Government, nothing is easier. I have no doubt we can have a solemn resolution of that sort adopted by the Convention at any time.

"Very sincerely yours,
"John Hay.

"The Honorable S. M. Cullom,
"United States Senate."

After nearly a month and a half of debate in executive session, devoted to its consideration, the treaty was finally ratified without amendment.

Considerable discussion arose over the question of the recognition of Panama and the right of that country to make the treaty at all. I contended in the Senate, in open as well as executive session, that the new Republic of Panama had a perfect right to make the treaty with the United States because it was a complete, sovereign, and independent State. The recognition given the new Government was the highest recognition we could accord. It was not a recognition of belligerency, which is only a recognition that war exists; it was not a virtual recognition, which is a recognition only for commercial purposes; but it was what Pomeroy and Fillmore define to be a formal recognition—that is, an absolute recognition of independence and sovereignty. The recognition of the Republic was a

complete and formal recognition of independence, because the President had received an envoy-extraordinary and minister- plenipotentiary from that State. The United States Senate was a party to that complete and formal recognition, because we confirmed the nomination of Mr. Buchanan as envoy-extraordinary and minister- plenipotentiary to that country.

This ended the long fight over the construction of the Panama Canal—at least, so far as it in any way involved the jurisdiction of the Committee on Foreign Relations. With the ratification of the treaty, the subject was transferred to the Committee on Interoceanic canals, where, during every session, matters of more or less importance connected with the canal are considered.

I do not know whether or not it was wise to change from the Nicaraguan to the Panama route. Senator Hanna and Senator Spooner were responsible for the change; and time alone will demonstrate whether we acted wisely.

CHAPTER XXVI SANTO DOMINGO'S FISCAL AFFAIRS

For some years the Santo Domingo protocol and treaty were before the Committee on Foreign Relations, and in the Senate. They came before the Senate very suddenly. On January 20, 1905, there appeared in the press what purported to be a protocol, agreed to by Commander Dillingham on the one hand, and Minister Sanchez of the Dominican Republic on the other, by the terms of which the United States was to take charge of the custom houses of the Dominican Republic, adjust and liquidate its debt, and generally to take charge of the fiscal affairs of the Republic. By the terms of this protocol, it was to go into effect February 1, and there was no provision at all for Senatorial action. Senator Bacon and other Democratic Senators became very much aroused over this as a usurpation of the rights of the Senate. Resolutions were introduced, calling upon the State Department for

information, and the subject was considered by the committee at several meetings.

I confess that I too was considerably surprised at the action of the State Department, and I called on Secretary Hay one morning and asked to be informed as to the facts.

Secretary Hay stated that he would communicate with me in writing, which he did on March 13, 1905, saying:

"In answer to your verbal request, I submit herewith a statement of the facts with reference to the making of the Santo Domingo protocol, and enclose herewith a copy of the protocol of January 20, 1905. That protocol was not drawn up by the Department of State and was never seen by any of its officials until it appeared in the newspapers on January 22d last, as given out by the Dominican officials. The Department has never authorized its signing; it never gave any instructions authorizing its signature; and no full powers had ever been given authorizing the signature on the part of the United States Government. The Minister of Foreign Affairs of the Dominican Republic visited Washington during the Spring of 1904, and during a stay of nearly three months repeatedly solicited the assistance of the United States Government for the restoration of order in the island and for the regeneration of his country, but the responsible officials of the Department advised against meeting his request, and the President, to whom the matter was referred, decided against taking any action as long as it could wisely be avoided.

"The Dominican Government again brought the matter to the attention of the United States Minister at Santo Domingo the latter part of 1904. In the meantime an investigation had been going on quietly by our Government through Commander Dillingham, to obtain information as to the real condition in the island. After the President became thus familiar with the

situation there, and on the report of the United States Minister, and after repeated requests for help from the Dominican Government, the Department of State, on January 6, 1905, prepared a cablegram setting forth the basis on which alone the United States would be able to render assistance. . . .

"Neither that cablegram nor any other despatch whatsoever went further than simply lay down a basis; and acting on this, but without instructions authorizing it, the Dillingham-Sanchez protocol was signed. The Department was advised by cable on January 20 that an arrangement had been agreed to, and thereupon the Department officials at once set to work to prepare a treaty; and its officials were actually engaged in drafting one to send to Santo Domingo, when the publication of the protocol of January 20 appeared. The Department at once cabled to Santo Domingo to forward a copy of the protocol; and as soon as its text could be received, the Department began work in making amendments and adjusting terms on which the United States Government could consent to act. As soon as the two Governments could arrive at substantial agreement as to the terms, full powers were communicated to Dawson, and the protocol now before the Senate was accordingly signed.

"In view of the misapprehensions that at once arose, growing out of publication of the protocol, which upon its face stated it was to go into effect February 1st, and from which it might naturally be inferred it was intended to go into effect before the Senate could have an opportunity to consider it, and without its having been referred to the Senate for consideration, I considered the question of the propriety of stating the fact that no instructions and no powers had ever been granted authorizing the signing of the protocol of January 20. The decision was reached that repudiation of the action of Dillingham and Dawson might be construed as a censure, and that it might cause offence to them as well as to their friends,

who might feel that when the circumstances should become fully known, that Dillingham and Dawson were justifiable in assuming the responsibility they did in signing the protocol instead of making a formal memorandum of the basis agreed on and communicating it to the Department for the drafting of a treaty. Both of these officials have a record of faithful and skilful service and competency, and it was hoped when the facts should become more fully known, a correct understanding of the actual situation would remove any ill effects of previous misapprehension.

"The department has been advised that the protocol of January 20 was given out for publication by the Dominican Government in order to calm the popular mind on account of its uncertainty as to the character of negotiations which were actually being carried on between the two Governments.

"(Signed) John Hay."

From 1865, until the time that the United States assumed the collection of customs, conditions in Santo Domingo were about as bad as they could be in every respect. One revolution succeeded another. There had been twenty-six different Administrations since 1865, only one of which was brought about by means of a regular election. Most of the others were caused by revolutions, assassination, forced resignations, and a general condition of anarchy. Debt after debt, bond issue after bond issue, piled up, each Administration seemingly bent only on seeing how much actual cash could be raised, utterly regardless of obligations assumed. None of the principal and only a trifling portion of the interest were paid, and it seems that the different Administrations never had any intention of liquidating the obligations of the Republic. The principal portion of the bonds was held by European creditors.

But finally the Santo Domingo Improvement Company, an American corporation, succeeded as the fiscal agents of the Republic, to float its bond issues. The improvement company was displayed, and its claim was settled for four million, five hundred thousand dollars. Then a protocol was entered into between the United States and Santo Domingo by which the manner of payment was submitted to arbitration, our arbitrators being Judge George Gray and John G. Carlisle. An award was rendered providing that an agent of the United States should take possession of certain custom houses, in order to pay a debt which the Government of Santo Domingo had acknowledged to be due an American corporation.

This did not satisfy foreign creditors, French, Belgian and Italian, who had actually been given, by an agreement with Santo Domingo, the right to collect revenues at certain custom houses. Santo Domingo appealed to the United States and the foreign Governments threatened that if the United States did not enforce some remedial plan, they would be compelled to take action for the relief of their own citizens, whose claims aggregated twenty million dollars. Italian warships were already in Santo Domingo waters ready to enforce their demands. This, briefly, was the condition of affairs when the protocol of 1905 was submitted to the Senate for ratification.

For more than a quarter of a century we have had a peculiar interest in Santo Domingo. As is well known, under the Administration of President Grant a treaty was negotiated and sent to the Senate providing for the annexation of Santo Domingo. Senator Sumner was Chairman of the Committee on Foreign Relations, and as such was able to prevent the consideration of the treaty by the committee, and its ratification by the Senate. Some one said that the only objection that Charles Sumner had to the treaty was that President Grant had suggested it first. This was one of the reasons why Senator Sumner was deposed as chairman of the Foreign Relations Committee. It would probably have been better for the United

States, and it certainly would have been better for the Dominican Republic, if the treaty had been ratified.

The protocol submitted to the Senate involved very large responsibilities on the part of the United States. It provided that the United States was to adjust all the obligations of the Republic, the arrangement of the payment, to pass upon all claims of Santo Domingo, determine their amount and validity, take charge of all the custom houses, and collect and disburse the customs receipts, giving to Santo Domingo forty-five per cent of the customs receipts and devoting the balance to the liquidation of her debts.

This protocol had the active opposition of the minority of the committee and in the Senate and, in addition, such conservative members as Senator Hale and other prominent Republicans opposed it. We fought over it in committee month after month; but finally, on March 10, 1905, it was reported by me to the Senate with a large number of amendments. It was considered by the Senate, recommitted at the end of the Congress, and again reported at the following Congress. But those in favor of it became convinced that we did not have the two-thirds necessary to ratify it, and it was never brought to a vote. It was thought that nothing more would be heard of the Santo Domingo protocol; but Senator Root, when Secretary of State, took the subject up *de novo*, and made a new treaty, in which the United States did not assume the broad obligations it assumed under the first one, and which was not generally of so complicated a character.

It imposed the duty upon the Santo Domingo Republic itself of arriving at an adjustment with its creditors, conditioned only on the administration of the custom houses by the United States.

In the meantime, an arrangement was made by American banking houses to furnish the money to liquidate the debt; the creditors were satisfied; the foreign debt was liquidated on a basis of fifty per cent of the face value, and

domestic debts and other claims less than ten per cent. A loan of twenty million dollars was made through Kuhn, Loeb & Company, of which the Dominican Republic received nineteen million dollars for the payment of its debts; seventeen million dollars was used to satisfy thirty-one million, eight thousand dollars worth of bonded debts, and the remaining two million, two thousand dollars were to go for internal improvements.

There was some objection to the ratification of the treaty negotiated by Secretary Root, but not of a very serious character, and the treaty went through, even Senator Morgan not opposing it. I had the honor of reporting it and having charge of it in the Senate.

The treaty has now been in force several years, and it has proved even more advantageous than was expected when it was ratified. It has restored order in the Republic, and the country's debts are rapidly being liquidated. The time may come when the United States may be compelled to take similar action with some of the other republics south of us. Such action would be beneficial both to the United States and to the people of those republics.

CHAPTER XXVII DIPLOMATIC AGREEMENTS BY PROTOCOL.

During the public discussion of the Santo Domingo question and the protocol by which the Santo Domingo Improvement Company claim was sent to arbitration, and later during the consideration of it, there was criticism of the Executive branch of the Government on account of its disposition to make international agreements of various kinds, and put them into operation without submitting them to the Senate. The practice became more general under President McKinley and Secretary Hay than it had under other Administrations, and it seemed the policy to get along in every case, if possible, without Senatorial action. It was a subject in which I took

very great interest; I came to the conclusion that the practice had become too general, and I took occasion to tell Secretary Hay my views.

I found that the State Department, under different Administrations, had submitted private claims of our citizens against foreign Governments to arbitration by protocol. This has been the rule frequently adopted for very many years. There were cases, I found, where the protocol submitting a claim to arbitration had been sent to the Senate and ratified, and it was the general rule that where a claim is presented by a foreign Government against this government, and the same is submitted to arbitration, it is done by treaty.

I took occasion to look into the question of the effect of an unratified protocol. It may be said generally that an unratified protocol differs from a treaty in that the protocol is not ratified by the Senate and is not a part of the supreme law of the land. Under our system of government, treaties occupy a unique position. They are not only binding internationally, but the Constitution makes treaties a part of the supreme law of the land—that is, a part of our own municipal law. A treaty, if of later date, and in conflict with a law passed by Congress, repeals so much of the law as it conflicts with; but an unratified protocol, or any other international agreement, no matter by what name it is called, not submitted to the Senate, does not have the effect of a treaty, as that term is defined in the Constitution. A protocol is binding merely on the Executive who makes it, and, as has been well said, such protocol is binding on the administration in a moral sense only.

Nevertheless it has been the practice to make so-called diplomatic agreements concerning very important matters without their submission to the Senate.

For instance, the agreement of 1817, concerning the naval forces on the Great Lakes, was considered in force and observed by the two Governments

for a year or more before it was submitted to the Senate at all. Horse Shoe Reef, in Lake Erie, was transferred to the Government by a mere exchange of notes between Lord Palmerston and Mr. Lawrence, our Minister to Great Britain; and I might refer to a long list of arbitrations, some of very great importance, agreed to by unratified protocols. The very important protocol concluded by the powers after the Boxer troubles in China was not sent to the Senate. Important agreements are often made under the name of *modus vivendi* without submission to the Senate.

Very little comment is to be found in books on international law concerning protocols or diplomatic agreements. There is no doubt that the Executive has the right to enter into a protocol preliminary to the negotiation of a treaty. This is a common practice. We have such protocols preliminary to treaties of peace. As to the claims protocols, the Executive Department has taken the position that the President, who is in charge of our foreign relations, has wide discretion in settling disputes by diplomacy; and that a claims protocol is in the nature of a settlement of a claim of a citizen of our country against a foreign Government, by diplomacy.

The term "protocol," or diplomatic agreement, or *modus vivendi*, is not found in the Constitution. The Constitution uses only one term in describing agreements between this Government and foreign powers, and that is the term "treaty"; and every agreement between the United States and a foreign Government, to have the effect of a treaty, to be a part of the supreme law of the land, must be ratified as the Constitution prescribes, by a two-thirds vote of the Senate.

When Mr. Root entered the State Department, it seems to me that he stopped the practice very largely of making diplomatic agreements. It seemed to be his policy, and a very wise one, to seek, rather than avoid, consulting the Senate. I know that under his administration agreements

were made in the form of a treaty and sent to the Senate which other administrations would consider they had a perfect right to make without consulting the Senate. It will be wise for future Administrations to adhere to Mr. Root's policy in this respect.

CHAPTER XXVIII ARBITRATION

During the year 1904, there was a great general movement all over the world in the direction of arbitration treaties. Indeed, so general did it become, and so universal was the form used, that it became known as the Mondel or world treaty. The treaties were very brief, and merely provided that differences which may arise of a legal nature or relating to the interpretation of treaties existing between two contracting parties, and which it may not have been possible to settle by diplomacy, shall be referred to the permanent court of arbitration established at The Hague; provided, nevertheless, that they do not affect the vital interests, the independence, or the honor of the two contracting States, and do not concern or involve the interests of third States. There was a second article in the treaty, which provided that in each case a special agreement should be concluded defining clearly the matter in dispute, the scope of the powers of the arbitrator, the periods to be fixed for the formation of the arbitral tribunal, and the several stages of the procedure.

President Roosevelt and Secretary Hay were very much in favor of these treaties, and sent to the Senate, for its ratification, treaties in substantially the foregoing form, with France, Portugal, Great Britain, Switzerland, Germany, Italy, Spain, Austria, Sweden, Norway, and Mexico. The treaties were considered with great care by the Committee on Foreign Relations. We all favored arbitration in theory, and I do not think any one wanted to oppose the treaties; but a number of questions confronted us. I neither have

the right nor do I expect to detail what has taken place in the Committee on Foreign Relations; but I can say that the subject was discussed in the press, whether such treaties would not compel us to consider as matters for arbitration claims against the States, growing out of the Civil War and Reconstruction.

In the judgment of some, such claims were proper subjects of arbitration under this Mondel form of treaty.

President Roosevelt, who was following closely the treaties in the Senate, and with whom I had talked concerning these objections, wrote me a letter, which he marked personal, but which appeared in the afternoon papers almost before the letter reached me, it having been given out at the White House, in which he said:

"January 10, 1905.

"My dear Senator Cullom:

"I notice in connection with the general arbitration treaties now before the Senate, that suggestions have been made to the effect that under them it might be possible to consider as matters for arbitration claims against certain States of the Union in reference to certain State debts. I write to say, what of course you personally know, that under no conceivable circumstances could any such construction of the treaty be for a moment entertained by any President. The holders of State debts take them with full knowledge of the Constitutional limitations upon their recovery through any action of the National Government, and must rely solely on State credit. Such a claim against a State could under no condition be submitted by the general Government as a matter for arbitration, any more than such a claim against a county or municipality could thus be submitted for arbitration. The objection to the proposed amendment on the subject is that it is a mere

matter of surplusage, and that it is very undesirable, when the form of these treaties has already been agreed to by the several Powers concerned, needlessly to add certain definitions which affect our own internal policy only; which deal with the matter of the relation of the Federal Government to the States which it is of course out of the question ever to submit to the arbitration of any outside tribunal; and which it is certainly absurd and probably mischievous to treat as possible to be raised by the President or by any foreign power. No one would even think of such a matter as being one for arbitration or for any diplomatic negotiation whatever. Moreover, these treaties run only for a term of five years; until the end of that period they will certainly be interpreted in accordance with the view above expressed.

"Very truly yours,
"(Signed) Theodore Roosevelt.

"Hon S. M. Cullom, U. S. Senate."

But a more serious question was met when we came to consider the second article of the treaty, which provided that in each case a special agreement should be made defining clearly the matter in dispute, the scope and powers of the arbitrators, and the periods to be fixed for the formation of the arbitral tribunal. The difficulty confronting us was whether it was the intention to submit the special agreements referred to in article two for the ratification of the Senate. It was the unanimous opinion that these special agreements should be submitted to the Senate.

I believe that as the treaties were drafted it would be the Constitutional duty of the President to have each special agreement submitted for ratification, because the article provided that "the high contracting parties shall conclude such special agreement." The Senate is a part of the treaty-making power, and would be included in the term "high contracting parties." But the wording of article two left some doubt as to the intention

of those negotiating the treaty; and then, again, it might have been claimed that article one, agreeing to arbitrate the questions therein enumerated, might be construed as an agreement in advance on the part of the Senate, to give to the Executive the general power to make arbitration agreements without reference to the Senate. Of course, the Senate, even if it so desired, could not thus delegate the treaty-making power to the Executive alone.

There was so much difference of opinion that I took occasion to submit the question to both President Roosevelt and Secretary Hay, whether it was the intention on the part of the executive department to send these special agreements to the Senate for ratification. They both replied that it was not; that one of the purposes of the Executive in making the treaties was to enable the Administration to go ahead and make the special agreements without consulting the Senate.

Under these circumstances, it was almost the unanimous judgment of the Senate that the treaties should be amended by striking out the words "special agreement": and substituting the word "treaty," a Constitutional term about which there could be no doubt. I considered at the time that the declaration and agreement contained in these treaties in favor of arbitration were just as strong, just as broad, and just as obligatory with the proposed amendment as without it. It was an agreement on the part of the President and Senate that the President and Senate, the treaty-making power, would submit differences to arbitration.

The Senate was severely criticised at the time for being too technical and standing in the way of arbitration; but in my judgment it was not a trifling question. It could not be put aside. Even if the amendment had not been adopted, the President, if he followed the Constitution, should have submitted these special agreements to the Senate for ratification; but he took the positive stand that he would not submit them, and nothing

remained for the Senate to do but to assert and uphold its rights as a part of the treaty- making power, and adopt the amendment to which I have referred.

I do not think I violate any of the rules of etiquette by quoting here President Roosevelt's letter written to me after he had learned, through the press, that the Senate Committee on Foreign Relations had amended the treaties.

"White House, Washington, "*February 10, 1905.*

"My dear Senator Cullom:

"I learn that the Senate Committee on Foreign Relations has reported the arbitration treaties to the Senate, amending them by substituting for the word 'agreement' in the second article the word 'treaty.' The effect of the amendment is to make it no longer possible, as between its contracting parties, to submit any matter whatever to arbitration without first obtaining a special treaty to cover the case. This will represent not a step forward but a step backward. If the word 'agreement' were retained it will be possible for the Department of State to do as, for instance, it has already done under The Hague treaty in the Pious Fund arbitration case with Mexico, and submit to arbitration such subordinate matters as by treaty the Senate had decided could be left to the Executive to submit under a jurisdiction limited by the general treaty of arbitration. If the word 'treaty' be substituted the result is that every such agreement must be submitted to the Senate; and these general arbitration treaties would then cease to be such, and indeed in their amended form they amount to a specific pronouncement against the whole principle of a general arbitration treaty.

"The Senate has, of course, the absolute right to reject or to amend in any way it sees fit any treaty laid before it, and it is clearly the duty of the

Senate to take any step which, in the exercise of its best judgment, it deems to be for the interest of the Nation. If, however, in the judgment of the President a given amendment nullifies a proposed treaty it seems to me that it is no less clearly his duty to refrain from endeavoring to secure a ratification by the other contracting power or powers, of the amended treaty; and after much thought I have come to the conclusion that I ought to write and tell you that such is my judgment in this case.

"As amended, we would have a treaty of arbitration which in effect will do nothing but recite that this Government will when it deems it wise hereafter enter into treaties of arbitration. Inasmuch as we, of course, now have the power to enter into any treaties of arbitration, and inasmuch as to pass these amended treaties does not in the smallest degree facilitate settlements by arbitration, to make them would in no way further the cause of international peace. It would not, in my judgment, be wise or expedient to try to secure the assent of the other contracting powers to the amended treaties, for even if such consent were secured we would still remain precisely where we were before, save where the situation may be changed a little for the worse. There would not even be the slight benefit that might obtain from the more general statement that we intend hereafter, when we can come to an agreement with foreign powers as to what shall be submitted, to enter into arbitration treaties; for we have already, when we ratified The Hague treaty with the various signatory powers, solemnly declared such to be our intention; and nothing is gained by reiterating our adherence to the principle, while refusing to provide any means of making our intention effectual. In the amended form the treaties contain nothing except such expression of barren intention, and indeed, as compared with what has already been provided in The Hague arbitration treaty, they probably represent not a step forward but a slight step backward, as regards the question of international arbitration. As such I do not think they should receive the sanction of this Government. Personally it is not my opinion that

this Government lacks the power to enter into general treaties of arbitration, but if I am in error, and if this Government has no power to enter into such general treaties, then it seems to me that it is better not to attempt to make them, rather than to make the attempt in such shape that they will accomplish literally nothing whatever when made.

"Sincerely yours,
"(Signed) Theodore Roosevelt.

"Hon. S. M. Cullom, U. S. Senate."

This letter was read to the Senate, and notwithstanding the positive declaration by Mr. Roosevelt that he would not ask any of the foreign Governments to consent to the amendment made by the Senate, the treaties were amended and ratified by the Senate.

I told the President in advance of the action of the Senate what would be done, and he rather curtly remarked that the matter was closed, and that he would not ask the other Governments to agree to the treaties as amended. And no further action was taken on the treaties.

When Secretary Root entered the State Department he took an entirely different view of the subject. I do not know whether Mr. Root was of the opinion that the Senate was right in insisting on what it considered to be its duty in amending the treaties, but I do know that he negotiated arbitration treaties with Austria, China, Costa Rica, Denmark, France, Great Britain, Haiti, Italy, Japan, Mexico, The Netherlands, Norway, Paraguay, Peru, Portugal, Salvador, Spain, Sweden, and Switzerland, every one of which treaties contained the stipulation that the special agreements referred to in article two were to be made by the President of the United States, by and with the advice and consent of the Senate. These treaties were promptly ratified and are a part of the supreme law of the land to-day.

Secretary Root was very wise in negotiating and sending to the Senate this series of Mondel or world treaties. All the Nations of the world were agreeing to these treaties among themselves, and it would have been a rather remarkable condition if the United States, of all the great Nations, should have remained aloof. I do not believe that Mr. Root had any difficulty in obtaining the consent of the signatory powers to the treaties, with the stipulation that the special agreement should come to the Senate for ratification; but for some reason or other, at the time when the first treaties were under consideration, President Roosevelt, as indicated in the letter which I have quoted, and probably more particularly Secretary Hay, were both very much incensed at the action of the Senate, and permitted the first treaties to expire.

This general movement in the direction of arbitration was one of the most important events of the beginning of the twentieth century. The importance of the adoption of this principle by the Nations of the world cannot be overestimated. It has been well said that international arbitration is the application of law and of judicial methods to the determination of disputes between Nations, and that this juristic idea in the settlement of international disputes is largely an outgrowth of the international relations, the new and advanced civilization of the nineteenth century.

I do not believe the time will ever come when wars will cease,— the United States obtained its independence by means of a revolution and war; but peace and arbitration have been advocated by the great majority of the enlightened statesmen of the world. There were many great wars during the nineteenth century, including our own Civil War, the greatest, the bloodiest, recorded in all history; but during this century arbitration has made wonderful strides. In the same period there were four hundred and seventy-one instances of international settlements involving the application of the principle of international arbitration. Many of these arbitrations were of the

greatest importance; and I remark here that in the number of arbitrations and the importance of the questions involved, the United States and Great Britain have unquestionably led the way. In fact, since the War of 1812, every subject of dispute between the two Nations, which it was found impossible to settle by diplomacy, has been submitted to arbitration. Only within a few years the Alaskan boundary was settled by arbitration, and within the past year a fisheries dispute, a cause of embarrassment since 1818, was submitted to The Hague tribunal and a decision rendered, which, though not entirely satisfactory to the United States, we accepted as the final settlement.

We have uniformly adopted arbitration as a means of settlement for disputes with the Central and South American Republics. With Mexico the treaty of Guadalupe Hidalgo, of 1848, stipulates that future disputes between the two republics shall be submitted to arbitration. We have a general arbitration treaty for the settlement of pecuniary claims with all the Central and South American Republics. At the first Hague Conference, which met in 1899, a general arbitration treaty was agreed to. It was a non-compulsory arbitration, and at the time represented the farthest steps in advance in the direction of arbitration which all the Nations were willing to take together. That treaty was perfected at the second Hague Conference of 1907; and, in addition, a series of treaties were agreed to concerning the opening of hostilities, the laws and customs of war on land, the rights and duties of neutrals, submarine contact mines, bombardment by naval forces, the right of capture in naval war, neutral powers in naval war, an international prize court, and the discharge of projectiles from balloons, and the Geneva Convention was revised. Aside from the prize court treaty, concerning which there were Constitutional objections, these treaties were ratified by the Senate, the United States being one of the first Nations of the world to take this step. Unlike the first Hague Conference, the South American Republics participated in the Second Conference, and it was the

first time in all the world's history that the representatives of all the independent Nations in the world gathered together in the interest of peace and agreed on certain principles which should guide them in the conduct of war, if war must come.

I take pride in the fact that the treaties agreed to at the first Hague Conference, and the treaties agreed to at the second Hague Conference, and the series of Mondel treaties, were reported from the Committee on Foreign Relations, and ratified by the Senate during my chairmanship of the Committee on Foreign Relations.

The last step to date in the interest of the peaceful settlement of international disputes has been taken by President Taft in the arbitration treaties between the United States and Great Britain and between the United States and France, both of which were signed by the representatives of this and the other two Governments in August, 1911. The ban of secrecy has been removed from these documents, and I feel at liberty to make brief mention of them, although, as they still are pending in the Senate, I should not feel disposed to discuss them at length. The treaties mark an advance over the arbitration treaties of 1908 in that they bring into arbitration a much wider range of subjects than is covered by the older conventions. In the latter, questions of "national honor," "vital interest," etc., were excluded from consideration, whereas, under the pending agreements, "all differences which are justiciable in their nature by reason of being susceptible of decision by the application of the principles of law and equity," are made subject to arbitration under the rules laid down in the documents.

There also is a provision granting to the Commission created by the treaties the right to determine whether any given question presented to it may be considered justiciable under the language of the treaties. This latter provision is regarded by the President and Secretary Knox as highly

desirable in the interest of the expedition of business, but it met such opposition in the Committee on Foreign Relations that its elimination from the treaties was recommended to the Senate. The objection to the provision is based upon the theory that it would deprive the Senate of its constitutional right to pass upon all treaties. I have not accepted this view, because I do not believe in hampering working bodies when such a course can be avoided without doing violence to the fundamental law as I believe in this case it can be.

With this provision expunged, the Committee is largely favorable to the treaties, and they are now pending in the Senate. It, however, has become evident that they cannot be speedily acted upon, and as I write, in the closing days of the special session, called at the beginning of the Sixty-second Congress, the indications are strong that they will be compelled to go over to the regular session in December for final consideration. What their fate then may be no one can foretell.

It is well understood that if these treaties should be ratified they will be followed by similar agreements with the other civilized nations of the world. The spirit of arbitration has taken strong hold on our big-hearted and peace-loving President, and I am confident that he will leave no stone unturned to promote good will among nations as he is wont to do among men. Whatever differences of opinion there may be, regarding the details of any particular negotiation, no person of whatever party or creed can doubt President Taft's splendid patriotism and devotion to the highest ideals of citizenship. I am sure that these treaties have been inspired by these sentiments, and, being honest and benevolent in their purpose, the principle they embody must prevail in the end.

CHAPTER XXIX TITLES AND DECORATIONS FROM FOREIGN POWERS

The Constitution of the United States provides:

"No title of nobility shall be granted by the United States, and no person holding any office of profit or trust under them shall, without the consent of Congress, accept of any present, emolument, office, or title of any kind whatever from any king, prince, or foreign State."

When I became chairman of the Committee on Foreign Relations, there were numerous bills pending, and numerous requests submitted through the State Department, for authority, on the part of officers of the United States, to accept gifts and decorations from foreign Governments. At first I was disposed to consent to the report and passage of such bills, and during the first year or two they were reported from the committee from time to time and passed in the Senate. The House did not act upon the individual bills, but a so- called "omnibus bill" was passed in the House containing all the bills that previously had been passed by the Senate, and in addition quite a number of House bills. I had not realized until then how extensive the practice had become, and I thereupon determined to use what influence I had to put a stop to it. Since then but two decorative bills of an exceptionally meritorious nature, one in favor of Captain T. deWitt Wilcox, and one in favor of Admiral B. H. McCalla, have been enacted by Congress.

I thoroughly disapprove of the practice, and wanted to put an effectual stop to it. At the same time the requests came pouring in from session to session, and certain Senators, both on the committee and others who were not members of it, insisted and urged that favorable action be taken in behalf of officers of the United States in whom they were interested. After more than two hundred requests had accumulated, I determined to appoint a subcommittee to consider the whole matter and report to the committee such cases as were meritorious, or to adopt a general rule against the whole practice. As chairman of that subcommittee, I appointed Mr. Root, and with

him Mr. Lodge, Mr. Carter, Mr. Bacon, and Mr. Stone. The subcommittee, on March 10, 1910, submitted its report, which was adopted by the full committee and submitted to the Senate. Besides reviewing at considerable length the reasons for legislation, the report included the following salient features:

First, the existence of the provision in the Constitution indicates that the presumption is against the acceptance of the present, emolument, office, or title. A habit of general and indiscriminate consent by Congress upon such applications would tend practically to nullify the Constitutional provision, which is based upon an apprehension, not without foundation, that our officers may be affected in the performance of their duties by the desire to receive such recognition from other Governments. A strong support for the view that the practice should not be allowed to become general is to be found in the fact that the Government of the United States does not confer decorations or titles, or—unless in very exceptional cases—make presents to the officers of other Governments. The report then recommended that the following five rules be observed;

"1. That no decoration should be received unless possibly when it is conferred for some exceptional, extraordinary, and highly meritorious act, justifying beyond dispute a special mark of distinction.

"2. That no presents should be received except such articles as are appropriate for souvenirs and marks of courtesy and appreciation, and having an intrinsic value not disproportionate to such a purpose.

"3. That the acceptance of presents within the limitation above stated should be further limited to cases in which some exceptional service or special relation justifying the mark of courtesy exists between the recipient and the Government offering the present.

"4. That no offer of any other title or emolument or office should be considered.

"5. We consider that membership in learned societies, even though the appointment thereto may have a *quasi* Governmental origin, should not be considered as coming within the Constitutional provision, and it may well be that as to certain trifling gifts, such as photographs, the rule of *de minimis lex non curat* should be deemed to apply."

I agreed to the report of the subcommittee and agreed to the bill, permitting certain officers to accept the presents tendered to them, where there were good reasons therefor; but I am free to say that I was somewhat disappointed that the subcommittee had not reported in favor of abolishing the practice entirely, instead of discriminating between presents and decorations, as they did.

The bill passed the Senate without debate and without objection. It went to the House, and the House Committee on Foreign Affairs, through Mr. Denby, of Michigan, submitted a most admirable report, which was far more in line with my own ideas than was the report of the Senate Committee on Foreign Relations. I agree with the conclusions arrived at by the Committee on Foreign Affairs so thoroughly that I am going to give most of that report here:

" . . . The subcommittee expresses the hope that this adverse disposition of these bills, which contains items fairly representative of the great majority of the requests for Congressional sanction for the acceptance of foreign orders, decorations, or presents, by officials of the United States, will be regarded as notice to officials of the United States that this committee at least, and it is hoped all future committees dealing with this subject-matter, will refuse to consider such requests, except as hereinafter noted.

"The Committee of Foreign Affairs has been required to devote much time to the consideration of bills to grant permission to accept such gifts. The committee has in the past very generally declined to recommend favorably any such legislation, except in the case of decorations offered to American citizens by official or quasi- official scientific associations for eminent scientific achievements."

Article 1, section 9, paragraph 8, of the Constitution of the United States is quoted, and the report proceeds:

"The Congress has been frequently importuned since the adoption of the Constitution to grant its consent for the acceptance of orders, decorations, and presents offered to officials of our Government, frequently upon pretexts the most trivial and for services the most commonplace, when services of any kind were rendered at all. A glance at the requests now on file, summarized in Calendar No. 378, which accompanies S. 7096, will show that the offers of foreign gifts, decorations, etc., have been made in the great majority of cases to officials for services in the direct line of their duty, and which in themselves, in the majority of cases, were not deserving of any special commendation. Following a practice which, because of reciprocal considerations, probably operates satisfactorily between foreign powers, the Governments of the world frequently tender to our officers decorations or presents upon such occasions as the first visit of a fleet to a foreign power, or the presence of individual officers representing our Government at reviews and public ceremonies, and to our diplomatic officials upon the termination of their missions, or upon occasions of rejoicing, jubilees of sovereigns, etc. While the practice of exchanging such graceful souvenirs is not displeasing among the nations which recognize and reciprocate the courtesy, it is entirely inappropriate that officials of this Government should accept, or desire to accept, such presents.

"The prohibition of the Constitution appears to have been put there out of a well-founded desire to safeguard our officials from the insidious influence of a natural but not desirable sense of obligation toward the powers donor. The history of nations abounds with instances of the giving of rich presents to retiring ambassadors and ministers upon the conclusion of treaties or the satisfactory termination of negotiations. There can be no doubt of the danger of recognizing that the agent of our Government may properly be compensated by another to which he is accredited. Another and obvious objection to permitting our officials to receive gifts or decorations from foreign powers is that, having no orders of nobility and no decorations in this country, and not recognizing the propriety of offering to officials of other powers, we can in no way reciprocate. It is beneath the dignity of the American Government to receive, through its representatives, presents for which it can make no return. The Constitutional prohibition is, in the opinion of the subcommittee, a wise one, to which Congress should very seldom permit any exception.

"Therefore the subcommittee earnestly hopes that the Committee may put itself on record so unequivocally in this instance as to clearly indicate that it will not, except under circumstances the most unusual and extraordinary, grant permission to any official of the Government to receive such presents.

"To that end the subcommittee further recommends that this report may, by resolution, be adopted as expressing the view of the members of the Committee on Foreign Affairs of the House of Representatives; that this report may be printed, and that a copy may be communicated to the Secretary of State.

"(Signed) Edwin Denby,
"H. W. Palmer,

"H. D. Flood, Subcommittee,

"Adopted by the Committee of Foreign Affairs, April 7, 1910.

"Frederic L. Davis, Clerk."

I have no doubt that these two reports, first the report of the Committee on Foreign Relations of the Senate, and second, the report of the Committee on Foreign Affairs of the House, taken together, will effectually stop the application for permission to accept both presents and decorations from foreign Governments. Indeed, I do not think that the Secretary of State will again consent to apply to Congress in behalf of officers who have been tendered presents and decorations.

CHAPTER XXX ISLE OF PINES, DANISH WEST INDIES, AND ALGECIRAS

For a number of years there was considerable controversy over the ownership of the Isle of Pines, a small island separated from Cuba by about thirty miles of water, containing 1200 square miles. This dot of land was not of the slightest account to the United States, so far as I could see; but after the treaty of peace with Spain, a number of Americans purchased land there for the purpose of establishing homes. When the United States withdrew from Cuba and the Cuban Republic was established, and the flag of Cuba was extended over the Island of Pines, those American residents protested and insisted that the island belonged to the United States. They had considerable ground for this contention, as Mr. Meikeljohn, when Assistant Secretary of War, had written a number of letters in which he stated that the Isle of Pines had been ceded to the United States by Spain, and therefore was a part of our territory, although attached at the time to the division of Cuba for governmental purposes.

The treaty of peace provided in article one that Spain relinquishes all claims of sovereignty over, and title to, Cuba; and in article two, that Spain cedes to the United States the Island of Porto Rico, and other islands under Spanish sovereignty in the West Indies, and the Island of Guam in the Marianas or Ladrones.

A strict construction of the treaty of peace with Spain would probably give the island to the United States under article two.

Cuba, however, insisted that the island was a part of Cuban territory, but it was provided in article six of the Platt amendments that the title to the island should be left to future adjustment by treaty.

Cuba granted to the United States two very valuable coaling stations, and the United States on its part agreed to enter into a treaty by which we should relinquish whatever title we might have to the Island of Pines in favor of Cuba.

A rather interesting incident occurred in connection with this treaty which I believe I violate no confidence in now detailing, as both Presidents have retired from office. President Roosevelt was very anxious that the treaty be ratified; he was also most solicitous that we should retain friendly relations with the Republic of Cuba, and felt that the island was not of the slightest importance to the United States from any standpoint, declaring that he would not accept it. I was at the White House one day when the treaty was before the committee, and he showed me a letter written to him by President Palma, of Cuba, and my recollection is that he gave me a copy of it for such use as I might desire to make. Mr. Palma urged in that letter that the Senate act favorably on the treaty, because if it did not his re-election as President of the Cuban Republic would thereby be endangered.

So much opposition to the treaty developed in the Senate that I deemed it useless to endeavor to bring it to a vote; and really, as I look at it now, there is very little use for the treaty at all, as Cuba is and has been exercising jurisdiction over the Isle of Pines. Cuba must be giving the island a good government for the American residents, as I have heard nothing from the island for several years.

It was during the Fifty-seventh Congress that the treaty with Denmark, providing for the purchase by the United States of the Danish West Indies, consisting of the Islands of St. Thomas, St. John, and St. Croix, came before the committee. I reported the treaty to the Senate and urged, and finally secured, its ratification.

The United States by this treaty agreed to pay five million dollars to Denmark for the islands.

We first attempted to purchase the islands in 1865, during the administration of President Lincoln. Secretary Seward was particularly anxious that the United States should acquire them, and a treaty was negotiated and agreed to by Denmark. The treaty was not acted upon during the administration of President Johnson, and because President Grant was particularly anxious for its ratification, Charles Sumner, chairman of the Committee on Foreign Relations (as in the case of the Santo Domingo treaty), opposed its ratification by the Senate, and it was defeated.

President Grant showed a far-sighted policy in favoring the acquisition of every foot of territory which we could secure in the West Indies. The Danish islands are of great importance to the United States in a strategic way, whether the strategy be military or commercial. St. Thomas is the natural point of call for all European trade bound for the West Indies, Central America, or Northern South America. These islands, together with Porto Rico, occupy the north-eastern corner of the Caribbean Sea; and they

are of more importance now than ever, because of the fact that we are constructing the Isthmian canal. In view of that canal, and the European settlements in South America, every additional acquisition by the United States in the West Indies is invaluable. Porto Rico is difficult of defense. The harbors are poor, while the harbor in the Island of St. Thomas can be made one of the very best in the West Indies. Our own officers who investigated the subject reported that the Island of St. Thomas possesses all the natural advantages of a second Gibraltar.

The Danish Parliament, after a long debate, declined to ratify the treaty of 1901 which had been ratified by the Senate, and for the present at least the subject is in abeyance.

I still hope, before I shall retire from the Committee on Foreign Relations, that the United States may succeed in purchasing these valuable islands.

During the Winter of 1906 there occurred in the Senate a very interesting debate over the appointment of representatives of the United States to participate in the so-called Algeciras Conference, held in Algeciras in 1905 to consider conditions in Morocco. No action was taken by the Senate, and in due course the act or treaty agreed to at that conference was submitted to the Senate for ratification.

I do not think there can be the slightest doubt that President Roosevelt had full authority to appoint the delegates on the part of the United States, and that he was thoroughly justified in contending that it was not only the right but the duty of the United States to participate in this conference. The action of the President in accepting the invitation to the conference and appointing the delegates, and the very important part therein which he took personally, in addition to the interest manifested through his representatives,

very properly received the commendation of the people of this country and of the whole European world.

The Moroccan Empire was one of the earliest and most interesting of the world's Governments. During the latter part of the eighteenth century Morocco occupied the attention of the maritime nations of the civilized world, as it was the home of the Barbary pirates who preyed upon the commerce of all the nations. The United States itself paid tribute for the purchase of immunity from these pirates. One of our earliest treaties, made before the adoption of the Constitution in 1787, was a treaty of peace and friendship with Morocco. We entered into several treaties with Morocco later, and joined in treaties concerning that country in 1865 and 1880 with Austria, Belgium, Spain, France, Great Britain, Italy, Portugal, and other Nations.

For many years Great Britain and France have claimed to have superior rights in Morocco, and it has seemed to be the desire of France to annex it. Germany has intervened, and the country has been a bone of contention among the European Nations. In 1904 Great Britain and France, by a secret treaty, agreed that France should have the dominating control in Morocco, and that Great Britain should dominate in Egypt. Germany opposed the French Protectorate and insisted that an international conference of the powers should be called. At one time it seemed that war was inevitable, and it probably was averted only by the Algeiras Conference. The United States was asked to participate, as we had participated in the conference of 1880. If we had not accepted the invitation there would have been no conference, as two of the great powers had served notice that all nations represented at the 1880 conference must participate in the Algeiras Conference, or they would withdraw. Our participation was in the interest of averting a European war.

The General Act or Treaty agreed to at that conference was a lengthy and important one. Its details are not of much importance, as our delegates signed it under a significant reservation that we would not assume any obligation or responsibility for the enforcement of the Act.

When it came to the Senate, there was quite a combat over its ratification. We could not secure its endorsement during the session which closed the first of July, 1906, but we were able to reach an agreement that it should be voted on in committee and in the Senate during the month of December following.

President Roosevelt was very much concerned about its ratification, and on June 26, 1906, when it seemed pretty certain that the Senate would adjourn without acting on the general Act, he wrote me this quite characteristic letter:

"White House, Washington, *June 26, 1906.*

"My dear Senator Cullom:

"Having reference to the letter which Secretary Root wrote you yesterday about the Algeciras Convention, I can only add that I earnestly hope this matter will receive favorable report from the committee at this session. I am literally unable to understand how any human being can find anything whatever to object to in this treaty; and to reject it would mean that for the first time since the adoption of the Constitution this Government will be without a treaty with Morocco. It seems incredible that there should be a serious purpose to put us in such a position.

"Sincerely yours,
"(Signed) Theodore Roosevelt."

The General Act would probably not have been ratified by the Senate had we not agreed on the form of the resolution of ratification. That resolution provided:

"Resolved further, that the Senate, as a part of this act of ratification, understands that the participation of the United States in the Algeiras Conference and in the formation and adoption of the general Act and Protocol which resulted therefrom, was with the sole purpose of preserving and increasing its commerce in Morocco, the protection as to life, liberty, and property of its citizens residing and travelling therein, and of aiding by its friendly offices and efforts in removing friction and controversy which seemed to menace the peace between powers signatory with the United States to the treaty of 1880, all of which are on terms of amity with this Government, and without purpose to depart from the traditional American foreign policy which forbids participation by the United States in the settlement of political questions which are entirely European in their scope."

After this form of resolution had been agreed to by those favoring and those opposing the treaty, I showed it to President Roosevelt. He expressed his satisfaction with it, and the Act was ratified by the Senate.

I have endeavored to cover only a very few of the more important matters which have come before the Committee on Foreign Relations since I have been its chairman. The treaties before the committee have embraced almost every subject of contact between two independent Nations. Numerous treaties involving extradition, boundaries, naturalization, claims, sanitation, trade-marks, consular and diplomatic friendship, and commerce, and many other subjects, have been before the committee and have been acted upon and ratified by the Senate. During the period of which I am now writing, I believe that we have ratified treaties with almost every independent Nation

of the world. The many important matters now pending, or of more recent date, I am not at liberty to refer to, the injunction of secrecy not yet having been removed.

The Foreign Relations Committee will continue in the future, as it has in the past, one of the Senate's foremost committees.

CHAPTER XXXI CONGRESS UNDER THE TAFT ADMINISTRATION

It had been my intention to close these recollections with the beginning of the Taft Administration, but their publication has been deferred until the Administration extended so far that it seems proper to bring my observations up to date. I am especially impelled to this course by the fact that the present era has developed a very marked change in the character of the Senate, and, to a limited extent at least, in the trend of political thought in the country at large—a change which should be noted in any permanent writing dealing with the period. Still, I have no intention of entering upon a detailed consideration of men or of conditions. My only purpose is to make brief mention of these conditions and to refer in very general terms to some who have given direction to recent public affairs.

Observers of public events and students of political questions probably were given their first insight into the tendency of the times through the resignation from the Senate of Honorable John C. Spooner, of Wisconsin, which was tendered March 30, 1907. I have made frequent reference to Mr. Spooner's connection with the Senate, and I do not intend to say more of him here than that he stood for conservatism and the old traditions. Sensitive to a degree to the promptings of his conscience, and still desirous of representing the sentiment of his constituents, apparently he found

himself embarrassed by the growth in his State of what, without intending any disrespect, I may designate as "La Follette-ism."

Gradually Hon. Robert M. La Follette, who previously had served several terms in the House of Representatives, had been forging his way to the front in Wisconsin politics until in 1905 he was elected to serve as Mr. Spooner's colleague in the Senate. He stood for radicalism in the Republican party as against Mr. Spooner's conservatism; he was the advocate of many innovations and experiments, while Mr. Spooner held to the old and tried forms of procedure in public affairs. Whether Mr. La Follette was the leader of this new propaganda or the follower of a growing sentiment in the State does not matter to this record. It is sufficient to know that apparently Wisconsin public opinion did not support Mr. Spooner to a sufficient extent to justify a man of his conscientious disposition in retaining his place as the representative of the people of that State in the highest legislative body of the Nation. Moreover, splendid lawyer that he was, he knew that he could find much more lucrative employment outside the halls of legislation, and he felt the need of making adequate provision for his family. In consequence of these conditions, he left the Senate, and thus opened the way for the more rapid promotion in that body of the new school of politics for which his colleague stood, a school which, while it has found some exponents in the House of Representatives, is not comparatively so largely represented there as in the Senate.

The La Follette group is designated by its own disciples as "Progressivism," whereas by outsiders it is generally referred to as "Insurgency." Mr. La Follette came to the Senate with the Fifty-ninth Congress, and no sooner had he entered that body than he began to propound his doctrines there. At first, he stood alone, but natural inclination soon drew to him such of the older Senators as the late Jonathan P. Dolliver, of Iowa, and Moses E. Clapp, of Minnesota, both of them men of splendid

attainments and of high moral character. With the incoming of Mr. Taft as President came also Albert B. Cummins, of Iowa, Joseph L. Bristow, of Kansas, and Coe I. Crawford, of South Dakota, all of whom joined heartily with Mr. La Follette in his efforts to shape legislation.

During the Sixty-first Congress, the tariff law was revised. The Dingley Act of 1897 had grown unpopular in some portions of the country, because it was believed that under it the duties were not equitably distributed, and the campaign of 1908 had been fought upon a platform declaring for a revision. When, therefore, Congress met in March, 1909, being called together in extraordinary session by President Taft, every one recognized the necessity for entering upon this work. There had been no specific declaration in the platform as to the character of the revision. Some, commonly called "stand-patters," contended for a readjustment without any general lowering of rates, while others held out stiffly for a reduction all along the line. The result of the work of Congress was the enactment of what is known as the Payne-Aldrich Tariff Law of 1909, the measure taking its name on account of the joint efforts in its behalf of the Honorable Sereno Payne, of New York, Chairman of the Committee of Ways and Means of the House, and Honorable Nelson W. Aldrich, of Rhode Island, Chairman of the Committee on Finance of the Senate. The Payne-Aldrich law is a Protective measure, as it was intended to be. The Progressives, in both the Senate and House, sought at every step to reduce the schedules, but generally without success. In this effort, they were supported by Democratic Senators and Representatives, but the "Old Guard" controlled such a pronounced majority in both Houses as to render the opposing efforts futile, fierce though they were. So general was this conflict that in many matters the Progressives soon established a faction of their own. There were many skirmishes all along the line. Their divergence from the views of Regular Republicanism was indicated not on the tariff alone, but on many other

questions of public policy which I may say I regard as extremely visionary and impracticable.

The controversy also covered the methods of procedure of both the Senate and the House, and the fight on "Uncle" Joe Cannon as Speaker, or on "Cannonism," which characterized the last session of the Sixty-first Congress, was one of the instances of this difference of opinion in the party. In a less pronounced manner the Progressives also have shown an inclination to antagonize and overturn the customs of the Senate. They feel the restraint of some of the Senate's established rules, and, together with the radical element which has been introduced on the Democratic side of the Senate Chamber, they manifest evident impatience with these regulations. That fine old term "senatorial courtesy" has lost much of its meaning as a result of the brusque and breezy manner of the time. No longer is it said that the young Senator must be seen rather than heard. Indeed, while formerly the spectacle of a Senator rising to make a speech before the close of his second year in the Senate was regarded as unusual, it recently has come to be remarked upon if a new man remains in his seat for two months before undertaking to enlighten the Senate as to its duties towards itself and the world.

I am not undertaking here to pronounce against these innovations, but merely to record facts. I have shown my advocacy of proper railroad legislation and of other progressive legislation which commended itself to my judgment. However, I am classed as a Regular and desire to be. My votes have been with the party organization. I have made it a rule throughout my political career to stand for the general principles of the party as enunciated by its authorized bodies; but while that is my course, I do not pretend to say that that organization always represents all that is good and best for the country or that in many cases the Progressives and Insurgents may not be nearer right than the Regulars. In the main, however,

I have found that the best results are obtained through following the course indicated by the united wisdom of the party. My plan has been to exert my influence in the direction of careful and conservative progression within established party lines, and in such a course do I believe that the Republican party can best insure its perpetuity.

Senator Spooner's resignation from the Senate was followed by the refusal of Senators Hale and Aldrich to stand for re-election in 1911. The retirement of those three distinguished leaders constitutes the best index of the tendency of the times. Men of experience, dignity, and conservatism, they voluntarily gave way before the press of public exigency. True, they consulted their own inclinations, but I always have thought that if the old conditions had continued in the Senate they would have elected to remain there. Their seats are filled by good and true men, but by men of very different characteristics, unless an exception may be made in Senator Aldrich's case, whose successor, Henry F. Lippitt, appears to be a man much like his predecessor. Whether the change will be beneficial or otherwise remains to be seen, but my optimism is so great I do not believe that anything but good can come permanently to this great country of ours. I confess to a liking for the old methods.

This general change of public sentiment has brought into the Senate not only Mr. La Follette, Mr. Bristow, Mr. Clapp, Mr. Cummins, and Mr. Crawford, but also a number of other men of similar views, so that within six or seven years the progressive group has increased to thirteen members, more than one-fourth of the membership of the Senate.

I shall not undertake to mention all of those contained in this little body, but I have been so impressed with the bearing of Senator William E. Borah, of Idaho, and Senator Joseph M. Dixon, of Montana, that I do not feel justified in passing them by unnoticed. They are both very able men and

men of high purpose. They do not stand with this group all the time; neither goes where his convictions do not lead.

Moreover, these Republicans of supposedly advanced thought have found their counterpart in a number of new Senators who have taken their seats on the Democratic side. The Democrats, as well as the Republicans, have their Progressive, or Radical, element, and while the Democratic representatives of this thought differ from those on the Republican side on the subject of Protection, they have co-operated in the interest of what they consider a closer approach to the demands of the people on other subjects of legislation. On the tariff schedules, which have been presented during the special session of the Sixty-second Congress now coming to a close, they also have stood together, forming what some have been pleased to christen the "Unholy Alliance." Both Republicans and Democrats of the radical type are contending for a lower tariff, but this one important difference is noticeable: while there is a tendency on the Democratic side toward free trade, the Republican members of the alliance hold out for the protective principle.

It is pleasant to me to be able to record that while a sufficient number of new men have come into the Senate to cause a modification of its general appearance and apparent purposes, there still are enough representatives of the old element to cause it to retain its distinctive character as the most conservative deliberative body in this country. In addition to the new men, such capable legislators remain as Lodge and Crane, of Massachusetts, Brandegee, of Connecticut, Burton, of Ohio, Jones, of Washington, Root, of New York, Gallinger and Burnham, of New Hampshire, Heyburn, of Idaho, Penrose and Oliver, of Pennsylvania, Perkins, of California, Smoot and Sutherland, of Utah, Clark and Warren, of Wyoming, Dillingham and Page, of Vermont, Wetmore, of Rhode Island, Curtis, of Kansas, McCumber, of North Dakota, Gamble, of South Dakota, William Alden Smith and Charles

E. Townsend, of Michigan, Bradley, of Kentucky, and others, all Republicans, while among the old-time Democrats should be mentioned such staunch and true men as Martin, of Virginia, Bacon, of Georgia, Bailey and Culberson, of Texas, Taylor, of Tennessee, Shively, of Indiana, Tillman, of South Carolina, Fletcher, of Florida, Foster, of Louisiana, Johnston and Bankhead, of Alabama, Stone, of Missouri, Clarke, of Arkansas, Newlands, of Nevada, and still others who, though their names may not be mentioned, all command the high regard of their colleagues.

The question is often asked, "Who has succeeded Aldrich as leader of the Senate?" No one. Practically, there are three parties in the Senate, consisting of thirty-seven Regular Republicans, forty- one Democrats, and thirteen Insurgent Republicans. In caucus, the Insurgents act with the Regulars, but in legislation, they more frequently line up with the Democrats. The consequence is that no party is in control, and therefore that no party can dictate the course of leadership. Under such circumstances, real leadership is out of the question. Senator Penrose succeeds Senator Aldrich as Chairman of the Committee on Finance, and is proving thoroughly competent for his work in that capacity. If emergency should arise throwing the direction of affairs into the hands of the Republican party, he might also succeed the Rhode Island Senator to the leadership of the Republican forces, but until such emergency presents itself, no one can see whether that position would fall to him or to some other Republican. Leaders are born, not made. Leadership is not a matter of selection, but of fitness.

Up to the present writing (August, 1911), President Taft has been in office almost two and a half years, and while, like all Presidents, he has been criticised, I am confident that in the end the first half of his administration will receive the approval of the historian. Personally, no more popular man ever occupied the office of Chief Executive, and his popularity is due to his honesty of purpose and his love for his fellow man.

His administration has witnessed such a prosecution of the unlawful trusts as never before has been known, and the President himself has been engaged in a constant endeavor for legislation which would equalize the benefits of American citizenship, relieve the distresses of the less fortunate, and put a stop to graft, wherever found. Under his direction, the Interstate Commerce Law has been vastly improved, postal savings banks have been established, and the conservation of our natural resources has been placed upon a safe and sane basis. He has pressed Reciprocity and Arbitration with other Nations, and he has established such an era of good fellowship among public men of all parties and beliefs as seldom has been known in our history. If the remainder of his administration proves as successful as that which has passed, he will deserve, as I believe he will receive, the endorsement of the people through an election to a second term.

The present presiding officer of the Senate is Hon. James Schoolcraft Sherman, who was elected Vice-President on the national ticket of 1908 with President Taft. Mr. Sherman brings to this office an experience of twenty years as a member of the House of Representatives from the Utica district, much of which time he was a member of the Committee on Rules. He is an accomplished parliamentarian, a fact which taken in connection with his genial disposition, his kindness of heart, and, above all, his love of justice, renders him one of the most acceptable presiding officers that the Senate ever has had. He has held his office during all of the regular session of the Sixty-first Congress and has been constantly in his seat during the special session of the Sixty-second Congress, and it is safe to say that in so brief a time no man has more thoroughly endeared himself to members of the Senate of whatever party or faction. Occasionally, of course, as is the case with all presiding officers, his decisions are challenged; but I believe he has been uniformly sustained; and even such proceedings are stripped of all appearance of rancor through his kindness of manner and his evident conviction. He is a fit successor of Hobart and Fairbanks.

CHAPTER XXXII LINCOLN CENTENNIAL: LINCOLN LIBRARY

The name of Springfield will forever be immortalized as the home and burial-place of Abraham Lincoln. As the hundredth anniversary of his birth approached, it was determined to hold a great celebration, and it was generally agreed that Springfield was the fitting and proper place in which to hold it.

In 1907 the Legislature of Illinois passed a joint resolution providing:

"Whereas, the one hundredth anniversary of the birth of Abraham Lincoln will occur on the twelfth day of February, 1909; and,

"Whereas, it is fitting and proper that the State of Illinois should celebrate the anniversary of the birth of this greatest of all American statesmen; therefore, be it

"Resolved, by the Senate of the State of Illinois, the House of Representatives concurring therein, that the one hundredth anniversary of the birth of Abraham Lincoln be celebrated in the City of Springfield, on the twelfth day of February, 1909, and, be it further

"Resolved, that the Governor is hereby authorized and empowered to appoint a commission of fifteen representative citizens of this State to have charge of all arrangements for such celebration."

The Governor thereupon appointed fifteen of the most distinguished citizens of Springfield as the State Centennial Commission to have charge of the celebration.

It was determined that the celebration should not be a local one, but should be more in the nature of a State celebration, and that it would be

well to incorporate it under the name of "The Lincoln Centennial Association." The original incorporators were:

The Hon. Melville W. Fuller, Chief Justice of the United States; the Hon. Shelby M. Cullom, United States Senator; the Hon. Albert J. Hopkins, United States Senator; the Hon. Joseph G. Cannon, Speaker of the National House of Representatives; the Hon. Adlai E. Stevenson; the Hon. Charles S. Deneen, Governor of Illinois; the Hon. John P. Hand, Chief Justice of the Supreme Court of the State of Illinois; the Hon. J. Otis Humphrey, Judge of the United States District Court; the Hon. James A. Rose, Secretary of State of Illinois; the Hon. Ben. F. Caldwell, Member of Congress; the Hon. Richard Yates; Melville E. Stone, Esq.; Horace White, Esq.; John W. Bunn, Esq.; and Dr. William Jayne.

I was requested to secure speakers of national reputation, and it at once occurred to me that I would invite the Ambassadors of France and Great Britain, and Senator J. P. Dolliver, to visit Springfield, on February 12, 1909, and deliver addresses. These distinguished gentlemen at once accepted the invitation which I extended them on behalf of the Governor and the committee. Later, the Hon. William Jennings Bryan was invited to be present also and deliver an address, which invitation he accepted.

The memorial exercises celebrating the hundredth anniversary of Lincoln's birth were held under the direction of the State Centennial Commission, appointed by the Governor, working in conjunction with the Lincoln Centennial Association. There were a number of distinct events, but the most important were the great memorial exercises held in the State Armory, at which addresses were made by Ambassadors Jusserand and Bryce, and by Senator Dolliver and Mr. Bryan, and a banquet served to eight hundred guests. The celebration was in every way a great success, largely due to the efforts of Judge Humphrey.

It was quite an event in the history of Springfield, as it was the first time, so far as I know, that the Ambassadors of two great Nations visited Springfield.

I regretted very much that I was so engaged in matters pertaining to my official duties in Washington that it seemed impossible for me to be present. I was requested to write something which could be read at the banquet, and so I addressed to Judge Humphrey the following letter:

"Washington, D. C.,
"February 6, 1909.

"Hon. J. Otis Humphrey,
"President Lincoln Centennial Association,
"Springfield, Illinois.

"My dear Judge:

"It is a matter of sincere regret to me that I am unable to be present at your great anniversary celebration of the birth of the immortal Lincoln, and to welcome to my home city the Ambassadors of Great Britain and France and the distinguished guests who are to be with you.

"Abraham Lincoln, greatest of Americans, greatest of men, emancipator, martyr, his service to his country has not been equalled by any American citizen, not even by Washington. His name and life have been an inspiration to me from my earliest recollection.

"On this one hundredth anniversary of his birth, the people, without regard to creed, color, condition, or section, in all parts of this Union which he saved, are striving to do honor to his memory. No American has ever before received such deserved universal praise. Not only in his own

country, but throughout the civilized world, Abraham Lincoln is regarded as one of the few, the very few, truly great men in history. His memory is as fresh to-day in the minds and hearts of the people as it was forty years ago, and the passing years only add to his fame and serve to give us a truer conception of his noble character. The events of his life, his words of wisdom, have been gathered together in countless volumes to be treasured up and handed down to generations yet to come.

"I knew him intimately in Springfield; I heard him utter his simple farewell to his friends and neighbors when he departed to assume a task greater than any President had been called upon to assume in our history; it was my sad duty to accompany his mortal remains from the capital of the Nation to the capital of Illinois; and as I gazed upon his face the last time, I thanked God it had been my privilege to know him as a friend; and I felt then, as I more fully realize now, that the good he had done would live through all the ages to bless the world.

"Springfield, his only real home, the scene of his great political triumph, was his fitting resting-place. In the midst of this great continent his dust shall rest a sacred treasure to myriads who shall pilgrim to his shrine to kindle anew their zeal and patriotism.

"Again expressing regret that I can not be with you to take part in honoring the memory of our greatest President, on the one hundredth anniversary of his birth, and feeling sure that the Springfield celebration will be the most notable of all, as it should be, I remain

"Sincerely yours,
"(Signed) S. M. Cullom."

Of all the notable celebrations held on the one hundredth anniversary of the birth of Lincoln in every part of the United States, the Springfield

observance was the most dignified and impressive; and it was determined that on Lincoln's birthday each year, under the auspices of the Lincoln Centennial Association, fitting memorial exercises should take place in Springfield, to which guests and speakers of national and international renown, from all parts of the United States, should be invited.

Springfield has a great public library, called the "Lincoln Library," toward which Andrew Carnegie very generously contributed seventy- five thousand dollars. I took considerable interest in the Springfield Library, and I did what I could to prevail upon Mr. Carnegie to make as generous a contribution as he would toward the project. I remember that I wrote him a letter on the subject.

It was at first proposed by the Springfield people to name the Library "The Lincoln-Carnegie Memorial Library"; but after Mr. Carnegie had made his contribution, through his secretary he informed the Rev. E. S. Walker, of Springfield, who carried on the correspondence with him, that he would consider it a desecration to have any name listed with that of Lincoln. "He trusts that the library will be known as the 'Lincoln Library,' not the 'Lincoln Memorial Library,' as Lincoln needs no memorial, being one of the dozen supremely great rulers of men the world has ever seen."

The Library was completed in 1904, and I was invited to deliver the dedicatory address, which invitation I was very glad to accept. It was an interesting occasion, held in the main room of the library building, which was crowded with the very best people of the city. I give a few extracts from the speech I delivered that evening:

"Mr. Chairman: It was a great pleasure to me to be invited by your library board to participate in these exercises attending the opening of this splendid library building.

"I can not resist on this occasion the inclination to say a few words in reference to Springfield and my early relations to it.

"Old historic Springfield! Here have taken place many of the most important events in the history of Illinois. Springfield has been the centre of the political struggles of both parties since it has been the capital of the State. Many of the great statesmen of Illinois have occupied seats in the legislative hall in Springfield. Here were mobilized during the Civil War the thousands of troops who went forth to do and die for the Union. Here the greatest General of the age received his first command. Here Lincoln and Douglas met, and from here Lincoln went forth to assume a task greater than any President has been called upon to undertake in all our history.

"Springfield is endeared to me by all the sacred memories of friendship, family, and home.

"I came here fifty years ago. In Springfield I received my legal education, was admitted to the Bar, and in your old courthouse here I practised my profession. In Springfield I married and reared my family, and here my children are laid in their final resting-place.

"Those early days of my residence here are among the happiest of my life. Official duties have necessitated my absence a great part of the time for the past twenty years, but my heart lingers with it, and the ties which made those early days so happy will never be broken so long as I shall live."

After giving a history of the library and referring to the generosity of Mr. Carnegie, I continued:

"This is a material age. Carnegie, the great captain of industry, is a typical representative of the leaders of this age. It is well worth our while to

stop to consider why he should devote a part of his great wealth to the founding of public libraries.

"Andrew Carnegie was a poor boy, enjoying none of the advantages and opportunities which are afforded by a good library. He missed in his early life the opportunity for culture which is now obtained through the facilities supplied by libraries in the towns and cities. He knew that there was no other agency so valuable for the purpose of spreading culture among the people as the public library. No word so precisely describes the influence of good reading as does the word 'culture'. Emerson tells us that the word of ambition of the present day is 'culture.'

"Andrew Carnegie, the great leader of the industrial world, desiring to give to the young men and the young women of this day an opportunity for education, for culture, whose value to the young he realizes so well, has devoted the enormous fortune of over one hundred million dollars for the founding of public libraries. . . .

"There should be no pleasure like the pleasure derived from reading a good book. Emerson, expressing our debt to a book says: 'Let us not forget the genial, miraculous, we have known to proceed from a book. We go musing into the vaults of day and night; no constellation shines, no muse descends, the stars are white points, the roses brick-colored leaves; and frogs pipe, mice cheep, and wagons creak along the road. We return to the house and take up Plutarch or Augustine, and read a few sentences or pages, and lo, the air swims with life, secrets of magnanimity and grandeur invite us on every hand, life is made of them. Such is our debt to a book.'

"The founding of public libraries is the surest mark of advanced civilization. The origin of libraries is lost in the dim twilight of the early ages. When they commenced, how they commenced, we do not know; but we have authentic records that centuries before the Christian era the temples

of those countries of the East where civilization had made the greatest advances, contained libraries of clay tablets, carefully shelved in regular order. Among the Greeks, private libraries existed at least four hundred years before the birth of Christ. The Roman Caesars returning from conquest to the development of the arts of peace, established libraries in the then great Capital of the World.

"But the United States is pre-eminently the home of the free public libraries, supported by taxation. This country has more free public libraries than any other country in the world.

"What a great thing it is for our people to have these advantages! The foundations of our Republic are being well laid. The family, the church, the school—and the library! A people who will adhere to the great principles of the sacredness of the family, the church, and the school, will not perish from the earth. Virtue and intelligence are the necessary foundations on which a republic must rest. Education is more necessary in a republic, where the people are the sovereigns, than it is in a monarchy, where the people are subjects. With education and the library comes culture. The family, the church, the school, and the library are all necessary to qualify the citizen for the great duties of life. . . .

"Mr. Carnegie has given us this building and has requested that it be named in honor of the great emancipator, Abraham Lincoln. Like a number of others who are in this room to-night, I knew Abraham Lincoln intimately and well. We are proud that this city was the home of Abraham Lincoln while living, and now that he has passed away, it is the home of his sacred dust. The words of Mr. Carnegie, that no name should be coupled with the name of Mr. Lincoln manifested the highest appreciation by him of the great name of Lincoln. He was a noble man. Only forty-three years ago, he was going in and out among us, interested in the local affairs of our city,

doing his duty in the common affairs of our community, and at the same time grappling with the great questions pressing upon the attention of the people and touching the life of the Nation.

"My friends, in the language of Mr. Carnegie, Lincoln has been 'one of a dozen supremely great rulers of men that the world has seen.' He was one of a few men in the world's history whose great and noble life and deeds will be remembered forever. I rejoice that he lived among us and that he was loved by our people while he lived, and that his memory is fresh and green in our hearts.

"My friends, as we reflect upon the progress of our Nation in wealth and power and influence among the Nations of the world in the century just closed, our hearts swell with pride and thankfulness that we have been so favored. As a Nation we are now in the first rank of the nations of the earth.

"Let us do our part in maintaining our national supremacy. We can hold our place by standing by the right as a community, as a State, and as a Nation, adhering rigidly to the foundation principles of our Republican Government, cherishing liberty, and obeying law; upholding the sacredness of the family, the church, and the school; with school, the library will follow, and in the time to come our Nation will endure, and its people will cultivate from generation to generation, a better and higher civilization."

CHAPTER XXXIII CONSECUTIVE ELECTIONS TO UNITED STATES SENATE

I was twice elected Governor of Illinois, and have been elected to the United States Senate for five consecutive terms, and as I write this narrative I have served in the Senate more than twenty-eight years. I consider this a greater honor than an election to the Presidency of the United States. I owe

the deepest debt of gratitude to the people of the State of Illinois, who have for so many years continued me in the public service. To my many friends who have so loyally supported me during all these years, I am profoundly grateful.

I have already referred to my first election to the United States Senate. At the conclusion of my first term, I was, on January 22, 1889, re-elected without opposition.

The country had turned the Republican party out of power and elected Mr. Cleveland in 1892; and for the first time since 1856, the State of Illinois went Democratic and elected Mr. Altgeld as Governor. I returned to Illinois, from Washington, to enter the campaign in 1894, having little or no hope that I could be re-elected to the Senate, as I supposed, of course, that the State would continue in the control of the Democratic party. Having been twice elected to the United States Senate, I deemed it my duty to make the best fight I could for Republican success, regardless of my own personal interest in the matter. The Democrats were confident they would carry the Legislature, and Mr. Franklin MacVeagh, who is now Secretary of the Treasury under a Republican President, was the candidate of the Democratic party for the Senate to succeed me. Mr. MacVeagh made a canvass of the State as a candidate for United States Senator against me. Very much to his surprise, the State went overwhelmingly Republican and elected a Republican Legislature, insuring the election of a Republican to the Senate.

While I had made the canvass of the State, it was not until after the election, when it became known that we had elected a Republican Legislature, that opposition to my re-election developed in the Republican party.

Mr. George E. Adams, and Mr. George R. Davis who had served in Congress and been Director General of the World's Columbian Exposition at Chicago, were candidates against me. Mr. Joseph E. Medill, the owner of *The Chicago Tribune*, also considered the question whether he would be a candidate. He advised with the late Hon. John R. Tanner, asking him if he thought that he (Medill) could be elected if he could secure the solid support of the Cook County delegation. Mr. Tanner replied that he could not, that I had a sufficient number of votes in the country outside of Cook to defeat every candidate; whereupon he declined to consider the possibility of election at all.

The Hon. John R. Tanner managed my campaign. He had served in the Legislature, where he had been a very influential member, and was then chairman of the State Central Committee. He was popular and possessed shrewd political sagacity. Tanner was very loyal to me then, and for many years I considered him my closest and most devoted political friend. I have always had the firm conviction that if he had remained loyal and had supported me for re-election in 1900, he would have been re-elected Governor himself, and would have succeeded the late John M. Palmer as my colleague in the Senate.

The Legislature met in January, 1895. I secured the caucus nomination, and on January 22, in the joint session of the Thirty-ninth General Assembly, I was elected the third time to succeed myself in the United States Senate.

There were a number of very complimentary speeches made on that occasion. My old friend, the Hon. David T. Littler, who then represented the Springfield District in the Senate, made the first speech. He began by saying:

"Mr. President: Twelve years ago, from my seat as a member of the Lower House of this General Assembly, I had the honor to place in nomination as the candidate of the Republican party for the great office of United States Senator, the Hon. Shelby M. Cullom. I took occasion at that time to predict that in the office to which he had been elected he would show his usefulness and increase his reputation not only among the people of our own State, but the whole people of this country. After the lapse of twelve years and with his record perfectly familiar to the people of the whole country, I ask you Senators whether my prediction has not been fulfilled. His name has been connected with every important measure introduced in the United States Senate; and his discussion of important questions there on many occasions testified as to his patriotism and as to his ability as a statesman. I take great pleasure on this occasion to place in nomination for that high office the same Shelby M. Cullom who has served the people of this State so long and so creditably. In doing so I believe I state but the truth when I say he has the longest and most distinguished record in public life of any man who ever lived in the State of Illinois."

Speeches were made in the Senate by Senators Coon, Aspinwall, and Mussett; and in the House of Representatives William J. Butler, of Springfield, E. Callahan, George W. Miller, D. S. Berry, A. J. Dougherty, J. E. Sharrock, and Charles E. Selby.

I was present in Springfield, and was invited before the joint session of the General Assembly, after they had elected me, to deliver an address. I appeared before the joint session and expressed my obligations to the members of the Thirty-sixth General Assembly for the high honor conferred upon me. I made a short address, reviewing conditions in the State and the country generally, and concluded by saying:

"The prosperity and happiness of the people depend upon wise and just laws to be enacted both by the State and by the Nation. In the discharge of the high duty which you have just imposed upon me, it shall be my single aim to do my part in so shaping the policy of the country, that we shall soon stand upon the high ground of permanent prosperity.

"Gentlemen, it should be our ambition so to legislate that the freedom and rights of every citizen shall be secured and respected; that all interests shall be protected; that one portion of our people shall not oppress another, and so that ample remedies shall be found and applied for every existing wrong. To this end an enlarged humanity bids us look forward with renewed hope and trust."

My reference to the Hon. Joseph E. Medill in connection with this contest reminds me that I should say something of Mr. Medill. I regarded him as one of the three really great editors of his day— Horace Greeley, Henry Watterson, and Joe Medill.

He made *The Chicago Tribune* one of the most influential newspapers of the United States. At time Medill and I were very friendly, and he gave me his hearty support. At other times he was against me, but we always remained on speaking terms at least, and I admired and respected him very much.

He was one of the most indefatigable and inveterate letter-writers within my experience. From the time I was Governor of Illinois, and even before that, and almost to the time of his death, he wrote me at great length upon every conceivable public question. His letters were always interesting, but as he did not avail himself of a stenographer, and as he wrote a very difficult hand to read, they became at times a trifle tiresome. I have retained a large number of his letters, and as they are so characteristic of the man I venture to quote a few of them.

"The Chicago Tribune, Editorial Rooms. "Feb. 6, 1887.

"Hon. S. M. Cullom,

"Dear Sir:—

"Well, he signed the bill, and it out of the woods. All right so far. His signing it shows that he is a candidate for a second term. That was the test. The next thing is the composition of the Board of Commissioners. The successful working of the law depends upon the action of the Board. There is an impression that he will probably let you name one of the commissioners and Reagan another. If that be so, let me suggest among other names Mr. C. M. Wicker, manager Chicago Freight Bureau, for the position. You probably know him. He has had large experience in freighting, and is widely known to both shippers and railroad men, and is well liked. He is a friend of the law, and supported it vigorously while before Congress, writing some good letters in its explanation and defence for *The Tribune*. He is a sound Republican though not much of a politician. You may find other and better men to recommend, but I don't think of any belonging to this State at this moment. I hear Judge Cooley's name mentioned. He is of course a first-class A No. 1 man, but I write on the hypothesis that your preference will be for an Illinois man if you are allowed to have a say in it.

"The passage of the bill is a great triumph for you, if the bill works well. People always judge of measures by their effect; hence the act should have fair play.

"Now that it is safely in the shape of a law, I thought *The Tribune* might indulge in a little horn-blowing as per enclosed article,

"Yours truly,
"(Signed) J. Medill."

"Hotel Ponce de Leon,
"St. Augustine, Fla.,
"March 13, 1888.

"Hon. S. M. Cullom,

"My dear Sir:—

"I have just received your favor of 9 inst. and confess that I am taken a little by surprise. I had got the impression from various quarters that you did not desire to secure the Illinois delegation, and did not want to be considered a candidate. Acting on this idea *The Tribune* has been leaning towards Gresham as an available candidate, as you have noticed. However, you have lost no ground by standing in the shade. If I was managing your boom I would keep your name in the background and out of the newspapers as a candidate seeking the nomination until the last. A few strong judicious friends among the Illinois delegation is all you want to watch events and move quickly at the opportune moment, if it arrives. I should say that on general principles you would be the second choice of any set of Illinois delegates and the chances are all in the direction of some second-choice candidate. Harrison is likely to have a pledged delegation from Indiana, but what good will it do him? Logan had a pledged delegation from Illinois; Sherman, from Ohio; Windom, from Minn.; and Hawley, from Conn. The convention will be largely chiefly actuated and governed by the stability idea. Personal friendship won't count for much in that search for the most available candidate. This you see as clearly as I do. Whatever Western man the New York delegates (or a majority of them) favor will stand a good chance of getting it. It is almost impossible to figure out a victory without

the electoral vote of New York. Indiana and Connecticut would be absolutely indispensable in the absence of New York. But even then we have doubtful States that voted for Blaine. Michigan, for instance, and the three Pacific Coast States, in case any such man as Sherman, Harrison, or Hawley, who voted against restricting Chinese immigration, should be nominated. And then it remains to be seen what sort of action will be had in Congress on tariff reduction. If we are obliged to go before the people defending the present tariff, that is breeding trust monopolies all over the country, a nomination will not be worth having. High protection is a nice thing for those who pocket it, but not so fascinating to the unprotected classes who have to pay the big bounties out of their pockets sold at free trade prices. All those things must be taken into consideration. I am about leaving Florida for home, either via Atlantic or Washington. If the latter, I shall see you when I get there, when we can talk over the whole matter more fully than on paper. All I can really say is, I am peering about in the dark for the strongest candidate, the most available man on an available platform, and even then we shall have desperate hard work to win in the face of the immense losses our party is suffering from the ravages in the rank and file, committed by the prohibitionists. We shall have to face a loss of fifty thousand in New York. How is that to be made good? and twenty-five to thirty thousand in Illinois and five to seven thousand in Indiana, and thirty thousand in Michigan. How can we stand this loss of blood and men?

"(Signed) J. Medill."

"Niagara Falls, N. Y., *"Aug. 5, 1888.*

"My dear Sir:—

"Searching for a cool place I found it here, where I shall remain a few days and then proceed to Kaetershill Mountain top, which is the best hot-

weather place I found last year.

"I take it for granted that none of your friends keep you posted about the secret negotiations going on between Palmer and the Socialistic Labor element for a fusion. You have seen by *The Tribune* that all the labor element is not disposed to support Palmer, in consideration of his pardoning the imprisoned anarchists. You may rely on *The Tribune* ventilating this unholy alliance. At the same time there are ten thousand to twelve thousand of these socialists who will vote for Palmer and the Democratic ticket in Cook County; and this fusion may with the aid of the prohibitionists cost the Republicans second seats in the Legislature, which is the phase of the matter in which you are specially interested. There is considerable coldness among the Irish Catholics toward Cleveland, but whether it will continue until election night remains to be seen. They think he is too pro-English, but they dislike Harrison. Blaine was their ideal.

"I have spent a good deal of spare time to point out flaws and tricks in the sugar and whiskey sections of the Mills bill. The latter really opens and invites universal evasion of taxes and the multiplication of small moonshine distilleries; and the former perpetuates the sugar trust profits and affords the public no relief.

"The Republican members of the House did not expose these defects enough. Cannon did well on sugar, but nobody dissected the whiskey section which bored gimlet holes into the bottom of every barrel of high wine to let it out without paying a cent of tax. The Democrats are therefore the real free whiskeyites. This ought to be shown up thoroughly in the Senate. Our miserable platform places us on the defensive. The Mills bill places the Democrats on the defensive if it is rightly handled. I do not mean attacking the free wool part of it, for that portion if enacted would do your constituents certainly ten or twenty times more good than harm, nor the free

lumber or free salt or free soap, etc., etc., which would benefit all Illinois; but I mean fraud free sugar, and fraud free whiskey, and a hundred per cent tax on rice—these are the things to hit. On these the Democrats are placed with their noses on the grindstone.

"I have been reading the discussion in the Senate over your resolution in regard to the competition of the Canadian railways with our transcontinental railway freight charges. It is well enough perhaps to inquire into the matter, but I have a notion that the sharp competition is of great benefit to the masses. I know that I am a little heterodox in looking at the interest of the consumers instead of railroad plutocrats, of the millions instead of the millionaires, but I can't help it. Senator Gorman had much to say in his speech about the undue advantage the Canadian roads had over ours by reason of Government subsidies received in constructing the Canadian railways, and to a line of steamers from Victoria to Japan and Hongkong. But his memory failed in the most astonishing manner to recall and perceive the fact that all the American roads west of the Mississippi to the Pacific have been enormously subsidized by our Government. In fact the subsidies amount to a good deal more than the actual total cost of the construction of the whole of them. For twenty years some of these roads have been plundering the American people by the most outrageous charges, and Congress, the people's representatives, have not lifted a finger to stop the rapacious robbery. And now, when the Canadian road, built by Government subsidies, begins to compete with the American roads built with Government subsidies, the latter who have pocketed hundreds of millions of subsidy spoils and overcharge plunder, appeal to the Senate to protect the scoundrels against a little healthy competition, and Senator Gorman pleads for the robbers on the floor of the Senate with tears in his eyes! So whatever extent the competing Canadian roads cause our contiguous roads to lower their freights so much the better for the public. They act just the same as competing waterways. The Grand Trunk,

beginning at Chicago and running through Michigan to Sarma; crossing at Niagara Falls and feeding the Lackawanna and Erie to New York; running to Boston through Vermont, etc., and also to Montreal; and the Alden line of steamers carrying cattle to England, as a healthy competition with our pooling trunk lines east from Chicago, is of enormous value to Chicago and all the shippers, cattle-dealers, grain-raises, farmers, and merchants of half a dozen States in the Northwest. Any interference with its competitive activity will harm millions of Western people, tending as it will to increase cost of transportation and re-establish trunk line pooling monopoly.

"So the competition of the Canadian transcontinental at the Red River and at the '500' ensures cheaper freights for all Minnesota and Dakota, and the effect extends clear down into Nebraska and Iowa. So, too, the Canadian road's rates at its Pacific terminal —Victoria—are exercising a most beneficent and ameliorating influence on the charges of the enormously subsidized Northern Pacific, forcing down to a reasonable rate Pacific Coast; and as it climbs down from its extortionate schedule of charges the Union and Central and Southern and Santa Fe Pacifics will be forced to do likewise. I'd give something handsome to have had the opportunity to reply for thirty minutes to Senator Gorman, to present the other side of the question from the American standpoint. On one point I am in agreement with you, viz.: that the British flag should be removed from this continent. This territory along our northern border should be incorporated into the American Union. It is ridiculous that Uncle Sam should allow a foreign power to hold it. We have as much need for it and right to it as England has for Scotland. If we had a respectable navy and a supply of fortification guns the problem would be easy of solution, and won't be until then.

"Each day convinces me more and stronger that if we lose this election McKinley—will be the cause. They make the party say in its platform

'Rather than surrender any part of our protective system, the whiskey, tobacco, and oleomargarine excises shall be repealed.' The Democrats are making much capital out of this. The tax on lumber and on salt are parts of our 'protective system.' Now the Mc. plank discloses that rather than reduce the tax on lumber, the Rep. party will repeal the tax on oleo butter. How many farmers' votes will that give us? Rather than allow any lowering of the high taxes on clothes, or salt, or lumber or crockery, etc., the tax on whiskey must be repealed, and the old evil era of cheap rotgut and still-houses everywhere shall be restored! Do you really think that position will make votes for us this fall among the farmers? The final outcome will probably turn on the character of the Senate bill, of which I am not sanguine. About two thousand millionaires run the policies of the Rep. party and make its tariffs. What modifications will they permit the Rep. Senators to support? We other thirty million of Republicans will have precious little voice in the matter. Turn this over in your mind, and you will see that I am right. Whatever duties protect the two thousand plutocrats is protection to American industries. Whatever don't is free trade.

"(Signed) J. Medill."

"The Windsor, N. Y., *Nov. 25, 1890.*

"Senator Cullom.

"Dear Sir:

"I did not think the blow would be a cyclone when I saw you just before the election. I knew that a storm was coming, but did not dream that its severity would be so dreadful.

"The thing to do this Winter is to repeal the McKinley bill, and strengthen the reciprocity scheme by giving Blaine the sugar duties to work on—freeing no sugar before reciprocal equivalents are secured from respective cane-sugar tropical countries; or (2) fail to pass the chief appropriation bills, so that an extra session of the Dem. Congress would be called, and that party must deal with the tariff and be responsible for their action or failure to act; or (3) pass the apn. bills; adjourn; next year, have the Senate defeat the Dem. tariff bill, or the President veto it, and go before the people in 1892 on the issue of standing by the McKinley bill till overwhelmed and wiped out in Nov. of that year, as the Whigs were in '52 when standing by the Forsythe-Stone Law of Fillmore and Clay.

"The last course I presume is the one that will be pursued. When men who are statesmen of the Quay-Reid-McKinley calibre start in wrong their pride keeps them in the same downward path till they tumble the whole outfit into the bottomless pit.

"I do not consider a Presidential nomination for any man worth a nickel on the issue of standing by the McKinley bill. The fate of Gen. Scott in '52 surely awaits him.

"Either of the other mentioned courses might give our party a fighting chance. But it won't get it, if the perverse members who have landed us in the ditch have their way.

"Read the suggestions from the article in *The N. Y. Times* for Republicans.

"Yours truly,
"(Signed) J. Medill."

I was elected to the Senate, the fourth time, in January, 1901. This time I had a very serious contest. More opposition had developed, and there were more strong men against me, than at any previous election. This was largely the outgrowth of the opposition of the late Governor Tanner, who had just completed his term as Governor of Illinois, and who had announced he would not be a candidate for renomination, but would be a candidate to succeed me. I believe it was mainly through the efforts of Governor Tanner and his friends that the Hon. Robert R. Hitt, the Hon. Joseph G. Cannon, and the Hon. George W. Prince were induced to become candidates, in the hope of weakening me in their respective districts. I do not believe that either Mr. Hitt or Mr. Cannon was a party to any particular scheme to defeat me. They were candidates in good faith, and aspired to the office of United States Senator, but neither of them had any desire to defeat me unless he could get the office himself.

The campaign continued for a year or more. My friends were active, as were the friends of Governor Tanner. He had a horde of office-holders whom he had given places while Governor, who had been more or less actively working for him as my successor almost from the very time that the Governor entered that office. The bitter personal attacks made on me by the Governor and his friends did not help him, but tended rather to help me.

The preliminary contest was in the State Convention held at Peoria in 1900. There were a number of candidates for Governor before that convention. The Hon. Walter Reeves, the Hon. O. H. Carter, and Judge Elbridge Hanecy were the leading aspirants. My friends had insisted that I should be endorsed for re-election by the State Convention, and my friends controlled the organization of the convention and elected the Hon. Charles G. Dawes temporary chairman and the Hon. Joseph W. Fifer permanent chairman.

Governor Fifer has always been my friend, as I have always been his. He was a brave, gallant soldier in the Civil War, in which he served as a private until he was so badly wounded that his life was despaired of. He has been forced to go through life under exceptionally difficult circumstances, never fully recovering from his wound. He is entitled to far more than ordinary credit for the success which he achieved in life. He is an able lawyer, and as State's Attorney he was one of the most vigorous of prosecutors. He was nominated and elected Governor, and gave the State an honest and capable administration. He was renominated, but local questions in the State, combined with the Democratic landslide of 1892, resulted in his defeat. President McKinley, on my recommendation, appointed Governor Fifer a member of the Interstate Commerce Commission, in which position he served with credit for some years. He resigned voluntarily and returned to his home in Bloomington to resume the practice of law. I have always liked Governor Fifer, and consider him one of the foremost citizens of the State living to-day.

Returning to the Peoria Convention, over which Governor Fifer presided, I will only say that Mr. Reeves had the votes in that convention to be nominated; but for reasons I do not have to discuss, he did not secure the nomination, and the Hon. Richard Yates became the nominee. I was endorsed by the convention as the candidate of the Republican party to succeed myself as United States Senator. The opposition to me in the convention was by Governor Tanner and his friends, he being the only avowed candidate against me. I thought that the endorsement of that convention should have settled the matter; but the contest went on, and Messrs. Hitt, Cannon, and Prince entered it actively. Several others were standing around waiting for a chance, and this continued to be the situation until the Legislature met in January. A sufficient number of the members of the Legislature to elect me had pledged themselves in writing to stand by me as long as I was a candidate. The other candidates, probably aside from

Governor Tanner, did not believe I had these written pledges. I told them so, but they did not believe me. Governor Tanner and his friends realized that I would have a majority of the caucus, and they then began scheming for the purpose of having a secret ballot in the caucus, hoping that if certain members who had been pledged to me would not have to vote openly, they would go back on the pledges and vote secretly for one of the other candidates, thus defeating me. I had enough votes to defeat the secret ballot proposition, as many of the supporters of Tanner were really in favor of my re-election. Hon. Fred A. Busse, one of the most influential members of the State Senate at that time, and more recently Mayor of Chicago—one of the best the city ever had—and who has long been my personal friend, was pledged to vote for the Governor, but at heart was strongly for me. With many others, Busse would not consent to a secret caucus, and this really ended the contest. Tanner, after trying to induce the other candidates to unite on him, or on some one else to defeat me (which proposition Mr. Cannon and Mr. Hitt rejected), announced that he would withdraw. Friends of the Governor in the Legislature came to me and announced that Tanner had quit the race, and later Mr. Cannon and Mr. Hitt came to my room and announced their withdrawal.

This ended the contest; my name was the only one presented to the caucus, and I was the only Republican voted for in the joint session of the Legislature. It was an interesting fight, and as it may well be supposed, the result was very satisfactory to my friends and to me.

When I returned to Washington after having been re-elected, I was warmly greeted by my colleagues in the Senate who had been watching the contest; and I recollect that Senator Hanna was particularly warm in his congratulations, and remarked that it was the prettiest political fight he had witnessed in a long time.

I want to say something in reference to the Hon. Joseph G. Cannon, who was a candidate against me at this time, and who is now, as he has been for years past, the leading member of the Illinois delegation.

I regard him as my personal friend, and was very glad indeed to support his candidacy for the Presidency in 1908, I being chairman of the Illinois delegation to the Chicago convention that year.

At the time he entered the contest against me, he had long been one of the leaders of the House of Representatives in Congress. After refusing to enter the scheme of Governor Tanner to defeat me, as I have stated, he retired from the contest, was soon re-elected to Congress, and almost immediately elected as Speaker, in which position he continued for a larger number of consecutive terms than any statesman in our history. He is a strong, courageous man, and a man of splendid ability. He had rather a stormy career as Speaker, but he controlled the situation all the time. During his last term as Speaker he might have gotten along with the House a little more smoothly, and at the same time just as satisfactorily to himself, if he had yielded a little to his colleagues in his party who differed from him. If he had been disposed to do so, much friction could have been avoided, and at the same time he would have had his own way in caring for the interests of the country. I have believed in him and have stood by him through thick and thin, and I know he has done nothing but what he himself believed right.

Joseph G. Cannon has his own notions of what is right and what is wrong, and fearlessly follows what he thinks is right, without reference to what anybody else may think or say. The apparently determined effort on the part of the masses of the people, and especially the newspapers, to discredit the Payne-Aldrich Tariff Bill resulted in the Democrats carrying the House in the campaign of 1910 with the result that in the Sixty-second

Congress the Democratic party has a substantial majority, causing the retirement of Mr. Cannon from the Speakership.

For a time Mr. Cannon was apparently very unpopular and the people seemed disposed to hold him responsible for much they did not approve of in legislation; but his feeling is passing away, and Mr. Cannon will be regarded as an able legislator, an able Speaker, a man who has during his service in Congress saved the Government untold millions. His honesty and devotion to duty cannot be doubted, and he will go down in history as one of the foremost leaders in Congress of his day, when those who are now criticising him are forgotten.

On January 16, 1907, I was by the Forty-fifth General Assembly elected for the fifth time as United States Senator from the State of Illinois. This was an entirely different contest from any previous one I had ever had, as the State had enacted a primary law which contained a proviso that the names of candidates for United States Senator could be placed on the ballot and voted for at the primaries, but that such vote was advisory merely. This is as far as the primary law can go on the question of the election of United States Senators. I had not the slightest objection to having my name go before the people, the individual voters, as a candidate for the Senate. The first primary law was declared unconstitutional by the Supreme Court of the State, and as soon as I heard the decision I promptly wired the Governor, commending him for his announcement that he would call a special session of the Legislature to enact a new primary law, and I took occasion to add that I hoped my friends would work with him in the passage of the law, and that it would provide for a vote on United States Senator.

The Legislature did enact a new law, providing that the primaries be held in August, 1906. Former Governor Richard Yates was the only candidate against me. He made a canvass of the State, and a very thorough one. He

had a considerable advantage in that he had almost all the politicians in the State who were holding State offices actively working for him. I made no canvass and personally did very little about it at all. I was willing to leave the matter to the people, and determined, if it was a fair vote, to abide by the result of the primaries, and if defeated at the primaries to support Governor Yates. I believe that Governor Yates had the same determination,—at least his conduct after the primaries, in withdrawing from the contest, would indicate that he had. I am glad to be able to say that throughout the contest and at its close, he acted very fairly. He made a straight, fair fight, and lost, then abided by the result, just as I would have done had I lost. My friends in different parts of the State took an active interest in my behalf, for which I want to avail myself of this opportunity to express to them my appreciation. I might add here that all during my public career it has been my good fortune to have the support and friendship of a very high class of men, men whose honor and integrity were beyond question, and who were capable of filling any office. I cannot undertake to name them, but I know that they will understand the deep debt of gratitude that I owe to them.

It was very flattering to me that I carried the primaries by a substantial majority, having carried the popular vote, a majority of the Senatorial districts, and a majority of the Congressional districts. It demonstrated to me that the people had confidence in me and were satisfied with my record as a Senator. It was the first time that I had been voted for directly by the people for any office since my re-election as Governor in 1880. The result could not but be gratifying.

Every one in the State accepted the result of the primaries, and the question was regarded as settled. When the Legislature convened, I was the unanimous choice of the Republican caucus and was voted for by every Republican in the Legislature on joint ballot. There seemed to be no bitterness or hard feeling on the part of any one.

After the general election in November, I returned to Washington to prepare for the session of Congress, and there was so much important work before my committee and in the Senate generally, that it seemed impossible for me to leave there in order to thank the members of the Legislature for the high honor they had conferred upon me.

I addressed a letter to the members of the Forty-fifth General Assembly, which was read, and from which I will quote:

"I desire to express to the Republican members of the Forty-fifth General Assembly my profound gratitude for your action in unanimously declaring in favor of my re-election to again represent Illinois in the United States Senate.

"In electing me to the United States Senate for five consecutive terms, a greater distinction will be conferred by the State than has been conferred upon any other man in the history of Illinois.

"I shall appreciate this election the more, because for the first time the question of the selection of a United States Senator was submitted to the people, and without any active campaign on my part, the great majority of the voters declared me to be their preference.

"Until the recent primaries, my name had not been submitted directly to the voters of the State since I was re-elected Governor in 1880, and it was no small gratification to me, after twenty-six years had come and gone, to have this expression of continued confidence and approval of my record as a Senator.

"I wish now to return my most sincere thanks to the people of the State who have thus signally honored me.

"During the twenty-four years I have represented the State in the Senate, I have endeavored to the best of my ability to perform my whole duty to the country and the State, and the only pledge I can make is, that I shall continue in the performance of my duty in the future as in the past.

"I would prefer to have the pleasure of being present when a Senatorial election takes place, in order to express personally to the Legislature my appreciation; but there are so many important questions to settle, and so much important legislation to enact during the short session of Congress, ending as it does on March 4, that it has seemed to me to be more in accord with my duty to remain in Washington in the performance of my official business.

"Your Legislature assembles this year in the midst of the greatest era of prosperity that has ever prevailed in this country. There has never been a time in our history that we have had so long an uninterrupted period of prosperity. This prosperous and happy condition has come as the result, in a large part, of Republican rule and Republican policy.

"For nearly forty-five years the history of the United States has been the history of the Republican party, because, with the exception of two short periods, Republican administration has guided the destinies of the Nation; and the achievements of Republican administrations during those forty-five years constitute the greatest record in our history, and that record is a complete defence of the party against assaults from whatever quarter.

"We stand to-day at the head of all the Nations in the value of imports and exports, and these maintain the prosperity our country has enjoyed since the American people declared in favor of a protective tariff and a sound-money standard.

"The people do not prosper under vicious government. Good government is essential to real prosperity, to properly develop and to advance it. The Republican party has always secured for the Nation stability, confidence and prosperity at home, and respect and prestige abroad.

"We are to-day at peace with all the Nations of the world. Perhaps never before in our history have we had such intimate and friendly relations with all the great Nations as we have to-day. Our country has the respect of all the Governments of the world, great and small. We are gradually assuming the first place among the naval powers; but, unlike the older Nations, we are acquiring a great navy in the interest of peace. Under the policy of this Government, such a navy is one of the surest assurances against war. The Nations know that the United States stands for peace, and under Roosevelt's Republican administration, greater progress has been made in the direction of international arbitration as a means of settling disputes among nations than under any other previous administration in our history.

"While the nations know that we stand for peace, they also know that we will not tamely submit to the imposition of wrong, or to offenses against our own honor and dignity, or to the oppression of our sister republics in this Western world. We have no desire to rob these republics of their independence, or a single foot of their territory. Our recent action in Cuba has been an object lesson to these republics, and to the world at large, of our disinterested friendship. As we have repeatedly assured them, our only desire is that they shall follow us in peace and prosperity.

"The construction of the great canal across the isthmus of Panama will bind them closer to us, and at the same time will almost double our strength as a naval power.

"Too much credit cannot be given to President Roosevelt for the great and wonderful results which he has accomplished in the interest of the

country, but the legislative branch of the Government has done its full share.

"The record made during the last session of Congress in the enactment of wise laws for the direct benefit of the people has not been equalled since the Civil War—if at all, since the adoption of the Constitution.

"I will not detain the caucus longer than to repeat my sincere obligations to you and to express through you my thanks to the people of the State, whose representatives you are, for the signal honor that has been conferred upon me."

CHAPTER XXXIV CONCLUSION

Generally I might say that I am quite content; but as I sit down now in the evening time of my life, it is a source of sadness and wonder to me that I have survived both my wives and all of my children. One by one I have laid them away in beautiful Oak Ridge Cemetery, in Springfield, where I myself will one day be laid beside them. I have had a delightful home life; no man could have had a more happy and peaceful one. As I look back now, I cannot remember that either wife or children ever caused me one moment's pain. I was twice married. My first wife, Hannah M. Fisher, to whom I was married in 1855, and who died in 1861, was of a very amiable spirit, a woman of more than ordinary culture, and was the mother of my first two children, Mrs. Ridgely and Mrs. Hardie, who lived to womanhood, but both of whom have passed away. My second wife, Julia Fisher, was the sister of my first wife. No better or truer woman ever lived. She was a devoted helpmate to me during all the years that I have occupied high public office and needed the support and help of a woman. She did her full part and filled her place on every occasion with dignity and propriety. It seems that her death is the last great sorrow I shall have to bear.

The memory of the children whom I lost in their infancy is naturally dimmed by the passage of time, but it is hard for me to understand the justice of things when I remember the death of my two daughters, Ella, wife of William Barret Ridgely, and Carrie, wife of Robert Gordon Hardie, who were taken just in the very prime of womanhood, just in the most beautiful period of a woman's life, and just at a time when they had the most to live for.

As I think of it now, I do not know where I obtained the strength to survive all these sorrows. I have no great fear of death, except the natural dread of the physical pain which usually accompanies it. I certainly wish beyond any words I have power to express that I could have greater assurance that there will be a reuniting with those we love and those who have loved us in some future world; but from my reading of Scripture, and even admitting that there is a hereafter, I cannot find any satisfactory evidence to warrant such a belief. Could I believe that I should meet the loved ones who have gone before, I do not know but that I should look forward with pleasure to the "passing across." Not having this belief, I am quite content to stay where I am as long as I can; and finally, when old Charon appears to row me over the river Styx, I shall be ready to go.

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